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# *House of Representatives*

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. BOST).

## DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
*June 14, 2016.*

I hereby appoint the Honorable MIKE BOST to act as Speaker pro tempore on this day.

PAUL D. RYAN,
*Speaker of the House of Representatives.*

## MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 5, 2016, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

## END HUNGER NOW

The SPEAKER pro tempore. The Chair recognizes the gentleman from Massachusetts (Mr. MCGOVERN) for 5 minutes.

Mr. MCGOVERN. Mr. Speaker, the 1996 welfare reform law imposed new limitations on able-bodied adults without dependents, known as ABAWDs, receiving food assistance through the SNAP program. These 18- to 49-year-olds who do not have children or serve as caretakers to other individuals have access to SNAP for only 3 months in any 3-year period when they are not employed at least half time or are in a work training program.

It is important to note that the law doesn't require States to offer job training programs—most do not—and SNAP recipients have their benefits cut off after 3 months even if they are searching for work or are working less than 20 hours per week.

So who are the ABAWDs?

While some on the other side of the aisle tend to stereotype these vulnerable adults, the truth of the matter is there is no one face to the ABAWD population. This is a very diverse group. About 45 percent are women. Close to one-third are over 40 years old. Many have limited educational experiences, with more than 80 percent having no more than a high school education or a GED. Some have mental health issues, difficult histories of substance abuse, or are ex-offenders who have nowhere else to turn, and as many as 100,000 are veterans.

These childless adults on SNAP are extremely poor and often experience chronic homelessness. They often turn to SNAP as a safety net when they lose their jobs, when their hours at work get cut, or when their wages are so low they are unable to make ends meet. Most childless adults on SNAP who are able to work do. At least 25 percent of these households work while receiving SNAP, and about 75 percent work in the year before or after receiving benefits. While many struggle with job insecurity, among those households that worked in a typical month while receiving SNAP or at some point during the following year, about half worked full time for 6 months or more in the year after they were on the program.

Because childless adults receive only limited government assistance, access to SNAP becomes a critical lifeline to these Americans who are living in poverty. After these vulnerable adults leave the SNAP program, research suggests that many continue to face incredible hardship. While some continue to struggle to find jobs, former SNAP recipients who work tend to earn low wages that keep them in poverty. They struggle to get the healthy food they need. Often, they must eat less or skip a meal entirely because they simply have no money with which to purchase food.

A provision in the 1996 welfare law allows States to suspend the 3-month limit in areas with high and sustained unemployment. In the aftermath of the Great Recession, Democratic and Republican Governors requested and received waivers from the 3-month limit, and the limit has not been in effect in most States during the past several years. But as the economy continues to recover, fewer areas qualify for waivers despite the fact that many of these vulnerable Americans still struggle to find long-term, stable jobs. As these waivers expire this year, it is expected that more than 500,000 and as many as 1 million of our poorest neighbors will be cut off from SNAP. Thousands already began losing their benefits on April 1 as 23 States began implementing the time limits for the first time since before the recession.

These waivers are providing support as they were intended to: helping our communities overcome hardship and providing a lifeline to vulnerable adults who are unable to find work during difficult times. So I am greatly disappointed by the proposals offered by Speaker RYAN to eliminate the ability of States to request these waivers during times of economic hardship.

Mr. Speaker, cutting off food assistance for vulnerable adults who are unable to make ends meet is a rotten thing to do, and it only makes hunger worse in our communities. How does making hunger worse make it easier to get a job? Every single congressional district is home to Americans who are struggling with hunger. The hardships they face are exactly why such cuts are so cruel. These proposals are mean-spirited, political documents that are



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based on the false narrative that people don't want to work.

If my Republican friends were serious about getting people back to work and responsibly moving those who can work off of public assistance, their budgets would reflect that, but they don't. Republicans have offered no guarantees that vulnerable Americans will have access to job training programs that will get them back to work. Many job training programs are already stretched incredibly thin. If Republicans were serious, they would increase job training funding so that more Americans could get the help they need to get back on their feet. And, at every turn, they have resisted calls to increase the minimum wage. Work ought to pay in this country.

I sometimes wonder if my friends on the other side of the aisle have ever met working people who are living in poverty and who rely on SNAP for access to food. The truth is their neatly packaged rhetoric doesn't match the reality of those who are working to make ends meet.

We must reject harmful attempts to limit SNAP participation for our vulnerable neighbors and, instead, work on solutions to end hunger now.

## SYRIA

The SPEAKER pro tempore. The Chair recognizes the gentleman from West Virginia (Mr. MOONEY) for 5 minutes.

Mr. MOONEY of West Virginia. Mr. Speaker, on May 1 of last year, I came to this floor to speak on behalf of the Syrian people. I called for stronger leadership from our Commander in Chief, President Barack Obama, in the Syrian conflict. Specifically, I urged the President to establish no-fly zones to protect innocent lives. At that time, 200,000 Syrians had already died.

The administration has failed to act, and, today, Syria remains in crisis. The number of Syrians killed through the civil war has now doubled to 400,000. Many of these casualties are civilians: women, children, doctors, and teachers. So, Mr. Speaker, I come to this floor again to say that this slaughter of innocent human life must end, and it will not end unless the United States takes the lead fearlessly and immediately.

I meet regularly with Syrian Americans who live in my congressional district in Charleston, West Virginia. They have told me the stories of their friends and families in the city of Aleppo, which is a financial and cultural center in Syria. Aleppo is now on fire and under siege. Just last week, a civilian bus was the victim of an airstrike where 10 were killed, including three women and two children.

Sadly, this type of violence is a daily occurrence in Aleppo and elsewhere in Syria. Hospitals, markets, schools, bus stations, warehouses: none of these places are off limits for bombings and destruction. If America does not take immediate actions to end the current humanitarian crisis, thousands more will die, and we will look back on this period of history knowing that America failed both the Syrian people and the cause of freedom.

We must move quickly to protect the innocent civilians who are under attack. This means America must use its influence to stop the current flurry of airstrikes on civilian areas, and Russia must be part of this solution. If America fails to lead in negotiating a ceasefire immediately, the catastrophic losses of life will continue.

We must accomplish a longer term cessation of hostilities, and we must allow the Syrian people free movement so that the innocent are able to escape harm's way. A no-fly zone must be established so that Syria is able to heal into a place that promotes justice and freedom for all citizens.

Does this photo of Syria look familiar? You may remember seeing similar destruction in Bosnia almost 20 years ago. This is Bosnia. The war in Bosnia in the mid-1990s provides a thought-provoking blueprint as we search for solutions in Syria. With the disintegration of Yugoslavia in 1992, the region devolved into an ethnic civil war—first in Croatia, then in Bosnia. Serbian strongman Slobodan Milosevic began instituting a policy of ethnic cleansing by which whole populations were forced from their homes and were killed.

For 4 years, the United States remained passive in the conflict, but in the summer of 1995, under President Bill Clinton, America took decisive military action with a series of airstrikes that brought Milosevic to the bargaining table, that forced peace, and that, ultimately, removed Milosevic from power. Today, Bosnia and Croatia are flourishing countries and are top destinations for many international tourists. Here is Bosnia today.

We must apply these lessons of the war in Bosnia to the current conflict in Syria. The United States must take decisive leadership in returning long-term stability to Syria. Unless America and our allies are willing to use force, Russian and Syrian leaders will not respect us or have reason to negotiate peace.

To enable the citizens of Syria to live free from fear and to thrive, we must do at least three things: establish safe zones along Syria's border with Turkey; ramp up our efforts to train Syrian opposition forces who have proven they are not extremists; and help Syria institute a new coalition government. Peace in Syria is impossible while Assad remains in control. He has proven this point time and again by his reckless and evil use of chemical weapons and other cruel tools of war on his own people.

America cannot address the humanitarian crisis and restore long-term stability to Syria on our own. We must engage with our partners around the world who share a mutual interest in the cause of freedom. But, no matter what, President Barack Obama must act now, or even more lives could be lost. I encourage my colleagues in this chamber to join me in this call to action.

## ORLANDO SHOOTING

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, we should all be concerned with the killing of innocents. Let's start right here in America where we are under attack.

We are all still reeling from the horrific violence in Orlando—49 killed, more than 50 wounded. It is the worst mass shooting in American history. The killer was someone who, in his own words, identified with ISIS, a madman's fury directed at the GLBT community, who were slaughtered in a place of comfort, release, and joy. It was especially jarring because this has been an unprecedented period of progress for the GLBT issues on every front. New landmarks have been achieved.

While this outrage is tragic, horrifying, and frustrating, it is important that people understand that the advocates of GLBT equality and of a rational approach to gun safety are not going to stop in their efforts for reform. The unprecedented outpouring of support in the wake of Orlando ought to be a source of comfort and strength for the GLBT community as people everywhere reaffirm their support and stand in solidarity for full equality. Our Pride Parade in Portland this weekend is going to be larger and more enthusiastic than ever.

The equality tide is not going to turn, and the silly bathroom police in North Carolina is not where America is going or even where North Carolina will be in the future. While it seems gun violence continues unchecked by sensible gun safety laws, that tide, too, is poised to turn. We know what to do. No one needs an assault rifle to hunt; although it is very efficient to slaughter little children in school or people in a nightclub.

There are dozens of simple steps that can be taken to protect Americans, steps which are, in fact, supported broadly by the public, not just by the majority of Americans but by most gun owners themselves. We should start with universal background checks for all gun purchases. Someone on the terrorist watch list should not be able to purchase a gun; no fly, no buy. If we can personalize our cell phones so that others can't use them, we ought to be able to make smart guns so that others cannot use guns unauthorized.

□ 1015

When somebody fails a background check, that ought to be reported to the authorities, who it was, and why.

We can repeal the inane prohibition on gun safety research that stops us

from treating the epidemic of gun violence like we would any other public health crisis. It is interesting that even the author of this misguided policy 20 years ago now realizes it was a mistake, and he has changed his mind and wants to overturn it.

Just like automobile safety, we can take dozens of small steps to reduce gun violence. Not eliminate it altogether, but we don't stop treating cancer just because some people die; so it is with our commitment to gun safety. If we can stop a few tragic acts, it is worth it to reduce the number of attacks and save lives.

We are poised for one of the most consequential elections in anybody's memory. Let's make it count. We have an opportunity to stand in solidarity with our brothers and sisters in the LGBT community. We can join with President Obama and Secretary Clinton for enlightened national leadership, stand with the LBGT community committed to making this tragedy a turning point. This is the year to deliver on full LBGT equality and commonsense gun safety.

## ACADEMY APPOINTEES

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. JOLLY) for 5 minutes.

Mr. JOLLY. Mr. Speaker, I rise this morning to recognize a group of remarkable young people from Pinellas County, Florida, who have excelled among their peers and answered the call to duty to serve their fellow Americans. These young men and women have tested and proven themselves academically, athletically, and physically, and have demonstrated the leadership skills necessary to now be offered appointments to one of our United States Service Academies.

It is an honor to recognize these young men and women from Florida's 13th Congressional District today.

Receiving appointments to attend the U.S. Military Academy at West Point are:

Elizabeth Brown-Worthington of Gulfport, Florida, a graduate of Boca Ciega High School;

Andrew Buck of Tierra Verde, Florida, a graduate of Saint Petersburg Catholic High School;

Sean McClair of Seminole, Florida, a graduate of Osceola Fundamental High School and the U.S. Military Academy Preparatory School;

Tyler Mitchiner of Clearwater, Florida, a graduate of Palm Harbor University and the U.S. Military Academy Preparatory School;

William Moorhead of Clearwater, Florida, a graduate of Clearwater Central Catholic High School;

Patrick Prior of Saint Petersburg, Florida, a graduate of Osceola Fundamental High School;

John Rusnak of Seminole, Florida, a graduate of Saint Petersburg Catholic High School.

Receiving appointments from Pinellas County to attend the U.S. Naval Academy in Annapolis are:

Connor Price of Safety Harbor, Florida, a graduate of Palm Harbor University High School and the U.S. Naval Academy Preparatory School;

Jared Price of Safety Harbor, Florida, a graduate of Palm Harbor University High School and the U.S. Naval Academy Preparatory School;

Zack Quilty of Saint Petersburg, Florida, a graduate of Jesuit High School; and

Ethan Singer of Clearwater, Florida, a graduate of Countryside High School.

Receiving appointments to attend the U.S. Air Force Academy from Pinellas County, Florida are:

Brian Brown of Safety Harbor, Florida, a graduate of Countryside High School;

Dalton Collins of Largo, Florida, a graduate of Admiral Farragut Academy and the U.S. Air Force Academy Preparatory School;

Joseph Gannaio of Clearwater, Florida, a graduate of Calvary Christian High School;

Thomas ''Trey'' Walker of Saint Petersburg, Florida, a graduate of Saint Petersburg High School.

Receiving appointments to attend the U.S. Merchant Marine Academy from Pinellas County, Florida, are:

Jackson Misner of Tampa, Florida, a graduate of H.B. Plant High School; and

Sofia Tucker of Navarre, Florida, a graduate of Navarre High School.

Finally, receiving an appointment to attend the U.S. Coast Guard Academy is Olivia Suski of Seminole, Florida, a graduate of Seminole High School and the Marion Military Institute.

These future cadets and midshipmen that we recognize today will be the future leaders of our military forces and our Merchant Marine. I wish them Godspeed in the challenges of their summer training and the academic years to follow.

These young people represent the best of America, and we each look forward to witnessing their future success and their service to country.

We, the House of Representatives, can have great confidence in our Nation's future as we entrust it to these appointees and those of my colleagues here in Congress.

## ORLANDO MASSACRE

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Ms. SPEIER) for 5 minutes.

Ms. SPEIER. Mr. Speaker, this is what our moments of silence have brought us:

A silent nightclub. The only sound is the frantic ringing of cell phones that would never be answered and silent bodies where there should be life, love, and pride. And, here, a silent Congress.

Mere words cannot express the depth of my rage and grief. Forty-nine lives lost in the middle of Pride Month when they should have been safe and celebrated. Forty-nine families devastated by the loss of their loved ones. Forty-nine phones ringing and ringing and ringing.

There were also frantic texts, like Eddie Justice's final message to his mother: ''Mommy, I love you. He's coming. I'm gonna die.''

If you can hear these words without your heart breaking, if you can think of those little children gunned down in Newtown without breathing, if you can think of empty pews in Charleston without mourning, then truly you have lost your souls.

Hateful people like to compare LBGT equality to the sin-filled Biblical cities of Sodom and Gomorrah, but we here in Congress are the real Sodom and Gomorrah.

Are there not 218 Members here to stand against this bloody tide?

I ask you today: How many lives must be destroyed before Congress acts?

Nine lives? Charleston showed us nine is not enough.

Thirteen lives? Columbine showed us that 13 was not enough.

Certainly, 27 small children killed in their classrooms in Newtown? No, not enough.

The 32 lives lost at Virginia Tech, again, not enough lives. The more than 33,000 Americans killed each year by guns, not enough.

Now 49 people have been mowed down and murdered in Orlando, yet even this historic tragedy, the biggest mass murder since 9/11, hasn't been deemed big enough, horrific enough, or insidious enough to break the weak-kneed, spineless, silent Members of Congress.

Congress is happy to debate for hours about bathrooms, but bring up the gun violence killing of thousands? Absolutely not.

Radical Islam or homegrown American homophobia or a toxic stew of both may have inspired the Orlando shooter. No doubt we will learn about his disgusting motivations in the coming weeks.

But there are simple actions we can take right now, actions that would have reduced the deaths in Orlando as well as in Aurora, Newtown, San Bernardino, and at Umpqua Community College. All these killers use AR–15s. All of them used weapons of mass destruction.

First, let's make sure every gun purchase requires a background check rather than just 60 percent of gun purchases.

Why have we created a separate market for criminals, domestic abusers, and mentally ill?

Let's ban assault weapons that have time and time again caused mass bloodshed. The American people are too familiar with the AR–15, a weapon designed to hunt Americans in their most vulnerable places: the classroom, the movie theater, the nightclub.

Whether the would-be killers are Islamic extremists or American White supremacists or disgruntled coworkers, banning assault weapons would prevent mass bloodshed on the scale we saw

last weekend in Orlando. Motive doesn't matter without the means.

Finally, we must lift the ban on gun violence research. Our best minds should have access to gun violence statistics and be encouraged to study ways to stem the tide of violence. The Second Amendment cannot be abridged by basic scientific studies.

Would these policies stop all gun violence? Of course not.

But I am repulsed by the moments of silence that just are for show. No other industrialized country has such blood-soaked streets. By remaining silent, we are complicit in these crimes.

To the Latino and LGBT communities that are dealing with this unimaginable tragedy, I mourn with you and stand with you against this tide of hatred.

To my colleagues, I plead with you, please, stop the idolatry of weapons of death.

## REMEMBERING THOSE LOST IN THE JUNE 11TH SHOOTING IN ORLANDO

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I join my colleagues in praying for the victims and the impacted families from Saturday's terrorist attack in Orlando, Florida.

This terrorist attack serves as a reminder that we must do everything possible to defeat those who inspire hate and we must eradicate ISIS before other incidents occur.

Mr. Speaker, over the past 2 years alone, 73 American lives have been taken by acts of terrorism here at home, in the United States.

Mr. Speaker, the first duty of American leadership is the safety of our citizens and our families. When American leadership fails, our citizens pay a heavy price.

### CELEBRATING THE 100TH ANNIVERSARY OF FARM CREDIT

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today in recognition of the 100th anniversary of the farm credit, which was signed into law through the Federal Farm Loan Act of 1916 and was created to be a source of competitive credit for those who live and work in rural America.

Today, the farm credit system plays a vital role in the success of our rural communities throughout our 50 States and in Puerto Rico, providing more than $237 billion in loans to more than 500,000 customers.

Now, while the farm credit system has a national footprint, its leaders are local. There are nearly 75 independently owned and operated farm credit organizations across the Nation, acting as cooperatives, owned by its customers with a deep understanding of agriculture in their area.

Agriculture is the number one industry in Pennsylvania, my home State, and I can tell you that the farm credit system has played a major role in helping farm families survive and thrive through the use of financing, the construction of new buildings, the purchase of land, the pursuit of agribusiness opportunities, and the purchase of new equipment to remain competitive.

The farm credit system has also been vital to helping new farmers in Pennsylvania hit the ground running and to start to grow their new businesses.

Mr. Speaker, American agriculture is responsible for feeding our local communities, our Nation, and the world as a whole. It is my hope that the farm credit system will assist our farms for generations to come.

## AL RIDDLEY'S PRAYER

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Illinois (Mrs. BUSTOS) for 5 minutes.

Mrs. BUSTOS. Mr. Speaker, I rise today to recognize Al Riddley of Springfield, Illinois, who is giving this afternoon's opening prayer.

This tradition of a congressional prayer dates back all the way to the Continental Congress in 1774. It has guided the House of Representatives through trying and through difficult times. That is why I can think of no better person to lead us in prayer this afternoon.

Al has dedicated his life to helping others and improving our communities in Illinois. Throughout his entire professional career, he has extended a helping hand to the most vulnerable, especially our friends and our neighbors in need.

Al serves on the Governor's Commission on the Elimination of Poverty. As the recent past executive director of the Illinois Coalition for Community Services, he has worked to empower volunteers through education and grassroots organizing.

As a minister, Al gives the best sermons I have ever heard. He can move congregations to tears. He can give them a good laugh. And I can guarantee you that if you hear him, there is never a congregation that doesn't walk away feeling inspired to make a difference in the lives of their neighbors.

That is why it makes me proud to say that Al Riddley is going to be giving the opening prayer later this afternoon, and I am honored to have him here with us today.

## TRUTH ABOUT THE BABY BODY PARTS INDUSTRY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Missouri (Mrs. HARTZLER) for 5 minutes.

Mrs. HARTZLER. Mr. Speaker, today I rise to bring attention to the research that the Select Investigative Panel on Infant Lives is conducting. On April 20 of this year, Select Investigative Panel on Infant Lives Chairman MARSHA BLACKBURN held a hearing on the pricing of fetal tissue and found broad consensus among witnesses that Federal law may have been violated when abortion clinics profited from the sale of baby body parts and the privacy of women may have been violated in the process.

Let's take a look at what the panel found. First, and possibly the most shocking, is a Web site where one procurement business, whose name has been redacted, has set up an online order form. From this Web site, a user can select what type of parts they want: baby brains, baby tongue, scalp, reproductive organs. The quantity is then selected of the gestational period chosen. The user even has shipping options.

This is truly appalling. This is online shopping for baby parts, and this procurement business has made it as easy as possible.

□ 1030

But these procurement businesses are not doing this by themselves. They are only the middlemen in a transaction between the supplier—or abortion clinic—and the end user.

As seen on exhibit B2, this procurement business markets itself in its brochure to abortion clinics as a way for the clinics to make additional income by allowing the procurement business technicians to collect tissues and organs from aborted babies immediately after an abortion is completed. The brochure uses the words ''financially profitable,'' ''fiscally rewards,'' and ''financial benefit to your clinic.''

The Select Investigative Panel on Infant Lives' investigation revealed that the procurement business technician performs every conceivable task in the harvesting process immediately after an abortion. For this, the procurement business is charged a fee by the clinic, even though the clinics are not incurring any additional costs in the process, thus they are making money off of this horrific act.

It is important to note at this point that the underlying statute allowing for the donation of fetal tissue assumes the tissue would be for transplantations and research and would not be sold. Further, in 1993, former Democrat Congressman Henry Waxman, who wrote the restrictions into law, stated on the House floor: ''This amendment would enact the most important safeguards to prevent any sale of fetal tissue for any purpose, not just the purpose of research.'' He went on and said: ''It would be abhorrent to allow for the sale of fetal tissue and a market to be created for that sale.''

So what have these clinics done? Well, just the opposite, it would seem. This shows an abortion clinic charged the middleman $11,365 for harvested baby parts or what they call POCs, products of conception, and blood. Exhibit D2 shows the abortion clinic charged the middleman again, this

time $9,060, for harvested baby parts and blood even though the clinic did not incur any additional expense in the harvesting process.

This is the very market Congressman Waxman called abhorrent, and he was right. It is abhorrent. How callous does one have to be to rob a baby of life and then charge others for the pieces of the corpse? This is beyond disturbing.

Just as disturbing, the Select Investigative Panel on Infant Lives also found that women's privacy rights appear to have been violated in the process. After the online order form comes to the procurement company from a researcher, it goes to the procurement company's technician, who is embedded in the abortion clinic.

The technician then, without their consent, reviews the woman's medical records to see if their baby's age and gender match that day's order. If so, the technician then goes to the woman, befriends her, and coerces her to give consent by lying to her—and this is a Planned Parenthood consent form—claiming that blood from pregnant women and tissue that had been aborted have been used to treat and find a cure—find a cure—for such diseases as diabetes, Parkinson's disease, Alzheimer's, cancer, and AIDS. As we know, this is not true.

From there, the procurement technician dissects the aborted baby in order to harvest the specific organs that were ordered and ships them off. The Select Investigative Panel on Infant Lives' investigation into this issue is already illustrating that the clinics are turning the sale of baby body parts into a business, and they are making a profit doing so.

No woman should be treated this way. No woman should have her private medical records given to a for-profit company so they can use her for financial gain. These practices are deplorable, and they must end.

## WE ARE ALL MOURNING THE SENSELESS VIOLENCE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Massachusetts (Mr. KENNEDY) for 5 minutes.

Mr. KENNEDY. Mr. Speaker, regardless of our party affiliation or our congressional district, we are all mourning the senseless violence and loss of life in Orlando.

As we learn the names and the stories of each victim, our focus now turns to how we respond, how we prevent another act of terror and hate, another tragedy to which this country has become far too accustomed.

We face a multitude of shortcomings that this Nation must account for: access to guns designed to maximize death and destruction as well as the very real threat that violent extremism and homegrown terrorism pose to American lives. Two debates, it is worth noting, that this body has repeatedly failed to take up.

In the days and weeks ahead, these issues deserve and demand our attention. But as we wrestle with the means by which terror was expressed, we cannot ignore the specific target it sought: the LGBT community.

We often use words like ''indiscriminate'' when we talk about gun violence, referring to the terrifying randomness these tragedies can reflect, the sense that it could happen anywhere, anytime, to any of us. We cannot use the term ''indiscriminate'' here. While the details are still coming to light, all signs point to a crime motivated by hateful prejudice against a specific subset of our population.

It comes at a particularly difficult time. This month is LGBT Pride Month, 30 days to celebrate what it means to be an LGBT American, to be true to yourself, to remember the blood, sweat, and tears that activists and advocates have shed for generations demanding better of their country.

On Saturday afternoon, I walked through the streets of Boston for our Commonwealth's annual Pride Parade. It is one of my favorite events of the year—the celebration, jubilation, camaraderie, and energy that takes the city by storm. The first year I participated, I had the honor of marching with my predecessor, Congressman Barney Frank. The year after that, I walked with my former college roommate, Jason Collins, who had recently come out as the first gay professional athlete in a major U.S. sport.

Standing next to Congressman Frank and Jason, I saw not only what their presence meant to that sea of supporters surrounding us, but what those supporters mean to them: an incredible wave of love and acceptance that they had to fight a lifetime to see—a statement of support from community and country that most of us get to take for granted.

This past Saturday was no different. Love and tolerance emanated from every sidewalk, every storefront, and every street. Yet less than 24 hours later, we woke up on Sunday to the devastating images of the Pulse nightclub: families and friends searching for loved ones; heroes carrying injured victims in their arms to a nearby hospital; strangers waiting in line for hours to donate blood; a community far too accustomed to violence and hate forced to confront a painful truth—that for all of our recent strides and successes, this country continues to give discrimination against the LGBT community a home.

While this body stands firmly united in heartbreak and horror over what transpired on Sunday morning, we cannot ignore the example that our actions—or inactions—have helped set. Our Nation was founded on a sacred promise of equal treatment under the law; yet, even today, we still fall short.

When we allow some Americans to be fired from their job because of who they love, when we deny access to public accommodations because of who you are, when we fail to end legalized discrimination in businesses and hospitals and homeless shelters, when we set policies that treat an entire community as less worthy of our protection, then we cannot be surprised when that prejudice takes root across the country and rears its head with gruesome, gut-wrenching consequences.

Bigotry begets violence. This is a lesson our country has learned time after time at tremendous human cost. Today, if we are serious about responding to hate, then we have to dismantle the policies within our Federal Government that give it cover.

## CELEBRATING THE 100TH ANNIVERSARY OF THE FARM CREDIT SYSTEM

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. ROSS) for 5 minutes.

Mr. ROSS. Mr. Speaker, today I rise to recognize the 100th anniversary of the Farm Credit System. Established by Congress in 1916, Farm Credit's mission is to provide a reliable source of credit for United States farmers.

At the time of Farm Credit's creation, credit was virtually unaffordable or inaccessible in rural areas. Over the next 100 years, Farm Credit helped our Nation's farmers survive the Great Depression, feed a country during World War II, and survive nearly two decades of a farm crisis.

Today Farm Credit provides more than one-third of the credit needed by those living and working in rural America. In my home State of Florida, Farm Credit is the largest single lender to agriculture. It is made up of people like a good friend of mine, Al Bellotto, a World War II hero who survived Iwo Jima and Okinawa, came back home and served for 35 years as the chairman of the Farm Credit of Central Florida and is now a chairman emeritus and member of Florida's Agricultural Hall of Fame. It is people like him who make sure that Farm Credit is dedicated to the people and to the business of agriculture, the heart and lifeblood of the United States.

It is my hope that the Farm Credit System will continue to support our Nation's great farmers, that our agricultural industry will thrive, and in 100 years a future Representative of central Florida will be on this floor celebrating Farm Credit's 200th anniversary.

Happy anniversary, Farm Credit.

## TRAGEDY HAS ONCE AGAIN STRUCK OUR NATION

The SPEAKER pro tempore. The Chair recognizes the gentleman from New York (Mr. NADLER) for 5 minutes.

Mr. NADLER. Mr. Speaker, this week tragedy once again struck our Nation when the deadliest mass shooting in American history occurred in an LGBT nightclub in Orlando early Sunday

morning, leaving 49 people dead and more than 50 wounded. Our hearts go out to the victims and their families. So many young people in the prime of their lives were senselessly murdered.

It is hard to make sense of it all, but there are three aspects of this tragedy that I want to address today:

First, the fact that the shooter pledged allegiance to ISIS is deeply disturbing. We need to follow every lead and find out if he did, indeed, have any connection to ISIS or any other terrorist group. We must pursue those who may have inspired him, trained him, or assisted him in his deadly act, and we must take action to prevent others from being radicalized and turned into deadly killing machines.

Second, we must acknowledge that this was a hate crime targeted at the LGBT community. The killer didn't pick his target randomly. He sought out gay, young men in a club environment where they felt safe, where they felt a sense of community and acceptance, and he sought to shatter their world and terrorize and intimidate the LGBT community.

I have worked with my friends in the LGBT community for a very long time, and one thing I am sure of is that they will not be intimidated; they will not be beaten down; they will not be forced into hiding; they will not be silenced. The community is strong, it is united, and it is unashamed. The LGBT community will come together to honor the dead and then will keep educating, keep advocating, keep mobilizing for a more fair, a more just society where no one has to live in fear because of who they are or whom they love.

Third, it is clear that far fewer people would have been killed or wounded if the attacker had not had access to a deadly assault weapon. Once again, the necessity of controlling access to military-style assault weapons, whose only purpose is to kill large numbers of people as quickly and efficiently as possible, is made tragically clear.

Our refusal to ban assault weapons makes this House complicit in this and every other mass murder that we now see on a regular basis. This Chamber is drenched in blood. We must cleanse it. We must pass the long-pending legislation to reinstitute the assault weapon ban. We ban machine guns, and we had an assault weapon ban not that long ago, so it is not a radical proposal. It is not counter to the Second Amendment. It is just common sense. And yet, President George W. Bush let the ban expire, and Republicans in Congress have acted repeatedly to prevent even our consideration of renewing the ban.

Every Member of Congress who has refused to support renewing the ban should be forced to answer to their constituents, to their country, and to the countless victims and their families who have suffered so much heartbreak due to gun violence.

How can you allow such carnage to go unchecked? How can you do nothing in the face of so much pain? Why won't you stand up to the NRA and at least take the basic step to prevent mass murder? Why won't you ban people on the terrorist watch list from purchasing assault weapons? If someone is too dangerous to permit to fly, certainly he or she is too dangerous to permit to buy assault weapons.

And yet this Congress has done nothing except hold repeated moments of silence. That is not enough. This silence, combined with this inaction, makes hypocrites of us all. The American people are baffled by our silence. They demand more. They demand action, action to combat hate, to protect the LGBT community, and to control access to deadly weapons to prevent murderers and lunatics from getting assault weapons.

If the leadership of this Congress won't take action, then it ought to be replaced by a leadership that will.

□ 1045

## A DEDICATED EDUCATOR TO RETIRE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Minnesota (Mr. EMMER) for 5 minutes.

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to acknowledge Minnesota State Colleges and Universities chancellor Steven Rosenstone's upcoming retirement, and I thank him for his years of serving our State's higher education system.

Steven has dedicated his entire life to education, which began when he received his own degree from Washington University and a master's degree from the University of California, Berkeley. From there, he went on to teach political science at Yale University, and later at the University of Michigan.

In 1996, Steven came to Minnesota to serve as the dean of the College of Liberal Arts, where his hard work and vision ultimately led him to being named the chancellor of Minnesota State Colleges and Universities in February of 2011. During his time as the head of Minnesota's State schools, Steven implemented numerous policies that ensured a better and more affordable education for Minnesotans.

Thank you, Steven, for dedicating your life to helping others pursue their goals through education. We wish you a happy and restful retirement.

### THE PRIDE OF MINNEAPOLIS TURNS 150

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to celebrate the 150th birthday of a fantastic Minnesota company, General Mills.

In 1866, Cadwallader Washburn started a mill that would eventually become General Mills. Located on the mighty Mississippi, the mill was the largest mill west of the Mississippi, causing the locals to name it ''the pride of Minneapolis.''

Throughout the years, the company flourished, even through the hardest of times. During the Great Depression, while many other companies went under, General Mills thrived, creating popular products like Kix and Bisquick.

General Mills not only succeeded during these times, but extended a helping hand when it was needed. During World War II, 9 out of 10 employees worked on projects so vital to the war effort that armed guards patrolled the company.

Today, General Mills successfully markets many popular brands like Betty Crocker and Haagen-Dazs, creating jobs and making a major contribution to the great State of Minnesota and this country.

I would like to thank General Mills for feeding the Nation, and I wish them a happy 150th birthday. Here's to 150 more years of success.

### HONORING ST. CLOUD STATE UNIVERSITY'S PRESIDENT EARL POTTER

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to honor the life of St. Cloud State University president, Earl Potter, who was tragically killed in a car accident last night.

Earl was one of Minnesota's best and brightest educators, and he dedicated his entire life to this Nation's students, most recently serving Minnesota's Sixth District at St. Cloud State University. He brought innovation and positive change to St. Cloud State University over the past decade, preparing his students for life after college.

Not only was Earl Potter committed to the students within the St. Cloud community, but he dedicated his time and energy to serving the greater St. Cloud community and Minnesota as a whole. He served on the St. Cloud Area Chamber of Commerce Board of Directors, United Way of Central Minnesota Board of Directors, Greater St. Cloud Development Corporation, and the Minnesota National Guard Senior Advisory Task Force, among many others.

Earl's service extended well beyond the borders of our great State of Minnesota as well as with his service on nearly a dozen national academic boards. He was passionate about the universities he represented, the students he served, and the communities in which he lived.

We have suffered a huge loss in the St. Cloud community, and my deepest condolences go out to Earl's wife Christine, their children and grandchildren, and their loved ones across the country. The work that Earl has done for our community will be his living legacy.

## REMEMBERING THE ORLANDO SHOOTING VICTIMS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from New York (Ms. VELÁZQUEZ) for 5 minutes.

Ms. VELÁZQUEZ. Mr. Speaker, Stanley Almodovar, III. Amanda Alvear. Antonio Davon Brown. Darryl Roman Burt, II. Angel L. Candelario-Padro. Luis Daniel Conde. Cory James Connell. Tevin Eugene Crosby. Deonka

Deidra Drayton. Leroy Valentin Fernandez. Simon Adrian Carrillo Fernandez. Mercedez Marisol Flores. Peter O. Gonzalez-Cruz. Juan Ramon Guerrero. Paul Terrell Henry. Frank Hernandez. Miguel Angel Honorato. Javier Jorge-Reyes. Jason Benjamin Josaphat. Eddie Jamoldroy Justice. Anthony Luis Laureanodisla. Christopher Andrew Leinonen. Alejandro Barrios Martinez. Juan Chevez-Martinez. Brenda Lee Marquez McCool. Gilberto Ramon Silva Menendez. Oscar A. Aracena-Montero. Kimberly Morris. Akyra Monet Murray. Luis Omar Ocasio-Capo. Geraldo A. Ortiz-Jimenez. Eric Ivan Ortiz-Rivera. Joel Rayon Paniagua. Jean Carlos Mendez Perez. Enrique L. Rios, Jr. Jean C. Nives Rodriguez. Xavier Emmanuel Serrano Rosado. Christopher Joseph Sanfeliz. Yilmary Rodriguez Solivan. Edward Sotomayor, Jr. Shane Evan Tomlinson. Martin Benitez Torres. Jonathan Antonio Camuy Vega.

We will never forget. And while we mourn your loss, your memory will inspire us to fight for change.

## TIME FOR ACTION

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. DOLD) for 5 minutes.

Mr. DOLD. Mr. Speaker, I rise today because thoughts and prayers are not enough. It is time for action.

The hateful terrorist attack targeting America's LGBT community in Orlando is another reminder to come together and work across party lines to root out terrorism, prevent gun violence, and put an end to bigotry of all kinds. An attack on one American is an attack on all of us.

We cannot allow partisanship to define this debate. We must take decisive and united actions to ensure that nothing like the attacks on Orlando, Paris, Newtown, or San Bernardino ever happen again.

Congress should immediately move forward and pass the Denying Firearms and Explosives to Dangerous Terrorists Act. This commonsense bill would prohibit suspected terrorists from possessing guns or explosives. Keeping dangerous weapons out of the hands of people who wish to do our country harm is a solution that we should all be able to get behind.

The hateful attack in Orlando also reminds us once more of the growing threat of ISIS-inspired radical Islamic terrorist on U.S. soil is real and cannot be ignored or downplayed.

Congress must reassert leadership in the fight against ISIS by passing legislation to hold the President accountable for developing a comprehensive plan to destroy ISIS.

Through congressional oversight hearings, we must also ensure that Federal agencies and local law enforcement are effectively communicating with each other to identify international and homegrown terror threats through both traditional security approaches and social media.

Internationally, Congress must act to cut off sources of funding to other radical Islamic terror groups by restoring crippling sanctions on Iran. The recent agreement, which, frankly, shipped billions of dollars to the world's largest state sponsor of terror while helping finance organizations like Hamas and Hezbollah, is simply unacceptable.

At home, we cannot allow the tired, partisan bickering to distract us from the difficult but necessary work of preventing gun violence. We need to bridge the partisan divide and put the best interests of our country before politics.

A good first step is the legislation that I helped introduce with former Congresswoman Gabby Giffords to require universal background checks on firearm purchases. The vast majority of the American people support this commonsense idea, and it is past time Congress moves forward with this proposal that will keep more people safe.

We also need to improve communications so that local law enforcement is notified when someone attempts to purchase a gun and fails a required background check. My colleague, Congressman MIKE QUIGLEY, introduced a commonsense bill to make this fix, which I strongly support.

Other important efforts to prevent gun violence include my bill with Congresswoman DEBBIE DINGELL to prevent domestic abusers from being able to purchase weapons. This proposal would help, again, prohibit firearm trafficking used to evade background checks, and also, a long-overdue increase in mental health resources.

In short, there are numerous commonsense proposals, Mr. Speaker, that will keep guns out of the hands of those that should not have them while protecting our Second Amendment rights. It is time that we take action.

Mr. Speaker, there is no quick and easy solution to all the problems underscored by the Orlando terrorist attack, but if we are able to set aside partisan differences and unite in the best interests of our Nation, we can make serious strides in the ongoing efforts to keep Americans safe and prevent future atrocities.

## WE ARE ALL ORLANDO

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from New York (Mrs. CAROLYN B. MALONEY) for 5 minutes.

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, yesterday, I went down to the Stonewall Inn in Greenwich Village in New York City, where the modern gay rights movement really began.

I went there to leave some flowers in honor of those members of the LGBT community who lost their lives in the massacre—the worst mass shooting in American history—at Pulse Nightclub in Orlando, Florida.

While I stood there in solidarity with a somber crowd of allies and members of the LGBT community, it occurred to me that, just as the events at Stonewall were a turning point in the gay rights movement, this horrific attack in Orlando may serve as a turning point of its own because it is time for all of us to stand up together and say: Enough. We will not be silent. This madness must end.

And make no mistake, it is utter madness that a man with a history of domestic violence, a man who had been investigated by the FBI for his possible ties to terror, could buy an assault weapon as easily as he could buy an aspirin.

In the Pulse massacre, this man armed with an AR–15 military-type assault rifle, a weapon that he bought legally, killed 49 people and injured 50 more.

□ 1100

Earlier, at an elementary school in Connecticut, another madman with an AR–15-style assault weapon killed 26 children and their teachers. And in a theater in Aurora, Colorado, one man with one AR–15 assault weapon killed 12 and wounded 70.

In each of these mass casualty events, it took one gun and one man to brutally take so many innocent lives. In each case, the gun was an assault weapon.

Assault weapons are designed to do one thing very well, and that is to kill people very rapidly. They aren't used for hunting. They aren't used for self-defense. They are used as weapons of war.

So why is it so easy for people to purchase them and hurt others?

That is why, in 1994, three United States Presidents—President Ford, President Carter, and President Reagan—all signed a letter to the House of Representatives calling for a Federal ban on military-style assault weapons. I will place their meaningful letter into the RECORD.

MAY 3, 1994.

TO MEMBERS OF THE U.S. HOUSE OF REPRESENTATIVES: We are writing to urge your support for a ban on the domestic manufacture of military-style assault weapons. This is a matter of vital importance to the public safety. Although assualt weapons account for less than 1% of the guns in circulation, they account for nearly 10% of the guns traced to crime.

Every major law enforcement organization in America and dozens of leading labor, medical, religious, civil rights and civic groups support such a ban. Most importantly, poll after poll shows that the American public overwhelmingly support a ban on assault weapons. A 1993 CNN/USA Today/Gallup Poll found that 77% of Americans support a ban on the manufacture, sale, and possession of semiautomatic assault guns, such as the AK–47.

The 1989 import ban resulted in an impressive 40% drop in imported assault weapons traced to crime between 1989 and 1991, but the killing continues. Last year, a killer armed with two TEC9s killed eight people at a San Francisco law firm and wounded several others. During the past five years, more than 40 law enforcement officers have been killed or wounded in the line of duty by an assault weapon.

While we recognize that assault weapon legislation will not stop all assault weapon crime, statistics prove that we can dry up the supply of these guns, making them less accessible to criminals. We urge you to listen to the American public and to the law enforcement community and support a ban on the further manufacture of these weapons.

Sincerely,

GERALD R. FORD.
JIMMY CARTER.
RONALD REAGAN.

Mrs. CAROLYN B. MALONEY of New York. That same year, I voted for a Federal Assault Weapons Ban signed into law by President Clinton that also banned massacre-sized magazines. Unfortunately, this ban expired in 2004, and Congress, under pressure from the NRA, has since refused to reauthorize it, even when facts show that reauthorizing it would save lives.

It should come as no surprise that, of the 10 mass shooting incidents in the United States, 7 of them involved the use of an assault-style rifle.

That is why I fully and wholeheartedly support the commonsense proposal to reinstate a Federal ban on the sale and manufacture of assault weapons and massacre-sized magazines, and that is why so many Members of Congress have introduced—on both sides of the aisle—commonsense gun reform bills.

And let's be clear. These measures are not some kind of assault on Second Amendment freedoms for hunters or those who wish to have a gun for self-protection. The assault ban is a limited, commonsense measure to help keep people safe.

It is time for us to stand up together and to pass these commonsense bills because this time #WeAreAllOrlando.

## RECOGNIZING THE IMPORTANCE AND IMPACT OF SMALL BUSINESSES ON OUR NATION'S ECONOMY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Nevada (Mr. HARDY) for 5 minutes.

Mr. HARDY. Mr. Speaker, I rise today to recognize the importance and the impact that small businesses have on our Nation's economy.

Last month, we celebrated National Small Business Week in order to recognize the hard work and dedication of the estimated 28 million small-business owners who provided 48 percent of the private sector job workforce here in the United States while also representing 99.7 percent of all businesses with employees.

It is without a doubt that small businesses are the backbone of our Nation's economy. I greatly appreciate each and every small-business owner across this country who devotes their time, their passion, and their financial resources to ensure that small businesses are successful. For these individuals, Small Business Week is every week of the year.

As a former small-business owner of 20 years, I understand what it takes to build a successful small business while ensuring that our customers receive the products and service they expect and our employees are provided for.

It wasn't always easy as a small-business owner, but having the opportunity to employ hundreds of employees over the years is an experience I would never trade.

Over the last 17 months, I have had the great privilege of touring numerous small businesses within my district, where I have had the opportunity to speak to the employees that see firsthand what business does as it contributes to our economy.

From the small-business barber shop to a tortilla chip factory, it has always amazed me to see the enthusiasm that exists when the small-business owners work side-by-side with their employees. It is for this reason that small businesses are the backbone of our economy.

It is my honor to recognize outstanding individuals who received the award on May 4 in Las Vegas during the 2016 SBA Small Business Award luncheon. These individuals serve their community as a current small-business owner or provide services for small businesses.

Receiving the Small Business Person of the Year Award was Bradley Burdsall, owner of six restaurants in southern Nevada named The Egg Works and the Egg & I, with his newest location just recently opening in Nevada's Fourth Congressional District.

Mr. Burdsall's company has seen tremendous growth and expansion over the past 18 years, including being featured in USA Today and on the Food Network. I congratulate Bradley Burdsall on being awarded the 2016 SBA Small Business of the Year for Nevada.

Receiving the Veteran Owned Business of the Year award was Robert D. Daniel, the owner of PrideStaff Las Vegas. Prior to starting the PrideStaff Las Vegas location, Mr. Daniel spent 30 years in the field of employee management, including holding executive positions with IBM, Fuji USA, Western Electronics, and MicronPC.

With this valuable managerial experience along with his service in the United States Air Force and as a Vietnam veteran, Mr. Daniel has built a company that greatly benefits southern Nevada by providing businesses with temporary employees. I congratulate Robert D. Daniel on being awarded the 2016 SBA Veteran Owned Business of the Year for Nevada.

Receiving the Small Business Advocate Lifetime Achievement Award was Bob Cushman, who has volunteered his time as a SCORE Las Vegas counselor and a mentor since 1998. With decades of experience, Mr. Cushman has used his invaluable knowledge to counsel 3,000 small businesses in southern Nevada.

Mr. Cushman's dedication to the small business community has been a valuable asset to southern Nevada, so I congratulate Mr. Cushman on being awarded the 2016 SBA Small Business Advocate Lifetime Achievement Award.

Receiving the Women's Business Advocate of the Year was Leanna Jenkins, director of the Nevada Women's Business Center. Ms. Jenkins has spent years working in the small business community to provide small-business owners with the educational and financial resources necessary to succeed, especially for women- and minority-owned businesses.

Ms. Jenkins has made a tremendous impact within the small-business community of southern Nevada, so I congratulate Ms. Leanna Jenkins for being awarded the 2016 SBA Women's Business Advocate of the Year Award for Nevada.

Again, I would like to thank these award winners and all small-business owners for what they do on a daily basis to provide their employees with a job, their customers with a great product or service, and contribute to the American economy. Small businesses are the true economic engines of this country.

## YOU ARE NOT ALONE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. AL GREEN) for 5 minutes.

Mr. AL GREEN of Texas. Mr. Speaker, it is always a preeminent privilege to stand in the well of the Congress of the United States of America. I never take for granted the opportunity that has been afforded me by my constituents, as their representative, to be here and stand and speak on their behalf.

Mr. Speaker, I am proud to say that this day is Flag Day. It is the day that the flag was adopted, June 14, 1777, and I am honored tonight to make additional comments about Flag Day. But this is a day that we honor the flag of the United States of America.

On this day when we will honor the flag of the United States of America, this evening, after the first votes, we will also bring to the floor the LGBTQ Pride Month resolution. We are bringing this resolution to the floor, notwithstanding things that have occurred, because we would not want the dastardly deeds of one to prevent us from commemorating the accomplishments of the many.

The resolution will be brought to the floor, and those Members of Congress who consider themselves allies of the LGBTQ community, please come. This will afford you an opportunity to speak of your concern and to express your love for the LGBTQ community. Allies of the community should come to the floor. This will be a great opportunity, and we ask that you preface your statements, let your preamble be ''you are not alone.''

This is an opportunity for those of us who are allies of the community to make it clear, perspicuously so, that this community is not alone; that they

have friends; that they have people who will stand with them, even in the darkest hour; even when they walk through the valley of the shadow of death, there are friends who will stand with them. They are not alone. Come to the floor, if you choose, and make your statements known.

I do this because I understand that this opportunity to stand here is not something that I enjoy because I am so smart. There are people who lived and some who died so that I might stand in the well of the Congress of the United States of America on this day.

And because they did, it is worthy of mentioning that there were people other than African Americans who participated in my liberation. Schwerner and Goodman died fighting for the rights of African Americans. They were not Black.

John Shillady died in Austin, Texas, a field marshal for the NAACP. He was not Black.

When Rosa Parks went to jail, Virginia Durr and her husband, attorney Clifford Durr, along with Mr. Nixon, who was the then-president of the NAACP, posted her bail. Mr. Nixon was African American; the Durrs were not.

So it is important for those of us who have benefited from the goodness, the goodwill of others, to pay that debt we owe. This is an opportunity to make another installment on the debt that we owe as a result of others standing up for us. We were not alone, and the LGBTQ community should not be alone and is not alone.

So, tonight, we invite Members to come to the floor and to preface your statements with ''you are not alone'' and to let people know that you stand with the community in this time of great sadness, of great sadness.

But, also, speak of some of the good things that have occurred. We can talk of how the Supreme Court has made a significant difference, not only for this time but for all time, for people, because the Constitution of the United States was not written for Democrats or Republicans. It wasn't written for conservatives or liberals. It wasn't written for people of a certain hue. It wasn't written for people of a certain religion. It was written for the people of the United States of America, and that includes the LGBTQ community.

I thank you for the time. This is a to-be-continued moment. First hour after votes, to be continued.

God bless you, and God bless the United States of America. And I pledge allegiance to the flag and to the Republic for which it stands, one nation under God, with liberty and justice for all, and that includes the LGBTQ community.

## CI REALIGNMENT ACT

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. HOLDING) for 5 minutes.

Mr. HOLDING. Mr. Speaker, when most folks hear or think about the Internal Revenue Service, I am sure they probably think about the April 15 deadline. Maybe they even think about the prospects of an audit, or, in most cases, I imagine people are thinking about and wondering, you know, when is their tax refund going to be delivered?

□ 1115

Or perhaps their minds might jump to the scandals that have plagued the IRS, from the targeting of conservative groups to the IRS' failures to keep track of employee emails. Whatever the case, Mr. Speaker, I don't believe most people would immediately associate the IRS as a Federal law enforcement agency. However, the IRS is, in fact, home to our Nation's sixth largest law enforcement agency. It is called the IRS Criminal Investigation, or CI, for short.

CI was originally known as the IRS Intelligence division, and it was formed in 1919 to combat widespread corruption and organized crime. A great example of that from the early days is the investigation and conviction of Al Capone.

Now, today, CI is solely responsible for the enforcement of criminal violations of our Nation's tax laws and shares jurisdiction over violations of money laundering and bank secrecy laws. In addition, CI has also become an indispensable tool used in the investigation of terror financing cases and works jointly with many of our other Federal law enforcement agencies.

Now, Mr. Speaker, I was a United States attorney for a number of years, and I have had the privilege of working with many CI special agents and personally know the value of their unmatched financial investigatory abilities.

Unfortunately, Mr. Speaker, the IRS' mismanagement of CI and their inability to prioritize CI's needs has caused a troubling drop in the number of CI special agents and staff. This, in turn, has led to a reduction in the number of CI's investigations and convictions at a time when offenses such as identity theft, money laundering, tax fraud, and terror financing are all on the rise.

These resource decisions, along with an organizational and reporting structure at the IRS that is poorly suited to oversee a Federal law enforcement agency, have demonstrated that the IRS is ill-equipped to effectively support and manage CI.

Mr. Speaker, simply put, we need to be placing a premium on the world-class financial investigations CI carries out each day. This is why, Mr. Speaker, I am proud to have recently introduced the CI Realignment Act. This legislation, which I am pleased is supported by the Federal Law Enforcement Officers Association, will create a new Bureau of Criminal Investigation within the Department of the Treasury by transferring CI out of the IRS.

Mr. Speaker, first and foremost, this legislation is about law enforcement. It is about the dedicated personnel at CI that work in offices across the country and, indeed, across the world.

While this House will continue to have discussions and consider necessary reforms and legislation to right the ship over at the IRS, the CI Realignment Act is concerned with creating a clear distinction between the civil IRS function and the Federal law enforcement agency charged with criminal enforcement of our Nation's laws.

Most importantly, Mr. Speaker, my legislation will remove CI from the bureaucracy of the scandal-ridden IRS and allow for an increased focus on law enforcement.

Mr. Speaker, it is clear that the IRS urgently needs to address their shortfalls in many areas, from consumer service to data protection. Let's make certain that they do not further impede the critical work of our Nation's top financial investigators while they try to figure out how to run the IRS.

## HAPPY BIRTHDAY UNITED STATES ARMY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. CARTER) for 5 minutes.

Mr. CARTER of Texas. Mr. Speaker, on this day 241 years ago, the Congress adopted the American Continental Army. This Congress resolved to raise six companies of expert riflemen and to march and join the Army near Boston.

Our Army was born in war, and to this day, it has continued its service in the defense of American liberty. Our six companies have grown to over 1 million strong. Our All-Volunteer force continues to be the example around the world, producing an image of American idealism and vision and a culture of soldiers that fight for country, the Constitution, and their fellow man.

General George Washington, during one of the Army's first battles at the 1775 Siege of Boston, articulated how I feel about the Army: ''Your exertions in the cause of freedom, guided by wisdom and animated by zeal and courage, have gained you the love and confidence of your grateful countrymen; and they look to you, who are experienced veterans, and trust that you will still be the guardians of America.''

These past 241 years have tried and tested our Army, from the fields of France to the deserts of Iraq and the mountains of Afghanistan. Today our soldiers are deployed in over 140 countries. Representing Fort Hood, I am aware that Fort Hood soldiers are deployed in Afghanistan and Korea in the defense of our American security. Every day I am reminded of what our men and women in uniform and their families do to protect what we hold special.

With all the focus on weapons, programs, and initiatives, it is easy to forget that the Army is about people. Looking to God, I am reminded of Isaiah 6:8: ''Then I heard the voice of the Lord saying, 'Whom shall I send? And

who will go for us?' And I said, 'Here am I. Send me.' ''

On this 241st year of our Army's founding, I want to be one of the first to wish our United States Army the best and to say thank you and happy birthday. If you see a soldier anywhere today, wish the Army a happy birthday.

## RECESS

The SPEAKER pro tempore (Mr. HOLDING). Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 11 o'clock and 22 minutes a.m.), the House stood in recess.

□ 1200

## AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

## PRAYER

Reverend Al Riddley, The Springs of Bonita Church, Bonita Springs, Florida, offered the following prayer:

Dear God, grant us the wisdom and vision to comprehend the common belief that all people shall know peace as well as justice, righteousness, freedom, and security, with equity for every culture, color, and commitment.

Remind us of the past victories while recognizing the present challenges so as to strengthen our future as a country.

Lord, on this Flag Day, as it is honored and displayed around the world, may we take pride as Americans in being reminded of the significance of our democracy.

Give guidance to us as we are diligent in our responsibilities as citizens to guarantee that freedom is enjoyed by all who claim this country as home.

In our Allegiance, we witness to ''one nation under God'' as a promise of what others in this world can yet become. For this, we Americans stand together today, proud and strong, both now and forever.

Amen.

## THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

## PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from Rhode Island (Mr. LANGEVIN) come forward and lead the House in the Pledge of Allegiance.

Mr. LANGEVIN led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

## WELCOMING REVEREND AL RIDDLEY

The SPEAKER. Without objection, the gentlewoman from Illinois (Mrs. BUSTOS) is recognized for 1 minute.

There was no objection.

Mrs. BUSTOS. Mr. Speaker, during morning-hour debate, I spoke about Al Riddley, who is from Springfield, Illinois, which is my hometown. He also is my brother-in-law. My sister from Springfield, Illinois, Lynn Callahan Riddley is also here. I want to welcome them to the Nation's Capitol.

Mr. Speaker, thank you very much for your courteousness to my sister and brother-in-law. I am grateful to you.

## ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 further requests for 1-minute speeches on each side of the aisle.

## HONORING THE FATHER OF FLAG DAY

(Mr. HULTGREN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HULTGREN. Mr. Speaker, I rise today to honor the father of Flag Day, Illinois' own Dr. Bernard Cigrand, on its 100th anniversary.

An immigrant and a teacher, Dr. Cigrand believed his students needed a symbol to instill a sense of national identity. He first celebrated our flag's birthday with his students on June 14, 1885, 108 years after its official adoption by Congress.

Thus began his life's work to create a National Flag Day. He wrote articles for magazines and newspapers. He gave lectures and wrote a book on the flag's importance. Soon, schools caught on, and more than 100,000 children participated in an Illinois celebration in 1894. Eventually, Dr. Cigrand moved to Batavia, Illinois, opened a dental practice and remained passionate in his efforts.

Finally, in 1916, President Wilson called for a nationwide observance. Seventeen years after Dr. Cigrand's 1932 passing, President Truman signed a law cementing June 14 as National Flag Day.

This 14th of June, the 14th Congressional District of Illinois celebrates Dr. Cigrand's dedication to our Nation's symbol, which gives hope and moves hearts throughout the world.

## ORLANDO NIGHTCLUB SHOOTING

(Mr. LANGEVIN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANGEVIN. Mr. Speaker, the tragic events over the weekend in Orlando defy comprehension. There is no way that reason can underlie this staggering loss of life, for the act itself flies in the face of reason.

My thoughts and prayers are with those who lost their lives and their families, and my thoughts and prayers are with those who were injured and are recovering from their wounds. This attack is the truest example of senseless violence and pure evil.

Today, we mourn as a Nation because we will not allow hate to invade our own hearts and minds. America is better than that.

But tomorrow, tomorrow, Mr. Speaker, and in the days and months to come, we can do something. We must do something. We must ensure that our LGBT brothers and sisters are welcomed by their communities, not subjected to discrimination. We must ensure that access to deadly weapons are sensibly controlled, and we must ensure that Congress no longer sits idly by while hate and violence continue to take innocent lives.

But, today, Mr. Speaker, we pray for Orlando, though we know our prayers, our thoughts, our moments of silence, they are not enough.

## NAVAL STATION AT GUANTANAMO BAY

(Mr. HOLDING asked and was given permission to address the House for 1 minute.)

Mr. HOLDING. Mr. Speaker, last week, The Washington Post reported that at least 12 former Guantanamo detainees, after being released, had gone on to lead and participate in attacks against Americans and allied forces in Afghanistan. And most troubling, Mr. Speaker, the report noted that these attacks cost American lives.

Mr. Speaker, the Obama administration's plan to shutter our detention facility at Guantanamo Bay and accelerate the transfer of detainees to foreign nations or even the United States is both misguided and extremely dangerous.

I am committed to preventing the closure of Guantanamo and the further transfer of detainees. Mr. Speaker, even one detainee returning to the battlefield is too many.

This administration needs to acknowledge the reality of the threat posed by these detainees and abandon their ill-advised attempt to close Guantanamo Bay.

## KEEP DANGEROUS WEAPONS OUT OF THE HANDS OF SUSPECTED TERRORISTS

(Mr. DEUTCH asked and was given permission to address the House for 1 minute.)

Mr. DEUTCH. Mr. Speaker, our hearts are broken, and we are angry. The deadliest mass shooting in our history, 49 young lives ended in a place that served as a refuge from hate, a place of love and safety and community.

Mr. Speaker, when faced with terror and hatred, our Nation is tested. This House of Representatives is tested. And we are failing that test.

Shame on us if we cannot close the loophole that lets people on the terrorist watch list buy AR–15s. I am so tired of the House majority's pitiful excuses. Why does this majority allow suspected terrorists to buy guns? Why does this majority refuse to close the terrorist loophole and strengthen background checks? Mr. Speaker, I am ashamed of this institution.

Let us vote today. Let us vote to keep dangerous weapons out of the hands of suspected terrorists. Let us vote so everyone can see where we stand and who we stand with.

Mr. Speaker, I stand with every American who rightly believes that if you are on the terrorist watch list, you can't buy weapons that can be used in the next mass shooting. That is where I stand, Mr. Speaker.

Where do you stand?

## GOD BLESS THE FLAG AND VETERANS WHO CARRY IT

(Mr. WALBERG asked and was given permission to address the House for 1 minute.)

Mr. WALBERG. Mr. Speaker, our veterans face many challenges when they return home from war, both physical and psychological. All too often, the latter is overlooked. An estimated 22 veterans per day take their own life, many of them struggling with post-traumatic stress disorder.

One Michigan veteran, Marty Wills, is embarking on an incredible journey to raise awareness about PTSD and mental health issues. Carrying an American flag, he is walking more than 1,000 miles from his home in Michigan to North Carolina. Last week, he went through several cities in my district, including Jonesville, Hillsdale, Hudson, Adrian, and Blissfield.

On Flag Day, as we commemorate Old Glory and the freedom and liberty she represents, let's also remember the brave men and women who fight in harm's way in defense of those freedoms. And when they get home, let's do everything we can to get our veterans the help they need for wounds, both seen and unseen.

## ORLANDO TRAGEDY

(Ms. WASSERMAN SCHULTZ asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. WASSERMAN SCHULTZ. Mr. Speaker, I rise today in memory of those whose lives were lost in my home State at Pulse nightclub in Orlando. Floridians, Americans, and people around the world are in mourning today, grieving for those young lives lost and for their families.

When will this body finally say ''enough''? Gun violence is a public health crisis, and we must do better. No one needs an AR–15 assault rifle. This was the weapon of war that was used in Newtown, Aurora, and San Bernardino. We need to reinstate the assault weapon ban to reduce the chances that we have more tragedies.

People on the terrorist watch list should not be able to get a gun. This is common sense, but the majority continues to block this critical security measure.

I also rise to commend our law enforcement and healthcare professionals whose lifesaving work is ongoing. Acts of love like these will always conquer hate. They always have.

The American people will continue to stand with our LGBTQ and Latino brothers and sisters, and we will work that much harder and that much smarter and that much faster to ensure their safety and equal rights in their communities.

Love will win. Hate will be defeated.

## FLAG DAY AND COLLIN COUNTY FLAG CEREMONY

(Mr. SAM JOHNSON of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SAM JOHNSON of Texas. Mr. Speaker, today, I rise in honor of Flag Day, a special day when we reflect on what our American flag stands for and how blessed we are to live in this great Nation that celebrates freedom.

I believe this reflection is particularly important given this weekend's ISIS-inspired terrorist attack. There are those who seek to destroy our way of life, and we must actively defend our freedom.

So, as our American flag waives proudly today and we reflect on its symbol of hope, I invite Collin County folks to join me this Saturday for a special event that I will be hosting—the inaugural ''Honor our Stars and Stripes'' flag retirement ceremony. I hope you will join me for this unique program that honors our flag and our country's unique founding.

God bless America. I salute you.

## CLOSE THE DEADLY LOOPHOLE

(Mr. KILDEE asked and was given permission to address the House for 1 minute.)

Mr. KILDEE. Mr. Speaker, like my colleagues and so many Americans, I am horrified by the brutal act of terror that killed 49 people, including Tevin Crosby, a 25-year-old man from my district, and that wounded so many others in Orlando. I stand with the loved ones of those lost and with the LGBT community that has suffered this unimaginable act of violence.

You know, as our country works to heal from this latest deadliest mass shooting ever, Congress has got to do its job. We can act on this floor to protect American citizens by making sure that, if an individual is on the terrorist watch list, they cannot fly on a plane. For God's sake, they should not be able to go and buy a weapon. The shooter in Orlando had been on the terror watch list and was able to go buy three weapons, including an AR–15.

Congressman PETER KING of New York's bill would stop this. I join with him, and I ask all Members of Congress, please, let's not let this moment pass. Let's take action.

## WESTERN NORTH CAROLINA AGRICULTURAL HALL OF FAME INDUCTEES

(Mr. MEADOWS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MEADOWS. Mr. Speaker, I rise today to acknowledge the service of two men from western North Carolina: John Queen, III, and Don Smart. Recently, they were inducted into the Western North Carolina Agricultural Hall of Fame.

As those plaques were put on the wall, it really didn't share the entire story, the entire story of who they are and how they serve their communities so well, not only in Haywood County but throughout all of western North Carolina.

These two men, whether it was with the National Cattlemen's Beef Association, both on the local and national level, or whether it was with different associations of growers and farmers and the Farm Bureau, as is the case with Don Smart, served their community and have made their community better.

Mr. Speaker, I rise today to not only acknowledge their service but also to acknowledge their friendship because they have helped me understand the agriculture community in a way that profoundly can only be done by those who are in it.

So, with this, we honor them today and their induction into the Western North Carolina Agricultural Hall of Fame.

□ 1215

## IT IS TIME FOR CONGRESS TO ACT

(Mrs. LAWRENCE asked and was given permission to address the House for 1 minute.)

Mrs. LAWRENCE. Mr. Speaker, I rise today for a call to action. Over 200 years ago, when our Constitution was authored, it ignored the backbone of the American people: women, African Americans, Latinos, and even White men who did not own property.

However, the beauty of our Constitution and our democracy is our ability to change. The power to amend the United States Constitution is the power to protect and reflect the will of the people.

Our forefathers could not anticipate the introduction of assault rifles into the United States. They could not anticipate that 32,000 Americans per year

would lose their lives at the hands of gun violence.

It is now time to act, to do the job that we were elected to do by the people of this great Nation. Since its inception, we have amended our Constitution 27 times. It is time for us once again to lead the world and put an end to these horrendous attacks and violence that we have witnessed. Mr. Speaker, it is time for Congress to act.

## 100TH BIRTHDAY FOR BOEING

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, on July 15, the Boeing Company will mark their 100th birthday, a remarkable achievement for its employees, subcontractors, and entire community. Boeing opened facilities in North Charleston, South Carolina, creating over 8,000 jobs directly and giving back to the community as a partner, such as sponsoring the Heritage Golf Classic at Hilton Head Island.

The impact of Boeing extends beyond their facility. Many of their subcontractors are located in the Second Congressional District, including Zeus of Orangeburg and Aiken, Prysmian of Lexington, Thermal Engineering of Columbia, and AGY of Aiken. Governor Nikki Haley and the General Assembly, led by House Speaker Jay Lucas and Senate President Hugh Leatherman, have recognized the important milestone by proclaiming June 1 as Boeing Impact Day across South Carolina.

Congratulations to the chairman, president, and CEO of the Boeing Company, Dennis Muilenburg; vice chairman Raymond Conner; and the executive vice president, Leanne Caret. Thank you to all of the many dedicated team members of Boeing South Carolina, especially the newly selected vice president, Joan Robinson-Berry, and Beverly Wyse, who leads the Shared Services Group. Best wishes for your continued success creating jobs.

In conclusion, God bless our troops and may the President, by his actions, never forget September the 11th in the global war on terrorism. Today, more Islamic terrorist murders in Paris.

## REMEMBERING AMIN DAVID

(Ms. LORETTA SANCHEZ of California asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. LORETTA SANCHEZ of California. Mr. Speaker, I rise today to honor a friend, a role model, a mentor, Mr. Amin David. He passed away in his home on May 21 of this year at the age of 83. He was an immigrant from Mexico, and his life quickly became the epitome of the American Dream. He came here to California, ended up being an entrepreneur and owning businesses and being such an integral part of Orange County, California.

He founded, with others, in 1978, a group called Los Amigos of Orange County, whose motto was ''We love to help''—''Nos gusta ayudar.'' And help they did, no matter what. Whoever came before their Wednesday morning meeting every week would get help.

He also helped a marginalized community. In a very volatile time in Orange County, the change of diversity was happening. He sat on the Orange County Human Relations Commission and on the Anaheim Planning Commission, and he was an active member of the police chief's advisory council and helped to foster dialogue between the police and our community.

He fought for marginalized communities and called out prejudices like Islamophobia and anti-Semitism. He is survived by his wife and his four children. I am proud to have called him a friend.

## CONDEMNING THE HATEFUL ATTACKS IN ORLANDO

(Mr. BYRNE asked and was given permission to address the House for 1 minute.)

Mr. BYRNE. Mr. Speaker, I rise to condemn the horrific terrorist attack in Orlando. This tragedy is a strike at every single American, regardless of your age, race, gender, sexual orientation, location, or religious beliefs. Our hearts go out to the wounded and their families, but most especially to the families and loved ones of all who were killed.

There is no room for hate in America, and this ugly crime is the result of a coward following his own hate. It doesn't matter what the source of that hate was. It was and is an affront to God himself.

In moments like this, it is my hope that we can come together as a nation and as a people instead of turning against one another. If we allow these attacks to pull us further apart, then we have done exactly what the attacker intended to achieve.

So I hope every American will join me in condemning these hateful attacks and pledge to stand together in support of those who tragically lost their lives.

## IT IS TIME TO ACT

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. JACKSON LEE. Mr. Speaker, if I could every minute of the day offer to those in Orlando who had to experience the most horrific terroristic mass shooting in the United States, I would do so every minute of the day. I would also do so, however, for others who have suffered at the hands of those who have used guns violently and used guns illegally, for I am not ashamed to be someone who understands the First Amendment, the Second Amendment, and all amendments, to stand and say that it is immoral that this Congress does not act to move forward on securing the American people.

It is important to know that assault weapons, guns have been used in mass shootings: San Bernardino; Chattanooga, Tennessee; Charleston, South Carolina; Garland, Texas; Oak Creek, Wisconsin; and Fort Hood, Texas. Mother Emanuel, of course, is Charleston, and then, of course, Newtown, where babies were murdered and slaughtered.

This was a hateful crime, and more than one in three hate crimes end in violence. It was Hispanics. It was the LGBTQ community. Tell it what it is: hatefulness, terrorism. Pass the assault weapons ban now. No fly, no buy now. Time to act. It is immoral for us not to act.

## THE ORLANDO ATTACK WAS AN ACT OF HATE

(Mr. BILIRAKIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BILIRAKIS. Mr. Speaker, I rise today with a heavy heart. This past weekend, our Nation suffered a terrible attack in an Orlando nightclub. This was an act of terror. This was an act of hate. This was an unacceptable, unfathomable tragedy.

Our neighbors in Orlando remain in our thoughts and prayers. As we mourn the tragic loss of life, we must stay laser-focused on rooting out radicals in our Nation who heed the call to radical jihad and aim to harm our friends, neighbors, and families.

We must provide law enforcement and intelligence officers the tools they need within constitutional restraints to prevent the spread of incitement to violence and to hunt down the radicals. Protecting our homeland should never be taken for granted.

In light of this tragedy, we must unite and stand firm against the evil in the world. Orlando, we are here for you.

## CELEBRATING THE 90TH BIRTHDAY OF HUGH McMILLAN

(Mr. KILMER asked and was given permission to address the House for 1 minute.)

Mr. KILMER. Mr. Speaker, Friday is a big day in my neck of the woods. It is the day we are going to celebrate the 90th birthday of Hugh McMillan. Hugh is an absolute icon of our region and is the definition of a servant.

He served our country in the military and in the intelligence community, and he served our community as the unofficial mayor of the Key Peninsula. That is evidenced through his service in the Lions Club, who each year puts on a Citizen of the Year ceremony to honor those who make the Key Peninsula a better and stronger place. In fact, he served the community so well, he was given the Service Above Self Award

from the Gig Harbor Rotary Club. Having a group of Rotarians honor a Lions Club member is a big deal.

Beyond that service to community, though, he is also a servant when it comes to our kids. He served on the board of the Communities In Schools group in the Peninsula School District and on the Peninsula Schools Education Foundation board. He writes a Kids' Corner column in the Peninsula Gateway. Anytime there is a kid in our neck of the woods doing something cool, Hugh McMillan is there with a camera to take their picture and make them feel special.

I am just very grateful for all he does on behalf of kids and on behalf of our community and our country, and I am proud to call him a friend.

## A DAUGHTER WILL NOT BE WITH HER FATHER THIS FATHER'S DAY

(Mr. POE of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. POE of Texas. Mr. Speaker, a Texas father wrote me this week:

''I heard your statements . . . about removing the so-called judge in the Stanford swimmer's rape case. I do hope you pursue this all the way to his elimination.

''As the father of a daughter that was raped a number of years ago while she was jogging at night near a college campus in Texas, I would even consider the death penalty for the perpetrator. Why? Because that is what happened to my daughter. The feeling of violation and uncleanness caused her to take her own life in later years. The judge does not know the meaning of rape and the effects it has on a female.''

Mr. Speaker, the father is correct. Rape victims live lives of quiet hopelessness and despair. That is why the weak-kneed judges like the one in California need to be removed.

Sunday is Father's Day, and I will be with my 4 kids and 11 grandkids. The father I referenced here will not be with his daughter. We must deliver justice for rape victims, daughters, and families because, Mr. Speaker, justice is what we do in America.

And that is just the way it is.

## HONORING LEON LEGGETT AND HERBERT ROGERS

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Mr. Speaker, I rise today in honor of Leon Leggett and Herbert Rogers, two distinguished American veterans who served in the Korean war from 1950 to 1953.

On June 25, the American Legion's Post 9 in the First Congressional District of Georgia will present both men with South Korea's Ambassador of Peace Medal.

South Korea offers the Peace Medal to all U.S. servicemen and -women who served in the Korean war as an expression of gratitude for their service. During the Korean war, nearly 40,000 Americans sacrificed their lives and over 100,000 were wounded. This reward is certainly well deserved by Mr. Leggett and Mr. Rogers.

Making the ceremony even more unique is that Mr. Rogers and Mr. Leggett will be only the third and fourth people from the American Legion Post 9 who have been awarded the Peace Medal. I am proud to recognize these two veterans from the First Congressional District of Georgia, and I thank them for their service to the United States.

## ELECTING A MEMBER TO CERTAIN STANDING COMMITTEES OF THE HOUSE OF REPRESENTATIVES

Mr. STIVERS. Mr. Speaker, by direction of the Republican Conference, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 781

*Resolved*, That the following named Member be, and is hereby, elected to the following standing committees of the House of Representatives:

COMMITTEE ON SCIENCE, SPACE, AND TECHNOLOGY: Mr. Davidson.

COMMITTEE ON SMALL BUSINESS: Mr. Davidson.

The resolution was agreed to.

A motion to reconsider was laid on the table.

## PROVIDING FOR CONSIDERATION OF H.R. 5053, PREVENTING IRS ABUSE AND PROTECTING FREE SPEECH ACT; AND PROVIDING FOR CONSIDERATION OF H.R. 5293, DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2017

Mr. STIVERS. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 778 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 778

*Resolved,* That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 5053) to amend the Internal Revenue Code of 1986 to prohibit the Secretary of the Treasury from requiring that the identity of contributors to 501(c) organizations be included in annual returns. All points of order against consideration of the bill are waived. In lieu of the amendment in the nature of a substitute recommended by the Committee on Ways and Means now printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114-58 shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means; and (2) one motion to recommit with or without instructions.

SEC. 2. At any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 5293) making appropriations for the Department of Defense for the fiscal year ending September 30, 2017, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations. After general debate, the Committee of the Whole shall rise without motion. No further consideration of the bill shall be in order except pursuant to a subsequent order of the House.

SEC. 3. Section 10002 of H.R. 5293 shall be considered to be a spending reduction account for purposes of section 3(d) of House Resolution 5.

SEC. 4. (a) During consideration of H.R. 5293, it shall not be in order to consider an amendment proposing both a decrease in an appropriation designated pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985 and an increase in an appropriation not so designated, or vice versa.

(b) Subsection (a) shall not apply to an amendment between the Houses.

SEC. 5. During consideration of H.R. 5293, section 3304 of Senate Concurrent Resolution 11 shall not apply.

The SPEAKER pro tempore (Mr. COLLINS of New York). The gentleman from Ohio is recognized for 1 hour.

Mr. STIVERS. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

□ 1230

GENERAL LEAVE

Mr. STIVERS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Ohio?

There was no objection.

Mr. STIVERS. Mr. Speaker, on Monday, the Rules Committee met and reported a rule for H.R. 5053, the Preventing IRS Abuse and Protecting Free Speech Act, and H.R. 5293, the fiscal year 2017 Department of Defense Appropriations Act. House Resolution 778 provides a closed rule for consideration of H.R. 5053 and a general debate rule for H.R. 5293.

The resolution provides 1 hour of debate equally divided between the chair and ranking minority member of the Committee on Ways and Means for H.R. 5053, and 1 hour equally divided between the chair and ranking minority member of the Committee on Appropriations for H.R. 5293. The resolution also provides for a motion to recommit for H.R. 5053, with or without

instructions. In addition, the rule includes provisions related to budget enforcement.

Mr. Speaker, I rise today in support of the resolution and the underlying legislation. Under current law, 501(c) nonprofit organizations are required to collect personally identifiable information on what are known as substantial donors and report that information to the IRS. Substantial donors are defined as individuals who donate $5,000 or more to an organization during the course of the calendar year.

Normally, that information is reported by 501(c)(3) tax-exempt organizations. However, the IRS expanded the substantial reporting requirement to all tax-exempt organizations through the use of Form 990.

The security of personal information of American taxpayers is vital. The IRS doesn't normally make this information public, yet there have been instances involving IRS employees improperly accessing this information and even releasing it to the public. One particular instance saw the National Organization for Marriage have its donor list information publicly disclosed in 2012.

In California, Mr. Speaker, the State attorney general wanted to require that the information reported is made public, which prompted a lawsuit. In April of this year, the U.S. district court ruled that requiring an organization to disclose its donor list is unconstitutional.

My colleagues on the other side of the aisle may make the accusation that this bill will allow for a flood of foreign money into our elections. Mr. Speaker, this argument rings hollow for two reasons.

First, we have laws on the books to specifically protect against that very thing. It is called the Bank Secrecy Act. Federal regulations under that law require every bank to file information with the Treasury Department and report any suspicious transactions relevant to a possible violation of law or regulation. H.R. 5053 does not change the Bank Secrecy Act or those regulations in any way.

Second, and more importantly, the IRS doesn't even have authority to share this information with the two organizations that enforce campaign finance laws: the Federal Election Commission and the Department of Justice. So only in limited circumstances in which there is already evidence of a criminal act can these tax privacy laws allow the IRS to share this information. The problem is the IRS doesn't share this information anyway. It is up to the Federal Election Commission and the Justice Department to enforce those laws, and they do so already.

Mr. Speaker, I agree with the district court ruling because American citizens have a right under the First Amendment to free speech and free association. The IRS has demonstrated in the past that many of their employees do not adequately protect personally identifiable information of American taxpayers. Individuals should not be forced to disclose how much of their hard-earned money and to whom they donate to charity.

Even the Director of Exempt Organizations at the Internal Revenue Service has publicly stated that the IRS is considering removing Schedule B themselves. Let me repeat that. This is a democratically appointed Director of Exempt Organizations at the Internal Revenue Service. This individual said that the IRS is considering removing Schedule B themselves. That is exactly what this bill does. That makes this a bipartisan bill.

I hope my colleagues will support this measure. It makes sense.

The second underlying bill is the Department of Defense Appropriations Act for fiscal year 2017. The legislation includes $517 billion for our national security, a slight increase over last year's enacted level.

The legislation includes $58.6 billion in funding to fight the global war on terror, which includes funding for our forces in the field as well as support to key allies to resist aggression from nation-states and terrorist groups.

The bill includes a small 2.1 percent pay raise for our military, which is more than the 1.6 percent requested by the administration, and it includes $34 billion for the Defense Health Program to provide care for our troops, their families, and retired members of the armed services.

Important investments in cancer research, traumatic brain injury, psychological health research, and suicide prevention outreach as well as sexual assault prevention programs are also included in this bill.

A well-equipped, well-trained, effective military providing for the common defense of our Nation is our most basic constitutional responsibility. This bill helps preserve our military as the most capable and superior armed force in the world, while providing funds necessary to fight America's enemies abroad.

While there will be amendments offered by colleagues on both sides of the aisle in the days to come, Mr. Speaker, the rule here today is only for general debate of the overall bill. I look forward to continuing the debate on these policies with our House colleagues, and I urge support for the underlying bills.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume, and I want to thank the gentleman from Ohio (Mr. STIVERS) for yielding me the customary 30 minutes.

(Mr. MCGOVERN asked and was given permission to revise and extend his remarks.)

Mr. MCGOVERN. Mr. Speaker, before I get into the substance of the rule and the underlying bills that the rule would allow to be considered, I do want to take a moment to reflect on what happened yesterday here in the House of Representatives.

In the aftermath of this terrible tragedy in Orlando, the Speaker of the House asked for a moment of silence to pray for the victims: those who lost their lives, those who were injured, and their families. We stood here and, for 10 seconds, had a moment of silence.

One of our leaders, Mr. CLYBURN, sought to get the Speaker's attention to ask a question. Basically, the question was: Is that it? What about legislation? What about action to prevent these types of tragedies from happening in the future? He was gaveled down.

There was a lot of outrage here on the House floor, and I think justifiably so. We have been on this floor calling for moments of silence after terrible tragedies like the one in Orlando again and again and again. It is not enough. Surely, this Congress, Democrats and Republicans, can come together and do more than just have a moment of silence.

Mr. CLYBURN was asking about whether or not we could bring to the floor the bill that basically says that, if you are a suspected terrorist and you are on the FBI's no-fly list, then you ought not to be able to go into a gun store and buy a weapon of war, could that come up for a debate and could we have a vote on that.

He was also going to raise the issue about whether or not we can revisit legislation that would call for a ban on assault weapons. The weapon that this killer used was an assault weapon, and it was perfectly legal for him to buy. Is it worth a discussion as to whether or not we ought to place limits on the purchase of such weapons?

He was also going to raise the issue about whether or not we could pass the Hate Crimes Prevention Act, a bill that would prevent criminals who have been convicted of misdemeanor assaults against a victim based on his or her race, religion, gender, sexual orientation, or disability from causing further harm with a gun.

This is common sense, and both parties need to come together and take action. For the life of me, I can't understand why there is a hesitancy by the leadership of this House to grapple with some of these issues. It is just not enough to come here after terrible tragedies like the one in Orlando, where 49 people lost their lives and 53 were wounded, and just have a moment of silence. It is becoming an empty gesture. We need to follow it up with action.

The American people, I don't care what their political ideology or political party may be, want us to do something. Instead, all we can do is have a moment of silence. I would just say to my colleagues: It is not enough. It is time for action.

Mr. Speaker, getting to this rule, I rise in strong opposition to the rule, which provides for consideration of H.R. 5053, the so-called Preventing IRS Abuse and Protecting Free Speech Act, under a completely closed process. No amendments can be made in order.

The rule also provides for general debate of H.R. 5293, the Department of Defense Appropriations Act for 2017, and we expect the Rules Committee to report a structured rule later today for consideration of amendments to that legislation.

When Speaker RYAN was elected to preside over the House, he made a promise to return to regular order. He promised to fix this broken House by making changes to the process by which the House does business. He promised to ''open up the process,'' to ''let people participate.'' He said it would be a ''relief'' to the American people if we were to get our act together.

Well, unfortunately, Mr. Speaker, we are light-years away from regular order and have yet to get our act together. We are here on the floor of this House considering another two pieces of legislation under rules that violate the Speaker's promise of an open process for both the majority and the minority.

□ 1245

This week, the Republican leadership has chosen to shut down the appropriations process even further, with the majority on the Rules Committee indicating that they will issue a structured rule for consideration of amendments to the FY17 Defense Appropriations bill.

Now I am saddened by the recent events that have led to the shutdown of the appropriations process, and by the fact that my conservative Republican colleagues voted down their own appropriations bill because it included an amendment to protect LGBT rights, which was adopted during consideration of the Energy and Water Development Appropriations bill a few weeks ago.

But I shouldn't be surprised. Last summer, the appropriations process was upended because some of my conservative colleagues refused to vote for legislation that banned the display of the Confederate flag. So this is just more of the same dysfunction and misplaced priorities from this Republican majority.

Mr. Speaker, Republicans have yet to issue a single open rule this Congress, and we are now beginning a process that further restricts what little opportunity we once had to offer amendments under a modified-open appropriations process.

And let me say a few words about the Department of Defense Appropriations Act bill that we are set to consider this week.

Mr. Speaker, as my colleagues know, I oppose and I have been deeply troubled by these endless wars, by continuing to send tens of billions of dollars each year to fund U.S. military operations and wars in Afghanistan, Iraq, Syria, Yemen, Libya, and elsewhere.

In the cases of Afghanistan, and especially Iraq and Syria, I believe that this Congress has failed in its most solemn constitutional duty to debate and approve an authorization for the use of military force. I believe that without Congress approving an AUMF, our troops should not be there, quite frankly.

For me, this is not just a matter of principle, it is a matter of the Constitution of the United States and the role and responsibility of the United States Congress. It is also the duty that we owe every single one of our men and women in uniform, to either formally authorize their mission, or to bring them back home to the comfort and security of their families.

Over the years, we have had a few debates on this serious issue, and often those opposed to bringing forward an AUMF will argue that we can't put in jeopardy the support of our troops.

Well, Mr. Speaker, for those Members who are concerned about cutting off funds for our troops, they must stand up and be counted and oppose this rule and the underlying Defense Appropriations bill.

H.R. 5293 cuts the funds in the overseas contingency operations account so badly that it is estimated that all funds for all U.S. military engagements in Afghanistan, Iraq, Syria, and elsewhere will run out on or around the end of next April.

Now, Mr. Speaker, you may recall that the defense authorization bill actually sets a date for this national security disaster: April 30, 2017. And while the authors of the Defense Appropriations bill are too coy to name a date, the amount of money is so limited that it is guaranteed to run out just about this time.

Now the Republican leadership is gambling that the next President and the next Congress will pass a supplemental appropriations bill to fund all these wars through the remainder of fiscal year 2017, just scarcely 2 months after being sworn into office.

Even I, as someone who does not support these wars, can see that this is crazy.

How can anyone stand up and say that they support the troops, and then support a bill that knowingly, deliberately, willfully cuts them off at the knees at the beginning of next year? And why did the Republican majority, with eyes wide open, take such a calculated move?

Well, they did it to pump up the funding of some of their favorite pet projects in the defense base budget. They stole $15.17 billion of OCO funds—that is nearly 27 percent of the OCO budget—funds that were supposed to fund our troops, their equipment, and their supplies for an entire fiscal year, and boosted the base budget.

To take this hypocrisy another step further, the rule that we are debating right now forbids any amendments from being offered that would take money from the base budget and put it back into OCO, not even to fund our troops for 5 months until the end of the fiscal year.

This is ludicrous. This is a disgrace. And this is just one more dishonorable act perpetrated by this Congress against our men and women in uniform. We won't formally authorize their missions overseas, and now we are not going to fund them for an entire year.

Now, the last piece of irony to this disgusting set of gimmicks is that this type of prohibition in a rule is rarely, if ever, seen.

Why, you ask, Mr. Speaker?

Well, because that type of guidance is generally outlined in a budget resolution.

You know, Mr. Speaker, the budget resolution that the Republican leadership hasn't brought to the House floor this year because it can't get a consensus out of its cantankerous caucus, and can't corral enough votes to even pass a budget resolution.

Enough is enough, Mr. Speaker. We need to bring forward an AUMF for Iraq and Syria, and if we continue to fail to do so, then we should bring our troops home. If the Members of this House can sit here safe and sound, then so should our troops. And we should stop purposely robbing the funding for our troops and using that money for their pet projects and weapons systems in the base budget.

Lastly, let me just say a few words about the other bill that we are considering this week, to constrain the Internal Revenue Service's ability to enforce our tax laws and reduce transparency.

H.R. 5053 removes one of the only tools available to ensuring that foreign money is not illegally spent by tax-exempt groups in our elections, and I strongly oppose this most recent effort to unleash a new flood of unlimited, anonymous, unaccountable money into our political system.

My colleague mentioned that this was about people being able to give freely to charitable organizations. The charitable organizations that they are referring to are groups like Crossroads GPS, Americans for Prosperity, American Future Fund, funded by—these are the groups headed by Karl Rove and the Koch brothers.

The Koch brothers sent a nice letter to all of us asking us to support this legislation with one goal in mind, to basically keep the American people in the dark. They don't want you to know all the money that is being pumped in to influence our elections and who is giving that money. They want to keep the American people in the dark.

I think the one lesson on both the Democratic side and the Republican side during this Presidential campaign that is clear, people want us to open up the process. They think this process has been corrupted by money. And rather than opening up the process, this is shutting the process down, shutting transparency, and I think that goes against what both Democrats and Republicans want.

I urge my colleagues to defeat the rule and the underlying legislation.

Mr. Speaker, I reserve the balance of my time.

Mr. STIVERS. Mr. Speaker, I yield myself such time as I may consume.

Really quickly, on the IRS bill, it is already the interpretation of the Federal district court that these contributions should not be made public; that donor lists should not be made public because people have a right to free association and free speech. These are constitutional rights. So to argue that this information that is not allowed to be made public is somehow going to lead to a flood of foreign money, is nonsense.

Also, again, I will reiterate that the Bank Secrecy Act is in place to make sure that that does not happen. So I just wanted to quickly dispel with that.

Mr. Speaker, I yield 3 minutes to the gentleman from Georgia (Mr. CARTER), who is a distinguished member of the Homeland Security Committee.

Mr. CARTER of Georgia. Mr. Speaker, I rise today to speak on H.R. 5293, the fiscal year 2017 Department of Defense Appropriations Act, and to recognize the hard work that the House Appropriations Committee's Defense Subcommittee has put into this bill.

I would also like to thank Chairman FRELINGHUYSEN and all the members of the subcommittee and the Rules Committee for their work on this bill.

This legislation represents an opportunity for Members on both sides of the aisle to work together to provide our Armed Forces the resources they need to keep our country and Americans safe. We ask the courageous men and women who volunteer in our Armed Forces to confront global terrorism, and we must give them the tools to do so.

This year's Defense Appropriations bill, H.R. 5293, funds the programs that are not only essential to our national security, but critical to the welfare of our military personnel.

The Ohio Replacement Program is set to become the most dominant leg of our nuclear triad and is vital to our nuclear deterrence. This bill progresses that project.

Townsend Bombing Range is being expanded to accommodate the needs of the new fifth generation fighters coming online, and offers a unique training aspect for those planes located on the East Coast. This bill helps to clear up ongoing airspace concerns.

The A–10s, the most lethal close air support aircraft in the Air Force's inventory, will continue to be funded, ensuring our warfighters get the close-in air operations they need.

Cyber is, and will continue to be, a major issue for our military, and I commend the committee's focus on establishing cyber protection teams and partnerships with public universities.

End-strength has been another recurring issue, and this bill provides the necessary funding to reduce the strain on the men and women who serve.

Warfighters have also relied on the Joint Surveillance Target Attack Radar Systems, or JSTARS, for up-to-date information on enemy movements, and this bill ensures our legacy fleet can continue to fly until the Air Force completes this recapitalization program.

Lastly, this bill also provides support to the Army's combat aviation brigades through additional AH–64 Apache helicopters, and the Air Force's airlift capacity is strengthened under the engine enhancement programs for C–130s.

Chairman FRELINGHUYSEN and the Defense Appropriations Committee have, again, done a tremendous job on making the difficult decisions to prioritize what is most needed for our Armed Forces. I commend the subcommittee on their work.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I include in the RECORD a letter signed by a number of reform organizations that are organized to protect the public from the big money and from foreign donations, from the League of Women Voters, to Public Citizen, to Common Cause, to the Campaign Legal Center, the Center for Responsive Politics, Brennan Center for Justice, and so on. There are many more.

I want to submit for the RECORD the letter they sent to every Member of Congress saying, vote ''no'' on the Roskam bill, and vote against opening loopholes for foreign money.

These organizations believe that we are opening a loophole for more foreign money into our political system. And if that is what you want, then support the bill. I personally do not, and ask that that be part of the RECORD.

REFORM GROUPS URGE NO VOTE ON ROSKAM BILL, H.R. 5053—VOTE AGAINST OPENING LOOPHOLE FOR FOREIGN MONEY

*June 13, 2016.*

DEAR REPRESENTATIVE: Our organizations strongly urge you to oppose H.R. 5053, Representative Peter Roskam's bill that would eliminate the requirement for 501(c) groups to disclose their donors to the IRS.

Our organizations include the Brennan Center for Justice, Campaign Legal Center, Center for Responsive Politics, Common Cause, CREW, Democracy 21, Every Voice, Issue One, League of Women Voters, Public Citizen, Sunlight Foundation, The Rootstrikers Project at Demand Progress and Represent.Us.

The Roskam bill would open the door wide for secret money from foreign donors to be illegally laundered into federal elections through 501(c)(4) and other 501(c) groups. Foreign money cannot be legally spent in U.S. elections, but it can be given to 501(c) groups and they can spend money in our elections. These groups are not required to disclose their donors publicly, but they are required to make non-public disclosure of their donors to the IRS.

This disclosure to the IRS is the only protection citizens have to prevent 501(c)(4) and other 501(c) groups being used to illegally spend foreign money in our elections. The fact that 501(c) groups are required to disclose their donors to the IRS means the groups know that donor information is available as an accountability check against illegal conduct.

If donor disclosure to the IRS by 501(c) groups is eliminated, however, as the Roskam bill would do, no one will be in a position to determine if a 501(c) group illegally spent foreign money in our elections—other than the group and foreign donor involved. Any check will be gone and there will be no way to hold a group and foreign donor accountable for illegally spending foreign money in U.S. elections.

House members should vote against eliminating the existing check against foreign countries, foreign companies and foreign individuals spending money illegally to influence our elections.

We strongly urge you vote to protect the integrity of U.S. elections by voting against H.R. 5053.

Brennan Center for Justice, Campaign Legal Center, Center for Responsive Politics, Common Cause, CREW, Democracy 21, Every Voice, Issue One, League of Women Voters, Public Citizen, Sunlight Foundation, The Rootstrikers Project at Demand Progress, Represent.Us.

Mr. MCGOVERN. Mr. Speaker, if we defeat the previous question, I will offer an amendment to the rule to bring up bipartisan legislation that would bar the sale of firearms and explosives to those on the FBI's terrorist watch list.

It is unconscionable that the majority in this House has repeatedly refused to even debate closing such a glaring loophole, which continues to allow suspected terrorists to legally buy firearms.

The country can simply not wait any longer for this Congress to act. And if my friends want to vote against it, then they can vote against it. But denying the ability of this legislation to come to the floor, I think, is just wrong.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD along with extraneous material immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Massachusetts?

There was no objection.

Mr. MCGOVERN. Mr. Speaker, to discuss our proposal, I yield 5 minutes to the gentleman from California (Mr. THOMPSON).

Mr. THOMPSON of California. Mr. Speaker, I rise in opposition to the rule today and ask that we defeat the previous question.

The IRS portion of this bill that is included in the rule, the debate regarding that, is nothing more than a political messaging debate, and it is politically charged, and it really has no place on this floor today, given the seriousness of this underlying issue that the gentleman from Massachusetts just spoke about.

The American people don't need more partisan politics. The American people need a Congress that will stand up and take action to help keep Americans safe from a number of things, one of the most important of which is gun violence in their neighborhoods and in their communities.

Thirty people are killed every day by someone using a gun in our country. In

the 3 years since Sandy Hook, there have been over 1,000 mass shootings, and more than 34,000 people have been killed by someone using a gun.

Every time these tragedies take place, the response from my friends on the Republican side of the aisle is the same. Thoughts and prayers are sent and moments of silence are held, but no real action is taken.

In the 3 years since Sandy Hook, we have held 30 moments of silence after a terrible tragedy such as the one that just occurred in Orlando.

□ 1300

But we haven't taken a single vote on legislation that would help keep guns out of dangerous hands.

One of the simplest solutions we have put forward to help keep Americans safe is legislation to prohibit those on the FBI's terrorist watch list from being able to legally purchase firearms.

Today, individuals on the FBI's terrorist watch list can go into a gun store anyplace in the United States of America and buy a firearm of their choosing legally. As a matter of fact, since this watch list has been established, over 2,000 individuals on the terrorist watch list have gone into gun stores across the country and legally purchased firearms. I think that is wrong. It is dangerous, it is unacceptable, and it makes our country less safe.

I have bipartisan legislation that I have offered with my Republican friend and colleague, PETER KING from New York, that would prohibit those on the terrorist watch list from being able to purchase a firearm legally in our country.

The American people are overwhelmingly in support of this, and if House Republicans agree that suspected terrorists shouldn't be able to legally buy guns, then let's take a vote. Vote it up or down, but give the American people the right to have this measure voted on.

Mr. STIVERS. Mr. Speaker, I yield 3 minutes to the distinguished gentleman from New York (Mr. GIBSON). The gentleman was a colonel in the United States Army, a member of the Armed Services Committee, and a great American.

Mr. GIBSON. Mr. Speaker, I want to thank my friend and colleague, Mr. STIVERS, for yielding time. I also greatly appreciate his work on the committee and his service to our Nation. We appreciate the sacrifices that he has rendered on our behalf and also from his family.

Mr. Speaker, I rise today in support of the House Defense Appropriations bill, a very important piece of legislation that provides the resources for our servicemen and -women to defend this cherished way of life and to protect our people. We are reminded of that after this devastating terrorist attack this past weekend.

Mr. Speaker, dating back to the founding, we had a principle by which we rally our national security, and that is peace through strength; that is, we look to deter potential adversaries, always prepared, in the event that deterrence fails, to fight and prevail to win and to protect our people.

As part of this concept of deterrence, it is critically important at this juncture, in my view, that we provide the resources necessary to revitalize our Armed Forces. We are coming through a very long period of focus on counterinsurgency operations in Iraq and Afghanistan. Much needs to be done. I think this bill does quite a bit on that score.

I want to thank the chairman and the ranking member for their work on it. I also want to express my gratitude for them to include the bill that I authored that deals with end strength of our Armed Forces. This is the POSTURE Act. It is supported by 52 of my colleagues. It is a bipartisan piece of legislation. In fact, I authored it with Chairman TURNER, MIKE TURNER from the House Armed Services Committee, and Representative TIM WALZ, the highest ranking enlisted man to ever serve in this Chamber, a Democrat from Minnesota.

This bill effectively stops the drawdown that is planned over the next 2 years. Right now we have end strength numbers that essentially match where we were on September 11, 2001. If the administration's plan is allowed to go into effect, we are looking at handing out approximately 70,000 pink slips between now and 2018, bringing down the size of our Armed Forces.

Now is not the time to be doing that, as we deal with Russia, China, North Korea, Iran, and certainly the Islamic State. We have lots of challenges out there, and if we are going to reassert peace through strength, strengthening the hand of our diplomats, I think it is critically important that we don't continue on that drawdown of our land forces and of our forces in the Department of Defense.

So I appreciate the leadership's including this bill that I have authored with my colleagues in the House Defense Appropriations bill. It was critical that it come with the resources, because you just can't increase end strength. It has to come with the money to do that. This committee did that, and I appreciate that.

I also want to say there are important provisions in here to reassure our allies, the European Reassurance Initiative. It is funded here along with the Global Response Force, and a pay raise for our servicemen and -women. They richly deserve this.

The SPEAKER pro tempore (Mr. MCCLINTOCK). The time of the gentleman has expired.

Mr. STIVERS. Mr. Speaker, 1 yield the gentleman from New York an additional 1 minute.

Mr. GIBSON. Mr. Speaker, I want to say how important it is that we bring forward all these initiatives: preserving our end strength, reassuring our allies, and ensuring that the Global Response Force has proper funding. All of these, Mr. Speaker, are going to help strengthen the hand of diplomats.

When you look at our strengths, they are instantiated in our founding documents. On our best day, other countries want to be like us. It is the freedom and it is the prosperity that comes from arraying power the way that we do. Of course, all of this is relying on the principle of deterrence. This bill is very important toward that end.

Mr. Speaker, I appreciate my colleague and friend, Mr. STIVERS, yielding time. I urge my colleagues to support the House Defense Appropriations bill.

Mr. STIVERS. Mr. Speaker, I advise the gentleman from Massachusetts that I have no more speakers, and I am prepared to close.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, there are 1,000 reasons to be opposed to this rule. One is that it brings forward two bills that are deeply flawed.

Mr. Speaker, I include in the RECORD The New York Times editorial against the Roskam bill, ''Dark Money and an I.R.S. Blindfold.''

[From the New York Times Editorial, Apr. 28, 2016]

DARK MONEY AND AN I.R.S. BLINDFOLD

(By the Editorial Board)

It is plainly illegal for foreigners to contribute to American political campaigns. But reform groups are warning that the ban would be gravely undermined by a little-noticed bill advanced Thursday by Republicans on the House Ways and Means Committee.

It would alter the current tax code provision that, while permitting the identity of donors to 501(c) ''social welfare'' groups to be kept firmly secret from the public, requires that the donors be privately identified to Internal Revenue Service officials responsible for enforcing the law. Politically oriented groups claiming dubious exemptions as ''social welfare'' nonprofits have proliferated in recent elections, allowing donors—including publicity-shy campaign backers—to work from the shadows.

Under the proposal, the I.R.S. would no longer be told the identities of contributors to these nonprofits. Watchdog groups warn in a letter to the House that this would ''open the door wide for secret, unaccountable money from foreign governments, foreign corporations and foreign individuals to be illegally laundered into federal elections.'' The letter, signed by the Brennan Center for Justice, the Campaign Legal Center, Democracy 21 and five other groups, stressed that the disclosure requirement is one of the few ways of guarding against foreigners influencing American elections.

Representative Peter Roskam, the bill's sponsor, dismissed the reform groups' warning, saying the I.R.S. ''has a miserable track record when it comes to safeguarding sensitive data'' and a history of targeting conservative nonprofits that are critical of administration policies. His office insisted that ending the disclosure requirement would not affect the foreign-donation ban, but the reform groups sensibly ask who else could monitor what has become a runaway system of big-money stealth politicking.

Claiming a ''social welfare'' tax exemption has become a tool for powerful political operatives like Karl Rove, the Republican campaign guru. His Crossroads GPS group, which has 501(c) status, has spent $330 million on ads and candidates since it was created in 2010. Other political groups, including the Democrats' Priorities USA Action, which aided in President Obama's re-election campaign, have followed suit in claiming ''social welfare'' status. In the last four years, more than $500 million in secretive election contributions has been netted by those using the ploy.

Amid fierce Republican criticism, the I.R.S. has grown ever more gun-shy about enforcement, with Tea Party and other right-wing groups accusing tax officials of bias in daring to investigate conservative ''social welfare'' claims. As I.R.S. wariness grows, so does the attraction of 501(c)s for donors more interested in stealth politicking than charity work. Enabling foreigners to join this dark money debacle would be disastrous.

Mr. MCGOVERN. Mr. Speaker, I will read the opening paragraph: ''It is plainly illegal for foreigners to contribute to American political campaigns. But reform groups are warning that the ban would be gravely undermined by a little-noticed bill''—which is this bill—''advanced Thursday by Republicans on the House Ways and Means Committee.''

This is basically saying that this opens up a loophole that, quite frankly, can be very, very dangerous. So I urge my colleagues that if this rule gets passed, that they would vote against this bill.

Again, as I mentioned on the Defense Appropriations bill, it is a bill that is based on budget gimmicks, and it is also a bill that continues to fund endless wars without having any authorization from this Congress. We have not voted on an AUMF for the most recent war in Iraq and in Syria. I find it unconscionable that we have no problem just putting these wars on automatic pilot and having our brave men and women in uniform in harm's way, and we don't even have the guts to debate it.

We have tried and tried and tried and tried on various bills—on authorization bills and on appropriations bills—to be able to have that debate. There is always an excuse—oh, it is a different committee jurisdiction; oh, we have to give it more than 10 minutes; oh, we have to do this, we have to do that—but this is our constitutional responsibility. We have time to vote on all these other bills that, quite frankly, are going nowhere that are political messaging pieces written at the National Republican Congressional Committee, but we can't find the time to debate these wars to clarify what our mission is—these wars that our brave men and women in uniform have been put in harm's way to deal with?

Come on. At some point, we have to find the courage to debate this. If people think these wars are the right way to go or they want to expand Presidential authority, then that is how you do it. If people like me think our military footprint is too big in the Middle East and that we need to have a more clearly defined mission about what we are doing, then that is the forum in which we restrain these wars.

But to do nothing—to do nothing—is cowardly. It is just wrong. I am hoping in the amendment process that we will have the opportunity to debate some of these issues. But if history is any indication, the answer is probably not.

Finally, I am urging my colleagues to defeat the previous question. Quite frankly, instead of these flawed bills, we should be debating how to prevent more tragedies like the one that took place in Orlando.

If we defeat the previous question, we will bring up a bill that is a bipartisan bill that would simply say that, if you are on an FBI watch list so you are unable to fly, then you should be unable to buy a gun at a gun store. It is that simple.

I don't quite understand why that is such a big deal. If the FBI believes that you are potentially dangerous so that they will not allow you to fly on an airplane, then how in the world can we allow that person to go into a gun store and buy a gun? And not just any gun; they can buy an assault weapon. It is crazy.

We have tried, on numerous occasions, to bring this issue to the floor, and House Republicans have voted 11 times—11 times—to block the bipartisan No Fly, No Buy legislation that was originally authored by my Republican colleague, Congressman PETER KING.

Since taking control of the House in 2011, my Republican friends have drastically cut the resources available for law enforcement, slashing the COPS program, which includes COPS hiring, COPS technology, interoperability, et cetera, by 64 percent. We need to respond to these terrible tragedies and make sure that our communities have what they need to keep people safe.

According to the Government Accountability Office, as my colleague from California (Mr. THOMPSON) pointed out, more than 2,000 suspects on the FBI's terrorist watch list have successfully purchased weapons in the United States—more than 2,000. These are people who can't fly on airplanes because they are suspected of being terrorists, but they can go in and buy a firearm. More than 90 percent of all suspected terrorists who attempted to purchase guns in the last 11 years walked away with the weapon they wanted, with just 190 rejected, despite their ominous history.

This legislation that we want to bring to the floor—just so there is no misunderstanding here—was originally crafted in 2007 and endorsed by President Bush's Justice Department. It has bipartisan support in the House and is supported by prominent Republicans and counterterrorism and law enforcement experts. Yet we can't find the time to bring it to the floor. All we can do in the aftermath of terrible massacres like the one in Orlando is come to the floor and have a moment of silence for 10 seconds, and that is it. That is our obligation.

It is awful that we can't deal in a responsible way with legislation like the bills that I have mentioned here. I think the American people—and this goes beyond political affiliation—are getting sick of our inaction on this stuff. I should just say, if my friends are afraid of the NRA, according to a 2012 poll, 71 percent of current or former NRA members and 80 percent of other gun owners support preventing people on a terrorist watch list from purchasing guns.

I don't know what it is going to take, but I will tell you this: the outrage is already beyond description here on the House floor of people who are simply tired of our inaction.

So, Mr. Speaker, I urge my colleagues on both sides of the aisle to defeat the previous question so we can actually have a debate and vote on something that might save some lives, and also vote against the rule.

Mr. Speaker, I yield back the balance of my time.

Mr. STIVERS. Mr. Speaker, I yield myself the balance of my time.

The gentleman makes an impassioned argument, but today's rule is about two bills. It is about a bill that will prevent IRS abuse and make sure that our citizens have a right to free speech and free association that they are guaranteed under the First Amendment of the Constitution.

I thought it was really interesting that he read a portion of The New York Times editorial that is very clear to say that reform groups claim that this bill does X. The editorial writer did not make the claim that it happened or that it will happen; he made the claim that reform groups claim it will happen because the editorial writer can't verify the validity of it, and it is simply not true.

The Bank Secrecy Act will make sure, as it does today, that foreign money is kept out of our elections. The Federal Election Commission, which is responsible for enforcing our election laws, will continue to enforce our election laws.

□ 1315

In fact, no one knows what Schedule B is used for. Today it has no real purpose. The IRS' Director of Exempt Organizations has publicly stated that they are considering doing away with Schedule B themselves. That is all the first bill does.

The second bill we are talking about is providing for funding for our troops. It is the DOD authorization for funding for 2017. The gentleman talks about some other issues, but if we don't fund it, we are the ones doing nothing. If we don't fund our troops, we are the ones doing nothing. We have an obligation to fund our troops to provide for the common defense. We need to make sure we do that. That is what this bill does, and I want to make sure we do that.

I do want to make a quick comment on process because the gentleman is apparently outraged about process. In this session of Congress, the 114th Congress, Mr. Speaker, the majority has allowed 1,269 amendments on the House floor in this Congress. That is as of May—halfway through this year. In the 113th Congress, the majority allowed 1,545 amendments to be considered. When the gentleman from Massachusetts was in the majority in the 111th Congress, his party only allowed 778 amendments during the entire 111th Congress. The gentleman's claims ring a little hollow. Maybe where you stand depends on where you sit.

I will say that these are important bills. The rule will make sure that we can fully fund our national defense and make sure that we look out for the constitutional rights of our citizens. Those are two very important things. I don't argue with the gentleman that there may be other things we want to talk about, but those things are important, and that is what today is about, that is what this 1 hour of debate is about, and that is what the 2 hours the rule provides are about.

Mr. Speaker, I urge my colleagues to support the rule and the underlying bills.

The material previously referred to by Mr. MCGOVERN is as follows:

AN AMENDMENT TO H. RES. 778 OFFERED BY MR. MCGOVERN

At the end of the resolution, add the following new sections:

SEC. 6. Immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 1076) to increase public safety by permitting the Attorney General to deny the transfer of a firearm or the issuance of firearms or explosives licenses to a known or suspected dangerous terrorist. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 7. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 1076.

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THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. STIVERS. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. MCGOVERN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on ordering the previous question will be followed by 5-minute votes on adopting the resolution, if ordered, and suspending the rules and passing H.R. 5049.

The vote was taken by electronic device, and there were—yeas 236, nays 171, not voting 27, as follows:

[Roll No. 299]

YEAS—236

| | | |
|---|---|---|
| Abraham | Guinta | Pearce |
| Aderholt | Guthrie | Perry |
| Allen | Hanna | Peterson |
| Amash | Hardy | Pittenger |
| Amodei | Harper | Pitts |
| Babin | Harris | Poe (TX) |
| Barletta | Hartzler | Poliquin |
| Barr | Heck (NV) | Pompeo |
| Barton | Hensarling | Posey |
| Benishek | Hice, Jody B. | Price, Tom |
| Bilirakis | Hill | Ratcliffe |
| Bishop (MI) | Holding | Reed |
| Black | Hudson | Reichert |
| Blackburn | Huelskamp | Renacci |
| Blum | Huizenga (MI) | Ribble |
| Bost | Hultgren | Rice (SC) |
| Boustany | Hurd (TX) | Rigell |
| Brady (TX) | Hurt (VA) | Roby |
| Brat | Issa | Roe (TN) |
| Bridenstine | Jenkins (KS) | Rogers (AL) |
| Brooks (AL) | Jenkins (WV) | Rogers (KY) |
| Brooks (IN) | Johnson (OH) | Rohrabacher |
| Buchanan | Johnson, Sam | Rooney (FL) |
| Buck | Jolly | Ros-Lehtinen |
| Bucshon | Jones | Roskam |
| Burgess | Jordan | Ross |
| Byrne | Joyce | Rothfus |
| Calvert | Katko | Rouzer |
| Carter (GA) | Kelly (MS) | Royce |
| Carter (TX) | Kelly (PA) | Russell |
| Chabot | King (IA) | Salmon |
| Chaffetz | King (NY) | Scalise |
| Clawson (FL) | Kinzinger (IL) | Schweikert |
| Coffman | Kline | Scott, Austin |
| Cole | Knight | Sensenbrenner |
| Collins (GA) | LaHood | Sessions |
| Collins (NY) | LaMalfa | Shimkus |
| Conaway | Lamborn | Shuster |
| Cook | Lance | Simpson |
| Costello (PA) | Latta | Smith (MO) |
| Cramer | LoBiondo | Smith (NE) |
| Crawford | Long | Smith (NJ) |
| Crenshaw | Loudermilk | Smith (TX) |
| Culberson | Love | Stefanik |
| Curbelo (FL) | Lucas | Stewart |
| Davidson | Luetkemeyer | Stivers |
| Davis, Rodney | Lummis | Stutzman |
| Denham | MacArthur | Thompson (PA) |
| Dent | Marchant | Thornberry |
| DeSantis | Marino | Tiberi |
| DesJarlais | Massie | Tipton |
| Diaz-Balart | McCarthy | Trott |
| Dold | McCaul | Turner |
| Donovan | McClintock | Upton |
| Duncan (SC) | McHenry | Valadao |
| Duncan (TN) | McKinley | Wagner |
| Ellmers (NC) | McMorris Rodgers | Walberg |
| Emmer (MN) | McSally | Walden |
| Farenthold | Meadows | Walker |
| Fincher | Meehan | Walorski |
| Fitzpatrick | Messer | Walters, Mimi |
| Fleischmann | Mica | Weber (TX) |
| Fleming | Miller (FL) | Webster (FL) |
| Flores | Miller (MI) | Wenstrup |
| Fortenberry | Moolenaar | Westerman |
| Foxx | Mooney (WV) | Westmoreland |
| Franks (AZ) | Mullin | Whitfield |
| Frelinghuysen | Mulvaney | Williams |
| Garrett | Murphy (PA) | Wilson (SC) |
| Gibbs | Neugebauer | Wittman |
| Gibson | Newhouse | Womack |
| Gohmert | Noem | Woodall |
| Gosar | Nugent | Yoder |
| Gowdy | Nunes | Yoho |
| Graves (GA) | Olson | Young (AK) |
| Graves (LA) | Palazzo | Young (IA) |
| Graves (MO) | Palmer | Young (IN) |
| Griffith | Paulsen | Zeldin |
| Grothman | | Zinke |

NAYS—171

Adams
Aguilar
Ashford
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Foster
Frankel (FL)
Fudge
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larsen (WA)
Lee
Levin
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McGovern
McNerney
Meeks
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Watson Coleman
Welch
Yarmuth

NOT VOTING—27

Bass
Bishop (UT)
Comstock
Dingell
Duffy
Farr
Fattah
Forbes
Gabbard
Goodlatte
Granger
Grijalva
Herrera Beutler
Hinojosa
Hunter
Kirkpatrick
Labrador
Larson (CT)
Lawrence
Lipinski
McDermott
Meng
Rokita
Sanford
Takai
Waters, Maxine
Wilson (FL)

□ 1337

Messrs. RYAN of Ohio, SERRANO, SIRES, and TAKANO changed their vote from ''yea'' to ''nay.''

Mr. JENKINS of West Virginia, Mrs. NOEM, and Mr. JOYCE changed their vote from ''nay'' to ''yea.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated for:

Mrs. COMSTOCK. Mr. Speaker, on rollcall No. 299, had I been present, I would have voted "yes."

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. MCGOVERN. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 239, noes 179, not voting 16, as follows:

[Roll No. 300]

AYES—239

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—179

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McGovern
McNerney
Meeks
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Watson Coleman
Welch
Yarmuth

NOT VOTING—16

Bishop (UT)
Dingell
Duffy
Fattah
Forbes
Goodlatte
Herrera Beutler
Hinojosa
Lawrence
McDermott
Meng
Sanford
Takai
Torres
Waters, Maxine
Wilson (FL)

□ 1344

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mrs. LAWRENCE. Mr. Speaker, I was unavoidably detained. Had I been present, I would have voted:

No on rollcall No. 299.

No on rollcall No. 300.

## NSF MAJOR RESEARCH FACILITY REFORM ACT OF 2016

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 5049) to provide for improved management and oversight of major multi-user research facilities funded by the National Science Foundation, to

ensure transparency and accountability of construction and management costs, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Georgia (Mr. LOUDERMILK) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 412, nays 9, not voting 13, as follows:

[Roll No. 301]

YEAS—412

| | | |
|---|---|---|
| Abraham | Costello (PA) | Hanna |
| Adams | Courtney | Hardy |
| Aderholt | Cramer | Harper |
| Aguilar | Crawford | Harris |
| Allen | Crenshaw | Hartzler |
| Amodei | Crowley | Hastings |
| Ashford | Cuellar | Heck (NV) |
| Babin | Culberson | Hensarling |
| Barletta | Cummings | Hice, Jody B. |
| Barr | Curbelo (FL) | Higgins |
| Barton | Davidson | Hill |
| Bass | Davis (CA) | Himes |
| Beatty | Davis, Danny | Holding |
| Becerra | Davis, Rodney | Honda |
| Benishek | DeFazio | Hoyer |
| Bera | DeGette | Hudson |
| Beyer | Delaney | Huelskamp |
| Bilirakis | DeLauro | Huffman |
| Bishop (GA) | DelBene | Huizenga (MI) |
| Bishop (MI) | Denham | Hultgren |
| Bishop (UT) | Dent | Hunter |
| Black | DeSantis | Hurd (TX) |
| Blackburn | DeSaulnier | Hurt (VA) |
| Blum | DesJarlais | Israel |
| Blumenauer | Deutch | Issa |
| Bonamici | Diaz-Balart | Jackson Lee |
| Bost | Doggett | Jeffries |
| Boustany | Dold | Jenkins (KS) |
| Boyle, Brendan F. | Donovan | Jenkins (WV) |
| Brady (PA) | Doyle, Michael F. | Johnson (GA) |
| Brady (TX) | Duckworth | Johnson (OH) |
| Brat | Duncan (SC) | Johnson, E. B. |
| Bridenstine | Duncan (TN) | Johnson, Sam |
| Brooks (AL) | Edwards | Jolly |
| Brooks (IN) | Ellison | Jordan |
| Brown (FL) | Ellmers (NC) | Joyce |
| Brownley (CA) | Emmer (MN) | Kaptur |
| Buchanan | Engel | Katko |
| Buck | Eshoo | Keating |
| Bucshon | Esty | Kelly (IL) |
| Bustos | Farenthold | Kelly (MS) |
| Butterfield | Farr | Kelly (PA) |
| Byrne | Fincher | Kennedy |
| Calvert | Fitzpatrick | Kildee |
| Capps | Fleischmann | Kilmer |
| Capuano | Fleming | Kind |
| Cárdenas | Flores | King (IA) |
| Carney | Fortenberry | King (NY) |
| Carson (IN) | Foster | Kinzinger (IL) |
| Carter (GA) | Foxx | Kirkpatrick |
| Carter (TX) | Frankel (FL) | Kline |
| Cartwright | Franks (AZ) | Knight |
| Castor (FL) | Frelinghuysen | Kuster |
| Castro (TX) | Fudge | Labrador |
| Chabot | Gabbard | LaHood |
| Chaffetz | Gallego | LaMalfa |
| Chu, Judy | Garamendi | Lamborn |
| Cicilline | Garrett | Lance |
| Clark (MA) | Gibbs | Langevin |
| Clarke (NY) | Gibson | Larsen (WA) |
| Clawson (FL) | Gosar | Larson (CT) |
| Clay | Gowdy | Latta |
| Cleaver | Graham | Lawrence |
| Clyburn | Granger | Lee |
| Coffman | Graves (GA) | Levin |
| Cohen | Graves (LA) | Lewis |
| Cole | Graves (MO) | Lieu, Ted |
| Collins (GA) | Grayson | Lipinski |
| Collins (NY) | Green, Al | LoBiondo |
| Comstock | Green, Gene | Loebsack |
| Conaway | Griffith | Lofgren |
| Connolly | Grijalva | Long |
| Conyers | Guinta | Loudermilk |
| Cook | Guthrie | Love |
| Cooper | Gutiérrez | Lowenthal |
| Costa | Hahn | Lowey |
| Costello (PA) | Hanna | Lucas |
| Courtney | Hardy | Luetkemeyer |
| Cramer | Harper | Lujan Grisham (NM) |
| Crawford | Harris | Luján, Ben Ray (NM) |
| Crenshaw | Hartzler | Lummis |
| Crowley | Hastings | Lynch |
| Cuellar | Heck (NV) | MacArthur |
| Culberson | Hensarling | Maloney, Carolyn |
| Cummings | Hice, Jody B. | Maloney, Sean |
| Curbelo (FL) | Higgins | Marchant |
| Davidson | Hill | Marino |
| Davis (CA) | Himes | Matsui |
| Davis, Danny | Holding | McCarthy |
| Davis, Rodney | Honda | McCaul |
| DeFazio | Hoyer | McClintock |
| DeGette | Hudson | McCollum |
| Delaney | Huelskamp | McDermott |
| DeLauro | Huffman | McGovern |
| DelBene | Huizenga (MI) | McHenry |
| Denham | Hultgren | McKinley |
| Dent | Hunter | McMorris Rodgers |
| DeSantis | Hurd (TX) | McNerney |
| DeSaulnier | Hurt (VA) | McSally |
| DesJarlais | Israel | Meadows |
| Deutch | Issa | Meehan |
| Diaz-Balart | Jackson Lee | Meeks |
| Doggett | Jeffries | Messer |
| Dold | Jenkins (KS) | Mica |
| Donovan | Jenkins (WV) | Miller (FL) |
| Doyle, Michael F. | Johnson (GA) | Miller (MI) |
| Duckworth | Johnson (OH) | Moolenaar |
| Duncan (SC) | Johnson, E. B. | Mooney (WV) |
| Duncan (TN) | Johnson, Sam | Moore |
| Edwards | Jolly | Moulton |
| Ellison | Jordan | Mullin |
| Ellmers (NC) | Joyce | Murphy (FL) |
| Emmer (MN) | Kaptur | Murphy (PA) |
| Engel | Katko | Nadler |
| Eshoo | Keating | Napolitano |
| Esty | Kelly (IL) | Neal |
| Farenthold | Kelly (MS) | Neugebauer |
| Farr | Kelly (PA) | Newhouse |
| Fincher | Kennedy | Noem |
| Fitzpatrick | Kildee | Nolan |
| Fleischmann | Kilmer | Norcross |
| Fleming | Kind | Nugent |
| Flores | King (IA) | Nunes |
| Fortenberry | King (NY) | O'Rourke |
| Foster | Kinzinger (IL) | Olson |
| Foxx | Kirkpatrick | Palazzo |
| Frankel (FL) | Kline | Pallone |
| Franks (AZ) | Knight | Palmer |
| Frelinghuysen | Kuster | Pascrell |
| Fudge | Labrador | Paulsen |
| Gabbard | LaHood | Payne |
| Gallego | LaMalfa | Pearce |
| Garamendi | Lamborn | Pelosi |
| Garrett | Lance | Perlmutter |
| Gibbs | Langevin | Perry |
| Gibson | Larsen (WA) | Peters |
| Gosar | Larson (CT) | Peterson |
| Gowdy | Latta | Pingree |
| Graham | Lawrence | Pittenger |
| Granger | Lee | Pitts |
| Graves (GA) | Levin | Pocan |
| Graves (LA) | Lewis | Poe (TX) |
| Graves (MO) | Lieu, Ted | Poliquin |
| Grayson | Lipinski | Polis |
| Green, Al | LoBiondo | Pompeo |
| Green, Gene | Loebsack | Posey |
| Griffith | Lofgren | Price (NC) |
| Grijalva | Long | Price, Tom |
| Guinta | Loudermilk | Quigley |
| Guthrie | Love | Rangel |
| Gutiérrez | Lowenthal | Ratcliffe |
| Hahn | Lowey | Reed |
| Hanna | Lucas | Reichert |
| Hardy | Luetkemeyer | Renacci |
| Harper | Lujan Grisham (NM) | Ribble |
| Harris | Luján, Ben Ray (NM) | Rice (NY) |
| Hartzler | Lummis | Rice (SC) |
| Hastings | Lynch | Richmond |
| Heck (NV) | MacArthur | Rigell |
| Hensarling | Maloney, Carolyn | Roby |
| Hice, Jody B. | Maloney, Sean | Roe (TN) |
| Higgins | Marchant | Rogers (AL) |
| Hill | Marino | Rogers (KY) |
| Himes | Matsui | Rohrabacher |
| Holding | McCarthy | Rokita |
| Honda | McCaul | Rooney (FL) |
| Hoyer | McClintock | Ros-Lehtinen |
| Hudson | McCollum | Roskam |
| Huelskamp | McDermott | Ross |
| Huffman | McGovern | Rothfus |
| Huizenga (MI) | McHenry | Rouzer |
| Hultgren | McKinley | Roybal-Allard |
| Hunter | McMorris Rodgers | Royce |
| Hurd (TX) | McNerney | Ruiz |
| Hurt (VA) | McSally | Ruppersberger |
| Israel | Meadows | Rush |
| Issa | Meehan | Russell |
| Jackson Lee | Meeks | Ryan (OH) |
| Jeffries | Messer | Salmon |
| Jenkins (KS) | Mica | Sánchez, Linda T. |
| Jenkins (WV) | Miller (FL) | Sanchez, Loretta |
| Johnson (GA) | Miller (MI) | Sarbanes |
| Johnson (OH) | Moolenaar | Scalise |
| Johnson, E. B. | Mooney (WV) | Schakowsky |
| Johnson, Sam | Moore | Schiff |
| Jolly | Moulton | Schrader |
| Jordan | Mullin | Schweikert |
| Joyce | Murphy (FL) | Scott (VA) |
| Kaptur | Murphy (PA) | Scott, Austin |
| Katko | Nadler | Scott, David |
| Keating | Napolitano | Serrano |
| Kelly (IL) | Neal | Sessions |
| Kelly (MS) | Neugebauer | Sewell (AL) |
| Kelly (PA) | Newhouse | Sherman |
| Kennedy | Noem | Shimkus |
| Kildee | Nolan | Shuster |
| Kilmer | Norcross | Simpson |
| Kind | Nugent | Sinema |
| King (IA) | Nunes | Sires |
| King (NY) | O'Rourke | Slaughter |
| Kinzinger (IL) | Olson | Smith (MO) |
| Kirkpatrick | Palazzo | Smith (NE) |
| Kline | Pallone | Smith (NJ) |
| Knight | Palmer | Smith (TX) |
| Kuster | Pascrell | Smith (WA) |
| Labrador | Paulsen | Speier |
| LaHood | Payne | Stefanik |
| LaMalfa | Pearce | Stewart |
| Lamborn | Pelosi | Stivers |
| Lance | Perlmutter | Swalwell (CA) |
| Langevin | Perry | Takano |
| Larsen (WA) | Peters | Thompson (CA) |
| Larson (CT) | Peterson | Thompson (MS) |
| Latta | Pingree | Thompson (PA) |
| Lawrence | Pittenger | Thornberry |
| Lee | Pitts | Tiberi |
| Levin | Pocan | Tipton |
| Lewis | Poe (TX) | Titus |
| Lieu, Ted | Poliquin | Tonko |
| Lipinski | Polis | Torres |
| LoBiondo | Pompeo | Trott |
| Loebsack | Posey | Tsongas |
| Lofgren | Price (NC) | Turner |
| Long | Price, Tom | Upton |
| Loudermilk | Quigley | Valadao |
| Love | Rangel | Van Hollen |
| Lowenthal | Ratcliffe | Vargas |
| Lowey | Reed | Veasey |
| Lucas | Reichert | Vela |
| Luetkemeyer | Renacci | Velázquez |
| Lujan Grisham (NM) | Ribble | Visclosky |
| Luján, Ben Ray (NM) | Rice (NY) | Wagner |
| Lummis | Rice (SC) | Walberg |
| Lynch | Richmond | Walden |
| MacArthur | Rigell | Walker |
| Maloney, Carolyn | Roby | Walorski |
| Maloney, Sean | Roe (TN) | Walters, Mimi |
| Marchant | Rogers (AL) | Walz |
| Marino | Rogers (KY) | Wasserman Schultz |
| Matsui | Rohrabacher | Watson Coleman |
| McCarthy | Rokita | Weber (TX) |
| McCaul | Rooney (FL) | Webster (FL) |
| McClintock | Ros-Lehtinen | Welch |
| McCollum | Roskam | Wenstrup |
| McDermott | Ross | Westerman |
| McGovern | Rothfus | Westmoreland |
| McHenry | Rouzer | Whitfield |
| McKinley | Roybal-Allard | Williams |
| McMorris Rodgers | Royce | Wilson (SC) |
| McNerney | Ruiz | Wittman |
| McSally | Ruppersberger | Womack |
| Meadows | Rush | Woodall |
| Meehan | Russell | Yarmuth |
| Meeks | Ryan (OH) | Yoder |
| Messer | Salmon | Yoho |
| Mica | Sánchez, Linda T. | Young (AK) |
| Miller (FL) | Sanchez, Loretta | Young (IA) |
| Miller (MI) | Sarbanes | Young (IN) |
| Moolenaar | Scalise | Zeldin |
| Mooney (WV) | Schakowsky | Zinke |
| Moore | Schiff | |
| Moulton | Schrader | |
| Mullin | Schweikert | |
| Murphy (FL) | Scott (VA) | |
| Murphy (PA) | Scott, Austin | |
| Nadler | Scott, David | |
| Napolitano | Serrano | |
| Neal | Sessions | |
| Neugebauer | Sewell (AL) | |
| Newhouse | Sherman | |
| Noem | Shimkus | |
| Nolan | Shuster | |
| Norcross | Simpson | |
| Nugent | Sinema | |
| Nunes | Sires | |
| O'Rourke | Slaughter | |
| Olson | Smith (MO) | |
| Palazzo | Smith (NE) | |
| Pallone | Smith (NJ) | |
| Palmer | Smith (TX) | |
| Pascrell | Smith (WA) | |
| Paulsen | Speier | |
| Payne | Stefanik | |
| Pearce | Stewart | |
| Pelosi | Stivers | |
| Perlmutter | Swalwell (CA) | |
| Perry | Takano | |
| Peters | Thompson (CA) | |
| Peterson | Thompson (MS) | |
| Pingree | Thompson (PA) | |
| Pittenger | Thornberry | |
| Pitts | Tiberi | |
| Pocan | Tipton | |
| Poe (TX) | Titus | |
| Poliquin | Tonko | |
| Polis | Torres | |
| Pompeo | Trott | |
| Posey | Tsongas | |
| Price (NC) | Turner | |
| Price, Tom | Upton | |
| Quigley | Valadao | |
| Rangel | Van Hollen | |
| Ratcliffe | Vargas | |
| Reed | Veasey | |
| Reichert | Vela | |
| Renacci | Velázquez | |
| Ribble | Visclosky | |
| Rice (NY) | Wagner | |
| Rice (SC) | Walberg | |
| Richmond | Walden | |
| Rigell | Walker | |
| Roby | Walorski | |
| Roe (TN) | Walters, Mimi | |
| Rogers (AL) | Walz | |
| Rogers (KY) | Wasserman Schultz | |
| Rohrabacher | Watson Coleman | |
| Rokita | Weber (TX) | |
| Rooney (FL) | Webster (FL) | |
| Ros-Lehtinen | Welch | |
| Roskam | Wenstrup | |
| Ross | Westerman | |
| Rothfus | Westmoreland | |
| Rouzer | Whitfield | |
| Roybal-Allard | Williams | |
| Royce | Wilson (SC) | |
| Ruiz | Wittman | |
| Ruppersberger | Womack | |
| Rush | Woodall | |
| Russell | Yarmuth | |
| Ryan (OH) | Yoder | |
| Salmon | Yoho | |
| Sánchez, Linda T. | Young (AK) | |
| Sanchez, Loretta | Young (IA) | |
| Sarbanes | Young (IN) | |
| Scalise | Zeldin | |
| Schakowsky | Zinke | |
| Schiff | | |
| Schrader | | |
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| Scott (VA) | | |
| Scott, Austin | | |
| Scott, David | | |
| Serrano | | |
| Sessions | | |
| Sewell (AL) | | |
| Sherman | | |
| Shimkus | | |
| Shuster | | |
| Simpson | | |
| Sinema | | |

NAYS—9

| | | |
|---|---|---|
| Amash | Grothman | Mulvaney |
| Burgess | Jones | Sensenbrenner |
| Gohmert | Massie | Stutzman |

NOT VOTING—13

| | | |
|---|---|---|
| Dingell | Heck (WA) | Takai |
| Duffy | Herrera Beutler | Waters, Maxine |
| Fattah | Hinojosa | Wilson (FL) |
| Forbes | Meng | |
| Goodlatte | Sanford | |

□ 1351

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

## PERMISSION TO POSTPONE PROCEEDINGS ON MOTION TO RECOMMIT ON H.R. 5053, PREVENTING IRS ABUSE AND PROTECTING FREE SPEECH ACT

Mr. BRADY of Texas. Mr. Speaker, I ask unanimous consent that the question on adoption of the motion to recommit to H.R. 5053 be subject to postponement as though under clause 8 of rule XX.

The SPEAKER pro tempore (Mr. POE of Texas). Is there objection to the request of the gentleman from Texas?

There was no objection.

## PREVENTING IRS ABUSE AND PROTECTING FREE SPEECH ACT

Mr. BRADY of Texas. Mr. Speaker, pursuant to House Resolution 778, I call up the bill (H.R. 5053) to amend the Internal Revenue Code of 1986 to prohibit the Secretary of the Treasury from requiring that the identity of contributors to 501(c) organizations be included in annual returns, and ask for its immediate consideration.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 778, in lieu of the amendment in the nature of a substitute recommended by the Committee on Ways and Means, printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–58, is adopted, and the bill, as amended, is considered read.

The text of the bill, as amended, is as follows:

H.R. 5053

*Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,*

***SECTION 1. SHORT TITLE.***

*This Act may be cited as the ''Preventing IRS Abuse and Protecting Free Speech Act''.*

***SEC. 2. PROHIBITION ON REQUIRING THAT IDENTITY OF CONTRIBUTORS TO 501(C) ORGANIZATIONS BE INCLUDED IN ANNUAL RETURNS.***

*(a) IN GENERAL.—Section 6033 of the Internal Revenue Code of 1986 is amended by redesignating subsection (n) as subsection (o) and by inserting after subsection (m) the following:*

*''(n) IDENTIFYING INFORMATION OF DONORS.—*

*''(1) IN GENERAL.—For purposes of subsection (a), the Secretary may not require the name, address, or other identifying information of any contributor to any organization described in section 501(c) of any amount of any contribution, grant, bequest, devise, or gift of money or property.*

*''(2) EXCEPTIONS.—*

*''(A) IN GENERAL.—Paragraph (1) shall not apply—*

*''(i) to any disclosure required by subsection (a)(2), and*

*''(ii) with respect to any a contribution, grant, bequest, devise, or gift of money or property made by an officer or director of the organization (or an individual having powers or responsibilities similar to those of officers or directors) or any covered employee.*

*''(B) COVERED EMPLOYEE.—For purposes of this paragraph, the term 'covered employee' means any employee (including any former employee) of the organization if the employee is one of the 5 highest compensated employees of the organization for the taxable year.*

*''(C) COMPENSATION FROM RELATED ORGANIZATIONS.—*

*''(i) IN GENERAL.—Compensation of a covered employee by the organization shall include any compensation paid with respect to employment of such employee by any related person or governmental entity.*

*''(ii) RELATED ORGANIZATIONS.—A person or governmental entity shall be treated as related to the organization if such person or governmental entity—*

*''(I) controls, or is controlled by, the organization,*

*''(II) is controlled by one or more persons that control the organization,*

*''(III) is a supported organization (as defined in section 509(f)(3)) during the taxable year with respect to the organization,*

*''(IV) is a supporting organization described in section 509(a)(3) during the taxable year with respect to the organization, or*

*''(V) in the case of an organization that is a voluntary employees' beneficiary association described in section 501(c)(9), establishes, maintains, or makes contributions to such voluntary employees' beneficiary association.''.*

*(b) CONFORMING AMENDMENT.—Section 6033(b)(5) of such Code is amended—*

*(1) by striking ''all'', and*

*(2) by adding at the end the following: ''to the extent not prohibited by subsection (n),''.*

*(c) EFFECTIVE DATE.—The amendments made by this section shall apply to returns required to be filed for taxable years ending after the date of the enactment of this Act.*

The SPEAKER pro tempore. The bill shall be debatable for 60 minutes, equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means.

The gentleman from Texas (Mr. BRADY), and the gentleman from Michigan (Mr. LEVIN) each will control 30 minutes.

The Chair recognizes the gentleman from Texas (Mr. BRADY).

GENERAL LEAVE

Mr. BRADY of Texas. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and to include extraneous material on H.R. 5053, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. BRADY of Texas. Mr. Speaker, I yield myself such time as I may consume.

Over the past several years, the American people have come to learn just how reckless and untrustworthy the IRS can be with their sensitive taxpayer information.

Most concerning of all is that this Federal agency, which holds immense power to disrupt the lives of taxpayers, has directly exploited sensitive taxpayer information for political purposes.

We have responsibility to taxpayers to make sure this is never allowed to happen again. That is why we fought hard to push forward a ban on IRS political targeting as part of the PATH Act. And last December, that ban was signed into law for the very first time.

But we still have more work to do to clean up the IRS and hold it more accountable to the taxpayers it serves. The Preventing IRS Abuse and Protecting Free Speech Act continues this critical effort.

This important bill, authored by Congressman ROSKAM, would prohibit the IRS from collecting the identity of people who donate to tax-exempt organizations. During our committee's IRS political targeting investigation, we learned that the IRS not only singled out certain organizations for heightened security, but in some cases, it even demanded they turn over a list of all their donors. These invasions of privacy are completely unacceptable.

The bill before us today makes much needed steps to protect taxpayer identities and ease the compliance burden on tax-exempt organizations. Most importantly, this bill helps ensure that Americans can never again be singled out by the IRS for their political beliefs.

I am grateful to Chairman ROSKAM for his leadership and diligence on this important issue, and I urge all my colleagues to join me in supporting the passage of this legislation.

Mr. Speaker, I reserve the balance of my time, and I ask unanimous consent that the gentleman from Illinois (Mr. ROSKAM) be permitted to control the reminder of the time.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. LEVIN. Mr. Speaker, I yield myself such time as I may consume.

The Republican majority believes the more hidden money in politics, the better. Freedom of speech, they say, requires more and more dark money or that democracy requires the ability of a few key people to write a check of $100 million without anyone knowing who signed the check or, as a Koch brothers executive claimed, Americans have the right to ''anonymous free speech.''

This bill now would help extend that anonymity to foreign individuals and governments who contribute in violation of our laws.

We have a crisis in our campaign system, a crisis. Tens of millions of dollars are being spent without full disclosure. So our constituents know and can make their own judgments about who is influencing our elections. To make matters worse, many of the organizations now doing the spending are organized under our Tax Code as groups allegedly engaged in social welfare activities.

According to the Center for Responsive Politics, political spending by such tax-exempt groups at this point in the current election cycle is five times the amount spent at the same point during the 2012 cycle. Spending during the 2012 Presidential election cycle by 501(c)(4)s and 501(c)(6)s soared to more than $300 million, up from $100 million in 2008 and just $6 million in 2004, according to the Center for Responsive Politics. And the three largest 501(c)(4) spenders from the 2012 cycle, representing fully 51 percent of the total, have special meaning to this House majority.

□ 1400

They include Karl Rove's Crossroads GPS, which spent $71 million; Americans for Prosperity of the Koch brothers spent $36 million; and the American Future Fund, also the Koch brothers, spent $25 million.

It is little wonder that the Koch brothers sent a letter to the Committee on Ways and Means Republicans the morning our committee marked up this bill in April, urging support of this legislation. It seeks to codify the secrecy around donations to social welfare organizations for political purposes.

So Republicans are here today to continue their attack on the IRS as they drive, really, to further undermine our campaign finance system.

This legislation removes the last safeguard against foreign governments and foreign individuals from influencing our elections. Currently, foreign money cannot legally be given or spent in our elections, and a real protection we have against the use of foreign money by politically active social welfare organizations is that they must disclose their donors to the IRS.

This requirement means that tax exempt 501(c)(4) groups know they can be held accountable if they illegally spend foreign money in Federal elections.

Thirteen key campaign finance and government transparency groups, including Democracy 21 and Common Cause, have written to Congress strongly opposing this bill. In their letter, they state: ''The . . . bill would open the door wide for secret money from foreign donors to be illegally laundered into Federal elections through 501(c)(4) and other 501(c) groups . . . House Members should vote against eliminating the existing check against foreign countries, foreign companies, and foreign individuals spending money illegally to influence our elections.''

This legislation would eliminate that protection. The administration opposes this bill. In its Statement of Administration Policy, it states: ''By permanently preventing the IRS from requiring reporting of donor information by 501(c) organizations, H.R. 5053 would constrain the IRS in enforcing tax laws and reduce the transparency of private foundations.''

Therefore, I strongly urge a ''no'' vote.

Mr. Speaker, I reserve the balance of my time.

Mr. ROSKAM. Mr. Speaker, I yield myself such time as I may consume.

I want to thank Chairman BRADY for his leadership in bringing this bill to the floor. Just to put this into context, let's focus in on what we are really talking about. Every year, tax exempt 501(c) organizations fill out a form 990, and they send it to the IRS. So far, so good. It makes all the sense in the world. Public information. It is supposed to be public, and the public is able to review that.

Under current law—actually, it is a rule; it is not a statute, it is a rule—501(c) organizations have to fill out Schedule B. Okay, what is Schedule B? Schedule B is donor information. This donor information is submitted to the IRS. But here is the problem, Mr. Speaker. The IRS Commissioner has

said: We don't think we need this actually. The person who is in charge of the tax exempt unit at the IRS has publicly said they are reviewing this.

If all the other claims were true—I mean, I got carpal tunnel syndrome writing down all these things: hidden money, crisis in campaigns, codify secrecy, last safeguard against foreign influence. Put up the ramparts, Mr. Speaker. If all that was true, then why would the IRS Commissioner be saying these things, that they don't think they need Schedule B?

And further, why wouldn't the White House just declaratively say they are going to veto it? But did you notice something, Mr. Speaker? The White House didn't say they would veto it. Why? This is a pretty good idea. Now, my friends on the other side of the aisle at this point aren't persuaded that it is a good idea, but just because they are slow to the game doesn't mean it is not a good idea.

So why is this a good idea? Here is why. The IRS in the past has demonstrated they have leaked this information. When did they do it? They leaked it in the case of the National Organization for Marriage, a group that was advocating for traditional marriage. They filed their Schedule Bs. Lo and behold, an IRS employee leaked it. Out it goes. You can imagine the donor harassment, the hassle, and so forth. So the IRS' hands in the past, Mr. Speaker, are not exactly clean when it comes to holding this information close. The National Governors Association also was similarly situated. All right, that is the first reason.

The second reason is the IRS acknowledges that they don't need this to administer the Tax Code. They don't need it. What is their job? Their job is to administer the Tax Code. They don't need it to administer the Tax Code.

Finally, we on the Subcommittee on Oversight and those of us on the Committee on Ways and Means know all too well that the IRS is very poorly equipped right now, Mr. Speaker, to deal with cybersecurity issues and identity theft issues.

So my final point is this: the IRS has demonstrated an inability to hold this information in the past. They have demonstrated an inability to hold it in the future. And they don't need it. So if they don't need it, let's not give it to them.

I reserve the balance of my time.

Mr. LEVIN. Mr. Speaker, I yield 3 minutes to the gentleman from New Jersey (Mr. PASCRELL), a member of our committee.

Mr. PASCRELL. Mr. Speaker, I rise today to speak on why this is a bad idea. We have seen in recent years a proliferation of political groups claiming tax exempt social welfare. You know how many groups in the past 5 years have claimed that? That is the status as a means to hide the identities of their donors. Can't put it any more elementary than that.

Now, that is the very law my friend from Illinois—and I mean that seriously—the very law that he is talking about. These groups offer a back door into unrestricted spending on political speech, often in the form of advertising meant to influence elections. I don't think we would disagree on that point.

H.R. 5053 would make it easier for super-PACs to spend money anonymously in support of their preferred candidates or political party. That is H.R. 5053. The bill before us today would make it easier for groups to operate in the shadows, groups like Americans for Prosperity and American Future Fund, which together spent more than $61 million in just one election in 2012 yet still claim tax exempt status.

Now, I believe we need better transparency and accountability in our system. Disclosure of donors to the IRS is a minimum safeguard and a practical tool for auditing. Furthermore, requiring disclosure of donors is one of the only safeguards we have against foreign money influencing our elections.

That is why so many good government groups have spoken out against this legislation, groups that promote transparency in our political system, like the Sunlight Foundation and the League of Women Voters. This bill would make it easier, Mr. Speaker, for anonymous donors to funnel dark money into groups that spend unlimited sums of money to influence elections. This flies in the face of our democratic principles. I urge my colleagues to oppose it.

This isn't about the IRS. This is about hiding who contributes and how much. The IRS isn't for sale, but there are many buyers out there, Mr. Speaker, who want to remain unknown. You and I, the sponsor of this bill, we don't have that luxury. We have to put down everything when someone contributes to us. You know it, and I know it. I believe the PACs should have to do that, too. Why in God's name you don't think so, I have no idea.

Mr. ROSKAM. Mr. Speaker, one quick point. The gentleman said that it was a practical tool for auditing, and yet there was a lawsuit recently where the attorney general of California tried to disclose the Schedule B information. The Federal judge who struck down the public disclosure pointed out that it had not been used in a single concrete instance, not one. And, in fact, the folks in California had not had this information submitted for 10 years before they even noticed that it was missing.

Mr. Speaker, I yield 3 minutes to the gentleman from Louisiana (Mr. BOUSTANY), the distinguished chairman of the Subcommittee on Tax Policy.

Mr. BOUSTANY. Mr. Speaker, I want to applaud my colleague, Chairman ROSKAM, for bringing this legislation to the floor. It is an important piece of legislation, Preventing IRS Abuse and Protecting Free Speech Act.

Back in 2012, when I was the Chairman of the Oversight Subcommittee of the Committee on Ways and Means, I started this investigation into the IRS' unconstitutional targeting of conservative groups for their political beliefs. We passed some legislation back then to improve transparency and accountability at the IRS, but I can tell you much more needs to be done, and this is part of that effort to continue to hold this agency accountable.

Taxpayers deserve to know whether the IRS is violating their privacy. Chairman ROSKAM's bill furthers that effort by preventing the IRS from targeting nonprofits by prohibiting the agency from collecting the identity of donors who contribute to these organizations. We know that the IRS can impose an audit at any time, but there is no need for the IRS to just collect all this information when they can't even do some of the things they are supposed to be doing with the resources they have.

This bill is a step toward restoring individual privacy that the IRS has been exploiting and abusing, and I think the American people have had enough. Passing this bill would dramatically reduce the information that the IRS has the legal ability to demand, lessening that chance, that potential for abuse.

Specifically, the bill would limit the Secretary of the Treasury from requiring the name, address, or other identifying information of any contributor, regardless of the nature or size of the contribution, with two exceptions.

We know the IRS still operates under the shadow of a scandal in which it admitted to targeting organizations based on their political beliefs. We have to get to the bottom of this. This agency has to be reined in. We need to strengthen the laws that protect American citizens' privacy. This investigation is still ongoing. I can tell you, the IRS still refuses to admit that some of its employees engaged in intentional wrongdoing.

To successfully carry out its mission, the IRS must be viewed by the American people as an unbiased arbiter of the law. It cannot do that without coming clean. H.R. 5053 is a necessary step to require more accountability and transparency at the IRS. I urge my colleagues to support us in passing this critical bill.

Mr. LEVIN. Mr. Speaker, I yield 3 minutes to the gentleman from New York (Mr. RANGEL), a truly distinguished member of our committee.

(Mr. RANGEL asked and was given permission to revise and extend his remarks.)

Mr. RANGEL. My colleagues, if you are frustrated, if you are down and out, if you lack self-esteem, if you really want to get a good shot in the arm, kick the IRS. I am telling you, I have been down here 46 years. It always works. It always works.

But to take away an institution that depends on the voluntary contribution of taxpayers, to take away the image of trying to do the right thing for the American people because we have had some severe setbacks, whether under

Democrats or Republicans, is just the wrong thing to do.

□ 1415

I remember the days when people would say: Get some good grades and live a good life and do the right thing and you can run for public office.

I like to believe that not every Republican kid comes from a rich family. I like to believe that they have the same aspirations, no matter what the political party is.

But today, in communities throughout these great United States, if somebody says they want to serve in the local, State, or Federal Government, what is the first thing you ask? How much money do you have? And then, you contribute that to the negative ads, where an Independent listens to Republicans and the Democrats, and are they turned off?

But assuming that some foreigner wants to interfere with a local election, that should bring Democrats and Republicans together. We can fuss with each other, but we certainly don't like foreigners to interfere with our foreign policy.

Recently we have had some people come right here to the well from foreign governments and criticize our President. Criticism is one thing, but financing a political party or a political candidate is repugnant to everything that we stand for.

If you really want to accumulate hundreds of millions of dollars to support an individual, why in the heck would you not want your name to be known?

To say that the IRS cannot collect information is opening the door to a terrible thing that can happen to our country. If you want to break all of the laws which put caps on how much you are spending, then use a charitable organization and say: Hey, it is listed not as political, but I can get away with it.

It is the wrong thing to do, not for Republicans, but for Americans.

You know, people try to get even. To the victor belongs the spoils. So this time, it is Obama, and he is leaving. But I really think that the principle of having people go into public service is being shattered by this type of thing, where foreigners and rich people can make contributions and not be proud enough to state it.

Mr. ROSKAM. Mr. Speaker, I yield myself such time as I may consume.

The gentleman from New York asked a provocative question. Here is why you don't want this type of capacity in the hands of the IRS, I would say, and it is this reason: there is a fundamental lack of trust. The IRS has run roughshod over people's freedoms in the past.

The Commissioner himself has said: I don't need this information. We don't need this information. There are other entities—that is, the Federal Election Commission, the Bank Secrecy Act, and so forth—that are in place that are protections against foreign influence. But, basically, the IRS—and based on the work that the committee has done—I would argue, we have seen where the IRS has not treated these things well.

So go back to a case that is famous, a case from years ago, a case during the civil rights movement, where the NAACP was told: You have to disclose your donor information.

How absurd. How ridiculous. How unconstitutional, in fact, that was. We are not at the same threshold, I would submit, as the NAACP case, but I would suggest that there is something untoward about an agency here—the Internal Revenue Service—that has what? Power to take things away, power to put people in prison. And you are giving them information that they have squandered and abused in that past.

Mr. RANGEL. Will the gentleman yield?

Mr. ROSKAM. I yield to the gentleman from New York.

Mr. RANGEL. Let me make it perfectly clear. If the IRS had leaked information or had not done their job, they should not only be investigated, they should go to trial, and those who violate the law ought to be convicted and serve time for it.

You don't just take away the opportunity for somebody. I am not suggesting that you don't have rich people or foreign governments that are not nice people, but we should not provide a vehicle for them to influence our elections.

Just because the Commissioner says, I don't need additional responsibility, I don't care whether he is appointed by a Democrat or a Republican, it is not for Commissioners to say what is good for this country. It is for this House of Representatives and the Senate.

Mr. ROSKAM. Reclaiming my time, I agree.

I yield 2 minutes to the gentlewoman from Tennessee (Mrs. BLACK) to give us more insight.

Mrs. BLACK. Mr. Speaker, I rise today in strong support of the Preventing IRS Abuse and Protecting Free Speech Act.

As we debate this legislation, I think back to June of 2013, when victims of the IRS targeting testified before our Ways and Means Committee, including someone from my own State, a fellow Tennesseean, Kevin Kookogey, who is the founder of Linchpins of Liberty.

This legislation protects groups like Kevin's from further IRS abuse by repealing the so-called Schedule B requirement that compels tax exempt organizations to turn over names, addresses, and other personal identifiable information of their donors.

Now, we know this information has been misused before and that the IRS, as has already been said, doesn't use this information to determine a tax exempt status anyway.

So why in a free country would these groups need to turn over such personal information in the first place?

We should all be asking ourselves that question. This information is not needed, and it will protect those who choose to give to those organizations without having their information misused.

Let's fix this problem today. I urge a ''yes'' vote on H.R. 5053.

Mr. LEVIN. Mr. Speaker, I yield 3 minutes to the gentleman from Illinois (Mr. DANNY K. DAVIS).

Mr. DANNY K. DAVIS of Illinois. I thank the gentleman for yielding.

Mr. Speaker, in this House, the Republican leadership has failed to provide sufficient investment in major emergencies facing Americans. They have refused to address the horrible epidemic of gun violence that plagues communities like mine and provides extremists an easy tool to kill dozens of people in minutes.

Further, the Republican leadership has refused to give sufficient funds to combat the Zika virus, risking the health and well-being of Americans. They have refused to raise the minimum wage to help working families improve their quality of life and have advanced efforts to reduce access to school meals for low-income children.

Yet, today, the priority of Republican leadership is a bill to blindfold the Internal Revenue Service to large donors to any 501(c) organizations except under very narrow circumstances, opening the floodgates for unlimited, anonymous donations, possibly from foreign sources.

The confidential disclosure of donors provides an important check on secret money from foreign governments or individuals that could be funneled into our elections. This is not a freedom of speech issue. This is not a fight for American freedom. This is a fight to protect the secret efforts to funnel so much money into certain coffers to undermine the integrity of our election system.

I strongly oppose this bill and hope the Republican leadership will focus on addressing the true emergencies facing American families, such as gun violence, hunger, poverty, and health. These are real deal issues.

Mr. ROSKAM. Mr. Speaker, I yield 2 minutes to the gentlewoman from California (Mrs. MIMI WALTERS).

Mrs. MIMI WALTERS of California. Mr. Speaker, I rise today in support of the Preventing IRS Abuse and Protecting Free Speech Act.

The IRS requires tax exempt organizations to report sensitive information about their donors, but, frankly, the information is unnecessary.

There are numerous examples of the IRS targeting political groups, which demonstrates that the IRS is incapable of using this information for legitimate purposes. Even the IRS itself has indicated it is considering eliminating this requirement. By eliminating the IRS' power to inquire into the membership of private citizen groups, taxpayers' identities will be protected and the IRS will be prevented from improperly targeting certain organizations.

I urge my colleagues to join me in supporting H.R. 5053 to hold the IRS

accountable and act in the best interest of the American taxpayer.

Mr. LEVIN. Mr. Speaker, I yield 4 minutes to the gentleman from California (Mr. BECERRA), a member of our committee and chairman of our Caucus.

Mr. BECERRA. I thank the gentleman for yielding.

Mr. Speaker, I think it is, first, important to clarify this legislation impacts tax exempt organizations under the Tax Code, section 501(c). Many of these tax exempt organizations we recognize as charities, like United Way and so forth, foundations. Social welfare organizations, they come in any variety.

A social welfare organization, typically when we think social welfare, it means, essentially, organizations that are promoting the common good and the general welfare of the people of a community. Social welfare organizations.

What the problem, then, here is that we have seen so many social welfare organizations, the 501(c)(4)s, become not promoters of social good, but some of the biggest campaign spenders in our election process. They use the loopholes in the Tax Code to be able to collect a whole bunch of money that usually Americans think goes to do social welfare and instead is now being used to drive our campaigns.

So this is now the problem with this particular legislation. This legislation says: You know what? Those organizations right now have to document who is giving them money, who is contributing the dollars to them, if it is bigger than a $5,000 contribution.

This bill says no longer would any of those 501(c) organizations, those tax exempt organizations, have to file the name of the contributor.

At a time, right now, when so many Americans have become skeptical about our government's ability to promote the interests of our citizens first, at a time when so many believe our government is driven by special interests, we should be asking for more openness in our government, not less in how we do business. Secret money is hijacking our American democracy.

This bill would prohibit the disclosure of substantial contributions and promote special interest secrecy.

What do I mean by that? This bill becomes a license to secretly influence our elections.

How? A foreign government doesn't like where American policy is going, so guess what? They want to influence who gets elected.

What do they do? They don't make a contribution to a candidate because they can't under the law.

What did they do? They now give to one of these social welfare organizations and let them use the money to politic in our campaigns.

And guess what? If this bill becomes law, you will never know the name of that foreign government or foreign government official who makes that contribution. It can be a $5,000 contribution. It can be a $5 billion contribution. You never have to report it if you are one of these tax exempt organizations.

What else? Say there are drug traffickers who don't like that we may be getting tough on our drug laws. They don't like it. They want to elect people who won't be so tough. Because a drug trafficker won't give it directly to a candidate, they give it to one of these social welfare organizations. The social welfare organization, under this bill, won't have to report the contribution, the name of the contributor. If that drug trafficker gives $5,000 or $5 billion, it is never disclosed.

Who else? We are right now fighting ISIS. Say ISIS wants to make sure somebody gets elected to be the next President or a Member of Congress. They don't like somebody else. How do the they influence our elections? They get one of their wealthy contributors to give money to one of these tax exempt organizations. And guess what? That ISIS contributor never gets disclosed.

Since when do Americans want us to have a system in our elections where contributions can be made to influence our elections if we don't know who is doing it?

If you don't believe it is true that that is going on, let me give you this statistic that will blow your mind. Four years ago, in our last Presidential election, the parties—the Democrat Party and the Republican Party combined, the parties that we know are there for politics—spent a quarter of a billion dollars in the 2012 elections.

Guess how much these social welfare organizations spent in that same election? More than the two parties combined.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. LEVIN. I yield the gentleman an additional 1 minute.

□ 1430

Mr. BECERRA. Mr. Speaker, the parties spent $255 million in 2012 politicking because that is what they are there to do. They have a partisan position, so they are using their money that people contribute to politick.

And by the way, when you make a contribution, you have got to report it when you make a contribution to that political party.

$257 million in 2012 was spent by these social welfare organizations on politicking, and under this bill, if it becomes law, guess what? Those contributors won't have to be identified; and so whatever your motives, you get to influence our elections without the American people—who can't do the same thing, because if they give a contribution, they have got to disclose it—without the American people knowing who you are.

I don't believe that is where this country wants to go. And I don't care under what good-government kind of window you try to frame this, what you are doing is you are opening the door for secret money to influence our elections—as if it isn't bad enough how much our elections are influenced by people who have wealth and do much more than the average American can ever do.

So, Mr. Speaker, this is not a time to do that. Let's vote for openness. And if you vote for openness, you have to vote against this bill.

Mr. ROSKAM. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, did you notice something? Every one of the examples of the previous speakers were hypothetical, every one of them, drug dealers, drug traffickers, an ISIS strategy, as if ISIS is sitting around not cutting people's heads off and writing checks. How absurd.

The notion that there is no documentation is a false claim. Of course people have to have documentation. Of course all of these organizations have to document. They have to maintain records. They are subject to audit. They are subject to investigation.

But here is the point. We have been able to demonstrate actual harm to actual people who are actually subject to a capricious and vicious attack by their own government. That is the Internal Revenue Service, who turned their stare at them and intimidated them. That is a fact.

This House voted on the criminal referral of Lois Lerner. This House has investigated, time and time and time again, to the point where our friends on the other side of the aisle have basically begged for mercy, said: Do we have to talk about the IRS anymore?

Well, yes, we do because this is the group that has been the bad actor, Mr. Speaker, in the past. Let's realize who we are talking about.

Now, I think it is very, very important for us to recognize that we have an opportunity to do something, and that is this: let's follow the lead of Commissioner Koskinen. If the Commissioner of the Internal Revenue Service thought, wow, ISIS is coming in here and they are coming over the ramparts and they are going to completely flood us, and we have got to watch out for ISIS and drug traffickers, why would Commissioner Koskinen say this: ''On your 990, you list donors''—and we are not about to try to change that. ''As a general matter, who gives to you should not matter as to what you're about to do.''

In other words, these things that the other side is saying are illegal, they are illegal. There is nothing in this that changes that.

But there is a plot trap in their logic, Mr. Speaker, and it is this: the IRS, by their own admission, is not going through this on a systematic basis. They acknowledge that. They are not going through these Schedule B's on a systematic basis. They are not investigating them.

So what happens?

They are prohibited under the law, Mr. Speaker, from disclosing this information, under section 6103, that makes that disclosure a crime. Oh, it makes it a crime—unless they do it to some conservative group and it happens to be an accident.

To give us more insight on this, I yield 3 minutes to the gentleman from Oregon (Mr. WALDEN).

Mr. WALDEN. Mr. Speaker, I walked in and was hearing the gentleman from California talking about all these foreign donations, and I thought for sure he was talking about the Clinton Foundation donations from foreign governments, that there is a big question about their influence on policy and appointments and other things. That is why I was glad the gentleman clarified the topic at hand here.

What we are doing here, really, is protecting the First Amendment's guarantee of freedom of speech. That is a very bedrock of our democratic society. As Benjamin Franklin once wrote: ''Whoever would overthrow the Liberty of a Nation, must begin by subduing the Freeness of Speech.''

See, American citizens should not be targeted by their own government for exercising their rights, their free speech, which is exactly why we are here today; because, under the Obama administration, the IRS has all too often targeted groups based on their political affiliation.

I don't care whether you are liberal, conservative, or somewhere in between, you shouldn't have your government targeting you, through the IRS, based on your political views. And they even disclosed the identities of supporters of these organizations.

This commonsense bill would protect the First Amendment by prohibiting the IRS from collecting sensitive information about citizens who support nonprofit organizations like charities, like education organizations, trade associations, and more.

This would, of course, apply to future administrations, too, and will simply serve to strengthen our constitutional right to free speech, no matter what party occupies the White House.

Even some IRS officials have admitted they don't need this information to enforce the Tax Code, though I imagine they did find it useful when they ''accidentally'' leaked at least one conservative organization's list of supporters to another nonprofit that, in turn, made that list public.

This bill would take away this power from the agency completely. That will greatly reduce the chance this could happen again. Doing so would protect taxpayers' identities and sensitive information, and help prevent the IRS from going after certain organizations because they don't agree with that organization's mission.

So I urge support of this thoughtful legislation. Let's prevent taxpayers, protect them, and prevent abuse of taxpayers, and protect their free speech rights under the Constitution.

Mr. LEVIN. Mr. Speaker, can I ask how much time is available? How much time do we have, please?

The SPEAKER pro tempore. The gentleman from Michigan has 10½ minutes remaining. The gentleman from Illinois has 12 minutes remaining.

Mr. LEVIN. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. BECERRA).

Mr. BECERRA. I thank the gentleman for yielding.

Mr. Speaker, I just want to respond to my friend from Illinois and some of his comments, and my friend from Oregon.

The Clinton Foundation, great that you raise that because, see, the Clinton Foundation has raised a lot of questions in the minds of some. At least, some are trying to politicize it, whether you agree or don't agree with the money that came, because some money did come from foreign sources.

This bill would terminate the need for the Clinton Foundation to report any sources of its income. So, if you are concerned that the Clinton Foundation has gotten some contributions from foreign sources, this bill makes it worse because, under this legislation, the Clinton Foundation wouldn't have to report any of those contributions anymore. And so that is the craziness of this legislation.

It is not speculation to say what will happen. We have gone from virtually zero spending by social welfare organizations that are tax exempt for political purposes to, now, these social welfare organizations spending more than the political parties spend together.

So it is not speculation. The expert from the Joint Tax Committee said so himself. This is what will happen, could happen, if we pass this legislation.

Please reject this bill.

Mr. ROSKAM. Mr. Speaker, I think I am the last speaker on this side, so I am prepared to close, but I will defer to the gentleman from Michigan if he wants to wind it up.

I reserve the balance of my time.

Mr. LEVIN. Mr. Speaker, I yield 4 minutes to the distinguished gentleman from Maryland (Mr. SARBANES), who has worked so hard for so long on this issue. It is a privilege.

Mr. SARBANES. I thank the gentleman for yielding.

Mr. Speaker, fundamentally, this is about which direction we want to move in as a country, as a Congress, as a responsible institution, as a government, in terms of whether we are going to respect the American people and their voice, whether we are going to turn their voice over to Big Money, to special interests that are hijacking our politics and our government.

The problem with the proposal that is being put on the floor today is that it is moving us in the wrong direction. It is moving us away from the kind of disclosure information transparency in our political process that the American people are demanding.

If you talk to the average person out there, they feel disrespected, locked out, left out, left behind, pushed to the margins of their own democracy, feeling as though Big Money calls the shots, the insiders rule the roost, and the average person has no voice, is of no consequence.

They see the money being spent on these campaign commercials during election time. They don't know where it is coming from. They don't know what organizations are supporting it, and they feel like they don't have a stake in their own democracy anymore.

What is interesting is that, you know, traditionally, in the past, Republicans had argued for more transparency and disclosure; that all political activity, all contributions that were made and all expenditures, should be divulged. In fact, in 1996, MITCH MCCONNELL, the majority leader in the Senate, declared, proudly: ''Public disclosure of campaign contributions''—public disclosure of campaign contributions—''and spending should be expedited so voters can judge for themselves what is appropriate.''

We are moving even further away from public disclosure because this bill would say that the IRS isn't even going to be able to collect information on who is donating to these 501(c)(3) organizations. So at a time when the American people are saying we need more accountability in our politics, in our government when it comes to this secret money that is out there, at a time when Americans want more accountability, this bill moves us towards less accountability. It will move secret money even further into the shadows and contribute further to a less responsive and less transparent democracy.

I can hear the American people saying to the Republicans who are putting this on the bill, who are authoring this legislation: Are you new here? Are you new in this current environment, political environment, where we are so angry, as the American people, that we want to understand who is trying to hijack our politics, and you are going to move us in the opposite direction?

People already feel locked out. We don't have to do more to push them in that direction. We need more accountability, not less. For that reason, I urge my colleagues to defeat this bill today.

Mr. ROSKAM. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, one of the reasons people feel locked out and left out is the cold notion that the government that is supposed to be collecting taxes and evaluating things according to the law, it turns out that they were acting for a malevolent reason. It turns out that they were going after the very people that they were supposed to protect. Turns out they were investigating based on religious belief, political belief, education belief, and so forth.

So it is no wonder that the public feels disconnected from this. It is no

wonder that they feel like they were trusting somebody that was just supposed to collect taxes and then they learned that they were being targeted. That is part of the locked out and left out feeling.

There is another problem, too, with the logic of the argument that we heard just a minute ago, and there is somehow an implication that this information is supposed to be public. That is news. Schedule B isn't public today, and nobody is proposing that it be public. And, in fact, the courts have said it would be unconstitutional to make it public.

So who is the beneficiary of this information, Mr. Speaker, if it is not the public, because it is not the public according to the law now. Who would be the beneficiary?

Oh, the IRS. They are the only ones, Mr. Speaker, that have access to this information. The public doesn't have it. And we already learned what happened. The courts have said: You cannot tell the NAACP, you cannot make them reveal their donors.

By that logic that we heard a minute ago, those organizations, during the civil rights movement, what would they have had to do? They would have had to disclose all of that information. And thanks be to God, Mr. Speaker, that the Court said no.

Speech is special, speech is sacrosanct, and speech ought not be manipulated and intimidated by people with power.

Mr. Speaker, I reserve the balance of my time.

Mr. LEVIN. Mr. Speaker, I yield 1 minute to the gentleman from Maryland (Mr. SARBANES).

□ 1445

Mr. SARBANES. I just wanted to respond to this idea that the public wouldn't benefit from this. Yes, there are opportunities to develop more disclosure of this information to the public, and certainly the Democrats would like to see that. But the public would benefit from the IRS' getting more information about where this money comes from because it is the IRS' responsibility to determine whether these 501(c)(3) organizations are getting hijacked and taken over by special interest money—potentially foreign interest—and so forth. So the public would absolutely benefit if the IRS, which is the organization that has responsibility for determining whether you should have tax-exempt status or not, can fulfill that function on behalf of the public, and this would make it even more difficult for that agency to do its job in that respect.

Mr. ROSKAM. Mr. Speaker, I reserve the balance of my time.

Mr. LEVIN. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, there has been discussion here about abuse. There was mismanagement. I was among those who indicated that the person or the two people most responsible should be relieved of their duties.

It is also true, when we asked the inspector general, ''Did you find any evidence of political motivation in the selection of the tax-exemption applications,'' the answer of the inspector general was, ''We did not, sir,'' period.

There is another abuse here, and that is the abuse of 501(c)(4)s. It is scandalous. They are supposed to be doing social welfare. What has happened is they have used the mask of legality, many of these, to essentially become political organizations. That is the scandal.

Essentially what the Republican Party is doing here is saying that they want to essentially pull a mask over what is scandalous.

As Mr. SARBANES said, this bill goes in the wrong direction. We need more disclosure, not less.

The Achilles' heel in the argument of Mr. ROSKAM and others is this: A foreign government has to now disclose to IRS; a foreign individual would have to disclose a contribution that was illegal. They essentially want to eliminate that requirement in terms of this form altogether—eliminate it—so that there would be no way of knowing through that operation when there was a violation by a foreign government or an individual trying to influence the political process of this country.

It is bad enough that domestic money reigns so supremely. Essentially what the majority here wants to do is add foreign operations to that process.

You say that speech is power. But speech backed up by hidden money essentially undermines the democratic processes of this country. What you are doing today is coming forth here and essentially wanting to give a further imprimatur to this distortion of the democratic process. Money reigns too strongly in the political process, and you now essentially want to say: if it is foreign, all the better. It is terrible.

It is terrible what is going on in this country today in terms of the power of money over the political process. You make it worse by essentially inviting foreign entities to join in that distortion of democracy in the United States.

Mr. Speaker, I urge a strong ''no'' vote on this bill, and I yield back the balance of my time.

Mr. ROSKAM. Mr. Speaker, I yield myself the balance of my time.

The foreign money invitation is a straw man argument, and we have spent a lot of time on it talking about it this afternoon. But remember, all these activities are legal. Also remember that it is the Internal Revenue Service based on past practice that has developed or communicated an inability to hold confidential information close. That is important.

It is also important to recognize that it was the Internal Revenue Service Commissioner who has essentially said: We don't need this information. We have had this debate and basically an admonition against the campaign finance laws. The minority's objection is largely directed to the United States Supreme Court and their conclusion in the Citizens United decision. That is all fine, well, and good.

But let's focus in here on what we are actually talking about. What we are talking about is the lack of trust that we have in the Internal Revenue Service based on past activities to hold this information close, based on their projections about their challenges as it relates to cybersecurity and identity theft, and I think a general recognition of the chilling effect of what happens when you have an organization that chooses to target people based on their political speech.

Mr. Speaker, I think we have thoroughly debated this. I urge its passage, and I yield back the balance of my time.

Mr. POE of Texas. Mr. Speaker, H.R. 5053, Preventing IRS Abuse and Protecting Free Speech Act is a common sense bill meant to help curb the rampant abuses of the IRS, an agency that has proven itself to be completely out of control in recent years.

In April, Federal Judge David Sentelle said that the IRS can't be trusted, and that there is strong evidence that the agency violated the constitutional rights of conservative groups when it delayed their nonprofit status applications and asked inappropriate questions about their political beliefs.

Currently, the IRS requires non-profits to submit a schedule B form, listing the names and addresses of their donors. According to the law, the IRS is forbidden from using this form for any purpose.

If they are forbidden from using this form for any purpose then, why are they even allowed to ask for this information? This doesn't make any sense.

This is another ''mistake'' waiting to happen. The mere presence of this form will make it easier for unscrupulous employees to target individuals for increased scrutiny based on their political beliefs or what non-profit they choose to give money to.

I have seen this kind of political targeting first hand with my constituent Catherine Engelbrecht in Houston Texas. She was targeted because she dared to attempt to start a voting integrity group called True the Vote.

This kind of political targeting needs to stop. It's un-American and Unconstitutional.

We need to reign in the IRS, and H.R. 5053 is a step in the right direction.

And that's just the way it is.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 778, the previous question is ordered on the bill, as amended.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. SARBANES. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the bill?

Mr. SARBANES. I am opposed to it in its current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. Sarbanes moves to recommit the bill H.R. 5053 to the Committee on Ways and Means with instructions to report the same back to the House forthwith with the following amendment:

Add at the end the following:

**SEC. 3. PROHIBITION ON REQUIRING CONTRIBUTOR IDENTITY NOT TO APPLY IN CASE OF ORGANIZATION INTERVENING IN POLITICAL CAMPAIGN.**

The amendments made by section 2 of this Act shall not apply in the case of an organization described in section 501(c) of the Internal Revenue Code of 1986 which directly or indirectly participates in, or intervenes in, any political campaign on behalf of (or in opposition to) any candidate for public office.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Maryland is recognized for 5 minutes in support of his motion.

Mr. SARBANES. Mr. Speaker, this is the final amendment to the bill, which will not kill the bill or send it back to committee. If adopted, the bill will immediately proceed to final passage, as amended.

Mr. Speaker, we have had a debate here today on this larger issue of accountability to the American people when it comes to our politics, the way we govern, and the huge amounts of secret money that are pouring into our politics in a way that has left the average American feeling cynical and disconnected from their democracy. If anything, what Americans want to see is not less information and less accountability when it comes to politics, but more of it.

Now, many people out there are just kind of hanging on by a fingernail in terms of any confidence or trust when it comes to our democracy and our politics because they see how Big Money has sort of taken over the conversation and that the megaphone that Big Money has is hard to compete with if you are just a regular person out there who wants your voice to be heard. But it is made even worse when you don't know who is holding that megaphone when that speech comes in with all that money behind it and you don't know who the speaker is because that is hidden away because all of this money has become secret.

One of the mechanisms that is being used by Big Money out there to kind of foist themselves onto our politics and push average Americans on to the margins of their own democracy is to go in there and try and hijack, commandeer, and takeover these 501(c) organizations. These tax exempt organizations end up really engaging primarily in political activity but are masquerading as these 501(c) organizations that are supposed to be engaged in tax exempt activities.

So what this motion to recommit would do is pretty straightforward. It says that if one of these 501(c) tax exempt organizations—and I am reading now from the motion to recommit, from the amendment that would be made—is directly or indirectly participating in or intervening in any political campaign on behalf of or in opposition to any candidate for public office, then in that instance, the IRS ought to be able to collect that information on who their donors are.

Look, it makes sense. Taxpayers out there are saying: We understand that there are organizations that should be tax exempt because of the good work that they are doing, that they are actually social welfare organizations, the local Boys & Girls Club, organizations like that, providing a public benefit. That is okay. We will pay our taxes. But we understand that those organizations shouldn't have to because they are doing something that is good for the public and good for the community and so forth.

But if an organization is getting taken over by some group that has got a political goal or political objective, then it shouldn't be entitled to that tax exemption anymore.

That is what this motion to recommit says: You don't get to deny the IRS the kind of information that will allow them to make a judgment as to whether you deserve to have that tax exempt status. So that is all that we are trying to do.

There are two things that the IRS needs to look at when they are deciding whether a C organization is engaged primarily in political activity. One is, where is the money going? How are they spending it? They will be able to see that. But the other is, where is the money coming from that is getting spent? Who is behind the thing? That helps them decide, is this organization really fulfilling tax exempt purposes, or is it just masquerading that way when, in fact, what it is doing is engaged primarily in political activity?

So we want the IRS to have the information that allows them to reach a judgment as to whether an organization that is benefiting from this tax exemption really deserves to get that tax exemption. That is what this motion to recommit would do.

We need more accountability, not less, in our politics. We need more information to decide who appropriately is benefiting from this tax exempt status.

Mr. Speaker, for that reason, I urge my colleagues to support the motion to recommit, and I yield the balance of my time.

Mr. ROSKAM. Mr. Speaker, I rise in opposition to the motion to recommit.

The SPEAKER pro tempore. The gentleman from Illinois is recognized for 5 minutes.

Mr. ROSKAM. Mr. Speaker, the motion to recommit essentially says this: All kind of speech is sacred, and all types of speech should be protected, except certain kinds. So you can say whatever you want to say, you can say it however you want to say it, but if it is political, we are going to treat it differently. And that is the problem; that is absolutely the problem.

H.R. 5053 is commonsense legislation that protects Americans from having their information improperly disclosed. It eliminates a burdensome reporting requirement for not-for-profits, and the IRS itself has indicated that it doesn't use the reported information for tax enforcement.

There is absolutely no reason not to eliminate the Schedule B on the Form 990. Not only is it unnecessary, but the IRS doesn't have a good track record at protecting sensitive information or treating everyone fairly. We shouldn't be giving the Internal Revenue Service access to this information, especially when they don't need it to do their job.

Mr. Speaker, I urge my colleagues to vote against the motion, ''yes'' on H.R. 5053, and I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. SARBANES. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, and the order of the House of today, further proceedings on this question will be postponed.

## MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Mr. Brian Pate, one of his secretaries.

## RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 3 p.m.), the House stood in recess.

□ 1601

## AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. DUNCAN of Tennessee) at 4 o'clock and 1 minute p.m.

## ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX and the order of the House of today, proceedings will resume on questions previously postponed.

Votes will be taken in the following order:

Adoption of the motion to recommit H.R. 5053, and

Passage of H.R. 5053, if ordered.

The first electronic vote will be conducted as a 15-minute vote. Any remaining electronic vote will be conducted as a 5-minute vote.

PREVENTING IRS ABUSE AND PROTECTING FREE SPEECH ACT

The SPEAKER pro tempore. The unfinished business is the vote on the motion to recommit on the bill (H.R. 5053) to amend the Internal Revenue Code of 1986 to prohibit the Secretary of the Treasury from requiring that the identity of contributors to 501(c) organizations be included in annual returns, offered by the gentleman from Maryland (Mr. SARBANES), on which the yeas and nays were ordered.

The Clerk will redesignate the motion.

The Clerk redesignated the motion.

The SPEAKER pro tempore. The question is on the motion to recommit.

The vote was taken by electronic device, and there were—yeas 180, nays 238, not voting 16, as follows:

[Roll No. 302]

YEAS—180

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blum
Blumenauer
Bonamici
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Doggett
Doyle, Michael F.
Duckworth
Duncan (TN)
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCaul
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Yarmuth

NAYS—238

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duncan (SC)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—16

Boyle, Brendan F.
Cicilline
Deutch
Dingell
Duffy
Fattah
Forbes
Goodlatte
Herrera Beutler
Hinojosa
Moore
Mulvaney
Rigell
Takai
Thompson (MS)
Wilson (FL)

□ 1622

Messrs. ROONEY of Florida, BRAT, and CULBERSON changed their vote from ''yea'' to ''nay.''

Messrs. POCAN, HUFFMAN, Ms. BASS, Messrs. HIMES and CLYBURN changed their vote from ''nay'' to ''yea.''

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

Stated for:

Mr. DEUTCH. Mr. Speaker, I was unavoidable detained. Had I been present, I would have voted "yea" on rollcall No. 302.

Stated against:

Mr. MCCAUL. Mr. Speaker, during the second voting series today, I intended to vote "nay" in accordance with leadership recommendation on the first vote, Democrat Motion to Recommit H.R. 5053—Preventing IRS Abuse and Protecting Free Speech. I inadvertently voted "yes." I intended to vote "no."

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. LEVIN. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 240, noes 182, not voting 12, as follows:

[Roll No. 303]

AYES—240

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam

| | | |
|---|---|---|
| Ross | Stefanik | Webster (FL) |
| Rothfus | Stewart | Wenstrup |
| Rouzer | Stivers | Westerman |
| Royce | Stutzman | Westmoreland |
| Russell | Thompson (PA) | Whitfield |
| Salmon | Thornberry | Williams |
| Sanford | Tiberi | Wilson (SC) |
| Scalise | Tipton | Wittman |
| Schweikert | Trott | Womack |
| Scott, Austin | Turner | Woodall |
| Sensenbrenner | Upton | Yoder |
| Sessions | Valadao | Yoho |
| Shimkus | Wagner | Young (AK) |
| Shuster | Walberg | Young (IA) |
| Simpson | Walden | Young (IN) |
| Smith (MO) | Walker | Zeldin |
| Smith (NE) | Walorski | Zinke |
| Smith (NJ) | Walters, Mimi | |
| Smith (TX) | Weber (TX) | |

NOES—182

| | | |
|---|---|---|
| Adams | Fudge | Nadler |
| Aguilar | Gabbard | Napolitano |
| Ashford | Gallego | Neal |
| Bass | Garamendi | Nolan |
| Beatty | Gibson | Norcross |
| Becerra | Graham | O'Rourke |
| Bera | Grayson | Pallone |
| Beyer | Green, Al | Pascrell |
| Bishop (GA) | Green, Gene | Payne |
| Blumenauer | Grijalva | Pelosi |
| Bonamici | Gutiérrez | Perlmutter |
| Boyle, Brendan F. | Hahn | Peters |
| | Hastings | Pingree |
| Brady (PA) | Heck (WA) | Pocan |
| Brown (FL) | Higgins | Polis |
| Brownley (CA) | Himes | Price (NC) |
| Bustos | Honda | Quigley |
| Butterfield | Hoyer | Rangel |
| Capps | Huffman | Rice (NY) |
| Capuano | Israel | Richmond |
| Cárdenas | Jackson Lee | Roybal-Allard |
| Carney | Jeffries | Ruiz |
| Carson (IN) | Johnson (GA) | Ruppersberger |
| Cartwright | Johnson, E. B. | Rush |
| Castor (FL) | Kaptur | Ryan (OH) |
| Castro (TX) | Keating | Sánchez, Linda T. |
| Chu, Judy | Kelly (IL) | |
| Cicilline | Kennedy | Sanchez, Loretta |
| Clark (MA) | Kildee | Sarbanes |
| Clarke (NY) | Kilmer | Schakowsky |
| Clay | Kind | Schiff |
| Cleaver | Kirkpatrick | Schrader |
| Clyburn | Kuster | Scott (VA) |
| Cohen | Langevin | Scott, David |
| Connolly | Larsen (WA) | Serrano |
| Conyers | Larson (CT) | Sewell (AL) |
| Cooper | Lawrence | Sherman |
| Costa | Lee | Sinema |
| Courtney | Levin | Sires |
| Crowley | Lewis | Slaughter |
| Cuellar | Lieu, Ted | Smith (WA) |
| Cummings | Lipinski | Speier |
| Davis (CA) | Loebsack | Swalwell (CA) |
| Davis, Danny | Lofgren | Takano |
| DeFazio | Lowenthal | Thompson (CA) |
| DeGette | Lowey | Thompson (MS) |
| Delaney | Lujan Grisham (NM) | Titus |
| DeLauro | | Tonko |
| DelBene | Luján, Ben Ray (NM) | Torres |
| DeSaulnier | | Tsongas |
| Deutch | Lynch | Van Hollen |
| Doggett | Maloney, Carolyn | Vargas |
| Doyle, Michael F. | | Veasey |
| | Maloney, Sean | Vela |
| Duckworth | Matsui | Velázquez |
| Edwards | McCollum | Visclosky |
| Ellison | McDermott | Walz |
| Engel | McGovern | Wasserman Schultz |
| Eshoo | McNerney | |
| Esty | Meeks | Waters, Maxine |
| Farr | Meng | Watson Coleman |
| Foster | Moulton | Welch |
| Frankel (FL) | Murphy (FL) | Yarmuth |

NOT VOTING—12

| | | |
|---|---|---|
| Dingell | Goodlatte | Mulvaney |
| Duffy | Herrera Beutler | Rigell |
| Fattah | Hinojosa | Takai |
| Forbes | Moore | Wilson (FL) |

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1630

Ms. BROWN of Florida changed her vote from ''aye'' to ''no.''

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

## COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
*Washington, DC, June 14, 2016.*

Hon. PAUL D. RYAN,
*The Speaker, House of Representatives, Washington, DC.*

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on June 14, 2016 at 3:45 p.m.:

That the Senate concur in the House amendment to the bill S. 2276.

With best wishes, I am,

Sincerely,

KAREN L. HAAS.

## DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2017

GENERAL LEAVE

Mr. FRELINGHUYSEN. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous materials on H.R. 5293, and that I may include tabular material on the same.

The SPEAKER pro tempore (Mr. WESTMORELAND). Is there objection to the request of the gentleman from New Jersey?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 778 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 5293.

The Chair appoints the gentleman from Tennessee (Mr. DUNCAN) to preside over the Committee of the Whole.

□ 1633

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 5293) making appropriations for the Department of Defense for the fiscal year ending September 30, 2017, and for other purposes, with Mr. DUNCAN of Tennessee in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

The gentleman from New Jersey (Mr. FRELINGHUYSEN) and the gentleman from Indiana (Mr. VISCLOSKY) each will control 30 minutes.

The Chair recognizes the gentleman from New Jersey.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, I rise to present the Appropriations Committee recommendation for the fiscal year 2017 Department of Defense Appropriations bill.

I would like to begin by paying tribute to those who are not with us today—our men and women in uniform—all volunteers—who serve all across the globe defending our freedom. Our soldiers, sailors, airmen, and marines provide the mantle of security that allows us to meet in settings like this every day, and they should never be far from our minds.

Mr. Chairman, they, those who serve in uniform and their families, deserve our heartfelt thanks for their personal sacrifice.

I also want to thank Chairman ROGERS and Mrs. LOWEY for their support during the process, and special thanks to my counterpart, PETE VISCLOSKY, for his partnership in this effort. I thank him for his assistance and collaboration.

Mr. Chairman, our Defense Subcommittee conducted 11 formal hearings and had numerous briefings to help shape this legislation. These meetings allowed us to look in great detail into our national defense posture and the capabilities of our adversaries and our partners, and we are very concerned by what we see.

Over the past several years, we have largely focused on the dangers posed by Islamic terrorist organizations—al Qaeda, barbaric ISIS, al-Nusrah, and others. They remain a clear and present danger. But in recent years, new threats have emerged: a more aggressive and capable Russia, an expansionist China, emboldened states like Iran, and rogue nations like North Korea. At the same time, we are dealing with fiscal constraints imposed by sequestration and budget caps.

So, looking today at our Department of Defense and intelligence community, we note that our readiness levels are alarmingly low for our soldiers, marines, sailors, and airmen; our decisive technological edge over our adversaries is eroding; and our adversaries' resolve and their capability are only growing.

The bill before you begins to reverse these trends by providing more money for national security.

This measure includes a total of $575.8 billion for the Department of Defense for functions under our subcommittee's jurisdiction and $58.6 billion for overseas contingency operations/global war on terrorism funding.

Our recommendation mirrors the funding structure that the House Armed Services Committee and this House approved a few weeks ago and shifts roughly $16 billion from the President's request for OCO operations into critical investments in our personnel, training, and equipment, while

providing a bridge fund for our overseas operations through the end of April of 2017.

By that time, our new Commander in Chief will be able to assess our defense posture, reevaluate readiness levels and recapitalization efforts, and request a targeted supplemental to support our troops. Congress did a similar maneuver in 2008.

I am confident that Members of this House will work in a bipartisan way to ensure that this essential supplemental appropriations legislation is passed when that time comes. Rest assured that we will never let our troops down.

By providing a bridge fund to next April, our bill is able to make targeted investments in additional manning for the Army, Marines, and Air Force, more training, as well as the equipment they rely upon—all designed to repair the worrisome readiness gaps we see across our Armed Forces.

We currently have the lowest manning level in the Army since before World War II, and this legislation boosts Army and Marine Corps end strength.

Despite the Secretary's assurances that we are on our way to a 300-ship Navy, we now have 273 in our fleet, which is smaller than at any time since before World War I. This bill funds a significant increase in shipbuilding.

Our Air Force is flying the oldest planes in its entire history, and the bill before you boosts the modernization of our fighters, bombers, tankers, and other aircraft.

We are also able to increase funding by $9.6 billion for equipment the service chiefs have requested in their unmet needs list.

Our investments will allow our military services to fully meet critical training requirements, such as flying hours, steaming days, depot maintenance, ground training, facilities improvement, and base operations.

I also want to note that our legislation again includes $500 million to continue improvements for intelligence, surveillance, and reconnaissance for our combatant commanders. They need it; they will welcome it.

Mr. Chairman, as I close, I want to make an observation about this year's debate. The President's spokesman and Secretary of Defense were quick to criticize the funding structure of the National Defense Authorization bill and, indeed, this proposal, and issued a veto threat against our bill this morning.

The White House and Secretary Carter have suggested we are, in their own words, ''gambling'' with our troops' mission in the Middle East and that our approach is somehow ''irresponsible'' or, in their own words, ''dangerous.''

But what was really ''gambling,'' ''irresponsible,'' and ''dangerous'' was the administration's decision to pull all of our troops out of Iraq and Afghanistan—against the advice of our military leadership—and not anticipate that the resulting vacuum would be filled by ISIS, the Taliban, and other terrorist groups.

What was ''gambling,'' ''irresponsible,'' and ''dangerous'' was—and is—the constant changing of the military rules of engagement to meet political objectives.

What was ''gambling'' and ''irresponsible'' was ousting Qadhafi in Libya without any plan whatsoever for the aftermath.

Indeed, it is ''gambling,'' ''irresponsible,'' and ''dangerous'' to believe that Iran would not violate any aspects of the Geneva Agreement.

And surely it was a ''gamble'' to believe that the American people would ignore the capture and provocative treatment of 10 American sailors seized by the Iranian regime last January; and surely it was a ''gamble'' that the American people would not pay attention to increased military operations in Syria and Iraq and, yes, the tragic deaths of American service personnel, if the President refused to call them ''combat operations.''

There is more happening in the Middle East today than the airstrikes against ISIS, and we need to thank those warfighters on the ground that are there as we gather here this afternoon. They are risking their lives right now—every day—and their families are dispirited because their sons and daughters are in combat and do sustain injuries while the administration hides behind semantics of ''no boots on the ground.'' There are boots on the ground.

Further, it was ''gambling'' and ''dangerous'' to establish a poorly thought-out and poorly executed ''train and equip'' scheme in Syria, or to conclude that Russia and China would not cease their aggressive challenges to American superiority around the world.

My friends, one thing we can all agree upon is that the last 2 years of budget cuts, constant deployments, and new crises have only eroded our military's readiness and capabilities.

The bill before you does not gamble. It is highly responsible.

Rather, our proposal wisely invests more money for our troops, more training for our troops, more modern equipment, expanded cybersecurity, more intelligence-gathering capabilities, and better healthcare outcomes for our troops and their families.

Mr. Chairman, it deserves your support; it deserves our support.

I reserve the balance of my time.

Department of Defense Appropriations Act - FY 2017 (H.R. 5293)
(Amounts in Thousands)

| | FY 2016 Enacted | FY 2017 Request | Bill | Bill vs. Enacted | Bill vs. Request |
|---|---|---|---|---|---|
| TITLE I | | | | | |
| MILITARY PERSONNEL | | | | | |
| Military Personnel, Army | 41,045,562 | 40,028,182 | 39,986,962 | -1,058,600 | -41,220 |
| Military Personnel, Navy | 27,835,183 | 27,951,605 | 27,774,605 | -60,578 | -177,000 |
| Military Personnel, Marine Corps | 12,859,152 | 12,813,412 | 12,701,412 | -157,740 | -112,000 |
| Military Personnel, Air Force | 27,679,066 | 27,944,615 | 27,794,615 | +115,549 | -150,000 |
| Reserve Personnel, Army | 4,483,164 | 4,561,703 | 4,458,963 | -4,201 | -102,740 |
| Reserve Personnel, Navy | 1,866,891 | 1,924,155 | 1,898,825 | +31,934 | -25,330 |
| Reserve Personnel, Marine Corps | 702,481 | 744,995 | 736,305 | +33,824 | -8,690 |
| Reserve Personnel, Air Force | 1,682,942 | 1,742,906 | 1,718,126 | +35,184 | -24,780 |
| National Guard Personnel, Army | 7,892,327 | 7,910,694 | 7,827,440 | -64,887 | -83,254 |
| National Guard Personnel, Air Force | 3,201,890 | 3,280,065 | 3,271,215 | +69,325 | -8,850 |
| Total, Title I, Military Personnel | 129,228,658 | 128,902,332 | 128,168,468 | -1,060,190 | -733,864 |
| TITLE II | | | | | |
| OPERATION AND MAINTENANCE | | | | | |
| Operation and Maintenance, Army | 32,399,440 | 33,809,040 | 34,436,295 | +2,036,855 | +627,255 |
| Operation and Maintenance, Navy | 39,600,172 | 39,483,581 | 40,213,485 | +613,313 | +729,904 |
| Operation and Maintenance, Marine Corps | 5,718,074 | 5,954,258 | 6,246,360 | +528,292 | +292,108 |
| Operation and Maintenance, Air Force | 35,727,457 | 37,518,056 | 38,209,602 | +2,482,145 | +691,546 |
| Operation and Maintenance, Defense-Wide | 32,105,040 | 32,571,590 | 32,263,224 | +158,184 | -308,366 |
| Operation and Maintenance, Army Reserve | 2,646,911 | 2,712,331 | 2,767,471 | +120,560 | +55,140 |
| Operation and Maintenance, Navy Reserve | 998,481 | 927,656 | 975,724 | -22,757 | +48,068 |
| Operation and Maintenance, Marine Corps Reserve | 274,526 | 270,633 | 320,066 | +45,540 | +49,433 |
| Operation and Maintenance, Air Force Reserve | 2,980,768 | 3,067,929 | 3,106,066 | +125,298 | +38,137 |
| Operation and Maintenance, Army National Guard | 6,595,483 | 6,825,370 | 6,923,595 | +328,112 | +98,225 |
| Operation and Maintenance, Air National Guard | 6,820,569 | 6,703,578 | 6,708,200 | -112,369 | +4,622 |
| United States Court of Appeals for the Armed Forces | 14,078 | 14,194 | 14,194 | +116 | --- |
| Environmental Restoration, Army | 234,829 | 170,167 | 170,167 | -64,662 | --- |
| Environmental Restoration, Navy | 300,000 | 281,762 | 289,262 | -10,738 | +7,500 |
| Environmental Restoration, Air Force | 368,131 | 371,521 | 371,521 | +3,390 | --- |
| Environmental Restoration, Defense-Wide | 8,232 | 9,009 | 9,009 | +777 | --- |
| Environmental Restoration, Formerly Used Defense Sites | 231,217 | 197,084 | 222,084 | -9,133 | +25,000 |
| Overseas Humanitarian, Disaster, and Civic Aid | 103,266 | 105,125 | 108,125 | +4,859 | +3,000 |
| Cooperative Threat Reduction Account | 358,496 | 325,604 | 325,604 | -32,892 | --- |
| Total, Title II, Operation and maintenance | 167,485,170 | 171,318,488 | 173,680,050 | +6,194,880 | +2,361,572 |
| TITLE III | | | | | |
| PROCUREMENT | | | | | |
| Aircraft Procurement, Army | 5,866,367 | 3,614,787 | 4,628,697 | -1,237,670 | +1,013,910 |
| Missile Procurement, Army | 1,600,957 | 1,519,966 | 1,502,377 | -98,580 | -17,589 |
| Procurement of Weapons and Tracked Combat Vehicles, Army | 1,951,646 | 2,265,177 | 2,244,547 | +292,901 | -20,630 |
| Procurement of Ammunition, Army | 1,245,426 | 1,513,157 | 1,513,157 | +267,731 | --- |
| Other Procurement, Army | 5,718,811 | 5,873,949 | 6,081,856 | +363,045 | +207,907 |
| Aircraft Procurement, Navy | 17,521,209 | 14,109,148 | 15,900,093 | -1,621,116 | +1,790,945 |
| Weapons Procurement, Navy | 3,049,542 | 3,209,262 | 3,102,544 | +53,002 | -106,718 |
| Procurement of Ammunition, Navy and Marine Corps | 651,920 | 664,368 | 601,563 | -50,357 | -62,805 |
| Shipbuilding and Conversion, Navy | 18,704,539 | 18,354,874 | 18,484,524 | -220,015 | +129,650 |
| Other Procurement, Navy | 6,484,257 | 6,338,861 | 6,099,326 | -384,931 | -239,535 |
| Procurement, Marine Corps | 1,186,812 | 1,362,769 | 1,213,872 | +27,060 | -148,897 |
| Aircraft Procurement, Air Force | 15,756,853 | 13,922,917 | 14,325,117 | -1,431,736 | +402,200 |
| Missile Procurement, Air Force | 2,912,131 | 2,426,621 | 2,288,772 | -623,359 | -137,849 |
| Space Procurement, Air Force | 2,812,159 | 3,055,743 | 2,538,152 | -274,007 | -517,591 |
| Procurement of Ammunition, Air Force | 1,744,993 | 1,677,719 | 1,609,719 | -135,274 | -68,000 |
| Other Procurement, Air Force | 18,311,882 | 17,438,056 | 17,342,313 | -969,569 | -95,743 |
| Procurement, Defense-Wide | 5,245,443 | 4,524,918 | 4,649,876 | -595,567 | +124,958 |
| Defense Production Act Purchases | 76,680 | 44,065 | 74,065 | -2,615 | +30,000 |
| Total, Title III, Procurement | 110,841,627 | 101,916,357 | 104,200,570 | -6,641,057 | +2,284,213 |

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| | FY 2016 Enacted | FY 2017 Request | Bill | Bill vs. Enacted | Bill vs. Request |
|---|---|---|---|---|---|
| TITLE IV | | | | | |
| RESEARCH, DEVELOPMENT, TEST AND EVALUATION | | | | | |
| Research, Development, Test and Evaluation, Army | 7,565,327 | 7,515,399 | 7,864,517 | +299,190 | +349,118 |
| Research, Development, Test and Evaluation, Navy | 18,117,677 | 17,276,301 | 16,831,290 | -1,286,387 | -445,011 |
| Research, Development, Test and Evaluation, Air Force | 25,217,148 | 28,112,251 | 27,106,851 | +1,889,703 | -1,005,400 |
| Research, Development, Test and Evaluation, Defense-Wide | 18,695,955 | 18,308,826 | 18,311,236 | -384,719 | +2,410 |
| Operational Test and Evaluation, Defense | 188,558 | 178,994 | 178,994 | -9,564 | --- |
| Total, Title IV, Research, Development, Test and Evaluation | 69,784,665 | 71,391,771 | 70,292,888 | +508,223 | -1,098,883 |
| TITLE V | | | | | |
| REVOLVING AND MANAGEMENT FUNDS | | | | | |
| Defense Working Capital Funds | 1,738,768 | 1,371,613 | 1,371,613 | -367,155 | --- |
| National Defense Sealift Fund | 474,164 | --- | --- | -474,164 | --- |
| Total, Title V, Revolving and Management Funds | 2,212,932 | 1,371,613 | 1,371,613 | -841,319 | --- |
| TITLE VI | | | | | |
| OTHER DEPARTMENT OF DEFENSE PROGRAMS | | | | | |
| Defense Health Program | | | | | |
| Operation and maintenance | 29,842,167 | 32,231,390 | 31,696,337 | +1,854,170 | -535,053 |
| Procurement | 365,390 | 413,219 | 413,219 | +47,829 | --- |
| Research, development, test and evaluation | 2,121,933 | 822,907 | 1,467,007 | -654,926 | +644,100 |
| Total, Defense Health Program 1/ 3/ | 32,329,490 | 33,467,516 | 33,576,563 | +1,247,073 | +109,047 |
| Chemical Agents and Munitions Destruction, Defense: | | | | | |
| Operation and maintenance | 118,198 | 147,282 | 147,282 | +29,084 | --- |
| Procurement | 2,281 | 15,132 | 15,132 | +12,851 | --- |
| Research, development, test and evaluation | 579,342 | 388,609 | 388,609 | -190,733 | --- |
| Total, Chemical Agents 2/ | 699,821 | 551,023 | 551,023 | -148,798 | --- |
| Drug Interdiction and Counter-Drug Activities, Defense1/ | 1,050,598 | 844,800 | 908,800 | -141,798 | +64,000 |
| Joint Urgent Operational Needs Fund | --- | 99,300 | --- | --- | -99,300 |
| Office of the Inspector General 1/ | 312,559 | 322,035 | 322,035 | +9,476 | --- |
| Total, Title VI, Other Department of Defense Programs | 34,392,468 | 35,284,674 | 35,358,421 | +965,953 | +73,747 |
| TITLE VII | | | | | |
| RELATED AGENCIES | | | | | |
| Central Intelligence Agency Retirement and Disability System Fund | 514,000 | 514,000 | 514,000 | --- | --- |
| Intelligence Community Management Account (ICMA) | 505,206 | 533,596 | 483,596 | -21,610 | -50,000 |
| Total, Title VII, Related agencies | 1,019,206 | 1,047,596 | 997,596 | -21,610 | -50,000 |

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| | FY 2016 Enacted | FY 2017 Request | Bill | Bill vs. Enacted | Bill vs. Request |
|---|---|---|---|---|---|
| TITLE VIII | | | | | |
| GENERAL PROVISIONS | | | | | |
| Additional transfer authority (Sec.8005) | (4,500,000) | (5,000,000) | (4,500,000) | --- | (-500,000) |
| FFRDC (Sec.8023) | -65,000 | --- | -126,800 | -61,800 | -126,800 |
| Overseas Military Facility Investment Recovery (Sec.8028) | 1,000 | --- | --- | -1,000 | --- |
| Rescissions (Sec.8041) | -1,768,937 | --- | -1,283,416 | +485,521 | -1,283,416 |
| National grants (Sec.8048) | 44,000 | --- | 44,000 | --- | +44,000 |
| O&M, Defense-wide transfer authority (Sec.8052) | (30,000) | (30,000) | (30,000) | --- | --- |
| Fisher House Foundation (Sec.8067) | 5,000 | --- | 5,000 | --- | +5,000 |
| Revised economic assumptions (Sec.8074) | -1,500,789 | --- | -573,400 | +927,389 | -573,400 |
| Fisher House O&M Army Navy Air Force transfer authority (Sec.8089) | (11,000) | (11,000) | (11,000) | --- | --- |
| Defense Health O&M transfer authority (Sec.8093) | (121,000) | (122,375) | (122,375) | (+1,375) | --- |
| John C. Stennis Center for Public Service Development Trust Fund (O&M, Navy transfer authority) | (1,000) | --- | --- | (-1,000) | --- |
| Basic allowance for housing | 300,000 | --- | --- | -300,000 | --- |
| Working Capital Fund, Army excess cash balances (Sec.8118) | -389,000 | --- | -336,000 | +53,000 | -336,000 |
| Working Capital Fund, Defense-wide excess cash balances (rescission) | -1,037,000 | --- | --- | +1,037,000 | --- |
| Revised fuel costs (Sec.8117) | -2,576,000 | --- | -1,493,000 | +1,083,000 | -1,493,000 |
| Military pay raise (Sec.8131) | --- | --- | 340,000 | +340,000 | +340,000 |
| Total, Title VIII, General Provisions | -6,986,726 | --- | -3,423,616 | +3,563,110 | -3,423,616 |
| TITLE IX | | | | | |
| OVERSEAS CONTINGENCY OPERATIONS/GLOBAL WAR ON TERRORISM (GWOT) | | | | | |
| Military Personnel | | | | | |
| Military Personnel, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 1,846,356 | 2,051,578 | 1,271,302 | -575,054 | -780,276 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 1,154,828 | +1,154,828 | +1,154,828 |
| Subtotal | 1,846,356 | 2,051,578 | 2,426,130 | +579,774 | +374,552 |
| Military Personnel, Navy (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 251,011 | 330,557 | 194,001 | -57,010 | -136,556 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 63,500 | +63,500 | +63,500 |
| Subtotal | 251,011 | 330,557 | 257,501 | +6,490 | -73,056 |
| Military Personnel, Marine Corps (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 171,079 | 179,733 | 104,542 | -66,537 | -75,191 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 349,000 | +349,000 | +349,000 |
| Subtotal | 171,079 | 179,733 | 453,542 | +282,463 | +273,809 |
| Military Personnel, Air Force (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 726,126 | 719,896 | 446,792 | -279,334 | -273,104 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 145,000 | +145,000 | +145,000 |
| Subtotal | 726,126 | 719,896 | 591,792 | -134,334 | -128,104 |

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| | FY 2016 Enacted | FY 2017 Request | Bill | Bill vs. Enacted | Bill vs. Request |
|---|---|---|---|---|---|
| Reserve Personnel, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 24,462 | 42,506 | 30,812 | +6,350 | -11,694 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 172,362 | +172,362 | +172,362 |
| Subtotal | 24,462 | 42,506 | 203,174 | +178,712 | +160,668 |
| Reserve Personnel, Navy (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 12,693 | 11,929 | 7,905 | -4,788 | -4,024 |
| Reserve Personnel, Marine Corps (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 3,393 | 3,764 | 3,087 | -306 | -677 |
| Reserve Personnel, Air Force (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 18,710 | 20,535 | 15,979 | -2,731 | -4,556 |
| National Guard Personnel, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 166,015 | 196,472 | 120,514 | -45,501 | -75,958 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 316,454 | +316,454 | +316,454 |
| Subtotal | 166,015 | 196,472 | 436,968 | +270,953 | +240,496 |
| National Guard Personnel, Air Force (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 2,828 | 5,288 | 4,125 | +1,297 | -1,163 |
| Total, Military Personnel OCO/GWOT Requirements | 3,222,673 | 3,562,258 | 2,199,059 | -1,023,614 | -1,363,199 |
| Total, OCO/GWOT For Base Requirements | --- | --- | 2,201,144 | +2,201,144 | +2,201,144 |
| Grand Total, Military Personnel | 3,222,673 | 3,562,258 | 4,400,203 | +1,177,530 | +837,945 |
| Operation and Maintenance | | | | | |
| Operation & Maintenance, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 14,994,833 | 15,310,587 | 10,396,008 | -4,598,825 | -4,914,579 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 2,186,672 | +2,186,672 | +2,186,672 |
| Subtotal | 14,994,833 | 15,310,587 | 12,582,680 | -2,412,153 | -2,727,907 |
| Operation & Maintenance, Navy (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 7,169,611 | 6,827,391 | 3,947,082 | -3,222,529 | -2,880,309 |
| (Coast Guard) (by transfer) (GWOT) | --- | (162,692) | (162,692) | (+162,692) | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 1,082,170 | +1,082,170 | +1,082,170 |
| Subtotal | 7,169,611 | 6,827,391 | 5,029,252 | -2,140,359 | -1,798,139 |
| Operation & Maintenance, Marine Corps (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 1,372,534 | 1,244,359 | 749,596 | -622,938 | -494,763 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 166,900 | +166,900 | +166,900 |
| Subtotal | 1,372,534 | 1,244,359 | 916,496 | -456,038 | -327,863 |
| Operation & Maintenance, Air Force (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 11,128,813 | 9,498,830 | 5,909,780 | -5,219,033 | -3,589,050 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 960,626 | +960,626 | +960,626 |
| Subtotal | 11,128,813 | 9,498,830 | 6,870,406 | -4,258,407 | -2,628,424 |
| Operation & Maintenance, Defense-Wide (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 5,665,633 | 5,982,173 | 3,544,434 | -2,121,199 | -2,437,739 |
| (Coalition support funds) (GWOT) | (1,160,000) | (1,100,000) | (1,100,000) | (-60,000) | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 351,000 | +351,000 | +351,000 |
| Subtotal | 5,665,633 | 5,982,173 | 3,895,434 | -1,770,199 | -2,086,739 |

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| | FY 2016 Enacted | FY 2017 Request | Bill | Bill vs. Enacted | Bill vs. Request |
|---|---|---|---|---|---|
| Operation & Maintenance, Army Reserve (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 99,559 | 38,679 | 85,666 | -13,893 | +46,987 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 186,381 | +186,381 | +186,381 |
| Subtotal | 99,559 | 38,679 | 272,047 | +172,488 | +233,368 |
| Operation & Maintenance, Navy Reserve (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 31,643 | 26,265 | 25,669 | -5,974 | -596 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 112,350 | +112,350 | +112,350 |
| Subtotal | 31,643 | 26,265 | 138,019 | +106,376 | +111,754 |
| Operation & Maintenance, Marine Corps Reserve (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 3,455 | 3,304 | 5,078 | +1,623 | +1,774 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 24,550 | +24,550 | +24,550 |
| Subtotal | 3,455 | 3,304 | 29,628 | +26,173 | +26,324 |
| Operation & Maintenance, Air Force Reserve (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 58,106 | 57,586 | 45,173 | -12,933 | -12,413 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 27,550 | +27,550 | +27,550 |
| Subtotal | 58,106 | 57,586 | 72,723 | +14,617 | +15,137 |
| Operation & Maintenance, Army National Guard (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 135,845 | 127,035 | 142,341 | +6,496 | +15,306 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 237,880 | +237,880 | +237,880 |
| Subtotal | 135,845 | 127,035 | 380,221 | +244,376 | +253,186 |
| Operation & Maintenance, Air National Guard (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 19,900 | 20,000 | 31,086 | +11,186 | +11,086 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 247,950 | +247,950 | +247,950 |
| Subtotal | 19,900 | 20,000 | 279,036 | +259,136 | +259,036 |
| Subtotal, Operation and Maintenance | 40,679,932 | 39,136,209 | 30,465,942 | -10,213,990 | -8,670,267 |
| Counterterrorism Partnerships Fund (GWOT) | 1,100,000 | 1,000,000 | 750,000 | -350,000 | -250,000 |
| Afghanistan Security Forces Fund (GWOT) | 3,652,257 | 3,448,715 | 3,448,715 | -203,542 | --- |
| Iraq Train and Equip Fund (GWOT) | 715,000 | 630,000 | --- | -715,000 | -630,000 |
| Counter-ISIL Train and Equip Fund (GWOT) | --- | --- | 880,000 | +880,000 | +880,000 |
| Syria Train and Equip Fund (GWOT) | --- | 250,000 | --- | --- | -250,000 |
| Total, Operation and Maintenance OCO/GWOT Requirements | 46,147,189 | 44,464,924 | 29,960,628 | -16,186,561 | -14,504,296 |
| Total, OCO/GWOT For Base Requirements | --- | --- | 5,584,029 | +5,584,029 | +5,584,029 |
| Grand Total, Operation and Maintenance | 46,147,189 | 44,464,924 | 35,544,657 | -10,602,532 | -8,920,267 |

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| | FY 2016 Enacted | FY 2017 Request | Bill | Bill vs. Enacted | Bill vs. Request |
|---|---|---|---|---|---|
| **Procurement** | | | | | |
| Aircraft Procurement, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 161,987 | 313,171 | 313,171 | +151,184 | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 481,900 | +481,900 | +481,900 |
| Subtotal | 161,987 | 313,171 | 795,071 | +633,084 | +481,900 |
| Missile Procurement, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 37,260 | 632,817 | 632,817 | +595,557 | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 196,100 | +196,100 | +196,100 |
| Subtotal | 37,260 | 632,817 | 828,917 | +791,657 | +196,100 |
| Procurement of Weapons and Tracked Combat Vehicles, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 486,630 | 153,544 | 398,544 | -88,086 | +245,000 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 212,000 | +212,000 | +212,000 |
| Subtotal | 486,630 | 153,544 | 610,544 | +123,914 | +457,000 |
| Procurement of Ammunition, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 222,040 | 301,523 | 301,523 | +79,483 | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 240,200 | +240,200 | +240,200 |
| Subtotal | 222,040 | 301,523 | 541,723 | +319,683 | +240,200 |
| Other Procurement, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 1,175,596 | 1,373,010 | 1,373,010 | +197,414 | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 8,400 | +8,400 | +8,400 |
| Subtotal | 1,175,596 | 1,373,010 | 1,381,410 | +205,814 | +8,400 |
| Aircraft Procurement, Navy (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 210,990 | 393,030 | 344,323 | +133,333 | -48,707 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 626,714 | +626,714 | +626,714 |
| Subtotal | 210,990 | 393,030 | 971,037 | +760,047 | +578,007 |
| Weapons Procurement, Navy (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | --- | 8,600 | 8,600 | +8,600 | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 175,100 | +175,100 | +175,100 |
| Subtotal | --- | 8,600 | 183,700 | +183,700 | +175,100 |
| Procurement of Ammunition, Navy and Marine Corps (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 117,966 | 66,229 | 62,540 | -55,426 | -3,689 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 58,000 | +58,000 | +58,000 |
| Subtotal | 117,966 | 66,229 | 120,540 | +2,574 | +54,311 |
| Shipbuilding and Conversion, Navy (GWOT) | | | | | |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 3,086,300 | +3,086,300 | +3,086,300 |
| Other Procurement, Navy (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 12,186 | 124,206 | 111,551 | +99,365 | -12,655 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 102,530 | +102,530 | +102,530 |
| Subtotal | 12,186 | 124,206 | 214,081 | +201,895 | +89,875 |
| Procurement, Marine Corps (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 56,934 | 118,939 | 106,204 | +49,270 | -12,735 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 107,463 | +107,463 | +107,463 |
| Subtotal | 56,934 | 118,939 | 213,667 | +156,733 | +94,728 |
| Aircraft Procurement, Air Force (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 128,900 | 859,399 | 709,833 | +580,933 | -149,566 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 1,295,716 | +1,295,716 | +1,295,716 |
| Subtotal | 128,900 | 859,399 | 2,005,549 | +1,876,649 | +1,146,150 |

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| | FY 2016 Enacted | FY 2017 Request | Bill | Bill vs. Enacted | Bill vs. Request |
|---|---|---|---|---|---|
| Missile Procurement, Air Force (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 289,142 | 339,545 | 141,375 | -147,767 | -198,170 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 194,420 | +194,420 | +194,420 |
| Subtotal | 289,142 | 339,545 | 335,795 | +46,653 | -3,750 |
| Procurement of Ammunition, Air Force (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 228,874 | 487,408 | 155,158 | -73,716 | -332,250 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 323,000 | +323,000 | +323,000 |
| Subtotal | 228,874 | 487,408 | 478,158 | +249,284 | -9,250 |
| Other Procurement, Air Force (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 3,477,001 | 3,696,281 | 3,479,781 | +2,780 | -216,500 |
| Procurement, Defense-Wide (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 173,918 | 238,434 | 219,134 | +45,216 | -19,300 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 170,000 | +170,000 | +170,000 |
| Subtotal | 173,918 | 238,434 | 389,134 | +215,216 | +150,700 |
| National Guard and Reserve Equipment (GWOT) | 1,000,000 | --- | 1,000,000 | --- | +1,000,000 |
| Total, Procurement OCO/GWOT Requirements | 7,779,424 | 9,106,136 | 9,357,564 | +1,578,140 | +251,428 |
| Total, OCO/GWOT For Base Requirements | --- | --- | 7,277,843 | +7,277,843 | +7,277,843 |
| Grand Total, Procurement | 7,779,424 | 9,106,136 | 16,635,407 | +8,855,983 | +7,529,271 |
| Research, Development, Test and Evaluation | | | | | |
| Research, Development, Test & Evaluation, Army (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 1,500 | 100,522 | 100,522 | +99,022 | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 67,000 | +67,000 | +67,000 |
| Subtotal | 1,500 | 100,522 | 167,522 | +166,022 | +67,000 |
| Research, Development, Test & Evaluation, Navy (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 35,747 | 78,323 | 40,333 | +4,586 | -37,990 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 65,990 | +65,990 | +65,990 |
| Subtotal | 35,747 | 78,323 | 106,323 | +70,576 | +28,000 |
| Research, Development, Test & Evaluation, Air Force (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 17,100 | 32,905 | 32,905 | +15,805 | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 10,000 | +10,000 | +10,000 |
| Subtotal | 17,100 | 32,905 | 42,905 | +25,805 | +10,000 |
| Research, Development, Test and Evaluation, Defense-Wide (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 177,087 | 162,419 | 159,919 | -17,168 | -2,500 |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 20,000 | +20,000 | +20,000 |
| Subtotal | 177,087 | 162,419 | 179,919 | +2,832 | +17,500 |
| Total, RDTE OCO/GWOT Requirements | 231,434 | 374,169 | 333,679 | +102,245 | -40,490 |
| Total, OCO/GWOT For Base Requirements | --- | --- | 162,990 | +162,990 | +162,990 |
| Grand Total, Research, Development, Test and Evaluation | 231,434 | 374,169 | 496,669 | +265,235 | +122,500 |

Department of Defense Appropriations Act - FY 2017 (H.R. 5293)
(Amounts in Thousands)

| | FY 2016 Enacted | FY 2017 Request | Bill | Bill vs. Enacted | Bill vs. Request |
|---|---|---|---|---|---|
| Revolving and Management Funds | | | | | |
| Defense Working Capital Funds (GWOT) | 88,850 | 140,633 | 140,633 | +51,783 | --- |
| Other Department of Defense Programs | | | | | |
| Defense Health Program: | | | | | |
| Operation and maintenance (GWOT) | | | | | |
| OCO/GWOT Requirements (GWOT) | 272,704 | 331,764 | 331,764 | +59,060 | --- |
| OCO/GWOT For Base Requirements (GWOT) | --- | --- | 450,000 | +450,000 | +450,000 |
| Subtotal | 272,704 | 331,764 | 781,764 | +509,060 | +450,000 |
| Drug Interdiction and Counter-Drug Activities, Defense (GWOT) | 186,000 | 215,333 | 215,333 | +29,333 | --- |
| Joint [Improvised Explosive Device] Improvised-Threat Defeat Fund (GWOT) | 349,464 | 408,272 | 408,272 | +58,808 | --- |
| Office of the Inspector General (GWOT) | 10,262 | 22,062 | 22,062 | +11,800 | --- |
| Total, Other Department of Defense Programs | | | | | |
| OCO/GWOT Requirements | 818,430 | 977,431 | 977,431 | +159,001 | --- |
| Total, OCO/GWOT For Base Requirements | --- | --- | 450,000 | +450,000 | +450,000 |
| Grand Total, Other Department of Defense Programs | 818,430 | 977,431 | 1,427,431 | +609,001 | +450,000 |
| TITLE IX General Provisions | | | | | |
| Additional transfer authority (GWOT) (Sec.9002) | (4,500,000) | (4,500,000) | (4,500,000) | --- | --- |
| Ukraine Security Assistance Initiative (GWOT) (Sec. 9014) | 250,000 | --- | 150,000 | -100,000 | +150,000 |
| Intelligence, Surveillance, and Reconnaissance (GWOT) (Sec.9018) | 500,000 | --- | 500,000 | --- | +500,000 |
| Rescissions (GWOT) (Sec.9020) | -400,000 | --- | -669,000 | -269,000 | -669,000 |
| Total, General Provisions | 350,000 | --- | -19,000 | -369,000 | -19,000 |
| Total, Title IX OCO/GWOT Requirements | 58,638,000 | 58,625,551 | 42,949,994 | -15,688,006 | -15,675,557 |
| Total, Title IX OCO/GWOT For Base Requirements | --- | --- | 15,676,006 | +15,676,006 | +15,676,006 |
| Grand Total, Title IX | 58,638,000 | 58,625,551 | 58,626,000 | -12,000 | +449 |
| Grand Total, Bill | 566,816,000 | 569,858,382 | 569,272,000 | +2,456,000 | -586,382 |
| Appropriations | (510,783,937) | (511,232,831) | (511,929,416) | (+1,145,479) | (+696,585) |
| Global War on Terrorism (GWOT) | (59,038,000) | (58,625,551) | (59,295,000) | (+257,000) | (+669,449) |
| Rescissions | (-2,805,937) | --- | (-1,283,416) | (+1,522,521) | (-1,283,416) |
| Rescissions (GWOT) | (-400,000) | --- | (-669,000) | (-269,000) | (-669,000) |

Department of Defense Appropriations Act - FY 2017 (H.R. 5293)
(Amounts in Thousands)

| | FY 2016 Enacted | FY 2017 Request | Bill | Bill vs. Enacted | Bill vs. Request |
|---|---|---|---|---|---|
| CONGRESSIONAL BUDGET RECAP | | | | | |
| Scorekeeping adjustments: | | | | | |
| Lease of defense real property (permanent) | 33,000 | 37,000 | 37,000 | +4,000 | --- |
| Disposal of defense real property (permanent) | 8,000 | 8,000 | 8,000 | --- | --- |
| DHP, O&M to DOD-VA Joint Incentive Fund (permanent): | | | | | |
| Defense function | -15,000 | -15,000 | -15,000 | --- | --- |
| Non-defense function | 15,000 | 15,000 | 15,000 | --- | --- |
| DHP, O&M to Joint DOD-VA Medical Facility Demonstration Fund (Sec.8098): | | | | | |
| Defense function | -120,000 | -122,375 | -122,375 | -2,375 | --- |
| Non-defense function | 120,000 | 122,375 | 122,375 | +2,375 | --- |
| Navy transfer to John C. Stennis Center for Public Service Development Trust Fund (Sec.8107): | | | | | |
| Defense function | -1,000 | --- | --- | +1,000 | --- |
| Non-defense function | 1,000 | --- | --- | -1,000 | --- |
| Tricare accrual (permanent, indefinite auth.) 4/ | 6,631,000 | 6,953,000 | 6,953,000 | +322,000 | --- |
| Total, scorekeeping adjustments | 6,672,000 | 6,998,000 | 6,998,000 | +326,000 | --- |
| RECAPITULATION | | | | | |
| Title I - Military Personnel | 129,228,658 | 128,902,332 | 128,168,468 | -1,060,190 | -733,864 |
| Title II - Operation and Maintenance | 187,485,170 | 171,318,488 | 173,680,060 | +6,194,890 | +2,361,572 |
| Title III - Procurement | 110,841,627 | 101,916,357 | 104,200,570 | -6,641,057 | +2,284,213 |
| Title IV - Research, Development, Test and Evaluation | 69,784,665 | 71,391,771 | 70,292,888 | +508,223 | -1,098,883 |
| Title V - Revolving and Management Funds | 2,212,932 | 1,371,613 | 1,371,613 | -841,319 | --- |
| Title VI - Other Department of Defense Programs | 34,392,468 | 35,284,674 | 35,358,421 | +965,953 | +73,747 |
| Title VII - Related Agencies | 1,019,206 | 1,047,596 | 997,596 | -21,610 | -50,000 |
| Title VIII - General Provisions (net) | -6,986,726 | --- | -3,423,616 | +3,563,110 | -3,423,616 |
| Title IX - Global War on Terrorism (GWOT) | 58,638,000 | 58,625,551 | 58,626,000 | -12,000 | +449 |
| Total, Department of Defense | 566,616,000 | 569,858,382 | 569,272,000 | +2,656,000 | -586,382 |
| Scorekeeping adjustments | 6,672,000 | 6,998,000 | 6,998,000 | +326,000 | --- |
| Total mandatory and discretionary | 573,288,000 | 576,856,382 | 576,270,000 | +2,982,000 | -586,382 |

1/ Included in Budget under Operation and Maintenance
2/ Included in Budget under Procurement
3/ Budget request assumes enactment of DoD's pharmacy/Consolidated Health Plan proposals
4/ Contributions to Department of Defense Medicare-Eligible Retiree Health Care Fund (Sec. 725, P.L. 108-375). Amount does not include Budget proposals to amend TRICARE

Mr. VISCLOSKY. Mr. Chairman, I yield myself such time as I may consume.

I would like to begin by conveying my deep appreciation, as well, for Chairman FRELINGHUYSEN's steady leadership of the Defense Subcommittee. His commitment to this subcommittee's tradition of cooperation and bipartisanship is unwavering, and it is a pleasure to be able to work with him.

I also would like to express my gratitude to Chairman ROGERS, Ranking Member LOWEY, and the other members of the subcommittee for their very good efforts.

Additionally, as we all know, this bill could not have been written without the dedication, long hours, and discerning and thoughtful input of our committee staff and associate staffs.

The chairman has well and clearly articulated the major elements of the bill and report. Under less than ideal circumstances and unsettled conditions, he and the subcommittee staff have, again, demonstrated their talent and acumen in putting together this legislation. There are many highlights to the bill. However, I will use my time during general debate to discuss the circumstances and conditions that led to the proposal to use nearly 27 percent of the overseas contingency operations, OCO, accounts to fund base Department of Defense programs, which gives me pause as an appropriator.

It was as an appropriator that I opposed the Budget Control Act of 2011 and its arbitrary spending caps that only address one-sixth of the Federal budget equation.

□ 1645

In each session of Congress, we should be making discrete decisions on how we annually invest our discretionary dollars. Setting inflexible spending targets for 10 years is, in my opinion, nonsensical. I believe we need to invest in our roads, ports, drinking water infrastructure, universities, and our Nation's defense. We need to generate more resources, and we need to have a fulsome discussion of our entitlement programs. My assumption is that there are very few people in Congress who believe that the Federal Government is currently making enough of a long-term investment in our Nation and its interests.

It was as an appropriator that I voted for the Bipartisan Budget Act of 2015, which mitigated the BCA caps on base discretionary funding and capped OCO spending for fiscal years 2016 and 2017. I, obviously, would have rather seen the complete repeal of the act. But, nevertheless, I supported it because it provided some clarity to the appropriations process for the balance of this Congress. As such, we were able to wrap up the fiscal year 2016 process, and with a top line number for fiscal year 2017, I was guardedly optimistic that the House would have predictability this year.

The Defense Appropriations Subcommittee was far along in its 2017 process when the OCO to base strategy—conceived to placate some on other committees—was settled upon as the strategy for the House majority. While this bill technically does not violate the caps established by the BBA for base defense programs and OCO, it is hard to argue that this bill was assembled under what passes for normalcy in this Congress. And there is no doubt that the chairman and the subcommittee members and staff made smart investment decisions in executing the $15.7 billion in OCO to base funding strategy. However, I am troubled with the circumstances that compelled the subcommittee's action.

First and foremost, the fiscal year begins October 1, 2016, not May 1, 2017, and it is the responsibility of us holding office in the second session of the 114th Congress to execute the 2017 fiscal year appropriations process. In order to make OCO funding available for base programs, our bill only provides enough funding to fully support the warfighter until the end of April 2017, which is 5 months before the end of the fiscal year. This is intended to force the next administration and the next Congress to pass a supplemental in calendar year 2017 to support ongoing combat operations.

It is not the responsibility of the 115th Congress to finish a predetermined fraction of our work, and we should not be dismissive of the difficulties created. To assume that there will be smooth sailing for a supplemental appropriations bill in the spring is very problematic. We do not know who will be in the White House. We do not know who will be the civilian leadership at the Department of Defense. And we do not know the composition in the next Congress. And as we have clearly seen from the Zika virus debate and, before that, Hurricane Sandy, supplemental appropriations bills are not without controversy.

Additionally, in making the $15.7 billion in cuts to the OCO budget request, the committee has had to make some assumptions on the pace of combat operations between now and May 2017. While Chairman FRELINGHUYSEN exercised great care and caution, there is not much wiggle room in the interim. If the OCO spend rate were to increase for any reason in an uncertain world, Congress and a new administration would have to act quickly to pass a supplemental in early 2017. If that supplemental were not timely, the Department would likely be forced to reprogram or transfer base dollars to OCO, which shortchanges other priorities, negates the committee's funding levels, and still requires a supplemental to backfill both base and OCO while not violating the BCA caps. Will said supplemental be funded by offsets from resources within the other 11 appropriations bills?

Adding to the uncertainty, the House majority is going it alone with this strategy. To date, it has been rejected by the administration, the Senate Appropriations Committee, as well as the full Senate. While those institutions are not infallible, I fear that if the House majority insists upon heading down this path, we are looking at an impossible conference process.

Putting concerns about uncertainty aside, I further believe that the OCO to base strategy abdicates our discretion—Congress' discretion—to the Department of Defense in executing the remaining OCO funding. In order to free $15.7 billion, certain appropriations in OCO were subject to reductions. These reductions were done at the account level, not at the program level. For example, Navy O&M in the OCO title was reduced by $2.9 billion from its requested level. The Department has discretion on how to apply that $2.9 billion reduction across 10 programs under that account. I believe that should be our discretion.

A final concern I have—and one expressed in prior years—is that we should eliminate the reliance on OCO funding in the first instance and shift activities to the base budget. It is increasingly difficult after 15 years of war to argue that this operational tempo for our military is a contingency and not the new normal in defending our Nation and our interests. This subcommittee has correctly begun to limit what is an eligible expense in OCO, but under the act and this latest proposal, we could take a step back. For example, this bill proposes to increase end strength by 52,000 troops above planned reductions for the Army, Marine Corps, and Air Force. The chairman alluded to it in his opening remarks. I absolutely agree with him that we need new personnel, but this additional force structure costs $3 billion in 2017. What remains unsaid is if you look out for the next 5 years, it will also increase spending by $30 billion that is not budgeted for.

In closing, I have taken some time describing my concerns with the circumstances that impact less than 3 percent of the total bill. But the manufactured uncertainty introduced by these circumstances diminishes the likelihood that this committee and the Congress will complete its work on time. It is a mark of the talent of Chairman FRELINGHUYSEN and our staff, their commitment to our troops and our Nation's defense, and their seriousness of purpose, that they have done so much good to ameliorate the problems caused and highlighted in my remarks. I look forward to working with Chairman FRELINGHUYSEN and the Members of this House as we advance the process over the next several days and complete the task before us. I also look forward to the debate on amendments.

Mr. Chair, I would like to begin by conveying my deep appreciation for Chairman FRELINGHUYSEN's steady leadership of the Defense Subcommittee. His commitment to this

subcommittee's tradition of cooperative bipartisanship is unwavering and it is a pleasure working with him.

I also would like to express my gratitude to Chairman ROGERS, Ranking Member LOWEY, and the other Members of the Subcommittee for their efforts.

Additionally, this bill could not have been written without the dedication, long hours, discerning and thoughtful input of our committee staff and personal staffs. I want to thank Rob Blair, Sherry Young, Walter Hearne, BG Wright, Brooke Boyer, Adrienne Ramsay, Allison Deters, Megan Milam, Colin Lee, Cornell Teague, Matthew Bower, Rebecca Leggieri, Chris Bigelow, Steve Wilson, Joe DeVooght, and Luke Wood.

The Chairman has well and clearly articulated the major elements of the bill and report. Under less than ideal circumstances and unsettled conditions, he and the Subcommittee staff have again demonstrated their talent and acumen in putting together this legislation. There are many highlights to the bill. However, I will use my time during general debate to discuss the circumstances and conditions that led to the proposal to use nearly 27 percent of the Overseas Contingency Operations (OCO) accounts to fund base Department of Defense programs, which gives me pause as an Appropriator.

It was as an Appropriator that I opposed the Budget Control Act of 2011 (BCA) and its arbitrary spending caps that only address one-sixth of the federal budget equation. In each session of Congress we should be making discrete decisions on how we annually invest our discretionary dollars. Setting inflexible spending targets for 10 years is nonsensical. I believe we need to invest more in our roads, ports, drinking water infrastructure, universities, and our defense. We need to generate more resources, and the need to have a fulsome discussion of our entitlement programs. My assumption is that there are very few people in Congress who believe that the federal government is currently making enough of a long-term investment in our nation and its interests.

And it was as an Appropriator, that I voted for the Bipartisan Budget Act of 2015 (BBA), which mitigated the BCA caps on base discretionary funding and capped OCO spending for Fiscal Years (FY) 2016 and 2017. I obviously would have rather seen the complete repeal of the BCA, but nonetheless, I supported the BBA, because it provided some clarity to the Appropriations process for the balance of the 114th Congress. As such, we were able to wrap up the FY 2016 process and, with a number for FY 2017, I was guardedly optimistic that the House would have predictability this year.

The Defense Appropriations Subcommittee was far along in its FY 2017 process, when the OCO to Base strategy—conceived to placate some on other Committees—was settled upon as the strategy for the House Majority. While this bill technically does not violate the caps established by the BBA for base defense programs and OCO, it is hard to argue that this bill was assembled under what passes for normalcy in this Congress. And there is no doubt that the Chairman and Subcommittee staff made smart investment decisions in executing the $15.7 billion in OCO to Base funding strategy. However, I am troubled with the circumstances that compelled the subcommittee's action.

First and foremost, the fiscal year begins on October 1, 2016, not May 1, 2017, and it is the responsibility of those of us holding office in the 2nd session of the 114th Congress to execute the FY 2017 appropriations process. In order to make OCO funding available for base programs, our bill only provides enough funding to fully support the warfighter until the end of April 2017, which is five months before the end of the fiscal year. This is intended to force the next administration and the next Congress to pass a supplemental in calendar year 2017 to support ongoing combat operations.

It is not the responsibility of the 115th Congress to finish a predetermined fraction of our work, and we should not be dismissive of the difficulties we created. To assume there will be smooth sailing for a supplemental appropriations bill in the spring is problematic. We do not know who will be in the White House, who will be the civilian leadership at DoD, nor the composition of the next Congress. And as we can clearly see from the Zika Virus debate, and before that Hurricane Sandy, supplemental appropriations bills are not without controversy.

Additionally, in making the $15.7 billion in cuts to the OCO budget request, the Committee had to make some assumptions on the pace of combat operations between now and May 2017. While Chairman FRELINGHUYSEN exercised care and caution, there is not much wiggle room in the interim. If the OCO spend rate were to increase for any reason, Congress and a new Administration would have to act quickly to pass a supplemental early in 2017. If that supplemental were not timely, the Department would likely be forced to reprogram or transfer base dollars to OCO, which shortchanges other priorities, negates the committee's funding levels, and still requires a supplemental to backfill both base and OCO while not violating the BCA caps. Will said supplemental be funded by offsets from resources within the other 11 Appropriations bills?

Adding to the uncertainty, the House Majority is going it alone with this strategy. To date, it has been rejected by the Administration, the Senate Appropriations Committee, and the full Senate. While those three are not infallible, I fear that if the House Majority insists upon heading down this path, we are looking at an impossible conference process.

Putting concerns over uncertainty aside, I further believe the OCO to Base strategy abdicates our discretion to the Department of Defense in executing the remaining OCO funding. In order to free up $15.7 billion, certain appropriations in OCO were subject to reductions. These reductions were done at the account level, not at the program level. For example, Navy O&M in the OCO Title was reduced by $2.9 billion, from its requested level of $6.8 billion. The Department has discretion on how it will apply that $2.9 billion reduction across the tens of programs under that account.

A final concern I have, and one expressed in prior years, is that we should eliminate the reliance on OCO funding in the first instance and shift activities to the base budget. It is increasingly difficult after fifteen years of war to argue that this operational tempo for our military is a contingency and not the new normal in defending our nation and our interests. This Subcommittee had correctly begun to limit what is an eligible expense in OCO, but under the BBA and this latest proposal we would take a step back. For example, this bill proposes to increase end strength by 52,000 above planned reductions for the Army, Marine Corps, and Air Force. And I agree that we need more personnel, but this additional force structure costs $3 billion in FY 2017 and is paid for with OCO to Base dollars. But, we defer the tough decisions. This is particularly true when recognizing the fact that BCA caps are scheduled to lower defense spending by $2 billion in FY 2018. An increase in end strength creates a tail of spending in future years. The DoD estimates that the troop levels funded in the bill will increase spending by $30 billion over five years. That is $30 billion that is not budgeted for, but $30 billion that our Committee will be expected to pay for.

In closing, I have taken some time describing my concerns with the circumstances that impact less than three percent of the total bill. But the manufactured uncertainty introduced by these circumstances diminishes the likelihood that this Committee and the Congress will complete its work. It is a mark of the talent of Chairman FRELINGHUYSEN and our staff, their commitment to our troops and our nation's defense, and their seriousness of purpose, that they have done so much good to ameliorate the problems caused by this approach. I look forward to working with Chairman FRELINGHUYSEN and the members of the House to advance the process and complete the task before us.

I look forward to the debate on amendments.

I reserve the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield as much time as he may consume to the gentleman from Kentucky (Mr. ROGERS), the full committee chairman.

Mr. ROGERS of Kentucky. Mr. Chairman, I thank the chairman for yielding time.

I rise in support of this fine bill. This bill provides critical funding to uphold our defense posture, maintain our military readiness, and protect our Nation from those who would seek to do us harm. The world, of course, is changing rapidly. We are reminded regularly that we are still a Nation at war, and new threats arise daily. It is clear that a strong national defense is of the highest priority.

In total, as has been said, the bill contains $575.8 billion in base and Overseas Contingency Operations funding for critical national security needs, and the health and well-being of our troops.

The use of OCO funds in this bill is in line with the National Defense Authorization Act that the House passed on a bipartisan basis last month. This funding will provide the resources that our military needs to be successful in the fight right now, and that will improve our readiness for the future.

This includes over $209 billion for operations and maintenance, the programs that help prepare our troops, like flight time and battle training, as well as base operations. The bill also includes $120.8 billion for equipment and upgrades, providing the weapons and platforms needed to fight and win in the field.

And to improve this equipment, develop and test new technologies, and meet future security threats, the bill contains $70.8 billion for research and development. This will help keep our Nation on the cutting edge, ensuring that we will remain the most superior military power in the entire world.

This legislation prioritizes a robust, healthy, and well-cared-for force. In total, $132.6 billion is provided to support over 1.3 million Active Duty troops and over 826,000 Guard and Reserve troops. This wholly rejects the administration's proposed troop reductions by providing an additional $3 billion to maintain our troop strength and fully funds the authorized 2.1 percent pay raise for our soldiers.

It is also critically important that we adequately fund the quality-of-life programs for our troops and military families need and deserve. The bill contains $34 billion for defense headline programs—targeting increases to cancer research, facility upgrades, traumatic brain injury, psychological health research, and sexual assault prevention.

I want to thank Chairman FRELINGHUYSEN for his care and consideration in drafting this big bill. He, as well as the members of his subcommittee, have put the security of the Nation and the welfare of our warfighters above all else. I also want to thank the subcommittee staff for their expert work and dedication on this bill.

Mr. Chairman, this bill fulfills the Congress' most important responsibility—providing for the common defense. And it does so responsibly—funding those military needs that must be addressed now, planning and preparing for the future, and respecting the taxpayer by making commonsense budgeting decisions.

I urge my colleagues to vote ''yes'' on this bill to continue to protect our Nation from threats to our freedom, democracy, and way of life.

Mr. VISCLOSKY. Mr. Chairman, I yield 3 minutes to the gentlewoman from New York (Mrs. LOWEY), the ranking member of the Appropriations Committee.

Mrs. LOWEY. Mr. Chairman, with only the fourth appropriations bill of the year on the floor, we should not be patting ourselves on the back.

Today's bill blows up last year's budget agreement through a gimmick that needlessly creates a funding cliff next spring. It forces the new President, as one of her or his first actions in office, to request emergency supplemental funding.

The difference here is about more than bookkeeping. Sending our military men and women into some of the most dangerous places on Earth—Afghanistan, Iraq, and Syria—without ensuring mission support, including to combat ISIL, or their salaries for a full year, is the height of irresponsibility.

Here are some of the things that Secretary Carter has said about the Republican OCO budget gimmick: deeply troubling, flawed, gambling with warfighting money, creating a hollow force structure, working against our efforts to restore readiness, a road to nowhere, a high probability of leading to more gridlock, undercuts stable planning and efficient use of taxpayer dollars, dispirits troops and their families, baffles friends, and emboldens foes.

Additionally, President Obama issued a veto threat due to this harmful gimmick.

Mr. Chairman, I include in the RECORD the President's Statement of Administration Policy on H.R. 5293.

STATEMENT OF ADMINISTRATION POLICY

H.R. 5293—DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2017—REP. ROGERS, R–KY

The Administration strongly opposes House passage of H.R. 5293, making appropriations for the Department of Defense for the fiscal year (FY) ending September 30, 2017, and for other purposes.

While the Administration appreciates the Committee's support for certain investments in our national defense, H.R. 5293 fails to provide our troops with the resources needed to keep our Nation safe. At a time when ISIL continues to threaten the homeland and our allies, the bill does not fully fund wartime operations such as INHERENT RESOLVE. Instead the bill would redirect $16 billion of Overseas Contingency Operations (OCO) funds toward base budget programs that the Department of Defense (DOD) did not request, shortchanging funding for ongoing wartime operations midway through the year. Not only is this approach dangerous but it is also wasteful. The bill would buy excess force structure without the money to sustain it, effectively creating a hollow force structure that would undermine DOD's efforts to restore readiness. Furthermore, the bill's funding approach attempts to unravel the dollar-for-dollar balance of defense and non-defense funding increases provided by the Bipartisan Budget Act of 2015 (BBA), threatening future steps needed to reverse over $100 billion of future sequestration cuts to DOD. By gambling with warfighting funds, the bill risks the safety of our men and women fighting to keep America safe, undercuts stable planning and efficient use of taxpayer dollars, dispirits troops and their families, baffles our allies, and emboldens our enemies.

In addition, H.R. 5293 would impose other unneeded costs, constraining DOD's ability to balance military capability, capacity, and readiness. The Administration's defense strategy depends on investing every dollar where it will have the greatest effect. The Administration's FY 2017 proposals would accomplish this by continuing and expanding critical reforms that divest unneeded force structure, balance growth in military compensation, modernize military health care, and reduce wasteful overhead. The bill fails to adopt many of these reforms, including through measures prohibiting the use of funds to propose or plan for a new Base Realignment and Closure (BRAC) round. The bill also continues unwarranted restrictions regarding detainees at Guantanamo Bay that threaten to interfere with the Executive Branch's ability to determine the appropriate disposition of detainees and its flexibility to determine when and where to prosecute Guantanamo detainees based on the facts and circumstances of each case and our national security interests.

In October 2015, the President worked with congressional leaders from both parties to secure the BBA, which partially reversed harmful sequestration cuts slated for FY 2017. By providing fully-paid-for equal dollar increases for defense and non-defense spending, the BBA allows for investments in FY 2017 that create jobs, support middle-class families, contribute to long-term growth, and safeguard national security. The Administration looks forward to working with the Congress to enact appropriations that are consistent with that agreement, and fully support economic growth, opportunity, and our national security priorities. However, the bill is inconsistent with the BBA, and the Administration strongly objects to the inclusion of problematic ideological provisions that are beyond the scope of funding legislation. *If the President were presented with H.R. 5293, the President's senior advisors would recommend that he veto the bill.*

The Administration would like to take this opportunity to share additional views regarding the Committee's version of the bill.

*Department of Defense (DOD)*

*Reduction and Misuse of OCO Funds.* The Administration strongly objects to the Committee's proposal to substitute $16 billion of DOD's OCO request in the FY 2017 Budget with $16 billion of unsustainable base budget programs that do not reflect the Department's highest joint priorities. This approach creates a hollow force structure and risks the loss of funding for critical overseas contingency operations. This gimmick is inconsistent with the BBA, which provided equal increases for defense and non-defense spending as well as the certainty needed to prosecute the counter-ISIL campaign, protect readiness recovery, modernize the force for future conflicts, and keep faith with servicemembers and their families. Shortchanging wartime operations by $16 billion would deplete essential funding for ongoing operations by the middle of the year, introducing a dangerous level of uncertainty for our men and women in uniform carrying out missions in Afghanistan, Iraq, Syria, and elsewhere. Our troops need and deserve guaranteed, predictable support as they execute their missions year round, particularly in light of the dangers they face in executing

the Nation's ongoing overseas contingency operations.

*Guantanamo Detainee Restrictions.* The Administration strongly objects to sections 8097, 8098, 8099, and 8130 of the bill, which would restrict the Executive Branch's ability to manage the detainee population at the Guantanamo Bay, Cuba detention facility. Section 8098 would prohibit the use of funds for the construction, acquisition, or modification of any facility to house Guantanamo detainees in the United States. Sections 8097 and 8099 would continue prohibitions and restrictions relating to transfers of detainees abroad. In addition, section 8130 would restrict the Department's ability to transfer U.S. Naval Station functions in support of national security. The President has repeatedly objected to the inclusion of these and similar provisions in prior legislation and has called upon the Congress to lift the restrictions. Operating the detention facility at Guantanamo weakens our national security by draining resources, damaging our relationships with key allies and partners, and emboldening violent extremists. These provisions are unwarranted and threaten to interfere with the Executive Branch's ability to determine the appropriate disposition of detainees and its flexibility to determine when and where to prosecute Guantanamo detainees based on the facts and circumstances of each case and our national security interests. Sections 8097 and 8099 would, moreover, violate constitutional separation-of-powers principles in certain circumstances.

*Military End Strength.* The Administration strongly objects to the unnecessary funding for end strength levels above the FY 2017 Budget request. The bill would force the Department to take additional risk in the training and readiness of the current force, as well as investment in and procurement of future capabilities. Adding unnecessary end strength in the manner proposed in the bill would increase military personnel and operation and maintenance support costs by approximately $30 billion (FY 2017 through FY 2021). This would also invite a significant, unacceptable risk of creating a future hollow force, in which force structure exists, but the resources to make it ready do not follow. The Administration urges support of the Department's plan, which reflects sound strategy and responsible choices among capacity, capabilities, and current and future readiness.

*Military Compensation Reform.* The Administration is disappointed that the Committee has rejected the pay raise proposal and most of the health care reform proposals included in the FY 2017 Budget request. The FY 2017 Budget request includes a set of commonsense reforms that would allow the Department to achieve a proper balance between DOD's obligation to provide competitive pay and benefits to servicemembers and its responsibility to provide troops the finest training and equipment possible. The Administration strongly encourages the Congress to support these reforms, which would save $500 million in FY 2017 and $11 billion through FY 2021.

*Availability of Funds for Retirement or Inactivation of Ticonderoga-Class Cruisers or Dock Landing Ships.* The Administration strongly objects to section 8124 of the bill, which would prohibit the Navy from executing its phased modernization approach for maintaining an effective cruiser and dock landing ship force structure while balancing scarce operating and maintenance funding. It also would significantly reduce planned savings and accelerate the retirement of all Ticonderoga-Class cruisers. The Navy's current requirement for active large surface combatants includes 11 Air Defense Commander ships, one assigned to each of the active carrier strike groups. This requirement is met by the modernization plan proposed in the FY 2017 Budget request. Furthermore, section 8124 would require an additional $3.2 billion across the Future Years Defense Program (FYDP) to fund manpower, maintenance, modernization, and operations when compared to the FY 2017 Budget request.

*Restoration of Tenth Navy Carrier Air Wing.* The Administration strongly objects to restoration of the Carrier Air Wing in Title IX of the bill. The tenth Carrier Air Wing is no longer needed, and results in ineffective use of the aircraft and pilot inventory in the Navy. The plan proposed in the FY 2017 Budget request optimizes Carrier Air Wing force structure to meet the Global Force Management Allocation Plan demand in a sustainable way. As an additional benefit, the plan also generates $926 million in FYDP savings. Furthermore, if forced to retain the tenth Carrier Air Wing, the bill's current military personnel funding levels are insufficient. The Navy would require an additional $48 million in FY 2017 for military personnel above the levels already in the bill, as well as an end strength increase of 1,167 above the Navy end strength in the bill.

*Restoration of Third Littoral Combat Ship.* The Administration strongly objects to the Committee's proposal to increase the purchase of Littoral Combat Ships (LCS) in FY 2017 from two to three. The FY 2017 Budget request reduced from 52 to 40 the total number of LCS and Frigates (FF) the Navy would purchase over the life of the program. A combined program of 40 LCS and FF would allow DOD to invest in advanced capabilities across the fleet and would provide sufficient capacity to meet the Department's warfighting needs and to exceed recent presence levels with a more modern and capable ship than legacy mine sweepers, frigates, and coastal patrol craft they would replace. By funding two LCS in FY 2017, the Budget request ensures that both shipyards are on equal footing and have robust production leading up to the competition to select the shipyard that would continue the program. This competitive environment ensures the best price for the taxpayer on the remaining ships, while also achieving savings by down-selecting to one shipyard. The bill prevents the use of resources for higher priorities to improve DOD's warfighting capability, such as undersea, other surface, and aviation investments.

*Prohibition on Proposing Planning or Conducting an Additional Base Realignment and Closure (BRAG) Round.* The Administration strongly objects to section 8121 of the bill and the proposed $3.5 million reduction to funds that would support a 2019 BRAC round. By forcing the Department to spread its resources more thinly, excess infrastructure is one of the principal drains on the Department's readiness, which the Committee recognizes as a major concern. In addition to addressing every previous congressional objection to BRAC authorization, the Department recently conducted a DOD-wide parametric capacity analysis, which demonstrates that the Department has 22 percent excess capacity. In addition, the Administration's BRAC legislative proposal includes several changes that respond to congressional concerns regarding cost. Specifically, the revised BRAC legislation requires the Secretary to certify that BRAC would have the primary objective of eliminating excess capacity and reducing costs, emphasizes recommendations that yield net savings within five years (subject to military value), and limits recommendations that take longer than 20 years to pay back. The Administration strongly urges the Congress to provide BRAC authorization as requested so that DOD can make better use of scarce resources to maintain readiness.

*Asia-Pacific Rebalance Infrastructure.* The Administration strongly objects to the exclusion of a general provision requested in the FY 2017 Budget that would allow for $86.7 million of the amounts appropriated for the Operation and Maintenance, Defense-Wide account to be available for the Secretary of Defense to make grants, conclude cooperative agreements, and supplement other Federal funds. This critical provision addresses the need to provide assistance for civilian water and wastewater improvements to support the military build-up on Guam, as well as critical existing and enduring military installations and missions on Guam. A key aspect of the Asia-Pacific rebalance is to create a more operationally resilient Marine Corps presence in the Pacific and invest in Guam as a joint strategic hub. This funding supports the ability and flexibility of the President to execute our foreign and defense policies in coordination with our ally, Japan. In addition, it calls into question among regional states our commitment to implement the realignment plan and our ability to execute our defense strategy.

*Prohibition of Funds to Enforce Section 526 of the Energy Independence and Security Act of 2007.* The Administration strongly objects to section 8132 of the bill, which would prohibit DOD from using FY 2017 funds to enforce section 526 of the Energy Independence and Security Act of 2007. Section 526 provides an environmentally sound framework for the development of future alternative fuels.

*Evolved Expendable Launch Vehicle.* The Administration objects to the reductions to both the Evolved Expendable Launch Vehicle and the Evolved Expendable Launch Vehicle Infrastructure requested in the FY 2017 Budget. The Evolved Expendable Launch Vehicle reduction would eliminate three launch service procurements, instead of the two procurements the Committee intended. Further, the Evolved Expendable Launch Vehicle Infrastructure reduction exceeds the amount ascribed to these two procurements, and would cause the Government to default on the current contract and the block buy, unnecessarily introducing costs and schedule risk for national security space payloads.

*Missile Defense Programs.* The Administration objects to the reduction of $324 million from the FY 2017 Budget request for U.S. ballistic missile defense programs, including $49 million to homeland defense programs, $91 million to U.S. regional missile defense programs, $44 million to missile defense testing efforts, and $140 million to missile defense advanced technology programs. These programs are required to improve the reliability of missile defense system and ensure the United States stays ahead of the future ballistic missile threat. Furthermore, the Administration opposes the addition of $455 million above the FY 2017 Budget request for Israeli missile defense procurement and cooperative development programs.

*Coalition Support Fund (CSF).* The Administration objects to section 9020 of the bill, which would rescind funds available for CSF by $300 million. Reducing CSF would limit DOD's ability to reimburse key allies in the fight against ISIL and other extremist groups in the region. The rescission is especially harmful because it would reduce funds available for programs that are already underway and would limit DOD's flexibility to continue to program these funds for critical needs. The Administration urges the Congress to retain the authority to make certain funds available to support stability activities in the Federally Administered Tribal Areas as provided in section 1212(f) of the FY 2016 National Defense Authorization Act.

*Counterterrorism Partnerships Fund (CTPF).* The Administration objects to the reduction of $250 million from the FY 2017 Budget request for CTPF because it would restrict the

resources required to empower and enable partners in responding to shared terrorist threats around the world. The Administration also objects to the $200 million rescission in FY 2016 CTPF resources in the bill. Both of these reductions would preclude DOD from continuing important security assistance programs begun in FY 2016. The Administration strongly encourages the Congress to provide the $1 billion originally requested to continue support for CTPF activities in FY 2017 and restore the rescinded FY 2016 funding.

*Elimination of Joint Urgent Operational Needs Fund (JUONF) Funding*. The Administration objects to the elimination of the $99 million JUONF base funding requested in the FY 2017 Budget. This funding is vital to the Department's ability to quickly respond to urgent operational needs. Eliminating this funding may increase life-threatening risks to servicemembers and contribute to critical mission failures.

*Rapid Prototyping, Experimentation and Demonstration*. The Administration objects to the reduction of $42 million from the FY 2017 Budget request for the Navy's research and development funding to support the Rapid Prototyping, Experimentation and Demonstration (RPED) initiative. RPED is an essential element in the Navy's strategy to employ successful innovation technologies to help pace the dynamic threat of our adversaries, more quickly address urgent capability needs, accelerate our speed of innovation, and rapidly develop and deliver advanced warfighting capability to naval forces. This reduction would render the initiative ineffective in promoting rapid acquisition, hindering the Navy's ability to determine the technical feasibility and operational utility of advanced technologies before committing billions of dollars toward development. development. This reduction hinders the Department-wide goal of employing new techniques to make the acquisition process more agile and efficient.

*Innovation and Access to Non-Traditional Suppliers*. The Administration objects to the reduction of $30 million for programs that seek to broaden DOD's access to innovative companies and technologies. Specifically, the Administration is concerned about the elimination of the investment funding associated with the Defense Innovation Unit Experimental (DIUx), as well as the reduction in funding for In-Q-Tel's efforts to explore innovative technologies that enable the efficient incorporation into weapons systems and operations capabilities. These investments would enable the development of leading-edge, primarily asymmetric capabilities and help spur development of new ways of warfighting to counter advanced adversaries.

*Reduction of Funds for Countering Weapons of Mass Destruction (CWMD) Situational Awareness System*. The Administration objects to the reduction of $27 million from the FY 2017 Budget request for the development of a CWMD situational awareness information system, known as ''Constellation.'' The Department is developing and fielding this system in response to requirements articulated by all Combatant Commands and validated by the Joint Requirements Oversight Council. This capability is critical to anticipating WMD threats from both nation-state and non-state actors and sharing information between DOD and its U.S. interagency and international partners. Funds were appropriated in FY 2014–2016 specifically to develop and field the Constellation system, which would be deployed in July 2016 as an initial prototype. A reduction of $27 million would effectively terminate this initiative and prevent DOD from developing a high priority capability needed to counter WMD threats.

*Navy High Energy Lasers*. The Administration objects to the reduction of $20 million from the FY 2017 Budget request for the Power Projection Advanced Technology program, which would delay by one year fielding of the High Energy Laser (HEL) program laser and demonstration of its technology maturation. The HEL technology is a means of countering low-cost unmanned aerial vehicles and small surface vessels.

*Limitation on Intelligence Community General Transfer Authority (GTA)*. The Administration objects to section 8096 of the bill, which reduces the Intelligence Community's (IC's) FY 2016 enacted GTA cap from $1.5 billion to $1.0 billion for FY 2017. This proposed cap would place severe limits on the IC's flexibility to manage resources and could compromise the ability to meet critical intelligence priorities at a time of shifting and dynamic worldwide threats, especially in urgent circumstances. This flexibility is especially important given the broad applicability of the GTA constraints to the appropriation accounts that fund IC.

*Availability of Funds for Improvement of IC Financial Management*. The Administration objects to section 8066 of the bill, which places limits on the ability of IC to review and take action on financial management improvement measures. The Office of the Director of National Intelligence and DOD are engaged in a comprehensive review of financial management practices that may result in recommendations for changes to financial management or appropriations structures.

*Constitutional Concerns*

Several other provisions in the bill raise constitutional concerns. For instance, sections 8055, 8071, 8121, and provisions under the headings ''Operations and Maintenance—Defense-wide'' and ''Joint Improvised Threat Defeat Fund'' may interfere with the President's authority as Commander in Chief

The Administration looks forward to working with the Congress as the FY 2017 appropriations process moves forward.

Mrs. LOWEY. Mr. Chairman, using OCO for base funds detracts from the true purpose of OCO, which is to fund wartime efforts. This prevents our Armed Forces from using these funds to counter ISIL and other threats.

A great deal of good elsewhere in the bill is overshadowed by this failure. I thank the chairman for his work to increase cybersecurity operations by nearly $1 billion; invest in the intelligence, surveillance, and reconnaissance resources combat commanders clamor for; provide strong, bipartisan support for our allies in the Middle East; and finance important health initiatives that help warfighters and their families.

□ 1700

All of that could have been done while providing certainty for troops in Afghanistan, Iraq, and elsewhere. I urge my colleagues to oppose this bill.

Mr. FRELINGHUYSEN. Mr. Chair, how much time remains on both sides?

The CHAIR. The gentleman from New Jersey has 17½ minutes remaining. The gentleman from Indiana has 18 minutes remaining.

Mr. FRELINGHUYSEN. Mr. Chair, I yield 2 minutes to the gentlewoman from Texas (Ms. GRANGER), the vice chair of the Defense Appropriations Subcommittee.

Ms. GRANGER. Mr. Chair, I rise in strong support of the FY17 Defense Appropriations bill.

This very important bill provides for our national security by supporting our soldiers, sailors, airmen, and marines, on whom we rely to provide that security. During very dangerous times, we must ensure that the United States remains not only the greatest country in the world, but also the strongest.

Chairman FRELINGHUYSEN takes the constitutional responsibility of providing for the common defense very seriously, and he deserves all of our thanks for drafting such a significant and meaningful bill.

This is not an easy bill to draft. With increased threats and reduced budgets, the Department of Defense is being forced to make decisions it should never have to make. It is making decisions to align with the budget crisis instead of making decisions to protect the homeland and defeat our enemies. The military readiness accounts are an example of the shocking consequence of this budget environment. Already stretched thin by more than a decade of war, Marine aviation squadrons actually have to salvage aircraft parts from museums in order to keep planes flying. This is unconscionable. Our national security needs more. Our troops deserve better.

The bill Chairman FRELINGHUYSEN drafted takes a responsible approach in addressing these and other pressing issues. Rather than just throwing money at these crises, he exercises the subcommittee's oversight responsibilities by reducing funding for programs with unjustified cost increases or subpar performance. This allows the chairman to redirect those critical dollars in order to increase the number of troops, to increase funding for training, and to address many of the service chiefs' priorities.

The U.S. and our allies continue to face threats from countries such as Iran, Russia, China, and North Korea. Radical Islamist terrorists, such as ISIS, continue to threaten everything we stand for. As the chair of State, Foreign Operations, and Related Programs, and as vice chair of Defense Appropriations, I am very proud of what this bill does to ensure resources are available to counter all of these threats.

The passage of this bill ensures the United States will lead in this very dangerous world. I urge a ''yes'' vote.

Mr. VISCLOSKY. Mr. Chair, I yield 3 minutes to the gentlewoman from Ohio (Ms. KAPTUR), a member of the Defense Subcommittee.

Ms. KAPTUR. I thank Ranking Member VISCLOSKY for the time.

Mr. Chair, I, regretfully, rise in opposition to this defense bill—a bill I certainly would prefer to support. Surely, this decision is difficult because of the deep respect I hold for the chairman, Congressman FRELINGHUYSEN of New Jersey, and for Ranking Member VISCLOSKY of Indiana; but like this year's National Defense Authorization Act, this bill recklessly endangers our servicemembers by severely restricting the

financial stability, certainty, and budgeting predictability that commanders need to plan beyond next April.

Over and over, our service chiefs and secretaries have requested one thing from Congress—stability and predictability in the budget so they can properly train and equip their troops for war. ''Do your job,'' they say, ''so we can do ours.'' This bill does not fulfill our responsibilities as a Congress nor does it uphold our end of the bargain with our servicemembers and their families.

Instead, this bill replaces predictability with political posturing, and it replaces stability with budget shortsightedness. It places our national defense in a position of uncertainty after April 30 of 2017, and it proclaims neither strength nor vision. Thus, it shortchanges our troops who need it most—those engaged in the battlefield. This bill creates a funding cliff that sends a message of hesitation to both our allies and our enemies during a time when steadfast resolve is vital to our success.

Throughout my career, I have always supported our troops and our national defense. Whether honoring veterans with the World War II Memorial or pushing for energy independence to increase security at home and abroad, our commitment to protect and defend the American people has always been my top priority as a Member of Congress. However, I can't support a bill that causes a soldier who is deployed in Afghanistan or in any theater to wonder whether or not he or she is going to be paid on May 1 of 2017. I urge my colleagues to vote against this flawed and incomplete bill.

Finally, in closing, let me extend special regards to my brother, Steve, who is as courageous a fighter as I have ever known.

Mr. FRELINGHUYSEN. Mr. Chair, I yield 2 minutes to the gentleman from Texas (Mr. CARTER).

Mr. CARTER of Texas. Mr. Chair, almost a year ago today, I stood on this floor to state my disgust at this administration's plans to slash the Army by 40,000 troops and make a large, nonproportional cut to Fort Hood, in my district, which is known as the Great Place and as the home of the heavy armor of the United States Army.

These cuts would have a disastrous effect on our national security and would lead to putting our Army, in the words of Chief of Staff General Mark Milley, at high risk. This is unacceptable. As Members of Congress, it is our sworn, constitutional duty to raise and support Armies. This is why I am proud to support the FY 2017 Defense Appropriations bill, which pays for an increase of 45,000 active, guard, and reserve soldiers, including their training and equipping for war.

I thank the committee for its continued support for Operation Phalanx, which is a proven program that is aimed at protecting our southern border—of which Texas has a lot—that remains in high demand. The DOD has received a request to execute the additional FY16 hours, and I would urge the Department to immediately take action on the FY17 hours.

Mr. Chair, from the years 2011–2014, the United States cut its budget for defense by 19 percent while Russia and China increased theirs by 31 and 30 percent. Given world events and the Director of National Intelligence's assessment that he could not recall a more diverse array of challenges and crises, it is clear that the Obama administration has failed to adequately address our national security needs.

This bill before us recognizes the military's shortfalls in modernization and force readiness. It makes targeted investments to ensure that the military has the tools, training, and manpower that is necessary to maintain peace and, if necessary, to defeat any potential enemy.

I thank Chairman FRELINGHUYSEN and his staff for their hard work, and I urge the adoption of this year's Defense Appropriations bill.

Mr. VISCLOSKY. Mr. Chair, I yield such time as he may consume to the gentleman from Washington (Mr. HECK) for the purpose of colloquy.

Mr. HECK of Washington. I thank the ranking member for yielding.

Mr. Chair, I do, indeed, rise to engage the chairman of the Defense Subcommittee in a colloquy.

Mr. Chair, I express my profound gratitude to the committee for the inclusion of report language on the bill, an inclusion which notes the contributions made to our Nation's defense against digital threats by National Guard Cyber Protection Teams. The report language also expressed support for partnerships with Federal agencies, universities, and the private sector to achieve more effective training for missions like protecting the industrial control systems of critical infrastructure.

Mr. Chair, the report language refers specifically to Army National Guard Cyber Protection Teams, but as the chairman is likely aware, the Air National Guard is also leading efforts in this area. For example, the 194th Wing of the Air National Guard, which is based in the 10th Congressional District of Washington State, at Camp Murray, has several Cyber Protection Teams with demonstrated expertise in industrial control system assessment, cybersecurity remediation, and cyber mission planning.

I ask the chairman whether the language in the report that expresses support for collaborative training efforts for Army National Guard Cyber Protection Teams would also apply to the Air National Guard.

Mr. FRELINGHUYSEN. Mr. Chair, the committee recognizes the important role of the Reserve, including the Army National Guard, as well as the Air National Guard, as a flexible and ready force that contributes to our cyber preparedness.

I thank the gentleman from Washington for raising this important issue, and I look forward to working with him as we move forward with this bill.

Mr. HECK of Washington. I thank the chairman for agreeing to work with me on this critically important issue as well as for his and the ranking member's leadership on this legislation.

Mr. FRELINGHUYSEN. Mr. Chair, I yield 2 minutes to the gentleman from Georgia (Mr. GRAVES), a vital member of our Defense Appropriations Subcommittee.

Mr. GRAVES of Georgia. Mr. Chair, we are considering this critical legislation in the wake of the horrific terrorist attack in Orlando, Florida, during which 49 innocent Americans were killed and 53 were wounded by a terrorist who pledged loyalty to the Islamic State. Make no mistake—we are a Nation at war with militant Islamic terrorism, and that is why this legislation is so important. It provides our brave men and women in uniform with the resources they need to defeat the enemy.

For example, this bill includes my provision to speed the replacement of a critical radar system and aircraft known as the JSTARS. The technology which is stationed at Robins Air Force Base in Georgia significantly enhances the ability of our warplanes and other military assets to target enemy combatants while helping, at the same time, to protect our soldiers on the ground by detecting threats and allowing for better coordinated and more effective support. This bill also prevents the retirement of the A–10 Warthog aircraft, which is the most potent close air support platform in our arsenal and is a key tool in fighting the Islamic State.

Now, with more than 100,000 soldiers, sailors, marines, and airmen in Georgia—the fourth largest military population in the Nation—I am proud to support our men and women in uniform by supporting this legislation.

I thank Chairman FRELINGHUYSEN for his great work on this bill.

Mr. VISCLOSKY. Mr. Chair, I yield 2 minutes to the gentleman from New York (Mr. NADLER).

Mr. NADLER. Mr. Chair, I have long supported the Iron Dome weapons system to defend Israel from short-range missile attacks. I voted to authorize the United States to assist Israel in procuring the weapons. I voted for massive increases in funding for the Iron Dome during the summer of 2014 when Israel was under a daily barrage of missiles, and I spoke out repeatedly on the House floor in favor of fully funding the Iron Dome. I have been lucky enough to have visited Israel many times. Four years ago, I visited an Iron Dome battery in Israel. A single Iron Dome launcher can protect a medium-sized city. I am pleased that this bill includes $62 million for the program.

I have offered an amendment to provide an increase in funding of $10 million, which would be sufficient for the

procurement of an additional 500 interceptors. My amendment is designed to ensure that Israel has the means to defend itself against an increase in rocket attacks.

As we all know, Israel lives in a dangerous part of the world. Since Israel withdrew from the Gaza Strip in 2005, terrorists have fired more than 11,000 rockets into Israel. Over 5 million Israelis currently live under the threat of rocket attacks, and more than a half a million Israelis have less than 60 seconds to find shelter after a rocket is launched from Gaza into Israel.

Therefore, I offer this amendment in defense of the civilian population of Israel. I am pleased to hear that the amendment will be accepted. I thank the chairman and the ranking member.

Mr. FRELINGHUYSEN. Mr. Chair, I yield 1 minute to the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Mr. Chair, today, the Army celebrates its 241st birthday and a long, proud history of defending our great Nation. The Army and all of our military branches make up the finest fighting force in the world because of our extraordinary men and women who serve in them and because they have the tools that are necessary to carry out their missions.

□ 1715

Just days ago, we saw a tragic and horrific reminder in Orlando that we are a Nation very much at war with radical Islamic extremists. While there may be differing opinions on what steps our country can and should do to stop attacks on our homeland, there should be no daylight between all Members of this body in our commitment to ensuring our soldiers have the resources necessary to win this war.

I want to thank my friend and chairman of the Appropriations Subcommittee on Defense, RODNEY FRELINGHUYSEN, and all of my Appropriations Committee colleagues for putting together a good bill that deserves all our support.

I urge all my colleagues to vote for this bill and continue to support our men and women in uniform as they defend our great Nation.

Mr. VISCLOSKY. Mr. Chairman, I reserve the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield 2 minutes to the gentleman from Arkansas (Mr. WOMACK), a great member of the Appropriations Subcommittee on Defense.

Mr. WOMACK. Mr. Chairman, I rise in support of the fiscal year 2017 Defense Appropriations bill.

In a world that is more dangerous and more complex than ever before, it is critically important that we ensure our military remains the best trained, the best equipped, and the best supported on the planet. This bill takes the next step toward fulfilling these necessary goals.

After years of budget cuts and sequestration, we are at a point now where we can no longer ask our military to keep meeting the needs of our Nation without providing the right amount of resources.

Mr. Chairman, if we are unable to provide our troops with proper funding, I fear that very soon we will find ourselves at risk of sending our men and women in uniform into conflict without the training, equipment, or support that they need. Our brave solders, sailors, airmen, and marines deserve better. And this Defense bill does better by helping our military return to full spectrum readiness in order to properly meet the challenges our Nation is facing on all fronts and across the globe.

I urge my colleagues on both sides of the aisle to do what is right by America by doing what is right for the men and women who sacrifice so much to ensure the freedoms that we enjoy today.

Vote ''yes'' on the bill. Vote ''yes'' for a strong American military. Vote ''yes'' to send a message to all our enemies that the American military is as strong as ever and that the United States remains steadfast and capable of defending herself and her allies against those who wish to do us harm.

I thank Chairman FRELINGHUYSEN and Ranking Member VISCLOSKY for their tireless work on behalf of our Congress and on behalf of the American public.

Mr. VISCLOSKY. Mr. Chairman, I reserve the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield 2 minutes to the gentleman from Alabama (Mr. ADERHOLT), a key member of the Appropriations Subcommittee on Defense.

Mr. ADERHOLT. Mr. Chairman, since I first was elected to Congress, one of the things that I talked most directly about was the fact that if there is one thing that is so important in the Federal Government to do, it is the duty to provide for national security. The legislation that we have before us now may be the most important document that we will take up this entire year.

My colleague on the Republican side, Mr. FRELINGHUYSEN, and my colleague on the Democratic side, Mr. VISCLOSKY, both take their job very seriously. As they work on this bill, they work with great dedication and care, and it is a privilege to work with both of them, along with the committee staff, as they work forward to move this bill.

Our men and women in uniform carry out a broad spectrum of missions. Some missions are directly combat related. Some are related to rescue. And some are humanitarian missions. Health research to help our soldiers also benefits civilians of all ages and all backgrounds. This bill specifies both the base funding and also overseas contingency operations funding in a way that meets the needs to carry out all of those missions.

So I would encourage my colleagues, as we vote on this bill and as we move forward on this, to vote ''yes'' on it. We owe it to our men and women in uniform and our dedicated civil servant workforce to provide that stability and continuity and also to continue making sure that we stay the greatest and the strongest nation on the Earth.

Mr. VISCLOSKY. Mr. Chairman, I reserve the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield myself such time as I may consume.

I would like to join with Ranking Member VISCLOSKY in taking a moment to thank the hardworking and effective staff of the Appropriations Subcommittee on Defense. These are truly professional men and women who work on behalf of our national security and do remarkable things for our military that serve around the world and look after the needs of our intelligence community throughout the country and throughout the world.

Led by our clerk, Rob Blair, and our minority staff member, Becky Leggieri, the House owes both of these individuals a deep debt of gratitude for their hard work.

Along with Mr. VISCLOSKY, I also want to recognize, the work of others on the staff: Walter Hearne; Brooke Boyer; B.G. Wright; Adrienne Ramsay; Megan Milam; Allison Deters; Collin Lee; Cornell Teague; Matt Bower; the indispensable Sherry Young, who has been upstairs and downstairs at various points doing some incredible work on behalf of the committee; and Chris Bigelow.

I recognize my own staff: Nancy Fox, Steve Wilson, and Katie Hazlett. And I know that we give a shout-out to Joe DeVooght, who is dedicated to the whole process and works very closely with the ranking member.

I reserve the balance of my time.

Mr. VISCLOSKY. Mr. Chair, I appreciate the chairman's remarks and would also recognize Lucas Wood, who is on our staff as a fellow from the Department of Defense this year. Also, the chairman and I express our gratitude to the associate members of our subcommittee for each of the members of the subcommittee.

I do join with the chairman. I appreciate him enumerating the names of all of the staff.

I would suggest, given the difficult circumstances I alluded to in my opening remarks, Mr. Chairman, they legislated this year with elegance, under very difficult circumstances and the country owes them a debt of gratitude. I appreciate the chairman recognizing them.

I yield back the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield 2 minutes to the gentleman from Florida (Mr. DIAZ-BALART), a key member of the Appropriations Subcommittee on Defense.

Mr. DIAZ-BALART. Mr. Chairman, I rise in strong support of the FY17 Defense Appropriations bill. I would start, by the way, by thanking and commending the chairman of the subcommittee, Mr. FRELINGHUYSEN, not only for putting together a great bill

that recognizes the dangers that exist in this world, whether it is China and their expanding aggression around that part of the world, whether it is ISIS in the Middle East, or whether it is Russia with their aggressive nature. Wherever you look, Mr. Chairman, the world has gotten a lot more dangerous in the last number of years.

So I want to thank the chairman for putting together a bill which will increase readiness, increase the number of the Armed Forces of the United States.

I will close with this: All of those things are hugely important, and it is about time that we address them in an aggressive way like this bill does.

To the chairman of the Subcommittee on Defense, Mr. FRELINGHUYSEN, we all owe a great bit of gratitude for the way that he is treating and continues to treat the men and women in uniform, the men and women of the Armed Forces. This bill is a reflection of his passion for them.

Again, this is a great bill. We can all be very proud of what this bill does. It is about time, and I thank the chairman for his leadership.

I would ask for your favorable consideration of this bill.

The CHAIR. It is the Chair's understanding that the gentleman from Indiana has yielded back the balance of his time.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield 2 minutes to the gentleman from Florida (Mr. ROONEY), a member of the authorizing committee, the Armed Services Committee. We thank him for joining us this evening.

Mr. ROONEY of Florida. Mr. Chairman, I rise in strong support of this 2017 Defense Appropriations bill, which is another example of the Appropriations Committee's hard work to provide the funding needed to keep our country safe and to take care of our soldiers and their families.

As a veteran, as my wife is a veteran, and as somebody who has a lot of friends who are still wearing the uniform and serving, we need to take care of our soldiers, our troops, our sailors, our airmen, and marines. And this bill makes sure that we do just that. It gives them the equipment that they need to complete their mission while also providing them the peace of mind that their families will have the support that they need; that when they are also veterans, they will be taken care of.

As the Islamic State continues to grow, the constant threat of global terrorism, the nuclear-ambitious Iran, the dangers our Nation faces continues to grow, and we must stand ready to defeat them.

This bill meets our defense needs for the next year. We do need a long-term plan to ensure that the men and women in our Armed Forces have the capability to protect our Nation in this increasingly dangerous world, and this bill goes very far and is the first step in doing that.

I thank the committee and I especially thank the chairman for allowing me to speak in its favor.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield back the balance of my time.

Mr. COLE. Mr. Chair, H.R. 5293 is key to funding our country's national security programs and provides for the essential needs of our military.

Just as our military service members answer the call to defend the United States, so too should Americans always prioritize the funding they need to be successful in whatever mission they are tasked with. I am proud to support this bill and the important funding it provides for our Nation's military, security, and our courageous men and women in uniform.

This bill makes difficult budgetary choices but includes funding for safety, security, and the ongoing success of our service members and their families. Our armed forces will stay prepared, safe and trained to fight.

The legislation addresses not only current threats but instability in the Middle East, Russian aggression in the Ukraine and Baltic, and changing relationships in the Pacific.

Specifically, the bill provides $517.1 billion, an increase of $3 billion above last year's level, and $58.6 billion in Overseas Contingency Operations (OCO Global War on Terrorism (GWOT) funding—the level allowed under current law.

$219 billion is included for operations and maintenance, which provides for readiness programs that prepare our troops for combat and peacetime missions.

An effective military, one that is well equipped and well trained, is indispensable to the common defense of our country and is in the best interest of all Americans.

I thank the Chairman for his outstanding leadership, appreciate the Ranking member's common commitment to work in a bipartisan manner and fund our military and intelligence community as they remain engaged in responding to instability abroad.

I has perhaps never been more urgent to invest in the future of our military and renew our ability to project power.

The funding levels in this bill will ensure our military remains the most capable, prepared, and exceptional armed force anywhere in the world.

The CHAIR. All time for general debate has expired.

Mr. FRELINGHUYSEN. Mr. Chair, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. MOOLENAAR) having assumed the chair, Mr. DUNCAN of Tennessee, Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 5293) making appropriations for the Department of Defense for the fiscal year ending September 30, 2017, and for other purposes, had come to no resolution thereon.

## AGREEMENT FOR COOPERATION BETWEEN THE GOVERNMENT OF THE UNITED STATES OF AMERICA AND THE GOVERNMENT OF THE KINGDOM OF NORWAY CONCERNING PEACEFUL USES OF NUCLEAR ENERGY—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 114–142)

The SPEAKER pro tempore laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Foreign Affairs and ordered to be printed:

*To the Congress of the United States:*

I am pleased to transmit to the Congress, pursuant to sections 123 b. and 123 d. of the Atomic Energy Act of 1954, as amended (42 U.S.C. 2153(b), (d)) (the ''Act''), the text of a proposed Agreement for Cooperation Between the Government of the United States of America and the Government of the Kingdom of Norway Concerning Peaceful Uses of Nuclear Energy (the ''Agreement''). I am also pleased to transmit my written approval, authorization, and determination concerning the Agreement, and an unclassified Nuclear Proliferation Assessment Statement (NPAS) concerning the proposed Agreement. (In accordance with section 123 of the Act, as amended by Title XII of the Foreign Affairs Reform and Restructuring Act of 1998 (Public Law 105–277), a classified annex to the NPAS, prepared by the Secretary of State, in consultation with the Director of National Intelligence, summarizing relevant classified information, will be submitted to the Congress separately.) The joint memorandum submitted to me by the Secretaries of State and Energy and a letter from the Chairman of the Nuclear Regulatory Commission stating the views of the Commission are also enclosed. An addendum to the NPAS containing a comprehensive analysis of Norway's export control system with respect to nuclear-related matters, including interactions with other countries of proliferation concern and the actual or suspected nuclear, dual-use, or missile-related transfers to such countries, pursuant to section 102A(w) of the National Security Act of 1947 (50 U.S.C. 3024(w)), is being submitted separately by the Director of National Intelligence.

The proposed Agreement has been negotiated in accordance with the Act and other applicable law. In my judgment, it meets all applicable statutory requirements and will advance the nonproliferation and other foreign policy interests of the United States.

The proposed Agreement contains all the provisions required by section 123 a. of the Act, and provides a comprehensive framework for peaceful nuclear cooperation with Norway based on a mutual commitment to nuclear nonproliferation. It would permit the transfer of unclassified information,

material, equipment (including reactors), and components for nuclear research and nuclear power production. Norway has no nuclear power program, and no current plans for establishing one, but the proposed Agreement would facilitate cooperation on such a program if Norway's plans change in the future. Norway does have an active nuclear research program and the focus of cooperation under the proposed Agreement, as under the previous agreement, is expected to be in the area of nuclear research. The proposed Agreement would not permit transfers of Restricted Data, sensitive nuclear technology, sensitive nuclear facilities or major critical components of such facilities.

The proposed Agreement would provide advance, long-term (programmatic) consent to Norway for the retransfer for storage or reprocessing of irradiated nuclear material (spent fuel) subject to the Agreement to France, the United Kingdom, or other countries or destinations as may be agreed upon in writing. The United States has given similar advance consent to various other partners, including to Norway under the previous U.S.-Norway Peaceful Nuclear Cooperation Agreement that was in force from 1984 to 2014. The proposed Agreement would give the United States the option to revoke the advance consent if it considers that it cannot be continued without a significant increase of the risk of proliferation or without jeopardizing national security.

The proposed Agreement will have a term of 30 years from the date of its entry into force, unless terminated by either party on 1 year's advance written notice. In the event of termination or expiration of the proposed Agreement, key nonproliferation conditions and controls will continue in effect as long as any material, equipment, or component subject to the proposed Agreement remains in the territory of the party concerned or under its jurisdiction or control anywhere, or until such time as the parties agree that such items are no longer usable for any nuclear activity relevant from the point of view of safeguards.

Norway is a non-nuclear-weapon State party to the Treaty on the Non-Proliferation of Nuclear Weapons (NPT). Norway has concluded a safeguards agreement and additional protocol with the International Atomic Energy Agency. Norway is a party to the Convention on the Physical Protection of Nuclear Material, which establishes international standards of physical protection for the use, storage, and transport of nuclear material. It is also a member of the Nuclear Suppliers Group, whose non-legally binding guidelines set forth standards for the responsible export of nuclear commodities for peaceful use. A more detailed discussion of Norway's domestic civil nuclear activities and its nuclear nonproliferation policies and practices is provided in the NPAS and the NPAS classified annex submitted to the Congress separately.

I have considered the views and recommendations of the interested departments and agencies in reviewing the proposed Agreement and have determined that its performance will promote, and will not constitute an unreasonable risk to, the common defense and security. Accordingly, I have approved the proposed Agreement and authorized its execution and urge that the Congress give it favorable consideration.

This transmission shall constitute a submittal for purposes of both sections 123 b. and 123 d. of the Act. My Administration is prepared to begin immediately consultations with the Senate Foreign Relations Committee and the House Foreign Affairs Committee as provided in section 123 b. Upon completion of the 30 days of continuous session review provided for in section 123 b., the 60 days of continuous session review provided for in section 123 d. shall commence.

BARACK OBAMA.
THE WHITE HOUSE, *June 14, 2016*.

□ 1730

## GOVERNMENT OVERREACH ON SMALL BUSINESSES

(Mr. CRAMER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CRAMER. Mr. Speaker, in the last few months more than 175 Members of Congress from both parties and both Chambers have expressed concerns about the FCC's proposed set-top box rules. Even the Small Business Administration has weighed in with concerns about how these rules could burden small operators.

Last month, the gentleman from Oregon (Mr. SCHRADER) and I authored a bipartisan letter signed by 59 of our colleagues that says, in part: ''the proposal threatens the economic welfare of small pay-TV companies providing both vital communications services to rural areas and competitive alternatives to consumers in urban markets.''

Mr. Speaker, if continued innovation in the video industry is the goal, then this proposed rule is the wrong direction. In fact, it is estimated that this rule could cost up to a million dollars or more per system. Now, a million dollars may not be a lot to a big company, but to most of the companies in rural North Dakota, it could be the difference between staying in business or going out of business.

I also have strong concerns that the proposed rules are outside the Commission's legal authority. Instead of getting into another lengthy legal battle with Congress, I urge Chairman Wheeler and the FCC to drop these proposed rules because of the harm it could inflict on small rural operators.

## NATIONAL RURAL ELECTRIC COOPERATIVE YOUTH TOUR

(Mr. ROKITA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROKITA. Mr. Speaker, I rise today to recognize more than 1,800 youth from 47 States across America visiting our Nation's Capital this week as part of the National Rural Electric Cooperative Youth Tour. This trip is a tradition that has continued for over 50 years.

Mr. Speaker, the goal of the tour is to bring together students from all walks of life to attend meetings with their Senators and Representatives to ask us questions and witness the legislative process firsthand. I just came from a meeting with those from Indiana, and they had excellent questions of me, and we had a great discussion.

These students are all sponsored by a local electric cooperative in which the student is a member or an associate member. This year, 34 of Indiana's 38 electric cooperatives have sponsored a total of 82 students for the trip. I am proud that many of them reside in my district.

I want to thank America's electric cooperatives, and specifically those from Indiana, for working with the National Rural Electric Cooperative Association to support and sponsor this opportunity for the next generation of young leaders.

## EQUAL RIGHTS FOR ALL

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Texas (Mr. AL GREEN) is recognized for 60 minutes as the designee of the minority leader.

Mr. AL GREEN of Texas. Mr. Speaker, I would like to thank the leadership on both sides of the aisle for extending the time tonight. I am very grateful to the staffs who have helped us with the preparation for this evening's activities.

Mr. Speaker, I am honored to be here this evening for many reasons. One of the reasons has to do with today being a very special day. Today is Flag Day. Flag Day is a day for us to honor the flag of the United States of America, which is one of the reasons I am wearing my flag tie. I want people to know that I am proud to be an American, and I am proud to honor the flag and to salute the flag. Flag Day is a date that we honor the flag for its adoption back on June 14, 1777.

I say the Pledge of Allegiance to the flag, and I say it proudly. I say it proudly because it means something to me—each word means something to me—to pledge allegiance to the flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

''With liberty and justice for all'' are words of great importance tonight, and

they are important because of some circumstances that have occurred in other parts of our country. We have had some tragic circumstances to befall some persons in Florida. I was reared in Florida. I went to Florida A&M University. I went to elementary school and high school in Florida.

Florida means something to me, but the people there are most important, because the people of Florida are people of goodwill, people who mean well, people who enjoy themselves. Florida is a vacation spot, if you will. Because so many people come there to vacation, it is expected that they would have the opportunity to enjoy themselves, to go out and be a part of the nightlife. We have Disney World in Florida, many attractions to attract people from around the country to Florida.

Unfortunately, some things have happened there recently that are going to cause us to pause for a moment as we, tonight, will celebrate, to a certain extent, commemorate, LGBT Pride Month. LGBT Pride Month, celebrate and commemorate this month. But we will also memorialize some of the things that have happened in terms of lives that have been lost.

I am proud tonight to note that there will be a Member joining me who has had some circumstances occur in his State that he will call to our attention that will have to be memorialized, and persons will have to be remembered for the services that they have given, but also because they lost their lives.

I am proud to ask my colleague to come over now, the Honorable JIM CLYBURN, and ask him to give his comments. He is a leader in this Congress. He is a person who stands for justice for all, as is indicated in the flag, ''liberty and justice for all.'' He stands for this.

After the incident that took place in Mr. CLYBURN's State, I remember a lady who lost her child indicating at the probable cause hearing, ''I forgive you. I forgive you,'' speaking to the person who had committed this deed. ''I forgive you.'' She lost her child, but she forgave. But I believe that people who forgive still have an expectation that things will be done. Mr. CLYBURN, I am proud to say, is one who has legislation that can be of benefit to all. Not to some, but to all.

I am proud to yield the floor now to our leader, the Honorable JIM CLYBURN.

Mr. CLYBURN. Mr. Speaker, I thank Mr. GREEN for yielding to me.

Mr. Speaker, on Friday, June 17, we will commemorate the first anniversary of what I like to refer to as the Charleston 12. Nine people lost their lives that night at the Emanuel AME Church, but three people survived: two by playing dead and a third because the murderer went over to her and said: I am going to spare you so you can carry the message.

This young man who perpetrated this act did so after doing some significant research. We know that he went on the Internet, and he found the historic church that he thought would be the proper place to start, in his words, a race war. This young man was able to purchase a weapon that he did not qualify to purchase.

Under our laws, he was to be subjected to a background check, and he was; except that our law has created a loophole that says, though there is a 3-day waiting period that the background check should take place, if at the expiration of the 3 days the background check is not completed, then you can purchase the weapon.

Well, 3 days after he started the purchase, the background check was not completed. Why? Somebody keyed in or gave the wrong information.

Let's just think about this for a moment. A person knowing what the law is could very well give erroneous information knowing that it might take more than the 3 days for anybody to find the error. They found the error, but 3 days had expired. I have no idea whether or not this young man did this or whether or not the seller entered the wrong information.

There are two cities that border one river with a short bridge between the two: West Columbia and Columbia. This gun was purchased in West Columbia, but, as I understand it, the seller keyed in Columbia, and so the error was not found until too late.

I have proposed legislation here to close what has become known as the Charleston loophole by saying the purchase cannot be completed until the background check is completed. If it takes 3 days, fine. If it takes 1 day, that is fine. But it may take 4 or 5 days or may even be 10 days if the wrong information is keyed in.

So I don't understand why this commonsense piece of legislation cannot be brought to this floor so we can vote to close that loophole or attempt to close the loophole. I think it is time for us to go on record.

Now, Mr. Speaker, I grew up in South Carolina. I was a part of the movement that started back in the late 1950s and early 1960s that a lot of people have called the student movement. I was a part, along with JOHN LEWIS, a Member of this body, of the first and second organizing meetings of what became known as the Student Nonviolent Coordinating Committee.

I still remember my first meeting with Martin Luther King, Jr., October 1960, the same weekend that I met JOHN LEWIS for the first time. I spent that evening that I met Dr. King, I was with him until around 4, 4:30 the next morning. I started reading and studying everything I possibly could about Dr. King. I believe, of all of his speeches, of all of his writings, the one thing that stands out to me more than any other is his letter from the Birmingham City Jail.

□ 1745

It is an iconic document; a timely document, in my opinion. Dr. King wrote his letter from that jail in response to a letter that he had received from 8 White clergymen who called upon him to leave Birmingham because they thought his being there was disruptive.

In the letter to Dr. King, they said to him: We want you to understand, Dr. King, we believe that your cause is right, but your timing is wrong.

In responding to them, Dr. King said: Time is neutral. Time is never right; time is never wrong. Time is always what we make it.

Dr. King continued that thought by saying he was coming to the conclusion that the people of ill will in our society make a much better use of time than the people of good will. He closed that particular thought by saying that we are going to be made to repent not just for the vitriolic words and deeds of bad people, but for the appalling silence of good people.

We are suffering today because some real good people in this House are remaining silent when events cry out for our attention. We should not be ignoring these issues that lead to incidents like the one that occurred at Emanuel AME Church. We should not be silent after things like Sandy Hook. And we should not be silent today, after experiencing what we have earlier this week in Orlando, Florida.

I think that the more we look into this, we see that this is not about ISIS or any foreign terrorists. All of that, it seems to me, from what I have read, is to camouflage something else. And that is, in my opinion, this was, in fact, a hate crime. It certainly shows from the evidence that this young man who perpetrated this act hated a lot of the people he was around, and maybe even himself.

So I believe that the time has come for us to break our silence in this House. The LGBT community cries out for our involvement. This incident highlights what we ought to be doing to show our respect for that community as well as our respect for the rule of law.

Mr. AL GREEN of Texas. Mr. CLYBURN, before you step away, with reference to the letter from the Birmingham jail, which I agree with you, is one of the greatest literary works that I have had an opportunity to read, it becomes especially important when you understand how Dr. King actually produced it. He did not have a library. He did not have persons to assist him. It is my understanding that he was able to slip notes out to people who would come and visit him, and they compiled these notes into the letter.

I want to mention this. Those clergy people that you talk about, in that letter that they wrote, if you read it first, you will see a line of logic that many people abide with, that many people of that time and this time would find very reasonable. It is after you get into Dr. King's message where he dissects each and every point that they make one by one by one that you realize that there is something not only special

about Dr. King—and there is something very special about him—but that this was a seminal moment in time.

It was a seminal moment in time in that Dr. King was educating all of us in the eons to come about the evils of bigotry and hatred. Those warnings that he gave us and the lessons, he takes us back into Biblical Scriptures about those who, at that time in the biblical days, were considered outside educators. No one is an outside educator if you come for righteous reasons.

So I am mentioning this to you because I have a great appreciation for that letter as well, and I am pleased that you brought it up.

As you know, tonight our theme is: You are not alone. I greatly appreciate what you have said about the LGBTQ community, because we want them to know they are not alone. We are allies, we are friends. We are people on whom they depend. And we do so because of a debt we owe, to a certain extent. We didn't get here by ourselves. Someone suffered and sacrificed so that we could have this opportunity to stand in the Congress of the United States of America, and indeed to breathe the breath of freedom we have because of others. And they are not alone. I appreciate what you have said about the LGBTQ community. If you have additional commentary, I would welcome it.

Mr. CLYBURN. I appreciate that. I do have something I would like to say on that. Dr. King was sitting in jail in Birmingham, Alabama, because he found some injustices there. In fact, in the letter, he said—in responding to those ministers—that a threat to justice anywhere is a threat to justice everywhere. And I think that Dr. King, if he were here today, would be speaking out about the threat to justice that the LGBTQ community is now experiencing. I do want the people of that community to know that they are not alone. I do believe that we should all respect human beings.

If I may? I thought as you were speaking, Dr. King, in his letter, talked about those who carried the gospel and how they were vilified. I thought about, I believe it is the 11th chapter in the Book of Second Corinthians, Paul, in his writings, talked about all that he had endured—the beatings, the jailings that he had endured—trying to spread the gospel.

I thought about those badges of honor—the jailings that Dr. King, JOHN LEWIS, and many others endured. I had a few sentences myself, but I thought about that, and these are, in fact, badges of honor.

So I want the people of the LGBT community to know that they are not alone in their trials and tribulations, and that at some point in, hopefully, the not too distant future, the good people in this body will rise up and break their silence.

Mr. AL GREEN of Texas. I will add to what you have just said, Mr. CLYBURN. When you are not alone and you have some people to show up, it means something. But there are people who believe that everybody has to show up for something significant to occur. This would take us to the eighth chapter of the Book of Judges and a man named Gideon.

The evidence has shown us—you and I, Mr. CLYBURN—that there are times when you can have too many people to get a job done. You don't have to have everybody to have the genesis of a movement. You don't have to have every person in Congress to sign onto something to have that become the genesis of the movement.

If you get enough people to sign on, what you have can be heard in this Congress. And that is called a discharge petition. There are some pieces of legislation right now that are pending with discharge possibilities.

What we have to do is take a few people, just as Gideon did; make enough noise, as he did; have a righteous cause, as he did; have a means of weeding out some of the people who may not be ready for the work that has to be done, and then work with those who are ready to work.

I believe that we can do great things in this Congress, understanding that we don't have to have everyone on board to have the genesis of a great movement.

Mr. CLYBURN. I agree. Of course, having served as the majority whip in this body, all it takes is 218. I do believe that there are 218 good people in this body who will vote for these—especially these three pieces of legislation dealing with what I call commonsense, good gun policy.

The fact of the matter is that all of us believe in the Constitution of these United States. It is the glue that holds us together as a country, as a people. The fact of the matter is the Constitution—our right to the Constitution—is not unbridled.

I am often amused to hear people talk about our First Amendment rights to free speech and to peaceably assemble. Those of us back in the sixties lived and died advocating the First Amendment, but the fact of the matter is our rights under the First Amendment are not unbridled. The Supreme Court has spoken to that with the famous phrase: your First Amendment rights will not give you the right to yell ''fire'' in a crowded theater.

That means that the First Amendment is not unbridled.

Why is it, then, that we can't look at the fact that the Second Amendment rights that we have to bear arms, we are not taking that right away when we say the background check should be completed?

Maybe we will turn up that you are mentally incompetent to have a weapon. Maybe we will find that you at one time, if not another, are on this no-fly list.

One piece of legislation we have here deals with it. No fly, no buy. Anyone on the no-fly list, to me, ought not be able to get a firearm. If you are suspicious enough as to pose a threat and be on that list, I don't think you ought to be getting a firearm. If you have been convicted of a hate crime, which is another piece of legislation here, you ought not to be able to buy a gun.

Those are commonsense policies that ought to be put into law. And for us to lay prone at the altar of the NRA and not allow just simple, good faith bills to come to this floor, I don't quite understand that. I don't think that the American people will continue to be kind to us if we do not step up and do what is necessary to protect them.

Those 49 people who lost their lives in that nightclub in Orlando are deserving of a Congress that will protect them. Also, those nine lives at the Emanuel AME Church. If we had stepped up and not put that loophole in this law, they would have been protected. I am convinced from all that I have seen that those people would still be alive today if that loophole were not in the law.

□ 1800

Mr. AL GREEN of Texas. Mr. Speaker, the bill that you speak of, Mr. CLYBURN, H.R. 4063, that is Mr. CICILLINE's bill, the Hate Crimes Prevention Act; and that merely says, if you have been convicted of vandalizing a place of worship or assaulting someone based on their race, their religion, their gender, their sexual orientation, their gender identity or disability, then you ought not be able to buy a weapon.

Who believes that persons who have been convicted of these offenses ought to be able to buy weapons? If you believe that they should, then I am going to respect your opinion, but we ought to be able to debate those opinions on the floor of the United States Congress.

We don't have to win the vote. The people of this country expect us to at least do that, however. They expect us to vote. And what Mr. CLYBURN is saying, and what many others have been saying, the clarion call, the hue and cry, is let's have a vote and let's have a debate. Let the debate precede the vote. Let us make some comments about these bills, and let's let the American people have an opportunity to judge why each of us holds a position with reference to this kind of legislation. That is not asking too much.

I respect my friends who have opinions different from mine. I don't, in any way, badger people who have opinions that are different from my opinions. But I do respect people even more when they are willing to stand in the well of the Congress of the United States of America and state their position and allow others to state theirs. And then, afterwards, have that vote, and let's let the American people know where the Congress stands, based upon empirical evidence and based upon arguments that have been presented, so that people can get a greater understanding and get greater clarity.

Another of the bills is the one that you have, Mr. CLYBURN, H.R. 3051, the

Background Check Completion Act. ''Completion,'' that is the operative word. Completion Act. Let the background check be completed before a person buys a firearm.

Now, if you differ with this, okay. Then let's bring this to the floor, state your difference, and let the American people know how we stand, where we stand, and then have a vote. That will make a difference for everybody in this country because people will know that the Congress of the United States is functional. There are many who believe that we are not functioning right now.

The final of the three that the gentleman mentioned is H.R. 1076. This is denying firearms and explosives to dangerous terrorists. Now, this is a bill that is being sponsored by the Honorable PETER KING. He is a Republican.

So the point to be made is that we have bipartisan legislation that can't get to the floor for a debate and then a vote. That is what we believe ought to happen. There ought to be a debate and a vote on these pieces of legislation that deal with what we believe to be legislation that can save some lives. It won't save all lives, no legislation will, but it can save some lives.

Well, someone would say that is not enough. One life is enough, to be quite honest with you. One life is enough. And to lose any life because we haven't acted is to lose too many.

At the end of the day, after having lost 49 lives in Orlando, do we want it said that after all was said and done, more was said than done? Or nothing was done and all was said? Is that what we want our legacy to be, that we did not act on pending legislation that could have made a difference for the people of the Nation?

Surely, asking for a vote, asking for debate, asking for an opportunity to be heard is not asking too much.

Mr. Speaker, I yield to the gentleman from South Carolina (Mr. CLYBURN) if he has further commentary.

Mr. CLYBURN. Well, I think the gentleman has summarized this adequately and, I think, appropriately.

Mr. AL GREEN of Texas. Mr. Speaker, I am so honored tonight to mention again that this is a resolution that we have on the floor, H. Res. 772. This is the LGBTQ Pride Month legislation, and I am honored that it is on this day, which is Flag Day, because the flag speaks to liberty and justice for all—not liberty and justice for some, not liberty and justice for some of a certain hue, not liberty and justice for some of a certain religion, but, rather, liberty and justice for all, regardless of your race, your creed, your color, your sexuality, liberty and justice for all, regardless of your religious affiliation—liberty and justice for all.

I assure you that the American people expect no less than what we pledge allegiance to, the flag of the United States of America. So I am honored tonight that we have this resolution.

This resolution is one that speaks to the accomplishments and the successes of the LGBTQ community. And there are accomplishments and successes that we should mention, notwithstanding the circumstance that we are, unfortunately, having to deal with at this time. There are these accomplishments and these successes. Let me just name a few of them as we move along.

First, I would like to mention the passage of the Matthew Shepard and James Byrd Jr. Hate Crimes Prevention Act, a significant piece of legislation, a great success for America. However, the beneficiaries are persons who are discriminated against, who are harmed because of who they are.

People do that in this country. We have people who will hurt you and take your life, as has been evidenced recently, because of who you are.

This Congress took action and passed this law to say that, if you do this, whatever the punishment was, we will enhance it. We will make this punishment greater because you ought not target people because of who they are.

Someone would say, well, why would we want to enhance the punishment for this reason?

Here is the response. Here is the retort. Because we do it if you are a person in a blue uniform. You hurt a peace officer in the State of Texas, because he or she is a peace officer, your punishment is going to be enhanced.

There is nothing wrong with that. I celebrate that. That is why I celebrate the passage of this piece of legislation, the Matthew Shepherd and James Byrd Hate Crime Prevention Act. This is an accomplishment that the LGBTQ community as well as other communities and all should celebrate.

Of course, there is Don't Ask, Don't Tell. Can you imagine, as a heterosexual person, having to hide who you are every day of your life, having to be incognito in a sense, under an assumed identity, cannot be authentic, cannot be yourself? Can you imagine what that would be like?

That's what Don't Ask, Don't Tell was all about, asking people to hide your identity. Don't tell anybody who you are. And if you don't tell anybody who you are, we will let you die for the country. We will let you go into harm's way and die as long as you won't tell people who you are.

And I thank President Obama. When we eliminated Don't Ask, Don't Tell, we liberated a lot of people. One in particular that I am sure felt liberation was the Honorable Eric Fanning, because he now is the first openly gay Secretary of the Army.

Can you imagine how many persons with talents that could have benefited our country were overlooked as a result of Don't Ask, Don't Tell?

Some people refused to participate in that kind of system. So I am proud that this country has stepped away from this, because every person ought to be allowed to be himself or herself.

Every person was created by the same Creator. We know the Creator by many names, but by any name, the Creator is the one that created all that is and ever shall be. And each one of us is a creation of the Creator of the universe, and we all should be proud of who we are because we all owe allegiance to the same Creator.

I am proud to announce that 2012 was the first year that all 50 States had at least one LGBTQ elected official.

I remember many years ago, as an African American, how proud I was when I could read annually that we had persons who were getting elected across the country to various positions who were of African ancestry. I was so proud that they were getting elected because I knew that we were making progress; I knew that there was a certain amount of acceptance taking place.

This is what is happening with the LGBTQ community by having elected officials in all 50 States who can say ''I am proud to be who I am,'' who can be authentic.

This is what America is all about, liberty and justice for all, pledge of allegiance to the flag, Flag Day. That is what this is all about: this country honoring who you are, letting you succeed on your merits and fail on your demerits, not based upon who you are.

Unfortunately, I will tell you this, there are still some places in this country where members of the LGBTQ community are discriminated against openly and notoriously. Twenty-eight States still allow someone to be fired for being gay—for that alone. Show up and tell, show up and don't pretend, show up with a friend, and you could be fired in 28 States in this country.

I think that, among all of the legislation that we talk about, this is something that the Congress ought to address. No one should be fired because of who you are, because of what God has made you. You ought not be fired for that.

In 30 States, you can be fired for being a transgender person. In 28 States, you don't have protections for sexuality under housing discrimination laws, meaning, if someone believes or concludes or has evidence that you are a part of the LGBTQ community, then you can be discriminated against in housing.

Is that the way a great country that I love, that has the notion of liberty and justice for all in the pledge of allegiance behaves? Do we allow this to continue?

America stands for justice, stands for liberty, and it stands for it for all. It is time for us to extend all of the liberty and justice that I and others might have to the members of the LGBTQ community.

I am an ally of this community, and because I am an ally, I am proud that the Supreme Court decided that marriage between same-sex couples should take place.

The Constitution of the United States of America was not written for heterosexuals only. The 14th Amendment applies to people, not to sexuality. The 14th Amendment and the

Constitution is something that is precious for all of us, and the Supreme Court has so said that these marriages between couples of the same sex have to be recognized and the licenses have to be issued. This is what allies of the LGBTQ community will call to the attention of persons on occasions such as this.

I am also proud to tell you that we who are allies of the LGBTQ community are of the opinion that we can make some of these changes. We know that we can make these changes because we have done so before. We have passed legislation after horrific events in this country. Because we have done it before, we can do it again; because we did it with the Civil Rights Act of 1968. It took us 7 days in the Congress of the United States of America to pass the Civil Rights Act of 1968 after the assassination of Dr. King.

We had 49 people assassinated in Orlando, Florida. Something can be done.

People, some would say: Well, what can be done? That is what we can debate on the floor of the Congress. Let's debate it. Rather than conclude that whatever is said is wrong and you don't deserve a hearing because what you have said is wrong, let's debate it.

We have bills to come before this Congress that we vote up and down on a daily basis. We vote them up or we vote them down. Why not have regular order apply to hate crime legislation? Why not have regular order apply to gun safety legislation? Not gun control—I don't buy into that terminology—gun safety.

But if you think otherwise, then come to the floor, stand in the well, and state your position so that all can hear.

□ 1815

The Gun Control Act of 1968 passed after the assassinations of President Kennedy, Dr. King, and Robert Kennedy. That legislation, I am sure, could have passed at other times, but it didn't. It was after a horrific act, or horrific acts, that it passed.

I think that these lives were important. But the lives of the 49 people who died at Orlando are just as important as these lives that I call to your attention. Every life is precious. We should not allow ourselves to wait until it happens to be somebody that we perceive as being somebody. We ought not have to wait until someone who happens to hold public trust is harmed before we decide we are going to do something.

Every person who is in this country is under the protection of the Constitution of the United States of America. We can debate our issues, but we ought to at least bring them to the floor and let's have a vote on them. I will accept, by the way, the vote. I always do. But I don't accept the notion that you can never have a vote on something because someone else happens to think that it is not worthy of voting on.

I think all opinions have some value, and I think whether bills are presented by the Democrats or the Republicans, they are bills that have merit and bills that ought to receive consideration. Let them go through regular order. Let them come to this floor, and let's debate them.

Of course, the one that many people will remember is the Brady Handgun Violence Prevention Act of 1994. This was passed following the shooting of President Ronald Reagan.

By the way, I am pleased that we passed all of these things. I believe that we did the right thing. Someone might argue that we could have passed this without the shooting of President Reagan. Thank God the person who attempted to assassinate him was not successful. I am so grateful that he was able to live and serve out his Presidency. But that shooting, that act alone, allowed this Congress to act. It is a known fact that you cannot have an act of Congress if you don't have a Congress willing to act. I am grateful that the Congress was willing to act after the shooting of a President of the United States.

So, because we have done it before, I am convinced that we can do it again, and I am convinced that we should do it again. I believe that this is a seminal moment in time. We have these seminal moments in time—seminal moments, moments that impact all time.

Rosa Parks, when she took that seat, ignited a spark that started a human rights-civil rights movement. That was a seminal moment in time. But there were also people who helped her at that time, which is one of the reasons why we come to the floor tonight, because we are allies of the LGBTQ community.

The African American community at that time had allies. We had people who were willing to stand up for us and stand up with us. When Rosa Parks went to jail, there were people who came to post her bond. The people who bailed Rosa Parks out of jail: Mr. Nixon was African American, but Mr. and Mrs. Durr were not. Mr. and Mrs. Durr were people of goodwill who understood that an injustice was taking place. In fact, Mr. Clifford Durr was a lawyer, and his wife was a noted person in the community. The people who posted the bail to get Rosa Parks out of jail were not all of African ancestry.

So we all have a debt that we owe. I am grateful to Rosa Parks. I wouldn't be here but for the efforts of the Rosa Parks of the world. So I have to repay that debt, and tonight I stand here to give an additional down payment on the debt that I owe that allowed me to be a part of the Congress of the United States of America.

There was the crossing of the Edmund Pettus Bridge on what was known as Bloody Sunday. Many people lost blood at the Edmund Pettus Bridge. If you haven't been to the Edmund Pettus Bridge, I would invite you to go. Every person ought to see the Edmund Pettus Bridge, because if you can see the Edmund Pettus Bridge, you will understand the level of angst and consternation that persons marching forward had to have as they were going up, knowing that on the other side was the constabulary prepared to do whatever was necessary to force them to go back to their starting point and not to proceed with the march.

Many of the people there with Congressman JOHN LEWIS, who said he thought he was going to die, were not African Americans. There were people of all hues at the Edmund Pettus Bridge there to see that justice was done. I owe a debt to the people who were willing to cross the Edmund Pettus Bridge on that fateful day.

I come to the floor tonight because I understand that I owe this debt. I believe that we owe a debt to those who have made it possible for us to be here, regardless of our hue. And believe me, regardless as to who you are, you owe a debt too. It may be to Patrick Henry: ''Give me liberty or give me death.'' It can be to any number of the Founding Fathers. But you owe a debt to people who made it possible for us to be here in the Congress of the United States of America and to have the liberties and freedoms that we have in this country. We ought to repay the debt so that we can pass on to others what has been passed on to us: a greater sense of freedom and a greater sense of belonging in the greatest country in the world.

I am honored to tell you tonight that this resolution will not pass. I am honored to tell you this, that it will not pass this Congress. But I must be quite candid and tell you that we rarely pass any resolutions in Congress now. So I want to be fair to my friends who are in leadership to let them know that I respect the fact that any resolution, not just this one, would probably get the same results.

But I do believe this: I am honored to tell you that it will pass some Congress. I hope I am here to see it pass. I hope I am here to cast my vote that will have it pass the Congress, that will give it a chance to be heard, and that will let people debate the issues of our time as they relate to this resolution. I hope I am here.

But whether I am here or not, I believe that, at some point, we will look back through the vista of time, and we will reflect upon this time. We will ask ourselves: Who was there? Who was there to stand up for people other than themselves? I want the record to reflect that there were a good many people of goodwill who said to the LGBTQ community: You are not alone. You are not alone. We are with you. We will stand with you, and we will fight injustice with you.

In the end, as Dr. King put it, ''though the arc of the moral universe may be long''—the arc of the moral universe may be long—''it bends toward justice.'' We will bend the arc of the moral universe toward justice. There will be justice for the LGBTQ community.

Mr. Speaker, in addition to the comments that I have given tonight, I have

a statement that I will be submitting for the RECORD, a statement that speaks to the tragic circumstances that occurred in Orlando, Florida. I will be submitting this for the RECORD because I want the RECORD to show that I, along with many of my friends, took a stand.

By the way, many of my friends who are taking a stand are Republicans. Many of my friends who are taking a stand are conservatives, and many of my friends who are taking a stand are persons of goodwill who happen to be Muslims.

By the way, the Muslim community in Houston, Texas, took a stand at the iftar that I attended. The Honorable M. J. Khan, former city council member, was loud and clear. He explained that the Muslim community respects the LGBTQ community, supports that community, and wants to fight for the community to have justice.

Also, I would add that Saeed Sheikh Muhammad was there. He too made similar commentary. So there are persons across the spectrum who are supporting the LGBTQ community. I respect all of these persons, and I appreciate them for what they are doing. I want my statement to reflect that there are those of us who came together and said to the LGBTQ community: You are not alone.

Mr. Speaker, you have been more than generous. I greatly appreciate it. I want to thank my colleague who appeared. I want to thank the many colleagues who could not appear because of circumstances associated with an event that is taking place tonight. But I know that their hearts are here, and I know that they will do what they can at an appropriate time to make sure that the LGBTQ community understands and knows that the community is not alone.

Mr. Speaker, I yield back the balance of my time.

## CELEBRATING THE CENTENNIAL ANNIVERSARY OF FARM CREDIT

The SPEAKER pro tempore (Mr. KNIGHT). Under the Speaker's announced policy of January 6, 2015, the gentleman from Georgia (Mr. AUSTIN SCOTT) is recognized for 60 minutes as the designee of the majority leader.

GENERAL LEAVE

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous materials on the subject of this Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, I rise today to recognize Farm Credit's 100th anniversary of supporting our rural communities and providing reliable credit to those in the agricultural industry throughout our country.

Throughout this Congress, as the chairman of the House Agriculture Committee's Subcommittee on Commodity Exchanges, Energy, and Credit, I have worked with Farm Credit extensively. These interactions have reaffirmed what I already knew: the Farm Credit system is made up of dedicated Americans who understand the needs and champion the values of rural America.

I am honored to represent Georgia's Eighth Congressional District, most of which is farmland. A good portion of my constituents are farmers themselves or have family and friends who farm. Georgia's Eighth District is home to roughly 15 percent of Farm Credit borrowers in the State of Georgia. I myself come from an agricultural background, as both sets of my grandparents were farmers.

Farm Credit has met the credit needs of many of my constituents and maintains an active presence in south and middle Georgia, where we are leaders in Georgia's agricultural production. For a century, Farm Credit has been providing our farmers, ranchers, and rural communities with the capital they need to build and grow successfully.

The centennial anniversary coincides with a time when our agricultural industry is facing significant economic challenges. In the past few years, our farmers and rural communities have been faced with lower commodity prices, increased input costs, and unstable and inconsistent international markets, all of which are placing strains on our food producers and those who provide essential services to our agricultural industry. This not only affects the producers and manufacturers, but it also has a tremendous effect on the communities in which they live and work.

A strong agricultural economy is essential to the health and vitality of the communities I represent in 24 counties across south and middle Georgia. During times like this, farmers in rural communities depend on Farm Credit, whose mission is focused on helping rural communities and agriculture grow and thrive.

For example, in my home State of Georgia, young, beginning, and small farmers make up 72 percent of AgFirst Farm Credit's customers. While these customers represent the future of the agricultural industry, they have entered into the industry at a difficult economic time.

Our Nation's farmers, young and old, embody the American ideals of hard work and dedication, and their commitment to providing the food and fiber for a growing nation and needy world remain steadfast. Alongside them, Farm Credit's commitment to our agricultural future remains just as important as it was 100 years ago.

Farm Credit is a critical provider of credit, not only to producers but also to the communities they live in. They are dedicated to supporting rural communities' critical infrastructure needs such as access to clean water, efficient energy, sufficient healthcare facilities, and modern telecommunication services. Access to these essential services is critical to a thriving rural America. The future of our rural communities and the agricultural industry depends on a modern infrastructure, which requires access to affordable and reliable financing.

Additionally, I want to thank my colleagues who are here today to offer a few words and to celebrate Farm Credit's centennial. Rural communities in Georgia's Eighth Congressional District as well as the districts across this country are stronger when their infrastructure needs are efficiently and effectively met, and Farm Credit is providing the capital with which this can be achieved.

I want to say a special thank-you to my cohost for tonight's Special Order, the ranking member of the Commodity Exchange, Energy, and Credit Subcommittee, my friend from Georgia (Mr. DAVID SCOTT).

With that, Mr. Speaker, I yield to the gentleman from Georgia (Mr. DAVID SCOTT).

□ 1830

Mr. DAVID SCOTT of Georgia. Mr. Speaker, I thank Mr. SCOTT, whom I affectionately refer to as my cousin from Georgia, and my good, dear friend in addition to that.

This is a remarkable 100-year observance of a truly remarkable organization that provided a great need at a great time. Imagine where we were 100 years ago. In 1916, the world teetering on World War I, boll weevil, a lot of things happening. Just a matter of, perhaps, 50 years, the South recovering from the Civil War. Great devastation.

Enter into this picture of great need comes Farm Credit. When we celebrate this 100-year anniversary, we have to celebrate it right. We have to let people know the importance, and why this organization came into existence. And I say, Mr. Speaker, that particularly in the South, we might not have really made it as quickly in terms of our recovery as we did if it were not for Farm Credit. On this 100th anniversary, we have so much to celebrate, so many fine people. Those who started it are gone, but they built it on a solid foundation that had lasted.

Agriculture is the single most important industry in the world. It is the food we eat, it is the water we drink, it is the clothes we wear, and it is the financial system that we have created. The very commitment that Chairman AUSTIN SCOTT and I share was birthed out of that—the Commodities Exchange. The South didn't have everything it needed, but it had the land and it had the crops. It had commodities. Farm Credit provided the liquidity that our farmers needed. So there is so much to cherish in this time that we are celebrating.

There is something else, too, Mr. Speaker, as we look at this. As Chairman SCOTT said, 72 percent of their

loans are going to beginning, new farmers.

Now, why do I say that is so important?

Because the number one issue that we are faced with today is the age of the average farmer. To me, and to many of us in agriculture, this is not only a farming issue, it is a national issue, that the average age of a farmer today is 60 years of age.

What other industry has that? What other sector has that?

That is why we have to move aggressively. That is why I appreciate Farm Credit so much—because they jumped out front. Seventy-two percent of their lending capacity goes to getting young, beginning farmers in.

The other thing is they are partnering with our committee and going a step further. There is so much we can do. But, Mr. Speaker, it was the land grant colleges in the South that was the pivot. The 1860s and the 1890s is what pulled this country and pulled the South together. Every 5 years, we put a farm bill together. In that farm bill, we allocate badly needed dollars to these 1890 land grant institutions as well as to the 1860s.

I mention that because we have to get young, beginning farmers—African Americans, White, all of America's people. So what we are doing is to open up a new spending category in the farm bill for these 1890s that we will be able to give loan forgiveness and scholarships to young people who will go into farming. That is how we solve this problem. And Farm Credit has to template. They are there with that other arm.

Mr. Speaker, it costs $8,000 just for one acre of land. You can hardly get a tractor for less than $50,000. It is needed—when these young people graduate and they have that loan forgiveness there, they have that debt in school—in order for them to go and become farmers. They have to pay $8,000 to start with just an acre, and $50,000. But if we would be able to help them and say: We will help your loan forgiveness.

I mention that because the people at Farm Credit said: Let me reach out a hand. Let me help Fort Valley State in Georgia to partner with the University of Georgia. Let me help Florida A&M University Land Grant to work with the University of Florida, a land grant. Let me help Alabama A&M University and Tuskegee Institute work with the University of Alabama.

That is how we solve this problem. That is why it is important for us to understand the foundation. Farm Credit was developed out of a crisis need, and here they are moving to help with another crisis need to get more young people involved in farming.

I say a national crisis because, Mr. Speaker, if we allow this to continue without addressing this highly escalating age of our farmers, we will be in serious trouble. For if we do not continue to be the leading agriculture producer in the world and have to depend on other nations to feed us, that is a national crisis.

So on this 100th anniversary, isn't it something that we celebrate Farm Credit when they ushered in and came and helped to restore and invigorate America at a great time, and they are still doing the same thing today?

With a century of experience and a focus on the future, I want to say to Farm Credit: God bless Farm Credit. God bless those 100 years. We look forward to many hundred more years. And God bless the United States of America.

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, again, I want to thank my colleague, Mr. SCOTT, for being here. It has been a wonderful partnership to work with him on our subcommittee.

Mr. Speaker, I yield to the gentleman from Louisiana (Mr. ABRAHAM).

Mr. ABRAHAM. Mr. Speaker, I first want to thank our chairman, Mr. AUSTIN SCOTT, and ranking member, Mr. DAVID SCOTT, for their leadership in bringing this vital topic to the floor.

Farm Credit System is not only part of our economic security of this great Nation, but I would argue it is also part of our national security with what they provide. We are here just to commend the cooperative owners, the employees of the Farm Credit System, as they celebrate this 100th anniversary.

The Federal Farm Loan Act of 1916 was passed by Congress and President Wilson in 1916. It was a permanent means to support the well-being and prosperity of the Nation's rural communities and agricultural producers of all types and sizes, a mission it has been accomplishing every day for a century.

It plays a vital role, as you have heard my colleague say, in the success of United States agriculture and our rural communities. It has provided more than $237 billion in loans to more than 500,000 customers. I am one of those customers, Mr. Speaker. In fact, I am still paying on one of their loans.

The Farm Credit System helped me get started in farming back when I was 25 years old. It helped me buy the land I needed. I still farm that land today. It has helped my family buy land that it has needed to farm.

We are just a small part of a community of 1,349 borrower-customers from the Fifth District of Louisiana. We customers account for $354 million in credit and investments in rural Louisiana.

In my State, Farm Credit serves more than 3,600 Louisianans, with a total loan volume of $645 million.

What I and other farmers like about Farm Credit System is that they just seem to get it. In an age where we are losing this person-to-person contact and we are losing the sincerity, I think, sometimes of the people we come in contact with, Farm Credit System remains homegrown people who give out hometown loans.

We know these people. We go to church with them. We eat supper with them in the South. They are the DNA of our rural communities. That is why we trust them. We trust them to give honest and forthright advice. They are going to do the right thing every time for you as a borrower, as a cooperative owner, and just as a friend.

As you have heard from Mr. AUSTIN SCOTT and Mr. DAVID SCOTT, they are supporting the next generation of farmers by annually providing billions of dollars of loans to young and beginning farmers, again, the future of this country—just like me once upon a time—through organizations like 4–H and the Future Farmers of America.

It helps communities moving forward by financing vital infrastructure to bring clean water, reliable energy, and high-speed Internet to places that normally would not have this available.

I am proud to cosponsor House Resolution 591 that commends the cooperative owners and employees of Farm Credit System for their 100 years of service to our rural communities.

I thank Chairman MIKE CONAWAY, Ranking Member COLLIN PETERSON, Representative AUSTIN SCOTT, and Representative DAVID SCOTT for introducing this resolution.

Congratulations to the Farm Service Agency on its 100 years of service. May it continue to help farmers and rural America for another 100 years.

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, I yield to the gentlewoman from Florida (Ms. GRAHAM).

Ms. GRAHAM. Mr. Speaker, I thank Congressman SCOTT for arranging this Special Order tonight.

Mr. Speaker, I rise to congratulate Farm Credit on their 100th anniversary. That is a significant anniversary.

Earlier this year, when I visited all 14 counties in Florida's Second Congressional District on the first-ever North Florida Farm Tour, I saw just how important Farm Credit System is to each and every one of our rural communities.

In the Second Congressional District alone, Farm Credit of Northwest Florida serves 439 borrower-customers, providing more than $120 million in loans. That has helped small businesses like Southern Craft Creamery, where I performed a workday in a hair net making north Florida ice cream. It was very good. I recommend it to everyone. Remember Southern Craft Creamery.

These small businesses and small farms aren't just growing food; they are growing our economy and creating jobs. Mr. Speaker, Farm Credit is working to make sure the next generation of Americans are interested in farming and growing food for our growing country.

I am proud to have worked with them on workshops for new and veteran farmers like Bob Jackson, who Farm Credit has helped start a honey and bee business.

Mr. Speaker, again, I congratulate Farm Credit on their 100th anniversary, and I look forward to continue working with them to support Florida farmers.

□ 1845

Mr. AUSTIN SCOTT of Georgia. I thank Ms. GRAHAM.

Mr. Speaker, I yield to the gentleman from North Carolina (Mr. ROUZER).

Mr. ROUZER. I thank my friend, the gentleman from Georgia.

Mr. Speaker, I rise to recognize the Farm Credit System for supporting agriculture and the rural communities in my home State of North Carolina for the past 100 years.

Established in 1916, Farm Credit provides farm families across America with consistent and reliable credit to help finance our Nation's food production needs. Without Farm Credit Services of America, our farmers would not have the resources they need to grow their crops and their livestock—putting food on the tables of every American family. Let me underscore that—putting food on the tables of every American family. Farm Credit organizations provide more than a third of the credit that is needed by United States agriculture, accounting for more than $217 billion in loans, leases, and related services.

In my home district, our local farm lender is Cape Fear Farm Credit, which operates in a 12-county territory and issues loans to more than 2,500 farmers and rural North Carolinians. I applaud them for supporting farm families in my district with real estate and farm improvement loans, equipment loans, operating loans, country home loans, life insurance plans, and appraisal services. Cape Fear Farm Credit also helps young, beginning, small, and minority farmers become successful by offering courses that provide not only them but their families with a unique set of tools to increase the quality and sizes of their operations.

Without a doubt, Cape Fear Farm Credit is an incredibly valuable resource for our farm families and our rural communities in North Carolina's Seventh Congressional District. Our friends at Farm Credit should be proud of their great work. They have successfully delivered on their mission for the past 100 years, and I know they will continue to have great success. They are great and fine people who understand the unique needs of agriculture production, our farm families, and our rural communities. I am proud to stand with them.

Mr. AUSTIN SCOTT of Georgia. I thank Mr. ROUZER.

Mr. Speaker, I yield to the gentleman from Michigan (Mr. MOOLENAAR).

Mr. MOOLENAAR. I thank the gentleman.

Mr. Speaker, I thank the two gentlemen from Georgia for hosting this hour to celebrate 100 years of Farm Credit and the important role it has played in our country.

For the past 100 years, Farm Credit has made vital contributions to the success of Michigan's Fourth Congressional District in our agricultural community, which includes over 10,000 farms and 15,000 farm operators. Farm Credit has allowed farmers and growers to invest in their operations with new equipment and buildings in good times, and, in tough times, it has provided crop insurance and helped family farmers keep their lands. Farm Credit has helped Michigan farmers put healthy, delicious food on the tables of millions of people. In my district specifically, it has contributed to a districtwide output of $1.7 billion in products sold across the country and around the world. These profits come back to our rural communities and help to keep them strong.

Mr. Speaker, Farm Credit has made America a more prosperous Nation, and I hope it will enjoy another 100 years of continued success.

Mr. AUSTIN SCOTT of Georgia. I thank Mr. MOOLENAAR.

Mr. Speaker, I yield to the gentleman from California (Mr. LAMALFA).

Mr. LAMALFA. I thank the gentleman from Georgia (Mr. AUSTIN SCOTT) for holding this Special Order hour tonight so we may have the opportunity to recognize our friends at the Farm Credit System. I am glad to join my colleagues in doing so as the Farm Credit System has been a great service to agriculture and rural communities for these 100 years.

Originally enacted by Congress and signed into law by President Wilson 100 years ago, the Farm Credit System has played a very valuable and vital role in sustaining agriculture in our Nation. While many things have changed in the last 100 years, one thing has not: the need to feed and clothe our Nation. The Farm Credit System exists to help farmers and ranchers meet this challenge while it also adapts to meet the ever-changing agricultural needs.

For example, right now, the median age for farmers, as was mentioned by Mr. DAVID SCOTT of Georgia, is around 60 years old, with farmers who are 75 years old and up outnumbering those who are in their twenties and thirties. We have to do more to give those young people hope and the opportunity to be viable and have stability in the occupations they would choose.

With the population expected to increase by over 2 billion by 2050 and as prices for farmland and equipment significantly increase, the concerns of having enough farmers to feed the world are very real. Farm Credit initiatives have helped younger farmers not only access the financial tools that are necessary to get started, but also the education and advice they need to grow their business for years to come.

More generally, Farm Credit is vital to managing the everyday risks and the uncontrollable variables farmers face, such as the weather, natural disasters, or market distortions. Just this spring, in my part of California, high winds and heavy rains—even hail—have helped to shrink California's prune crop to half or less of its normal size, with some growers losing their entire crops for the year and with some not being able to even recover their costs for harvesting—therefore, not harvesting at all. This is on top of devastating profit losses and cutbacks that are due to the ongoing drought in the State of California.

While insurance, certainly, comes nowhere close to making up for these losses or even breaking even, it helps farmers survive another year—to get by—so they can continue growing the food, hopefully, in that good following year as they faithfully go out to their fields, to their orchards, to their vineyards to produce what Americans want and need. This helps keep our communities and local economies strong.

I am proud to stand with my colleagues and join in recognizing the critical role the Farm Credit System has played for over 100 years and to support our farmers and ranchers throughout rural communities across the country. Let's do everything we can to hold onto this vital piece of rural America, and let's keep food on the tables for all Americans and for those around the world who depend on it as well.

Mr. AUSTIN SCOTT of Georgia. I thank Mr. LAMALFA.

Mr. Speaker, I yield to the gentleman from Texas (Mr. CONAWAY), the chairman of the House Agriculture Committee.

Mr. CONAWAY. I thank my fellow colleague on the Agriculture Committee for hosting tonight's Special Order hour and for yielding.

Mr. Speaker, I rise to commend the Farm Credit System for 100 years of service to rural America and the agriculture industry.

The importance of the Farm Credit System is largely unknown to those who are outside of agriculture, often leaving it prone to political attacks. However, its importance to those it serves has never been greater as declining commodity prices have led to a sharp downturn in the farm economy. Thankfully, the Farm Credit System and its members have been there to help lessen that burden.

To understand the Farm Credit System, it is important to look back at its roots. In the early 1900s, credit was largely unavailable or unaffordable in many parts of rural America, and lenders avoided agriculture loans due to their associated risks. In 1908, President Theodore Roosevelt appointed a commission to explore the problem and, ultimately, found a need to develop more cooperatives and a cooperative credit system for farmers. From that idea, Congress passed the Federal Farm Loan Act of 1916, which eventually resulted in the establishment of the Farm Credit System, a system created to provide a permanent, reliable source of credit to American agriculture.

The Farm Credit System's mission has evolved over time. For example, in 1980, Congress empowered the Farm Credit System to provide valuable capital for infrastructure that is necessary for communities to thrive.

Since its inception, the Farm Credit System has never wavered in its mission of providing lines of credit to rural communities in good times and in bad. During the late 1980s, our farmers and ranchers faced particularly difficult times. Fortunately, the agriculture industry and the Farm Credit System were able to weather the storm together, and they emerged even more prepared for the years to come. Today, I believe that the Farm Credit System is fundamentally safe and sound and in a position to endure the challenges that it will inevitably face.

To acknowledge and celebrate a century of dedicated service to rural America, I was proud to sponsor H. Res. 591, which commemorates Farm Credit's 100th anniversary. Providing more than $237 billion in loans to more than 500,000 customers, the Farm Credit System has worked tirelessly in all 50 States to ensure a vibrant rural economy, and I am proud to congratulate it on its 100 years of good work and the system we have in place today.

Mr. AUSTIN SCOTT of Georgia. I thank Mr. CONAWAY.

Mr. Speaker, again, I thank all of my colleagues for taking the time to come down here and recognize all of the great things that Farm Credit has done in the past 100 years. I thank all of the people who have been a part of the Farm Credit System over the past 100 years. I thank the men and women who are out there, working every day on the farm, to make sure that Americans have the food and fiber that they need. May God continue to bless them.

Mr. Speaker, I yield back the balance of my time.

Mr. PETERSON. Mr. Speaker, one hundred years ago, Congress recognized the need for a permanent means to support our nation's rural communities and agricultural producers and established the Farm Credit System.

Cooperatively owned and operated, the Farm Credit System was designed to be responsive to the needs of its borrowers while being able to adapt to changes in rural communities and agriculture.

Today, credit in rural America remains an important issue. The Farm Credit System maintains a vital presence in all 50 states as well as Puerto Rico. In my home state of Minnesota, Farm Credit serves more than 24,000 borrower-customers by making available $6.9 billion in loans.

Credit is one of the most important tools available for farmers and ranchers. It is a vital piece of the farm safety net during times of low commodity prices and an important resource to the next generation of farmers and ranchers looking to get started.

Farm credit also supports rural economic development, helping to fund important infrastructure improvements, provide reliable energy to rural communities, and connect rural Americans through modern telecommunications.

The impact of the Farm Credit System is felt across the country, and I congratulate them on this milestone.

Mr. HUIZENGA of Michigan. Mr. Speaker, I rise today to recognize the Farm Credit System's one-hundred years of serving rural communities in Michigan and across the country.

Michigan's Second Congressional District is among the most agriculturally diverse in the nation. West Michigan farmers grow countless specialty crops such as asparagus, apples, cherries, blueberries, carrots, and onions. They also lead the state in livestock, poultry, eggs, nursery, greenhouse, and floriculture production. For the last one-hundred years, the Farm Credit System has been there to provide agriculture producers with reliable, consistent credit and sound financial advice.

In Michigan, GreenStone Farm Credit Services has provided the support needed to keep agriculture running. Whether it is helping young, beginning, and small farmers get their start or transitioning family farms to the next generation, GreenStone has been committed to supporting rural communities.

GreenStone's mission is to provide reliable credit and financial services for rural communities and agriculture. It is a mission they have fulfilled for the last century, and this centennial milestone is an important achievement. As many producers face uncertain economic times, it is imperative that they have a partner who understands their business and the challenges they face. GreenStone has demonstrated their commitment to farmers.

I ask my colleagues to join me in honoring GreenStone and the entire Farm Credit System for their efforts to ensure a prosperous, productive agricultural sector for our nation.

Mr. DENHAM. Mr. Speaker, I rise today to recognize the centennial of the Farm Credit System and its unwavering dedication to our nation's agricultural sector. As an almond farmer, House Ag Committee member and Representative of California's abundant Central Valley, I understand that our nation's farmers and ranchers are continuously faced with unique credit and finance needs.

Since its inception 100 years ago, the Farm Credit System has worked to serve our nation's farmers and rural communities. Roughly $240 billion in loans have been made to 500,000 borrowers nationwide. These funds have built viable farming operations, improved expanded existing ones, improved trade opportunities, and enhanced vital infrastructure needs. Farm Credit was integral in helping the ag sector to navigate the Great Depression, World War II, the Farm Crisis of the 1980s, and the Great Recession.

What may be more important than Farm Credit's impact on a national scale is its presence at the local level. Our local branch and representatives work hard to establish relationships and craft finance options that work for their clients, whether they are small farmers new to the business or the next generation of an established family operation. Over the years, this institution has also committed hundreds of thousands of dollars to support our district's student ag programs, scholarships, and community events.

I'm proud to cosponsor H. Res. 591, an overwhelmingly bipartisan commendation of the Farm Credit System and the service its cooperatives provide. California's Central Valley is the most productive ag region in the world, and I remain committed to ensuring our farmers and their communities have access to the financial support that the Farm Credit System and others provide.

Mr. WALZ. Mr. Speaker, the availability of credit is of paramount importance to the success of farm country, and we learned this lesson the hard way. Over a century ago, our farm forbearers faced a credit crunch that threatened the viability of the industry. As a result, farmers, creditors, rural stakeholders and policymakers worked together to create the Farm Credit System (FCS). This system has been improved upon throughout the years as events require and has provided more than $210,000,000,000 in loans to more than 500,000 customers.

Today, the availability of farm credit is as vital an issue for rural America as ever. Without credit, a beginning farmer or rancher will find it nearly impossible to purchase land, equipment and inputs to start a farming operation, and a long-time farmer will find it equally difficult to continue and pass on their legacy to the next generation.

To be clear, the importance of the FCS is not limited to the private land between the fence posts. Instead, the entirety of the rural economy benefits from services provided by the FCS whether those services include funding for housing, markets, or infrastructural upgrades.

Finally, the success of the FCS is equal to the sum of its parts. The system works because it is composed of individuals who care about what they do, who believe 100 percent in the mission of their enterprise to bring results and prosperity to a rural community where, without them, there might be none. These individuals are neighbors, friends and family members who take the time to get to know their customers so that they can best serve the needs of the community.

On this 100th anniversary, I am both proud to celebrate the successes of FCS and supportive of its future role in the fabric of our rural economy.

Ms. FUDGE. Mr. Speaker, I rise today to congratulate the cooperative owners and the employees of the Farm Credit System for 100 years of service in meeting the financial needs of our nation's agricultural producers.

The Farm Credit System was established by Congress through the Federal Farm Loan Act of 1916 and signed into law on July 17, 1916 by President Woodrow Wilson. This year marks the centennial anniversary of the founding of the cooperatively owned and operated Farm Credit System.

Congress designed the Farm Credit System as a permanent means to support the well-being and prosperity of our Nation's agricultural sector. Today, the Farm Credit System plays a vital role in the success of United States agriculture and the economic vibrancy of communities throughout all 50 States and Puerto Rico. The Farm Credit System provides more than $237 billion in loans to more than 500,000 customers.

The Farm Credit System has served my home district, Ohio's 11th Congressional District particularly well. In 2012, three Farm Credit System organizations; AgriBank, CoBank and Farm Credit Services Mid-America joined to provide $135,000 in financial support for Cleveland's Gardening for Greenbacks program.

The Gardening for Greenbacks program provides grants to local entrepreneurs for the development of for-profit urban food gardens. This program encourages economic development, improves access to fresh, healthy and affordable food, and has helped to establish the City of Cleveland as a model for local food system development.

I am proud to honor the Farm Credit System on its centennial. Happy 100th Anniversary to the Farm Credit System.

Mr. CUELLAR. Mr. Speaker, this July marks the 100-year anniversary of the Farm Credit System, and I rise today to commend the cooperative owners and employees for their continuing service and support in meeting the financial needs of rural communities and agricultural producers in the 28th District of Texas and across the country.

I was pleased to cosponsor House Resolution 591, introduced by House Agriculture Committee Chairman MIKE CONAWAY and Ranking Member COLLIN PETERSON as well as the Chairman and Ranking Member of the Subcommittee for Commodity Exchanges, Energy & Credit, Chairman AUSTIN SCOTT and Ranking Member DAVID SCOTT, and join my colleagues in celebrating the Farm Credit System for its 100 years of service.

Congress established the Farm Credit System through the Federal Farm Loan Act of 1916, which was signed into law on July 17, 1916 by President Woodrow Wilson. The Farm Credit System is comprised of independently owned cooperatives that are controlled by their borrowers. Each cooperative is therefore responsive to its borrowers' individual credit requirements and can continually adapt to the changing needs of our rural communities and agricultural producers.

Today, the Farm Credit System plays a vital role in the success of our country's agricultural sector, and the vibrancy of rural communities throughout the country. The Farm Credit System provides more than $237 billion in loans to more than 500,000 customers nationwide. In the state of Texas specifically, Farm Credit has issued over 47,000 loans, providing $9.5 billion in credit to farmers and other agricultural borrowers. 1,443 of those loans were made to people in the 28th District of Texas, totaling over $593 million in loans. In 2013, Farm Credit returned nearly $258 million to its borrowers in the state of Texas alone.

Farm Credit actively supports the next generation of agricultural producers by providing billions of dollars of funding to emerging farmers and producers, and providing financial support for organizations like 4–11 and Future Farmers of America. Additionally, Farm Credit finances reliable energy sources for farms and rural towns, clean water systems, and modern telecommunications systems that connect rural America with the rest of the world. By financing these vital infrastructure projects, Farm Credit supports the agricultural and rural communities in my congressional district and across the country.

Mr. Speaker, I am honored to recognize the Farm Credit System on the occasion of its centennial and extend my appreciation to the cooperative owners and employees for their commitment to providing innovative financial services to the people of the 28th District of Texas and to the nation as a whole.

## RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 6 o'clock and 54 minutes p.m.), the House stood in recess.

□ 2114

## AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. WOODALL) at 9 o'clock and 14 minutes p.m.

## REPORT ON RESOLUTION PROVIDING FOR FURTHER CONSIDERATION OF H.R. 5293, DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2017

Mr. BYRNE, from the Committee on Rules, submitted a privileged report (Rept. No. 114–623) on the resolution (H. Res. 783) providing for further consideration of the bill (H.R. 5293) making appropriations for the Department of Defense for the fiscal year ending September 30, 2017, and for other purposes, which was referred to the House Calendar and ordered to be printed.

## ADJOURNMENT

Mr. BYRNE. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 9 o'clock and 15 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, June 15, 2016, at 10 a.m. for morning-hour debate.

## EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

5667. A letter from the General Counsel, National Credit Union Administration, transmitting the Administration's Major final rule — Member Business Loans; Commercial Lending (RIN: 3133-AE37) received June 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

5668. A letter from the Deputy Secretary, Division of Trading and Markets, Securities and Exchange Commission, transmitting the Commission's final rule — Trade Acknowledgment and Verification of Security-Based Swap Transactions [Release No.: 34-78011; File No.: S7-03-11] (RIN: 3235-AK91) received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

5669. A letter from the Deputy General Counsel, Pension Benefit Guaranty Corporation, transmitting the Corporation's final rule — Benefits Payable in Terminated Single-Employer Plans; Interest Assumptions for Paying Benefits received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

5670. A letter from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Office of Energy Efficiency and Renewable Energy, Department of Energy, transmitting the Department's final rule — Energy Conservation Program: Test Procedures for Central Air Conditioners and Heat Pumps [Docket No.: EERE-2009-BT-TP-0004] (RIN: 1904-AB94) received June 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5671. A letter from the Director, Regulations Policy and Management Staff, FDA, Department of Health and Human Services, transmitting the Department's final rule — Advisory Committee; Transmissible Spongiform Encephalopathies Advisory Committee; Termination [Docket No.: FDA-2016-N-0001] received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5672. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Virginia Infrastructure Requirements for the 2012 Fine Particulate Matter National Ambient Air Quality Standards [EPA-R03-OAR-2015-0838; FRL-9947-76-Region 3] received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5673. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Approval of California Air Plan Revisions, Eastern Kern Air Pollution Control District and Yolo-Solano Air Quality Management District [EPA-R09-OAR-2016-0124; FRL-9946-38-Region 9] received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5674. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Air Plan Approval; UT; Revised format for Material Incorporated by Reference [EPA-R08-OAR-2014-0309; FRL-9945-65-Region 8] received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5675. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Finding of Failure to Submit a State Implementation Plan; New Jersey; Interstate Transport Requirements for 2008 8-hour National Ambient Air Quality Standards for Ozone [EPA-R02-2016-0316; FRL-9947-77-Region 2] received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5676. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Indiana; Ohio; Disapproval of Interstate Transport Requirements for the 2008 Ozone NAAQS [EPA R05-OAR-2011-0969; FRL-9947-71-Region 5] received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5677. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Chlorantraniliprole; Pesticide Tolerances [EPA-HQ-OPP-2013-0235; FRL-9946-75] received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5678. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Clofentezine; Pesticide Tolerances [EPA-HQ-OPP-2014-0749; FRL-9942-23] received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5679. A letter from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce,

transmitting the Department's final rule — Implementation of the February 2015 Australia Group (AG) Intersessional Decisions and the June 2015 AG Plenary Understandings [Docket No.: 160302176-6176-01] (RIN: 0694-AG88) received June 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Foreign Affairs.

5680. A letter from the Deputy Archivist of the United States, National Archives and Records Administration, transmitting the Administration's direct final rule — Privacy Act of 1974; exemptions [FDMS No.: NARA-16-0005; NARA-2016-021] (RIN: 3095-AB91) received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Government Reform.

5681. A letter from the Director, Office of Regulations and Reports Clearance, Social Security Administration, transmitting the Administration's interim final rule — Bipartisan Budget Act of 2015, section 701: Federal Civil Penalties Inflation Adjustment Act Improvements Act of 2015 [Docket No.: SSA-2016-0009] (RIN: 0960-AH99) received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on the Judiciary.

5682. A letter from the Paralegal, Federal Transit Administration, Department of Transportation, transmitting the Department's final rule — Categorical Exclusions [Docket No.: FHWA-2016-0008] (RIN: 2125-AF69; 2132-AB29) received June 9, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

5683. A letter from the Deputy General Counsel, Office of the General Counsel, Small Business Administration, transmitting the Administration's final rule — Small Business Government Contracting and National Defense Authorization Act of 2013 Amendments (RIN: 3245-AG58) received June 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Small Business.

5684. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Applying for certification as a certified professional employer organization (Rev. Proc. 2016-33) received June 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

5685. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Update for Weighted Average Interest Rates, Yield Curves, and Segment Rates [Notice 2016-33] received June 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

5686. A letter from the Director, Office of Regulations and Reports Clearance, Social Security Administration, transmitting the Administration's final rules — Revised Medical Criteria for Evaluating Respiratory System Disorders [Docket No.: SSA-2006-0149] (RIN: 0960-AF58) received June 10, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

## REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. GOODLATTE: Committee on the Judiciary. H.R. 4768. A bill to amend title 5, United States Code, with respect to the judicial review of agency interpretations of statutory and regulatory provisions, with amendments (Rept. 114–622). Referred to the Committee of the Whole House on the state of the Union.

Mr. BYRNE: Committee on Rules. House Resolution 783. Resolution providing for further consideration of the bill (H.R. 5293) making appropriations for the Department of Defense for the fiscal year ending September 30, 2017, and for other purposes (Rept. 114–623). Referred to the House Calendar.

## PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. NEUGEBAUER:

H.R. 5465. A bill to repeal section 1075 of the Consumer Financial Protection Act of 2010 relating to rules for payment card transactions, and for other purposes; to the Committee on Financial Services.

By Mr. KNIGHT (for himself and Mr. HONDA):

H.R. 5466. A bill to secure the United States technological edge in commercial and military aviation; to the Committee on Science, Space, and Technology, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SCHIFF (for himself, Mr. BECERRA, Ms. BROWNLEY of California, Mr. CÁRDENAS, Ms. JUDY CHU of California, Mr. TED LIEU of California, and Mr. SHERMAN):

H.R. 5467. A bill to adjust the boundary of the Santa Monica Mountains National Recreation Area to include the Rim of the Valley Corridor, and for other purposes; to the Committee on Natural Resources.

By Mr. BISHOP of Utah:

H.R. 5468. A bill to direct the Secretary of the Interior to allow for prepayment of repayment obligations under Repayment Contracts between the United States and the Weber Basin Water Conservancy District; to the Committee on Natural Resources.

By Mr. PEARCE (for himself and Ms. MOORE):

H.R. 5469. A bill to require the Secretary of the Treasury to direct the United States Executive Director at the International Monetary Fund to support the capacity of the International Monetary Fund to prevent money laundering and financing of terrorism; to the Committee on Financial Services.

By Ms. JACKSON LEE (for herself and Ms. BROWN of Florida):

H.R. 5470. A bill to amend chapter 44 of title 18, United States Code, to require a criminal background check to be conducted before a federally licensed firearms importer, manufacturer, or dealer may transfer a large capacity ammunition feeding device to a non-licensee, and to prohibit a semiautomatic assault weapon or large capacity ammunition feeding device from being so transferred until the Attorney General has verified that the prospective transferee has truthfully answered questions about whether the prospective transferee has been contacted recently by Federal law enforcement authorities; to the Committee on the Judiciary.

By Mr. MCCAUL (for himself, Mr. LOUDERMILK, Mr. FLEISCHMANN, and Mr. KATKO):

H.R. 5471. A bill to combat terrorist recruitment in the United States, and for other purposes; to the Committee on Homeland Security.

By Mr. COFFMAN:

H.R. 5472. A bill to amend title 38, United States Code, to improve the procurement practices of the Department of Veterans Affairs, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. DANNY K. DAVIS of Illinois (for himself and Mr. RANGEL):

H.R. 5473. A bill to amend part B of title IV of the Social Security Act to create a grant program to promote Federal, State, and local coordination to address substance use needs of families in the child welfare system, in order to improve child well-being and permanency; to the Committee on Ways and Means.

By Mr. JOHNSON of Georgia (for himself, Mr. CONYERS, Ms. KAPTUR, Mr. ELLISON, Mr. SERRANO, and Ms. SCHAKOWSKY):

H.R. 5474. A bill to suspend United States security assistance with Honduras until such time as human rights violations by Honduran security forces cease and their perpetrators are brought to justice; to the Committee on Foreign Affairs, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. KELLY of Illinois (for herself, Ms. MICHELLE LUJAN GRISHAM of New Mexico, Ms. LINDA T. SÁNCHEZ of California, Ms. LEE, Ms. JUDY CHU of California, Mr. PAYNE, and Mr. BUTTERFIELD):

H.R. 5475. A bill to improve the health of minority individuals, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Ways and Means, Agriculture, Education and the Workforce, the Budget, the Judiciary, Veterans' Affairs, Armed Services, and Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LARSON of Connecticut (for himself, Mr. KING of New York, Mr. PASCRELL, Mr. REICHERT, Mr. WALZ, Mr. COURTNEY, Ms. DELAURO, Ms. ESTY, Mr. HIMES, Mr. GRIJALVA, Mr. CAPUANO, and Mr. MEEKS):

H.R. 5476. A bill to amend title 4, United States Code, to provide for the flying of the flag at half-staff in the event of the death of a first responder in the line of duty; to the Committee on the Judiciary.

By Mr. LEWIS:

H.R. 5477. A bill to eliminate the requirement that, to be eligible for foster care maintenance payments, a child would have been eligible for aid under the former program of Aid to Families with Dependent Children at the time of removal from the home; to the Committee on Ways and Means.

By Mr. BEN RAY LUJÁN of New Mexico (for himself and Ms. MICHELLE LUJAN GRISHAM of New Mexico):

H.R. 5478. A bill to improve the implementation of the settlement agreement reached between the Pueblo de Cochiti of New Mexico and the Corps of Engineers, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. MCCOLLUM:

H.R. 5479. A bill to provide for programs under the Department of Health and Human

Services to improve newborn screening, evaluation, and intervention for critical congenital heart defect; to the Committee on Energy and Commerce.

By Mr. RYAN of Ohio:

H.R. 5480. A bill to amend the Internal Revenue Code of 1986 to provide a credit for early payment of principal on certain home mortgages and to reduce the amount which may be treated as acquisition indebtedness for purposes of determining the home mortgage interest deduction; to the Committee on Ways and Means.

By Mr. SALMON (for himself and Mr. GROTHMAN):

H.R. 5481. A bill to amend the Higher Education Act of 1965 to authorize institutions of higher education to provide additional loan counseling, and for other purposes; to the Committee on Education and the Workforce.

By Mr. TURNER (for himself and Mr. RYAN of Ohio):

H.R. 5482. A bill to amend title XIX of the Social Security Act to provide States with the option of providing medical assistance at a residential pediatric recovery center to infants under 1 year of age with neonatal abstinence syndrome and their families; to the Committee on Energy and Commerce.

By Mr. STIVERS:

H. Res. 781. A resolution electing a Member to certain standing committees of the House of Representatives; considered and agreed to. considered and agreed to.

By Ms. STEFANIK (for herself and Mr. BISHOP of Georgia):

H. Res. 782. A resolution encouraging the people of the United States to honor the service of military retirees who continue to serve the United States long after such retirees have completed military service; to the Committee on Oversight and Government Reform.

By Ms. LINDA T. SÁNCHEZ of California (for herself and Mr. MCKINLEY):

H. Res. 784. A resolution expressing support for the designation of Journeymen Linemen Recognition Day; to the Committee on Energy and Commerce.

## MEMORIALS

Under clause 3 of rule XII, memorials were presented and referred as follows:

259. The SPEAKER presented a memorial of the General Assembly of the State of Colorado, relative to Senate Joint Memorial 16-004, urging Congress to reauthorize the federal ''Older Americans Act of 1965'' and ensure that the reauthorization of the OAA treats all older adults fairly by eliminating the ''hold harmless'' provision; to the Committee on Education and the Workforce.

260. Also, a memorial of the General Assembly of the State of Colorado, relative to Senate Joint Resolution 16-022, concerning the designation of March 21, 2016 as ''Colorado Aerospace Day'' and to urge and request the government of the United States of America to take action to preserve and enhance United States leadership in space, spur innovation, and ensure our continued national and economic security; to the Committee on Science, Space, and Technology.

261. Also, a memorial of the General Assembly of the State of Colorado, relative to Senate Resolution 16-002, to encourage the United States Congress to restore the presumption of service connection for Agent Orange exposure to United States veterans who served on the waters off the coast of the Republic of Vietnam; to the Committee on Veterans' Affairs.

## CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule MI of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. NEUGEBAUER:

H.R. 5465.

Congress has the power to enact this legislation pursuant to the following:

U.S. Constitution, Article 1, Section 8, Clause 3: ''To regulate Commerce with foreign Nations, among the several States, and with the Indian Tribes.''

By Mr. KNIGHT:

H.R. 5466.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. SCHIFF:

H.R. 5467.

Congress has the power to enact this legislation pursuant to the following:

Rim of the Valley Corridor Preservation Act is constitutionally authorized under and Article I, Section 8, Clause 18, the Necessary and Proper Clause. Additionally, the Preamble to the Constitution provides support of the authority to enact legislation to promote the General Welfare.

By Mr. BISHOP of Utah:

H.R. 5468.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. PEARCE:

H.R. 5469.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 9, Clause 7

No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.

By Ms. JACKSON LEE:

H.R. 5470.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 3, and 18 of the United States Constitution.

By Mr. MCCAUL:

H.R. 5471.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 ''To make all laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or an Department or Officer thereof.''

By Mr. COFFMAN:

H.R. 5472.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 of the Constitution of the United States

By Mr. DANNY K. DAVIS of Illinois:

H.R. 5473.

Congress has the power to enact this legislation pursuant to the following:

Article I of the Constitution and its subsequent amendments and further clarified and interpreted by the Supreme Court of the United States.

By Mr. JOHNSON of Georgia:

H.R. 5474.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, clause 3: Congress shall have the power to regulate commerce with foreign nations; Article I, section 8, clause 18: Congress shall have the power to make all laws which shall be ncessary and proper for carrying into execution the foregoing powers.

By Ms. KELLY of Illinois:

H.R. 5475.

Congress has the power to enact this legislation pursuant to the following:

This bill seeks to improve the health outcomes in, acess to healht care to, and accountability of health care providers for, underserved and minority communites. The power of Congress to enact such a measure rests in the General Welfare and Necessary and Proper clauses of Article I, as promoting health equity and accountability in minority communities promotes the well-being of minoirty Americans. U.S. Cont., art. I, Sec. 8, cl. 1 (''The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States[.]''); U.S. Cost., art. I, Sec. 8, cl. 18 (''The Congress shall have the Power . . . To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers[.]'').

By Mr. LARSON of Connecticut:

H.R. 5476.

Congress has the power to enact this legislation pursuant to the following:

H.R.Article I, Section 8, Clause 18

By Mr. LEWIS:

H.R. 5477.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I of the United States Constitution and its subsequent amendments, and further clarified and interpreted by the Supreme Court of the United States.

By Mr. BEN RAY LUJÁN of New Mexico:

H.R. 5478.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3
Article 4, Section 3, Clause 2
Article 1, Section 8, Clause 18

By Ms. MCCOLLUM:

H.R. 5479.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the Constitution

By Mr. RYAN of Ohio:

H.R. 5480.

Congress has the power to enact this legislation pursuant to the following:

To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. SALMON:

H.R. 5481.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18:

The Congress shall have power . . . To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.

By Mr. TURNER:

H.R. 5482.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the United States Constitution, to ''. . . provide for the common Defence and general Welfare of the United States. . . .''

Article I, Section 8, Clause 3 (the Commerce Clause) of the United States Constitution, to ''To regulate Commerce with foreign

Nations, and among the several States, and with the Indian Tribes.''

Article I, Section 8, Clause 18 of the United States Constitution, ''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.''

## ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 12: Ms. ESHOO and Mr. ISRAEL.
H.R. 539: Mrs. BUSTOS.
H.R. 563: Mr. SMITH of Washington.
H.R. 605: Mr. HUDSON.
H.R. 711: Mrs. NAPOLITANO.
H.R. 932: Ms. LORETTA SANCHEZ of California.
H.R. 997: Mr. SCALISE.
H.R. 1062: Mr. SCHWEIKERT and Mr. STUTZMAN.
H.R. 1076: Ms. SLAUGHTER, Mr. KILDEE, Mr. SMITH of Washington, Mr. GARAMENDI, Mr. HUFFMAN, Mr. KILMER, and Mr. AL GREEN of Texas.
H.R. 1284: Mr. LARSEN of Washington and Mr. MEEKS.
H.R. 1319: Mr. GRAVES of Louisiana.
H.R. 1362: Mr. RENACCI and Mr. COLLINS of New York.
H.R. 1391: Ms. LOFGREN, Mrs. NAPOLITANO, Mr. PERLMUTTER, Ms. ADAMS, and Mr. BUTTERFIELD.
H.R. 1421: Mr. NADLER.
H.R. 1427: Mr. MOULTON and Ms. SEWELL of Alabama.
H.R. 1439: Ms. LORETTA SANCHEZ of California and Mr. FATTAH.
H.R. 1453: Mr. STEWART.
H.R. 1490: Ms. KUSTER.
H.R. 1548: Mr. MOULTON.
H.R. 1717: Mr. RYAN of Ohio, Mr. COLE, Mr. CUELLAR, Mr. FATTAH, Mr. CARTER of Texas, Mr. BISHOP of Georgia, Ms. KAPTUR, Mr. QUIGLEY, Mr. RUPPERSBERGER, Mr. PRICE of North Carolina, Mr. GENE GREEN of Texas, Ms. LEE, Ms. SCHAKOWSKY, and Mr. BARTON.
H.R. 1859: Mr. BUCSHON.
H.R. 1935: Mr. BRAT.
H.R. 1969: Mr. ASHFORD.
H.R. 2096: Mr. HINOJOSA.
H.R. 2102: Ms. MICHELLE LUJAN GRISHAM of New Mexico.
H.R. 2151: Mr. GUTHRIE.
H.R. 2174: Mr. SMITH of Washington.
H.R. 2229: Mr. HINOJOSA.
H.R. 2315: Mr. GENE GREEN of Texas, Mr. HINOJOSA, and Mr. WEBSTER of Florida.
H.R. 2350: Mr. PASCRELL.
H.R. 2368: Ms. SCHAKOWSKY.
H.R. 2411: Mr. CONNOLLY.
H.R. 2446: Mr. COLLINS of New York.
H.R. 2646: Mr. VALADAO, Mr. THOMPSON of California, Mr. BISHOP of Georgia, and Mr. GRAYSON.
H.R. 2663: Ms. STEFANIK.
H.R. 2698: Mr. COLLINS of New York and Mr. HULTGREN.
H.R. 2713: Ms. DUCKWORTH.
H.R. 2726: Ms. DELBENE, Mr. MCKINLEY, Mr. MCGOVERN, Mr. QUIGLEY, Mr. MCNERNEY, Ms. SPEIER, Mr. PALLONE, Mr. LANGEVIN, Mr. RUSH, Mr. CLYBURN, Mrs. BUSTOS, Mr. VARGAS, Mr. BERA, Mr. NOLAN, Mrs. DAVIS of California, Mr. COOPER, Mr. MCDERMOTT, Mr. GARAMENDI, and Mr. SERRANO.
H.R. 2732: Mr. DELANEY.
H.R. 2739: Mr. LONG and Mr. DEUTCH.
H.R. 2802: Mr. GRIFFITH.
H.R. 2817: Mr. SCHIFF.
H.R. 2844: Mr. CONYERS.
H.R. 2849: Mr. RANGEL, Mr. AGUILAR, and Mr. LIPINSKI.
H.R. 2903: Mr. NUNES, Mr. NORCROSS, Mr. COSTA, Mrs. CAPPS, Mr. WILLIAMS, and Mr. WALZ.
H.R. 2942: Mr. GRIFFITH.
H.R. 2962: Mr. NOLAN.
H.R. 2980: Ms. LOFGREN, Mr. LIPINSKI, and Ms. BROWNLEY of California.
H.R. 2992: Ms. MCSALLY.
H.R. 3012: Mr. BISHOP of Michigan.
H.R. 3051: Mr. AL GREEN of Texas, Mr. BUTTERFIELD, Ms. WILSON of Florida, Mr. CROWLEY, Mr. LEWIS, Mr. BRENDAN F. BOYLE of Pennsylvania, Ms. LINDA T. SÁNCHEZ of California, and Mr. FARR.
H.R. 3094: Mr. HARDY.
H.R. 3099: Mr. SESSIONS, Mr. MCKINLEY, and Ms. SLAUGHTER.
H.R. 3198: Mr. ASHFORD.
H.R. 3299: Mr. RODNEY DAVIS of Illinois.
H.R. 3514: Ms. SPEIER.
H.R. 3535: Mr. HANNA.
H.R. 3590: Mr. BOUSTANY.
H.R. 3666: Ms. ESHOO.
H.R. 3684: Mr. KEATING.
H.R. 3706: Mr. BILIRAKIS and Mr. GUTIÉRREZ.
H.R. 3765: Mr. ISSA, Mrs. MIMI WALTERS of California, Mr. HOLDING, Mr. FITZPATRICK, and Ms. GRANGER.
H.R. 3870: Miss RICE of New York.
H.R. 3920: Mr. PITTENGER.
H.R. 4094: Mr. SCHWEIKERT.
H.R. 4247: Mr. LUCAS.
H.R. 4266: Mr. AGUILAR.
H.R. 4275: Mr. NEAL.
H.R. 4352: Mr. FOSTER.
H.R. 4368: Mr. COLLINS of New York.
H.R. 4381: Mr. WALZ.
H.R. 4435: Mr. AGUILAR and Mr. TAKANO.
H.R. 4481: Mr. DONOVAN.
H.R. 4514: Mr. NEWHOUSE, Mr. NORCROSS, and Mr. CRENSHAW.
H.R. 4538: Mrs. WAGNER.
H.R. 4592: Mr. ROKITA and Mr. HULTGREN.
H.R. 4603: Ms. WASSERMAN SCHULTZ, Ms. VELÁZQUEZ, Ms. SPEIER, Mr. BEYER, Ms. WILSON of Florida, Mr. AL GREEN of Texas, Mr. POCAN, Ms. CLARK of Massachusetts, Mr. VARGAS, Ms. TSONGAS, Ms. MATSUI, Mr. THOMPSON of California, Ms. CLARKE of New York, Ms. ADAMS, Ms. ESTY, Mr. SHERMAN, Mr. CÁRDENAS, Ms. NORTON, Mr. LARSON of Connecticut, Mr. MCGOVERN, Mr. AGUILAR, and Miss RICE of New York.
H.R. 4625: Mr. POLIQUIN.
H.R. 4626: Mr. PERRY, Mr. KIND, Mr. POLIQUIN, Mr. KLINE, Mr. BARR, Ms. LOFGREN, Ms. FUDGE, and Mr. WHITFIELD.
H.R. 4662: Ms. MATSUI and Ms. CASTOR of Florida.
H.R. 4681: Ms. KUSTER.
H.R. 4695: Mrs. NAPOLITANO, Ms. ESTY, and Mr. GARAMENDI.
H.R. 4708: Mr. BRADY of Pennsylvania and Mr. MOOLENAAR.
H.R. 4715: Mr. KIND.
H.R. 4756: Ms. PINGREE.
H.R. 4764: Mr. AUSTIN SCOTT of Georgia.
H.R. 4766: Mr. POSEY.
H.R. 4773: Mr. PITTENGER and Mr. BARTON.
H.R. 4813: Mr. BOUSTANY and Mr. MOULTON.
H.R. 4893: Mr. HINOJOSA.
H.R. 4938: Mr. ALLEN, Mr. JEFFRIES, Mr. KING of New York, Mr. BISHOP of Michigan, and Mr. HILL.
H.R. 4955: Mr. SEAN PATRICK MALONEY of New York and Mr. PETERS.
H.R. 5016: Mr. OLSON.
H.R. 5021: Mr. GUTHRIE.
H.R. 5025: Mr. KEATING, Ms. CLARK of Massachusetts, and Mr. KENNEDY.
H.R. 5029: Mr. ASHFORD.
H.R. 5044: Mr. CARNEY, Mr. SCHRADER, Mr. PETERSON, Mr. COOPER, Mr. KIND, Ms. GABBARD, Mr. MCNERNEY, Mr. BECERRA, and Mr. COSTA.
H.R. 5061: Mr. TURNER.
H.R. 5067: Mr. CUMMINGS.
H.R. 5119: Mr. BRIDENSTINE, Mr. BILIRAKIS, Mr. BRAT, and Mrs. MCMORRIS RODGERS.
H.R. 5143: Mr. FINCHER, Mr. LAHOOD, and Mr. MULVANEY.
H.R. 5166: Mr. KELLY of Mississippi, Mr. CRENSHAW, Mr. BOST, Mrs. LUMMIS, Mr. BRIDENSTINE, and Ms. SPEIER.
H.R. 5210: Mr. ADERHOLT, Mr. CRAWFORD, Mr. SIMPSON, and Mr. BILIRAKIS.
H.R. 5224: Mr. CHAFFETZ.
H.R. 5254: Mr. DESAULNIER and Ms. FRANKEL of Florida.
H.R. 5259: Mr. OLSON and Mr. PEARCE.
H.R. 5275: Mr. COLLINS of New York and Mr. HUDSON.
H.R. 5292: Mr. MESSER, Mr. PEARCE, Mr. MOULTON, Ms. KUSTER, Mr. FOSTER, Mr. ROUZER, Mr. BYRNE, Mr. WESTMORELAND, Mr. NORCROSS, Ms. SCHAKOWSKY, Mr. LIPINSKI, Mr. QUIGLEY, and Mr. HARDY.
H.R. 5313: Ms. LOFGREN.
H.R. 5320: Mr. POSEY.
H.R. 5324: Mr. SCHWEIKERT.
H.R. 5333: Mr. YOUNG of Indiana, Mr. LAMBORN, Mr. GARRETT, Mr. ROSKAM, and Ms. MCSALLY.
H.R. 5373: Ms. BROWNLEY of California, Mr. GARAMENDI, Mr. MICHAEL F. DOYLE of Pennsylvania, and Ms. LINDA T. SÁNCHEZ of California.
H.R. 5386: Mr. CARTWRIGHT.
H.R. 5396: Mr. BERA and Mr. LANGEVIN.
H.R. 5404: Mr. LOBIONDO.
H.R. 5406: Mr. COLE.
H.R. 5457: Mr. KLINE, Ms. JENKINS of Kansas, Mr. MCCLINTOCK, and Mr. ZELDIN.
H.R. 5458: Mr. ROSKAM and Mr. BLUMENAUER.
H.R. 5462: Ms. MOORE and Mr. BEN RAY LUJÁN of New Mexico.
H.J. Res. 47: Mr. NORCROSS.
H.J. Res. 85: Mr. GRIFFITH.
H. Con. Res. 19: Ms. DELBENE.
H. Con. Res. 40: Mr. RYAN of Ohio, Mr. DENHAM, and Mr. DONOVAN.
H. Con. Res. 136: Mr. WEBER of Texas.
H. Res. 54: Mr. WEBSTER of Florida.
H. Res. 94: Mr. AL GREEN of Texas.
H. Res. 169: Mr. SABLAN.
H. Res. 590: Mr. CALVERT.
H. Res. 591: Mr. REED.
H. Res. 729: Mr. GIBSON, Mr. YODER, Mr. ROTHFUS, Mr. AMODEI, Mr. AUSTIN SCOTT of Georgia, Mr. GOWDY, Ms. ESTY, Mr. WILLIAMS, Mr. VELA, Mr. MACARTHUR, Mrs. KIRKPATRICK, Mr. PALAZZO, Mrs. COMSTOCK, Ms. DELBENE, Mr. BEN RAY LUJÁN of New Mexico, Mr. CARNEY, Mr. GROTHMAN, Mr. VALADAO, Mr. HARRIS, and Ms. MATSUI.
H. Res. 750: Mr. NEWHOUSE and Ms. VELÁZQUEZ.
H. Res. 753: Ms. JACKSON LEE, Mr. BLUMENAUER, Mr. MEEKS, Mrs. CAROLYN B. MALONEY of New York, Mr. SERRANO, Mr. VAN HOLLEN, Mr. YARMUTH, Miss RICE of New York, Ms. MCCOLLUM, Mr. FATTAH, Mr. BUTTERFIELD, and Ms. WILSON of Florida.
H. Res. 759: Ms. SCHAKOWSKY.
H. Res. 769: Mrs. BEATTY, Ms. ESHOO, and Mr. CARTWRIGHT.

## PETITIONS, ETC.

Under clause 3 of rule XII, petitions and papers were laid on the clerk's desk and referred as follows:

69. The SPEAKER presented a petition of Mr. Gregory D. Watson, a citizen of Austin, TX, relative to urging congress to enact legislation that would establish uniform nationwide infrastructure and procedures for the holding of a Convention to propose an

amendment to the United States Constitution, pursuant to Article V; to the Committee on the Judiciary.

70. Also, a petition of Delaware County Board of Supervisors, NY, relative to Resolution No. 68, urging the Veterans Affairs Administration to streamline requirements in determining conditions for Non-VA Care when veterans are seeking emergency care; to the Committee on Veterans' Affairs.

United States
*of* America

# Congressional Record

PROCEEDINGS AND DEBATES OF THE *114th* CONGRESS, SECOND SESSION

*Vol. 162* WASHINGTON, TUESDAY, JUNE 14, 2016 *No. 94*

# *Senate*

The Senate met at 10:02 a.m. and was called to order by the Honorable JONI ERNST, a Senator from the State of Iowa.

## PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

O God of mountains, stars, and boundless spaces, to You we lift our hearts with gratitude for Your mercy and grace. You are the source of our hope and strength, for we receive guidance from Your faithfulness.

Protect our Senators with shields of honor and integrity as they put their hope in You. May they patiently wait for the unfolding of Your loving providence, remembering that our times are in Your hands. Lord, give them the wisdom to bless every good deed by whomsoever it may be done, rising above strife and division to a unity that heals. May they seek You with such intensity that they will experience the joy of Your continuous presence.

We pray in Your Holy Name. Amen.

## PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

## APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. HATCH).

The senior assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
*Washington, DC, June 14, 2016.*

*To the Senate:*

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable JONI ERNST, a Senator from the State of Iowa, to perform the duties of the Chair.

ORRIN G. HATCH,
*President pro tempore.*

Mrs. ERNST thereupon assumed the Chair as Acting President pro tempore.

## RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

## MASS SHOOTING IN ORLANDO, NATIONAL DEFENSE AUTHORIZATION AND COMMERCE-JUSTICE-SCIENCE APPROPRIATIONS BILLS

Mr. MCCONNELL. Madam President, the terrorist attack in Orlando continues to horrify our country. The FBI and our intelligence community will determine whether that terrorist was in direct contact with ISIL or inspired by ISIL. Either way, this much we know already: ISIL is a disgusting group who crucifies children, enslaves women, and throws gay men to their deaths from rooftops. They are determined to continue exporting their signature brand of inhumanity to our country.

The principal way we can prevent ISIL-inspired or directed attacks is to defeat ISIL. The President has led a campaign intended to contain ISIL which has been insufficient to prevent the attacks in Paris or Brussels or inspired attacks, such as in San Bernardino.

We need to do what we can to fight back now to prevent more heartbreak like we saw this weekend. That means, for instance, better preparing this administration and the next one, regardless of party, to deal with threats like ISIL, and we can do so by passing the National Defense Authorization Act before us. It will provide our men and women in uniform with more of the tools they need to take on these threats. It will strengthen our military posture. In short, it will enhance our ability to take on the challenges currently facing us and better prepare us for those we will face in the future, all while supporting our soldiers with better benefits, improved health care, and the pay raises they have earned.

I thank the Senators from both sides who worked diligently to move this bill forward. My gratitude extends most deeply to the chairman of the Armed Services Committee. Senator MCCAIN has been unwavering in his support for our men and women in uniform. He also understands man's capacity for inhumanity to man better than most of us, and that is why he is so dedicated to taking on these threats. He knows that passage of this bill will present a serious and necessary step toward a safer country that we all want because, look, we are a nation at war. We are a nation under attack. We need to continue taking action to protect our country.

This bill will send a strong signal to the men and women in uniform, it will send a strong signal to our allies, and it will send a strong signal to our adversaries. We need to pass it, and we need to pass it today.

We will have other opportunities this week to keep our country safe and to take on terrorism. We need to defeat, not contain, ISIL, and we need the tools necessary to take down terrorists inspired by its brutal ideology.

The appropriations bill we are about to consider offers important opportunities to continue this debate. We need to be able to better address the threat of lone wolf terrorists. We need to be able to connect the dots of terrorist communications in order to disrupt their

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.



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plans. Republicans have offered ideas to take action in areas like these.

The underlying bill, which passed unanimously out of committee, will advance a lot of important priorities, such as funding for agencies—like the FBI—to fight terrorism and funding designed to help defend against cyber security threats.

Chairman SHELBY and Ranking Member MIKULSKI worked diligently to advance this bill out of committee and bring it to the floor. Members should work with these bill managers if they have ideas they think will make the bill stronger. I mentioned some of them already.

We have made important progress on appropriations bills so far this year. We can continue that progress this week and take further steps to keep our country safe from terrorism.

## RECOGNITION OF THE MINORITY LEADER

The ACTING PRESIDENT pro tempore. The Democratic leader is recognized.

## MASS SHOOTING IN ORLANDO AND DONALD TRUMP'S RHETORIC

Mr. REID. Madam President, throughout history, in times of crisis and tragedy, the American people look to leaders for one thing: leadership. Americans don't want to hear excuses. We don't want to hear self-congratulations, nor do we want to hear scapegoating. It is a very simple concept: We want our leaders to lead.

In the aftermath of Sunday's shooting at the Pulse nightclub in Orlando, FL, a place of celebration for the LGBT community, Donald Trump proved that he is as terrible a leader as he is a businessman. Trump proved he is not the person to lead our Nation through difficult times or, in fact, anytime. Trump failed the most important of tests for a Presidential candidate: how to respond in a crisis. When our citizens are under attack, how do you respond? Donald Trump failed that test. Trump proved he is not the person to lead our Nation through a crisis. He is not Commander in Chief material—underlined and underscored.

It doesn't matter what the problem has been, Trump has failed. Trump isn't the person we want to have his finger on the nuclear button because he is clearly incapable of that responsibility. That is not just me saying it; even the junior Senator from Florida has questioned whether Trump can be trusted with such an enormous obligation. But the fact that Donald Trump can't be trusted with the nuclear codes hasn't stopped Senator RUBIO or many other Republicans from endorsing Trump for the highest office in the land. There is absolutely no question—none—that Donald Trump is not capable enough or experienced enough to have this high-level responsibility. We expect more from a Commander in Chief.

Here is how Trump responded to Sunday's massacre—classic Trump. Within hours of the shooting, Trump first congratulated himself and then began to immediately denigrate Muslim Americans. Trump then suggested that our President and one of Secretary Clinton's aides may be in league with Islamic terrorists. Let me repeat that. Donald Trump suggested that President Obama and one of Secretary Clinton's aides may be in league with Islamic terrorists. Is that outrageous? Of course it is.

It is outrageous for Donald Trump to suggest that the President of the United States, our Commander in Chief, would support terrorists and the murder of innocent Americans, but yesterday, 1 day after the mass shooting—it is the worst in modern American history—Trump, the standard bearer for the Republican Party, went even further. Trump delivered one of the most un-American speeches ever from a major party nominee—ever. Trump was hateful and vicious. He was Donald Trump. He was everything that Republicans knew him to be when they made him the party's nominee. Donald Trump used his remarks to foment hatred against millions of innocent Americans based solely on what? Their religion. He denigrated Muslim Americans—all 8 million of them. The Republican nominee suggested that all Muslim Americans were complicit in the Orlando shooting, saying that they, Muslim Americans, ''know what's going on.'' Trump also renewed his call for a ban on all Muslims coming into the United States. The Trump speech was, as one news outlet called it, ''a dangerous mix of ignorance and arrogance.''

If you are the parent of a Muslim American, how do you explain his speech to your child? If you are not a Muslim parent, how do you explain Trump's speech to your child? You can't. How do you look your son or daughter in the eye and explain that a man running for President is telling your classmates to be suspicious of you and to doubt your loyalty based purely on your religion? You can't explain it. I can't explain it. It is not possible to explain because this level of hate is not comprehensible. It is incomprehensible that any Presidential nominee would foster and promote systemic bigotry, as Trump often does. It is reprehensible and un-American for the nominee of any major party or any party to declare millions of Americans guilty until proven innocent purely by virtue of their religion.

These are frightening times, and I understand that, and Trump's fear and paranoia are making us feel less safe. Trump is fanning the flames of violence and menace. There have already been reports of threats and obscenities being yelled at Muslims in Florida, Chicago, Seattle, and all across the country. Mosques all around the country have been threatened. Donald Trump's rhetoric has been encouraging this scary behavior.

What we have seen from Trump in the 2 days since the Orlando shooting is rank and reckless, but no one should be surprised—this is vintage Donald Trump.

Contrast Donald Trump's actions with the response from our Nation's Muslim communities. Muslim leaders all over America were some of the first to condemn this attack and rally in support of the LGBT community, and the Muslim community has taken part in the blood drive to help victims of the attack, as they always step forward.

But while Americans within the Muslim and LGBT communities are trying to unite Americans in the aftermath of Sunday's shooting, Donald Trump is doing just the opposite. He is doing what he is so good at doing—dividing. Then, in the wake of this awful massacre, Trump tried to cast himself as a friend of the LGBT community. How about that? But it didn't take minutes for a spokesman from the Human Rights Campaign, the Nation's largest gay rights group, to state that Trump is ''no friend'' of the community. What does this say about the Republican Party, that they are endorsing this vile man? It doesn't say much. What does it say about Republican Senators who are backing Trump for President? Not much. What does it say about the Senate Republican leadership, about the Senate Republican leader, who is supporting Trump? Not much. Every time the senior Senator from Kentucky reaffirms his commitment to support Trump he is validating Trump's behavior. He is giving credence to Donald Trump's rabid anti-everything speech—his un-American stance against Muslims, women, Latinos, Blacks, people with disabilities, immigrants, veterans, and others.

If the Senators I have mentioned accept this kind of rhetoric as part of our political dialogue, they are all guilty of normalizing hatred. Senate Republicans are doing just that. When the leader of a major party is promoting unhinged conspiracy theories and calling for hatred against his fellow Americans based solely on their religion, we are in dangerous and uncharted waters. We must make clear that Donald Trump does not speak for us. I am trying to do that. We must stand arm in arm with our Muslim allies around the world who have been victims of terrorism, who say to the radicals: not in my name, not in my name. Remember, Muslims around the world are helping us defeat the terrorists. Who has suffered so much because of this crazy brand of hatred? Who has suffered more than anyone else? Muslims. We don't know how many are dead in Iraq following the invasion—half a million? We know there are at least 300,000 in Syria—Muslims. We must stand arm in arm with our Muslim allies in the world who are victims of this terrorism.

Any Republican who cherishes the American values of religious freedom

and tolerance should immediately do the same and say: not in my name. Republican Senators should say: not in my name. Republicans must do what they haven't had the courage to do—stand up to Trump and say: No more, stop it. He is not a leader. He is unfit to be our President and unfit to stand for the values on which this great country was founded.

As for the Republican leader in the Senate, Senator MCCONNELL should be the first to condemn Trump's hateful rhetoric and reject his Presidential candidacy. Let's hope the senior Senator from Kentucky can bring himself to do just that and do it soon.

Madam President, what is the business of the day?

## NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2017

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will resume consideration of S. 2943, which the clerk will report.

The senior assistant legislative clerk read as follows:

A bill (S. 2943) to authorize appropriations for fiscal year 2017 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

Pending:

McCain amendment No. 4607, to amend the provision on share-in-savings contracts.

Reed (for Reid) amendment No. 4603 (to amendment No. 4607), to change the enactment date.

The ACTING PRESIDENT pro tempore. Under the previous order, the time until 11 a.m. will be equally divided between the two managers or their designees.

The Senator from Rhode Island.

AMENDMENT NO. 4603 WITHDRAWN

Mr. REED. Madam President, I withdraw amendment No. 4603.

The ACTING PRESIDENT pro tempore. The amendment is withdrawn.

The Senator from Florida.

AMENDMENT NO. 4670 TO AMENDMENT NO. 4607

Mr. NELSON. Madam President, I call up amendment No. 4670.

The ACTING PRESIDENT pro tempore. The clerk will report.

The senior assistant legislative clerk read as follows:

The Senator from Florida [Mr. NELSON] proposes an amendment numbered 4670 to amendment No. 4607.

Mr. NELSON. Madam President, I ask unanimous consent that the reading of the amendment be dispensed with.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To improve the amendment)

On page 1, between lines 3 and 4, insert the following:

**SEC. 829B. COMPETITIVE PROCUREMENT AND PHASE OUT OF ROCKET ENGINES FROM THE RUSSIAN FEDERATION IN THE EVOLVED EXPENDABLE LAUNCH VEHICLE PROGRAM FOR SPACE LAUNCH OF NATIONAL SECURITY SATELLITES.**

(a) INEFFECTIVENESS OF SUPERSEDED REQUIREMENTS.—Sections 1036 and 1037 shall have no force or effect, and the amendments proposed to be made by section 1037 shall not be made.

(b) IN GENERAL.—Any competition for a contract for the provision of launch services for the evolved expendable launch vehicle program shall be open for award to all certified providers of evolved expendable launch vehicle-class systems.

(c) AWARD OF CONTRACTS.—In awarding a contract under subsection (b), the Secretary of Defense—

(1) subject to paragraph (2) and subsection (d), and notwithstanding any other provision of law, may, during the period beginning on the date of the enactment of this Act and ending on December 31, 2022, award the contract to a provider of launch services that intends to use any certified launch vehicle in its inventory without regard to the country of origin of the rocket engine that will be used on that launch vehicle; and

(2) may only award contracts utilizing an engine designed or manufactured in the Russian Federation for phase 1(a) and phase 2 evolved expendable launch vehicle procurements.

(d) LIMITATION.—The total number of rocket engines designed or manufactured in the Russian Federation and used on launch vehicles for the evolved expendable launch vehicle program shall not exceed 18.

Mr. NELSON. Madam President, I want to thank the leaders of our Armed Services Committee for working out what had been a difficult situation going forward with regard to assured access to space over a 6-year period starting in fiscal year 2017 and going through fiscal year 2022. We have been able to work this out, and that is the subject of the amendment I have just called up.

The ACTING PRESIDENT pro tempore. The Senator from Arizona.

Mr. MCCAIN. Madam President, does that complete the work on the amendment?

The ACTING PRESIDENT pro tempore. The amendment is the pending business.

Mr. MCCAIN. Madam President, I just want to say to the Senator from Florida that I thank him for his intermediary work and his effort to reach this compromise. He brings unique credentials to this issue, given his experience up in space. Although some have argued that he has never returned, I don't agree with that assessment. But seriously, I thank the Senator from Florida for his intermediary work, without whom this compromise would not have been achieved.

I know the Senator from Florida shares my commitment to freeing this Nation from dependency on the use of Russian rocket engines which then provide an economic boost—in some cases billions of dollars—to Vladimir Putin and his cronies. So I just want to make a special note of appreciation to the Senator from Florida.

Mr. NELSON. If the Senator will yield, I just wish to thank him for his comments. Indeed, some folks wish that I were still in orbit, and I understand that.

I want the Senator to know that I have great affection and great respect for the chairman of our committee and for him and for the Senator from Alabama to be reasonable in finding an accommodation about this so that this country would have assured access to space. Certainly, the Senator from Illinois, as the ranking member of that Defense Appropriations Subcommittee, likewise, has also been in the mix. I am very grateful that this issue is behind us and we can move on.

I might note that there is one technical change we will have to make in the conference committee. It is technical in nature, but it is necessary to get the language right.

I thank the chairman of our committee.

Mr. DURBIN. Will the Senator yield for a question?

Mr. NELSON. The Senator from Arizona has the floor.

Mr. DURBIN. If I could ask for the floor for 2 minutes, I thank the Senator from Florida for his leadership on this issue. It has been a contentious, hotly debated, and in some ways divisive issue between appropriations and authorization committees in the Senate. When Senator NELSON told me he was willing to step up and try to be that bridge over troubled waters, I welcomed his entry into that conversation.

I thank him, Senator GARDNER, Senator BENNET, Senator COCHRAN, Senator SHELBY, Senator MCCAIN, and all who have engaged in this. We have come to the right place, where we are going to be promoting competition, which is good for taxpayers, and we are also going to do it in a way that protects our national security interests.

I thank the Senator from Florida for his leadership on this issue.

Mr. MCCAIN. Madam President, the vote is scheduled for 11 o'clock this morning, and we will be voting on the Defense authorization bill. Unfortunately, we have a situation on the objections of a Senator or Senators that their amendment is not allowed because of the objections of another Senator. In other words, we now have a situation where there are Senators in the Senate for whom it is either their way or the highway, and if they are not having an amendment that is agreed to, then they will object to other Senators' amendments no matter whether those amendments have any validity or any support.

There are a number of them, but there is one that particularly bothers me, which will probably cost the lives of some brave men—mostly men but maybe some women—who assisted us as interpreters in Afghanistan. They are on the list. The Senator from South Carolina pointed out the night letters that go to the interpreters that they are going to be killed—they and their families—for cooperating with

our military and our civilians who are over there, whose work does save lives.

The Senator from South Carolina has been there many, many, many times and has worked with these interpreters. So I will let him speak on this issue. But really, by not allowing this amendment—where the vote would probably be 99 to 1 because we reached an agreement with the chairman of the Judiciary Committee and also with Senator SESSIONS—we are unable. We are unable to provide for the ability of these interpreters to come to the United States because of an unrelated amendment.

I say to my colleagues, that is not the way the Senate should operate. Each amendment should be judged on its own merits or demerits and debated and voted on. So this practice—and we are about to see it on a managers' package now from the other side because their amendment is being objected to—is that we don't move forward with legislation that literally is going to cause the loss of innocent people's lives, whose only crime is that they cooperated and assisted the United States of America and our military in carrying out their duties in Afghanistan. That to me—that to me—is a shameful chapter. It is a shameful comment on the United States of America and honoring our commitments to the brave people who helped us and literally saved American lives.

I ask my colleague from South Carolina, who actually has dealt with these people on many, many occasions, what his view is on this particular issue.

Mr. GRAHAM. I thank the Senator from Arizona.

I want to put this issue and what we are trying to do in the context of what has happened in the last couple of days and what I think is going to happen in the future.

No. 1, there is strong bipartisan support to increase the number of visas available to Afghans who have actively helped us in the war against the Taliban and Al Qaeda in Afghanistan. The reason this is so important is that it is impossible for America to defend herself without partners.

To those who suggest you can win the war against radical Islam without partners, you have no idea what you are talking about. To those who suggest we can't let people come to our country after they risk their lives protecting our soldiers and civilians in Afghanistan and who are protecting us, then you don't understand the war at all. This is radical Islam against the world, not just the Islamic faith. The world should be at war with radical Islam.

As to what happened in Florida, there is no doubt in my mind that these young people were killed by a radical Islamic sympathizer because they were gay. In a radical Islam world, gay people are sentenced to death just simply for being gay. They are thrown off the roofs of homes by ISIL inside of Syria and Iraq. So don't make any mistake about it, the reason these people were killed is because radical Islam judges them to be unworthy of life.

Please make no mistake about it, radical Islamists would kill everybody in this Chamber because we will not bend to their will in terms of religion. Please make no mistake about it, most people in the faith are not buying what these nut jobs are selling.

I have been to Iraq and Afghanistan 37 times, and I can tell you thousands have died fighting radical Islam in Iraq, in Syria, and in Afghanistan because they don't want to live under the thumb of religious Nazis. So the thousands who have helped us as interpreters and who have gone outside the wire with us to make us a more effective fighting force, they have literally risked their lives and their families' lives, and if we don't give them an out, an exit, they are going to get killed, and it is going to be hard to have anybody help us in the future.

I have told Senator LEE, whom I have a strong disagreement with about his approach to the war—basically saying an American citizen has to be treated as a common criminal, not an enemy combatant, for collaborating with the enemy—we have our differences, but I have removed my objection to his amendment with the understanding that I get a vote on my amendment—the Heitkamp amendment—about the Ex-Im Bank, where thousands of jobs are being lost. I want to put on the record that I am ready to let Senator REED move forward if we can get a vote on Ex-Im Bank, where thousands of jobs are at stake.

But we are not voting on any of this. The managers' package is not being voted on. So this is a low point right now. There is very serious business that is being conducted in the Senate that can't move forward because individuals have decided: If I can't have everything I want, nobody is going to get anything.

The bottom line is, the managers' package should move forward. There are a lot of good things in that package. There is a sense-of-the-Senate resolution in that package, coauthored by Senator JACK REED and me, urging President Obama to keep the 9,800 American troops in Afghanistan until conditions warrant their withdrawal; that if he decides to keep the force in place, we support him; if we go to 5,500, Afghanistan is going to fall apart. That is a really big statement in a bipartisan fashion.

As to what happened in Orlando and why it is so important, I have been trying to fight a war, not a crime. For years now, I have been suggesting that the difference between a war and a crime is important. The FBI closed the file on this man because they didn't have enough evidence to charge him with a crime. My goal is to prevent terrorist attacks, not respond to them.

Here is the world I would like to construct; that if by your actions—not by being a Muslim or being this or being that—if by the way you behave and the way you act and the way you talk and the way you engage, you should be treated differently. If you are expressing sympathy to ISIL and other radical Islamic groups, if you threaten your coworkers, telling them that your family is a member of Al Qaeda, if you are associated with a known terrorist and you attend a mosque that is trying to radicalize people, the FBI should never close the file until they are sure you are not a threat, in terms of attacking our homeland. That is the difference between fighting a war and fighting a crime. I am trying to prevent the next attack, not respond to it.

This is not a gun control issue, folks. If gun control could protect the country from attacks by radical Islamists, there would be no Paris. The French have the strongest gun laws on the planet and over 100 French citizens died at the hands of Islamists using weapons: bombs, planes, guns. It is not the instrumentality, it is the attitude. So this is not a gun control problem. We are at war and we are treating it like a crime.

On the Republican side, this is not about banning all Muslims. This man was an American citizen born in Queens. This idea of shutting America off to everybody in the Muslim faith makes it harder to win the war, not easier. We need partners in the faith to destroy radical Islam. It is through that partnership that we will make America safe. So when people call for gun control, you don't understand what is going on here. This is not a gun control issue. If it were, there would be no attacks in Europe. This is a radical Islamic effort—sometimes individually, sometimes collectively—to break our will, destroy our way of life, and we are not dealing with it sufficiently. We should have an approach to this problem as though we are at war. We should follow people who are sympathetic to the enemy, monitor their behavior to prevent what happened in Florida, gather intelligence. We should never close a file against a suspected sympathizer to ISIL because we can't prove a crime. We should keep the file open as long as they are a threat.

I appreciate all Senator MCCAIN has done to strengthen the military. To those who voted against increasing military spending by $18 billion at a time that the military is being gutted, you made a huge mistake. If you want to deal with radical Islam, destroy it over there before it continues to come here, and to do that we need a stronger military. Our Navy and Army are going to be the size of 1940 and 1950, respectively. We are cutting the Marine Corps. We are cutting our ability to defend ourselves, and this $18 billion amendment would restore money to help the military more effectively deal with radical Islam over there so we don't have to fight it here.

To those who look at this as a gun control issue, you are missing the

point. To those who think we should not restore spending, you are not listening to our commanders. Our commanders are begging for more money to more effectively support the force in a struggle we can't afford to lose. To those who think we should declare war on the Islamic faith itself, you have no idea how dangerous that model is. To those who want to close a file because we can't prove a crime when we know the person we are looking at has weird, strange beliefs and is actually acting on these beliefs, then you are making a huge mistake.

Until America gets our attitude adjusted, until we change our policies, until we restore our ability to defend ourselves, this is going to continue.

The President continues to marginalize this, downplaying the threats. This was directed. I don't have any idea that al-Baghdadi called this guy up and said: Go to a night club and shoot on this day, but I know al-Baghdadi has called on everybody sympathetic to his cause to attack during the holy month of Ramadan; attack in place, don't come to Syria. So that is a direction.

It was clear to me, this man had been interviewed on three separate occasions by the FBI, that he was expressing sympathy and allegiance to radical Islam, and that he was associated with a man who went from Florida to Syria, back to Florida, back to Syria, who became a suicide bomber for al-Nusra. There is no way in hell this file should have ever been closed because of political correctness. It should have stayed open until we were sure he was not a threat to us. The goal is to prevent these things, not react to them.

I want to tell you right now that the things we are not talking about in this bill and we can't vote on in this bill are making us less safe. Not allowing these Afghan interpreters—who have risked their lives to protect us by helping us over there—to come to America in larger numbers is going to make it harder to have partners. By insisting that these budget cuts stay in place and not increasing military spending at a time of desperate need is a huge mistake. To my friends on the left and the Libertarians who want to turn the war into crime, it is the biggest mistake of all.

So this is very sad that the U.S. Senate seems to not be able to adjust to the reality that exists and that we all have our petty grievances and we can't move forward as one to strengthen the military, to give our intelligence community the tools they need to protect us, and to have a game plan to win a war we can't afford to lose. In my opinion, we are not having votes that are very important, for no good reason, and this will come back to haunt us.

Last week—and I will end with this—Senator MCCAIN and I were talking about the threats we face. I have been trying the best I can to articulate the difference between fighting a crime and fighting a war. I know what the enemy wants. They want to destroy our way of life and everything we hold near and dear. They want to kill anything that is different. They want everything that America refuses to give them. We are never going to give them what they want, which is the ability to be yourself, the ability to worship God the way you choose, if at all, the ability to be different, the ability to speak your mind and to elect your leaders. That is what they want. We can't afford to give it to them, and we don't have the right attitude or the policies to end a war. It will end one day. People are not buying what radical Islam is selling within the faith. But the longer it goes on, the more endangered we are, and our policies are not working. I am trying my best to change them in a responsible way, consistent with our Constitution, consistent with our values.

I find myself on the floor of the Senate 48 hours after the largest attack since 9/11 unable to move forward on things that matter.

Mr. ALEXANDER. Madam President, section 578 of this year's National Defense Authorization Act, NDAA, is an inappropriate place from which to impose mandates on nearly 20,000 public elementary and secondary schools in 1,225 public school districts across the country.

Legislative language is included in the NDAA this year that dictates disruptive policies on public schools that would create a complicated and confusing system where one school system follows established background checks under State or local law, while a neighboring county must now comply with a new unfunded Federal mandate. This language should not be included in the final version of this bill.

The U.S. Senate takes seriously the goal of ensuring the safety of the more than 50 million children in our 100,000 public schools, including federally connected children. These issues have been and should be discussed, debated, and legislated within the appropriate committees of jurisdiction. Measures related to education are within the jurisdiction of the Senate Health, Education, Labor and Pensions Committee under Rule XXV of the Standing Rules of the Senate, as well as within the jurisdiction of the House Committee on Education and the Workforce under Rule X of the Rules of the House of Representatives for the 114th Congress.

So while it may be appropriate for the Armed Services Committee to dictate background check policies for the 172 schools operated by the Department of Defense, it is not appropriate to use the authorization bill for the Department of Defense to impose mandates on nearly 20,000 public elementary and secondary schools in 1,225 public school districts across the country.

These 20,000 public schools, out of 100,000 total, are being singled out because they receive ''Impact Aid'' funds from the Federal Government under title VII of the Elementary and Secondary Education Act, ESEA, of 1965. The purpose of the program is to ''fulfill the Federal responsibility to assist with the provision of educational services to federally connected children in a manner that promotes control by local educational agencies with little or no Federal or State involvement.''

According to the Government Accountability Office, 46 States already require background checks of some kind for all public school employees, and 42 States have established professional standards or codes of conduct for school personnel. Section 578 of the NDAA would create confusion for all those States and localities, as they are forced to navigate two sets of potentially conflicting background checks policies.

Mr. KAINE. Madam President, today I wish to speak about the fiscal year 2017 National Defense Authorization Act, NDAA. I want to thank Senator MCCAIN and Senator REED for all their work on this Defense bill. This year's floor process has been challenging to say the least, but with their leadership and that of their staff directors, Chris Brose and Liz King, I am confident we can find a meaningful path forward.

I supported this bill out of committee in hopes of having a vigorous debate on some of the proposals I had expressed concern over regarding Defense reform. It was my belief that the public release of this bill would invite greater scrutiny by officials in the Department of Defense to inform floor debate. In anticipation of their concern, I again submitted an amendment that I had offered in committee to initiate a commission on Defense reform to assist Congress in considering future legislation. I have been surprised at the absence of comments about many of the reform proposals. This has contributed to a sense that the concepts were welcome and being embraced by the Department. It wasn't until the administration's response was released, in the midst of the bill being on the Senate floor, that concern was finally noted.

Despite my belief that some of our proposals lack sufficient analysis and have gone too far, I do share the chairman's concern over whether the Department has the ability to adapt and remain successful in today's security environment. I am also concerned that the Department may in fact be mired in duplicative process and complicated organizational designs. Many of the witnesses in front of the Armed Services Committee testified to these facts, but several went on to recommend caution.

On November 10, 2015 in front of a hearing by this committee, Jim Thomas from the Center for Strategic and Budgetary Analysis said, ''all of these ideas would require detailed analysis to fully understand their strengths and avoid outcomes that might inadvertently leave us worse off.'' At that same hearing, we heard from James Locher, a former staff member of the Senate Armed Services Committee during the Goldwater-Nichols reform, who stated

''pinpointing problems was the committee's sole focus for eighteen months. As part of this thorough process, the committee staff produced a 645-page staff study with detailed analyses of each problem area. . . . a hasty reform without a deep appreciation for the origins of the behaviors that currently limit Pentagon effectiveness would be a mistake.'' Additional comments by witnesses like the Honorable David Walker, ''there needs to be a fundamental review and reassessment of the current organizational structure and personnel practices,'' or former Under Secretary of Defense Michele Flournoy, ''it is imperative that we think through the second and third order effects of any changes proposed. . . . great care should be taken to hear the full range of views and consider the unintended consequences,'' should have provided the necessary direction and caution to this committee to pursue a deliberative, well-researched, and open approach.

Many of the reform provisions were drafted by the committee's very skilled professional staff. While I have the full confidence that they crafted proposals to address various challenges in the Department, it is ultimately the responsibility of the members to fully understand them. Despite the numerous hearings and countless witnesses, the only theme that emerged was that reform was needed interspersed with a few conceptual suggestions. To date, no study has proposed the legislation contained within this bill. No officials offered their views for consideration until the bill was on the Senate floor.

In the absence of a debate on the merits of an independent study, investigative work, or official Department views, I suspect many of my colleagues do not have confidence that the proposals address the Department's challenges. Should we require the chairman of the Joint Chiefs to consult with and seek the advice of others? Should the headquarters be reduced in addition to previous reductions? Is an additional 15 percent of staff adequate in a time of war or crisis? Will the new Under Secretary for Research and Engineering make the Department's acquisition process run more efficiently? Last year we removed a pay increase for general officers; this year, we reduced their number by 25 percent. The combination of these two provisions makes me wonder whether we are doing all we can to cultivate the next Eisenhower, Halsey, Abrams, or Dunford.

We made significant reforms in previous years empowering acquisition professionals to have flexibility and offer service chiefs greater ownership of their acquisition programs. We have also charged the Department with necessary authorities to ''hire top talent'' in an attempt to drive innovation. Many of us in the Senate have demanded a more comprehensive military strategy in countering the myriad of threats around the globe. In addition, this bill encourages numerous outreach and coordination programs with our allies and partners. These requests are not hollow or zero-sum. People are required to assist our service chiefs with acquisition programs. People develop more comprehensive doctrines and offset strategies. Hiring and retaining top-talent means just that.

What impact will the reorganization of the Department and significant changes in personnel policies have on our operations in the midst of a two-front cold war and expanding conflict in the Middle East? Do we challenge the advice our Chairman of the Joint Chiefs is providing? How do we get ''top talent'' if each spring we reorganize and cut our Department of Defense workforce? How will a reduction in general and flag officers impact current and future senior officers? What are the secondary effects to changes in combatant command responsibilities? How will our allies and adversaries interpret the reduction or disappearance of general officers in overseas billets? I submit that most of my colleagues do not know the answers to these questions, but I would encourage them to consider them prior to taking similar drastic action in the future.

I share the chairman's desire to improve the organization and capability of the Department of Defense. I know he has reached a comfort level with the reform proposals contained within, that in time I may better understand their impacts. However, I am mindful of the cautions relayed by many of our witnesses. We should take our independent oversight responsibility very seriously. I remain committed to working with my colleagues in a bipartisan fashion and seek a more measured and informed approach to any legislation that has the potential to negatively impact the very Department we seek to improve. It is in this spirit that I offered my amendment on establishing a commission to study Defense reform.

The ACTING PRESIDENT pro tempore. The Senator from Arizona.

Mr. MCCAIN. Madam President, if we can get consent, and individual Senators will relinquish their objections, the Senate is ready to vote on the Shaheen amendment on special immigrant visas for Afghan interpreters, which will save lives, the Moran amendment on Guantanamo, the Gillibrand amendment on the Uniform Code of Military Justice, the Murray amendment on cryopreservation of eggs and sperm, the Corker amendment to authorize the activities of the State Department. We are ready to debate and vote on all of those.

So I hope that if there is objection, the Senators involved will relinquish their objections so we can move forward with those amendments and have final passage.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from New York.

Mrs. GILLIBRAND. Madam President, I ask unanimous consent that it be in order to offer amendment No. 4310, notwithstanding rule XXII, and the Senate vote in relation to the amendment; and that the amendment be subject to a 60-affirmative-vote threshold, with no second-degree amendments in order prior to the vote.

The ACTING PRESIDENT pro tempore. Is there objection?

Mr. MCCAIN. Madam President, with the greatest reluctance, I object on behalf of one Member on this side. I object.

The ACTING PRESIDENT pro tempore. Objection is heard.

Mr. MCCAIN. Madam President, could I also say, as I object—reserving the right to object—the Gillibrand amendment, I do not support, but the Gillibrand amendment deserves debate and a vote in this body. It is a serious issue of the utmost seriousness in the military. The Chair certainly understands that. It has to do with sexual assaults in the military, and it deserves the attention of the entire U.S. Senate—debate and vote. Unfortunately, there is objection.

The ACTING PRESIDENT pro tempore. The Senator from New York.

Mrs. GILLIBRAND. Madam President, I rise to speak about the amendment.

Under our current military justice system, when a servicemember is accused of sexual assault, the decision to prosecute isn't actually made by a trained prosecutor or a lawyer of any kind. In fact, it is made by a colonel or a brigadier general or another high-ranking military officer.

Our commanders are the best in the world when it comes to tactics and strategy, but most of them have little to no experience in legal or criminal matters. And why should they have that experience? Our commanders are not prosecutors. They are not lawyers. They are warfighters, and their job is to keep our country safe, not make legal judgments about whether to prosecute a rape.

The current military justice system has failed our sexual assault survivors for too long.

This amendment very simply takes the decision about whether to prosecute these crimes and gives it to trained, experienced, independent military prosecutors.

We have all the evidence we need that this problem has not gotten better in the last year. We have more data. We have looked at more case files. We have heard from more survivors. It is clear little has changed, despite the Department's persistent claims that things are getting better, that they are making progress.

When the Department of Defense estimates that there are 20,000 servicemembers who are sexually assaulted in a year, that is not progress. When 8 out of every 10 military sexual assault survivors don't report the crime, that is not progress. When 62 percent of survivors are being retaliated against, that is not progress. When more than half of those retaliation cases—58 percent of them—are perpetrated by someone in the chain of command, that is

not progress. When the percentage of survivors willing to report openly has declined for the past 5 years, that is not progress. When it was confirmed by the Associated Press that the Pentagon blatantly misled the Senate in order to skew our debate, that is perhaps the ultimate sign that there has been no progress.

Our military justice system is broken. It is failing our members. And no matter how many marginal reforms we make, as long as commanders with no legal experience are continuing to make important legal decisions on whether to prosecute violent sex crimes, we are not going to solve the problem. Once and for all, let's take the decision to prosecute these crimes and give it to trained, independent military prosecutors. Let's give our military servicemembers a justice system that is worthy of their service.

The ACTING PRESIDENT pro tempore. The Senator from Arizona.

Mr. MCCAIN. Madam President, we have cleared the following amendments to go by voice vote on this side. I understand there are objections on the other side to this list. I want the record to reflect what is on the table from this side. I dislike getting into this back-and-forth because it really serves no purpose, but I ask unanimous consent that the managers' package as portrayed here be printed in the RECORD.

The ACTING PRESIDENT pro tempore. Is there objection to the printing?

There being no objection, the list was ordered to be printed in the RECORD, as follows:

4604, Shaheen; 4141, Corker; 4070, Moran; 4444, Murray; 4090, Burr; 4123, Blumenthal, as modified; 4362, Brown; 4142, Nelson; 4216, Booker; 4392, Cantwell; 4421, Warner; 4461, Manchin; 4426, Boxer; 4596, Wyden; 4297, Donnelly; 4321, Schatz; 4416, Kaine; 4389, Udall; 4431, Schumer; 4527, Casey; 4210, Tester; 4591, Reed; 4678, Reid; 4675, Bennet; 4564, Carper; 4232, Heller; 4376, McCain; 4094, Inhofe; 4195, Rubio; 4243, Portman.

4263, Gardner; 4316, Rounds; 4449, Barrasso; 4136, Hoeven; 4265, Cochran; 4478, Hoeven; 4096, McCain; 4418, Perdue; 4424, Moran; 4500, Johnson; 4399, Daines; 4622, Flake; 4400, McCain; 4377, Hatch; 4155, Boozman; 4242, Peters; 4348, Baldwin; 4372, Nelson; 4427, Boxer; 4428, Boxer; 4443, Murray; 4453, Heinrich; 4471, Peters; 4528, McCaskill; 4577, Schatz.

4583, Warner; 4584, Tester; 4589, Heinrich; 4602, Udall; 4630, Brown; 4631, Peters; 4635, Brown; 4642, Booker; 4073, Paul; 4128, McCain; 4214, Kirk; 4419, Wicker; 4465, Johnson; 4552, Perdue; 4555, Lankford; 4587, Collins; 4601, Rubio; 4617, Portman; 4619, Inhofe; 4620, Ernst; 4638, Kirk; 4666, Murkowski.

The ACTING PRESIDENT pro tempore. The Senator from Washington.

MASS SHOOTING IN ORLANDO

Mrs. MURRAY. Madam President, I want to start by offering my condolences to the families and loved ones of the victims of Sunday's heinous attack in the city of Orlando and to everyone who was affected by this terrible tragedy and act of terror.

While our hearts are with the families and the communities right now, in the coming days we should have a robust debate about how we can all come together to do everything possible to prevent tragedies like that from happening again.

Madam President, I want to turn to the bill we are considering today, the National Defense Authorization Act, which has been described as one that will modernize the military health system and give the men and women of our military better quality care, better access, and a better experience. It has been described as upholding commitments to our servicemembers. I wish I could stand here and say that I agree with that 100 percent, but there is a glaring problem in this bill. It is a problem that really cuts against the idea that our country should be there for the men and women of our military, who risk so much on our behalf, no matter what.

Go to page 1,455 of this massive bill. Buried in a funding chart, there is one line that would zero out a new program intended to help men and women in our military who suffer catastrophic injuries while fighting on our behalf. I don't know how this line got in there. I don't know who thought it was a good idea. I don't know why, but I do know what this is: It is absolutely wrong, and we ought to fix it. That is why I have come to the Senate floor repeatedly over the past week to urge my colleagues to correct this shameful change, and with the clock running down on this bill, now is the time to act.

Let me give this some context. Six months ago the Pentagon announced a pilot program to offer our servicemembers who are getting ready to deploy an opportunity at cryopreservation; in other words, freezing their eggs or sperm. It gave deploying servicemembers not just the ability to have reproductive options in the event they are grievously injured but some deserved peace of mind. It meant they don't have to worry about choosing between defending their country or a chance at having a family someday. This new program was met with widespread praise and relief. It reflected a basic level of respect for servicemembers who are willing to risk suffering catastrophic injuries on our behalf.

I was hoping this new program was a step we could build on, a move in the right direction, an important part of our larger work to help our warriors who have sustained grievous injuries achieve their dream of starting a family. That is why I was so disturbed when I learned this bill would move us in the other way.

Despite what some of my colleagues have been saying, my amendment very deliberately states that it will not divert money from any other important health programs.

I am here again today to ask unanimous consent to have a vote on my amendment that would restore this pilot program. It is hard to imagine any of my colleagues standing up to say that men and women who are willing to make the ultimate sacrifice for their country and for all of us should be denied a shot at their dream of a family. I am hopeful we can have a vote on this, and I encourage my colleagues to support it and step away from what would be a truly shameful mistake.

Madam President, I ask unanimous consent that it be in order to offer amendment No. 4490, relating to fertility treatments, and that the Senate vote in relation to the amendment, with no second-degree amendments in order prior to the vote.

The ACTING PRESIDENT pro tempore. Is there objection?

Mr. MCCAIN. Madam President, with reluctance—and I apologize to the Senator from Washington. This is another amendment that deserves debate and a vote.

Another amendment that has not been brought up that deserves debate and a vote is the issue of women being registered for Selective Service. I want to make it very clear that I have wanted and this body wanted a vote on whether women should be registered for Selective Service, and it was not allowed—not by this individual but only one.

I ask unanimous consent that the Senator from Indiana be recognized, in addition to my time, for 3 minutes——

The ACTING PRESIDENT pro tempore. Is there objection to the pending request?

Mr. MCCAIN. And that the 3 minutes be taken out of Senator REED's time, to the Senator from Indiana.

Mrs. MURRAY. Is there objection to my request?

The ACTING PRESIDENT pro tempore. Is there objection to the pending request?

Mr. MCCAIN. I object.

The ACTING PRESIDENT pro tempore. Objection is heard.

Is there objection to the request from the Senator from Arizona?

Without objection, it is so ordered.

AMENDMENT NO. 4670, AS MODIFIED

Mr. MCCAIN. Madam President, I ask unanimous consent to modify the Nelson amendment No. 4670 with the changes at the desk.

The ACTING PRESIDENT pro tempore. Is there objection?

Without objection, it is so ordered.

The amendment is modified.

The amendment, as modified, is as follows:

On page 1, between lines 3 and 4, insert the following:

**SEC. 829B. COMPETITIVE PROCUREMENT AND PHASE OUT OF ROCKET ENGINES FROM THE RUSSIAN FEDERATION IN THE EVOLVED EXPENDABLE LAUNCH VEHICLE PROGRAM FOR SPACE LAUNCH OF NATIONAL SECURITY SATELLITES.**

(a) INEFFECTIVENESS OF SUPERSEDED REQUIREMENTS.—Sections 1036 and 1037 shall have no force or effect, and the amendments proposed to be made by section 1037 shall not be made.

(b) IN GENERAL.—Any competition for a contract for the provision of launch services

for the evolved expendable launch vehicle program shall be open for award to all certified providers of evolved expendable launch vehicle-class systems.

(c) AWARD OF CONTRACTS.—In awarding a contract under subsection (b), the Secretary of Defense—

(1) subject to paragraphs (2) and (3), and notwithstanding any other provision of law, may, during the period beginning on the date of the enactment of this Act and ending on December 31, 2022, award the contract to a provider of launch services that intends to use any certified launch vehicle in its inventory without regard to the country of origin of the rocket engine that will be used on that launch vehicle; and

(2) may award contracts utilizing an engine designed or manufactured in the Russian Federation for only phase 1(a) and phase 2 evolved expendable launch vehicle procurements.

(3) LIMITATION.—The total number of rocket engines designed or manufactured in the Russian Federation and used on launch vehicles for the evolved expendable launch vehicle program shall not exceed 18.

The ACTING PRESIDENT pro tempore. The Senator from Indiana.

Mr. COATS. Madam President, I will try to be very brief. I know time is constricted.

When I first came to the Senate, we had Members on both sides who had principled positions on any number of issues, but we rarely, if ever, because of our principled stand, denied the opportunity for debate and vote. The Senate is here for the purpose of debating and voting. Sometimes we win, and sometimes we lose. The consequences are recorded, and the bill goes forward—as this one would—to be combined with the House, to go to conference, and finally issue a resolution.

We are not talking about just any piece of legislation here; we are talking about the national security and national defense for our Nation. There are important issues that need to be debated and need to be voted on. Yet we are denied that opportunity. Someone on our side was denied that opportunity. The other side has every right to say: Well, if you are going to play that game, we are going to play that game. That is not how the Senate should operate.

The Senator from New York and the Senator from Washington on the Democratic side have principled amendments. I don't support the amendment from the Senator from New York, but it ought to be debated and it ought to be voted on and it ought to be worked through. That is why we are sent here. No wonder the public across the Nation is so frustrated with us—because we are in total stalemate.

Senator MCCAIN and Senator REED have made every possible effort to move this process forward. Yet here we are. As we know, under the procedures, one person has the right to stop anything from going forward if they use those procedures, and that has happened. It is very unfortunate.

In comparison to my time here earlier when we functioned as the U.S. Senate, we are in total dysfunction because people are not willing to go forward and debate and accept the fact that they win or they lose but the process goes forward.

I thank my colleague from Arizona and colleague from Rhode Island for the opportunity to speak, and I yield back.

The ACTING PRESIDENT pro tempore. The Senator from Arizona.

Mr. MCCAIN. Madam President, I ask unanimous consent to use 1 minute of debate time from the Democratic side.

The ACTING PRESIDENT pro tempore. Is there objection?

Without objection, it is so ordered.

Mr. MCCAIN. I would like to say that my friend from Indiana, who has been a Member of this body for many years and has served in a variety of functions for this Nation, is exactly right. We are now in a situation where, because someone doesn't get a vote on their amendment, everybody else's amendment is not agreed to. That is not the way the Senate was intended to function. That is not the way the Senate should function.

We just heard of two amendments that I strongly object to—both of them—but I want debate and votes on them. Unfortunately, we now have a situation, frankly, on both sides where unless people get their amendment, nobody gets their amendment.

We are now, among other things, putting the lives of the interpreters who have served this Nation and saved American lives in danger by refusing to take up the Shaheen amendment, which allows some of these people to come to the United States of America. When some of them start dying, my friends—and they will, because they get the night letters that they are going to be assassinated, they and their families—I hope they understand what is at stake here, and I certainly wouldn't want that on my conscience.

In addition to my friend LINDSEY GRAHAM's comments about Paris—and we will have plenty of time to talk about it—my favorite quote of all that epitomizes the failure of this President is from January 2014: ''The analogy we use around here sometimes, and I think it is accurate, is if a JV team puts on Lakers uniforms, that doesn't make them Kobe Bryant.'' My friends, that statement will live in infamy. That will go down with ''peace in our time.'' ''If a JV team puts on Lakers uniforms, that doesn't make them Kobe Bryant.'' ISIS is the same as a JV team putting on a Lakers uniform. There has been nothing that I know of more revealing of the attitude and policies of this administration, which is directly responsible, in my view, for the ultimate conclusion of what happened in Orlando.

Madam President, I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Kansas.

Mr. MORAN. Madam President, I am once again on the Senate floor in a series of conversations we have had with my colleagues about the importance of my amendment I would like pending to this national defense authorization bill.

I am discouraged and disappointed that over the weekend no resolution on a variety of issues has been reached, and therefore there would be objection once again if I offered this amendment.

What I am attempting to do and what we have talked about so many times here on the floor and in the hallways of Congress is that Kansans generally are opposed to the closing of Guantanamo Bay as a detention facility and particularly opposed to bringing these detainees to the United States and especially opposed to bringing the detainees to Fort Leavenworth, KS. Unfortunately, this bill includes an amendment offered in committee that allows for the design and planning and construction of a facility, and my amendment is the simple removal of those provisions from this legislation.

It is clear to me that throughout the entire time of the administration of this President, this administration has been unable to provide any cohesive, comprehensive, legally justifiable closure and relocation plan. Yet this plan authorizes the planning and design.

So I rise to once again express my dissatisfaction and anger with the Senate for its inability to do its job. Whether or not my amendment would prevail at the moment is not the issue; it is whether or not there can even be a vote on what I consider to be a very important issue to Kansas and to the country.

I appreciate the efforts by the chairman of the committee, who has assured me that he supports this amendment, and through no fault of his own, we are unable to take a vote to demonstrate that support in the Senate.

Madam President, I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Arizona.

Mr. MCCAIN. Madam President, I say to the Senator from Kansas, we had an agreement to have this taken by voice vote, just as we had an agreement to take up the Shaheen amendment as well, with overwhelming support in the Senate to save the lives of these interpreters. Unfortunately, one or two individual Senators blocked any progress on that.

I want to assure the Senator from Kansas that we will do what is necessary to ensure that this amendment is enacted into law.

The ACTING PRESIDENT pro tempore. The Senator from Rhode Island.

Mr. REED. Madam President, I ask unanimous consent for 1 additional minute.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REED. Madam President, I wish to underscore what the chairman has said. We worked very closely with Senator MORAN, Senator SHAHEEN, and many others, including Senator GILLIBRAND and Senator MURRAY, to come up with a package.

As the chairman announced previously, if this package had moved, it

would have also unlocked numerous other amendments that we had cleared on both sides. But, unfortunately, because of the objection of an individual whom the chairman has cited, we are now coming to final passage.

With that, I yield the floor.

The ACTING PRESIDENT pro tempore. Under the previous order, all postcloture time on S. 2943 has expired.

VOTE ON AMENDMENT NO. 4670, AS MODIFIED

The ACTING PRESIDENT pro tempore. The question is on agreeing to amendment No. 4670, as modified, offered by the Senator from Florida, Mr. NELSON.

Is there any further debate on the amendment?

The Senator from Rhode Island.

Mr. REED. Madam President, I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. COATS. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. FLAKE). Is there objection?

Without objection, it is so ordered.

The question is on agreeing to the Nelson amendment No. 4670, as modified.

The amendment (No. 4670), as modified, was agreed to.

VOTE ON AMENDMENT NO. 4607, AS AMENDED

The PRESIDING OFFICER. The question is on agreeing to amendment No. 4607, as amended, offered by the Senator from Arizona, Mr. MCCAIN.

Is there any further debate?

The amendment (No. 4607), as amended, was agreed to.

The bill was ordered to be engrossed for a third reading and was read the third time.

The PRESIDING OFFICER. The bill having been read the third time, the question is, Shall it pass?

Mr. COATS. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from California (Mrs. BOXER) and the Senator from Vermont (Mr. SANDERS) are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 85, nays 13, as follows:

[Rollcall Vote No. 98 Leg.]

YEAS—85

| | | |
|---|---|---|
| Alexander | Brown | Cochran |
| Ayotte | Burr | Collins |
| Baldwin | Cantwell | Coons |
| Barrasso | Capito | Corker |
| Bennet | Cardin | Cornyn |
| Blumenthal | Carper | Cotton |
| Blunt | Casey | Daines |
| Booker | Cassidy | Donnelly |
| Boozman | Coats | Durbin |
| Enzi | Kirk | Rubio |
| Ernst | Klobuchar | Schatz |
| Feinstein | Lankford | Schumer |
| Fischer | Manchin | Scott |
| Flake | McCain | Sessions |
| Franken | McCaskill | Shaheen |
| Gardner | McConnell | Shelby |
| Graham | Menendez | Stabenow |
| Grassley | Mikulski | Sullivan |
| Hatch | Moran | Tester |
| Heinrich | Murkowski | Thune |
| Heitkamp | Murphy | Tillis |
| Heller | Murray | Toomey |
| Hirono | Nelson | Udall |
| Hoeven | Perdue | Vitter |
| Inhofe | Peters | Warner |
| Isakson | Portman | Whitehouse |
| Johnson | Reed | Wicker |
| Kaine | Roberts | |
| King | Rounds | |

NAYS—13

| | | |
|---|---|---|
| Crapo | Markey | Sasse |
| Cruz | Merkley | Warren |
| Gillibrand | Paul | Wyden |
| Leahy | Reid | |
| Lee | Risch | |

NOT VOTING—2

| | |
|---|---|
| Boxer | Sanders |

The bill (S. 2943), as amended, was passed.

(The bill, as amended, will be printed in a future edition of the RECORD.)

The PRESIDING OFFICER. The Senator from Missouri.

## ORDER OF PROCEDURE

Mr. BLUNT. Mr. President, I ask unanimous consent that the Senate proceed to a period of morning business, with Senators permitted to speak for up to 10 minutes each until 12:30 p.m. today; further, that at 12:30 p.m. the Senate stand in recess subject to the call of the Chair; and that notwithstanding rule XXII, the vote on the motion to invoke cloture on the motion to proceed to H.R. 2578 occur when the Senate reconvenes from this recess.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. BLUNT. Mr. President, for the information of Senators, the cloture vote on the motion to proceed to the Commerce-Justice-Science appropriations bill will occur immediately following the official photo at 2:15 p.m. today.

## MORNING BUSINESS

The PRESIDING OFFICER. Under the previous order, the Senate will be in a period of morning business until 12:30 p.m., with Senators permitted to speak therein for up to 10 minutes each.

The Senator from Arizona.

## NATIONAL DEFENSE AUTHORIZATION BILL

Mr. MCCAIN. Mr. President, I want to thank the 85 members who voted for the bill, and I would like to criticize the 13 who voted against it.

I think this is a good bill. I want to thank Senator REED for his cooperation and the effort that has been made in our committee on a bipartisan basis. If it were not for his cooperation and assistance and partnership—equal partnership—we would not have been able to have a bill of these significant numbers.

I want to thank the Members for their votes. But I would also like to point out that, as happy as I am about the size of the vote, we left out some very important amendments. Particularly, we left out one that has to do with interpreters who are being slaughtered as we speak because they are the No. 1 targets for the Taliban and for ISIS.

As I take pleasure in the size of the vote, I would also urge my colleagues that when we take up a bill of this significance, not every Senator can have his or her way. Not every Senator can have their amendment, particularly when it is not agreed to on the other side. So I have to say, I blame a few Senators who believe it is their way or the highway. I hope that when we move forward with other legislation, we can have amendments, debate, and vote. That is what the Senate is supposed to be about.

Finally, I again thank Senator REED and his staff for all of their cooperation and assistance. We intend to go to conference and get a bill to the President's desk.

I would point out to my colleagues that this legislation is probably the biggest reform enacted by the Senate Armed Services Committee and the Senate since Goldwater-Nichols some 30 years ago. There are fundamental reforms in the military and how they do business, and that is very badly needed.

We had a hearing a couple of weeks ago about an F–35. The first time the F–35 began production was 15 years ago. I change one of these every 18 months. Our acquisition system is broken; it needs to be fixed. There are billions and billions of dollars of cost overruns that we need to fix if we are going to have the confidence of the American people in their tax dollars being spent wisely.

Again, I thank my friend and colleague from Rhode Island.

I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. REED. Mr. President, let me commend and thank the chairman on his leadership. He began this process with great deliberation months ago by bringing together experts on defense organization—experts on military and strategic policy. Through a series of many hearings, we were able to craft significant legislation reforming the operations of the Department of Defense. We will now go to conference and begin to work to improve that legislation. I think improvements can be made with respect to the changes in the context of Goldwater-Nichols reorganization. But I think the chairman's leadership was absolutely essential and incredibly productive in this process.

We have had debate on a number of issues on the floor. I think we are now

at the point where we should be, not only continuing our efforts to get this bill passed but, once again, underscoring the need to eliminate sequestration, which is looming on the horizon. When we don't have the relief afforded by last year's temporary agreement, we will be dealing with numbers that will not allow our military to perform their basic mission of protecting the United States. Therefore, we have to start working on this issue of sequestration. As I suggested, it applies not only to the Department of Defense but to other agencies of the Federal Government.

Through the very careful leadership of the chairman, we were able to come up with a working and I think workable compromise with respect to Russian engines without surrendering the basic principle that the chairman had enunciated that we should not be relying on Russian engines to send our technology into space.

As the chairman also indicated, there are several issues that we could not reach consensus on and which deserve not only a vote but in many cases deserve passage.

Senator SHAHEEN has worked tirelessly. I have never seen a colleague work so intensely, so thoughtfully, so professionally, literally going from office to office asking for support for the Afghan interpreters—individuals who have already been targeted in many cases because of their help to the United States. If we don't have this legislation passed, then not only will we send a terrible message to these individuals who have served with us and sacrificed along with us, but also to succeeding generations who will not come to our aid because they are afraid of the consequences. So not only looking back at justice and equity for people who helped us but looking forward to being able to operate in not just Afghanistan but other areas of the world, I think it was necessary to not only bring up the Shaheen amendment but to pass it.

As the chairman pointed out, Senator GILLIBRAND has a very important amendment with respect to sexual assault in the military. She has done remarkable work with respect to the Uniform Code of Military Justice. She has worked very closely with many colleagues.

I must also thank Senator CLAIRE MCCASKILL for her extraordinary efforts. There are many provisions in this bill that Senator GILLIBRAND has included, but there is one very important to her about the role of the commander. That issue deserves a debate. Like the chairman, I do not agree with the conclusion, but I certainly believe that she should have had a vote.

Senator MURRAY also came here with a very important amendment, cryopreservation for soldiers. As they go overseas and they do want to have a family, there is the risk in battle which could prevent that, and this is a procedure which would allow them not only to serve their country but in the event of them being wounded, they could still have a family. Again, many people have different views on this particular amendment, but I believe a vote would have been in order.

These are three issues, but these issues cannot undercut the incredible reforms that the chairman inspired with the bill and the thoughtful debate and ultimately the conclusion—strong bipartisan support for this initiative.

I want to thank the staff because we could not have done this without them. I want to particularly thank Chris Brose and all of his colleagues on the Republican side. They did a remarkable job.

I want to individually thank my staff: Jody Bennett, Carolyn Chuhta, Jon Clark, Jonathan Epstein, Jon Green, Creighton Greene, Ozge Guzelsu, Mike Kuiken, Gary Leeling, Kirk McConnell, Maggie McNamara, Mike Noblet, John Quirk, Arun Seraphin, and my staff director, Elizabeth King.

Let me thank the floor staff too. Without Gary and Laura and others on the floor, we would not have gotten to a conclusion.

With that Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. MCCAIN. Mr. President, I thank my friend from Rhode Island and look forward to the conference and, for the 54th straight year, completing a bill where the Congress of the United States sends to the President and the President signs into law the National Defense Authorization Act.

I don't know of a greater responsibility that we have, and, despite our differences and issues, I think that was why the vote was as overwhelming as it was today. Unfortunately, the two Senators from Idaho were uninformed on the importance of this issue.

Mr. President, I yield the floor.

Mr. REED. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. PERDUE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

## COMMERCE-JUSTICE-SCIENCE APPROPRIATIONS BILL

Mr. PERDUE. Mr. President, I rise today to speak very briefly to highlight my opposition to the cloture motion on the appropriations bill for the Department of Commerce, Department of Justice, and the Science agencies and to discuss an issue of critical importance to my home State of Georgia and what I think is a direct abuse of what the Founders intended for Senate debate.

For over 20 years, Alabama, Florida, Georgia, and the Army Corps of Engineers have been engaged in various lawsuits over water rights among those three States. Georgia has two reservoirs in question—Lake Lanier and Lake Allatoona—that are operated by the Corps, that provide drinking water for Metro Atlanta, and that provide water downstream for the Chattahoochee, Flint, Coosa, and Tallapoosa Rivers. These river basins also provide water to South Georgia and parts of Alabama and Florida.

Currently, litigation is pending in the U.S. Supreme Court, the Federal DC district court, and the U.S. District Court for the Northern District of Georgia. Negotiations are also ongoing between the State governments on this very topic, and I believe they are closer to a solution right now than we have ever been.

Clearly, this is an issue that should be left to the States to settle through negotiation and, if needed, litigation. But now another attempt is being made by some in the Senate to surreptitiously influence the courts through language included in the report that accompanies this CJS bill.

We will vote on that bill sometime this afternoon. I strongly oppose this bill. This is the business of the States and should not be resolved or influenced in this manner. Let me be clear. It is not this body's place to try and tip the scales in any way on this matter.

Furthermore, we have already had this fight. This same language was inserted last year during debate over the omnibus spending bill. Then it was removed after further examination and explanation was given to leaders in both Chambers over its purpose. Let me reiterate that. When the leaders of this body and the leader in the House saw what was really happening in this language, they both independently removed the language. It was removed then, and nothing has changed to merit having this debate again in this Senate this year.

Multiple lawsuits and negotiations between the States are ongoing. There is nothing unusual about that. Any attempt to create a role for Congress during the appropriations process on this issue would set a dangerous precedent and should alarm every Senator who cares about the rights and integrity of the States. Injecting Congress into this would give an unjust advantage to other States involved, stripping away any incentive for them to negotiate in good faith with our State of Georgia.

Furthermore, this congressional involvement would establish a dangerous precedent for any State involved in water resource negotiations. The negotiations on water rights in the West make these pale in comparison. That is not a role our Founders intended for Congress to play, and inserting the Federal Government into another issue where it doesn't belong would be emblematic of why folks back home are so fed up with the dysfunction in Washington.

For these reasons and others, as I will discuss throughout this week as

we debate this bill, I will definitely vote no on advancing to the CJS appropriations bill.

I yield back and note the whip is in the Chamber.

The PRESIDING OFFICER. The majority whip.

## NATIONAL DEFENSE AUTHORIZATION BILL

Mr. CORNYN. Mr. President, the Senate is demonstrating its serious commitment to supporting our military, and it is a good thing. In passing the Defense authorization bill, a bipartisan piece of legislation, we authorized funding for training and for the ever-evolving threats our troops are meeting around the world. It will also give our men and women in uniform the most up-to-date equipment, including newer and more capable aircraft and vehicles.

Fortunately, the bill also authorized needed improvements at military facilities, such as construction projects in my State at Fort Hood, Joint Base San Antonio, the Red River Army Depot, and Ellington Field, and provided a much needed and well-deserved pay raise for our troops. I am glad we were able to get through this process, get this bill done, making sure our military is ready to face any potential threat around the world.

## MASS SHOOTING IN ORLANDO

Mr. CORNYN. Mr. President, I know the country is in shock and still trying to evaluate the terrorist attack in Orlando as we continue to learn from the FBI's investigation. The attack killed almost 50 people and of course left dozens injured.

According to the latest reports, one of the victims was Frank Escalante from Weslaco, TX. My heart goes out to Frank, his family and friends, and all those others who lost loved ones early Sunday morning and to those living with the wounds they sustained in that terrible attack. With this act of violence and hatred, Orlando sadly joins a growing list of American cities and cities around the world changed forever by radical Islamic extremism.

The jihadist, like those in San Bernardino before him, declared his allegiance to the Islamic State, and like the two Boston Marathon bombers, he was previously investigated by the FBI for connections to terrorists or known terrorist groups that carried out attacks similar to the gruesome attacks in Paris last November. Like those terrorists, the terrorist in Orlando targeted hundreds of unarmed civilians, and ISIS has used the Internet to urge lone wolves to imitate these types of attacks. In other words, not only are we concerned about people in the Middle East who have pledged allegiance to ISIS coming to the United States, we are concerned about Americans who are traveling from the United States, going there and training, and then coming back home. But the worst, and perhaps the most difficult of all to deal with, are American citizens, such as this shooter, who are radicalized in place, and of course this is the biggest challenge for the FBI. We must now come together and not only mourn and grieve those lives lost, but we need to also try and make a difference. It is time to act.

The Orlando attack was not just a random act of violence. It was a calculated act of terror. By aiming his gun at innocent civilians, this jihadist opened fire on our freedoms, our way of life, and the bedrock principles that make us a diverse and vibrant democracy. We have to take these threats seriously and do everything we can to counter the ideology that provides a threat to our security, both within and without our borders.

We also need an honest conversation about how to move forward on legislation that might have the effect of preventing attacks like this in the future. Some of those conversations are already happening, and I hope we will not stop until we make some progress. One place we can start is with a measure I introduced last year that would prevent known or suspected terrorists from purchasing firearms in the first place. It would not just block someone from buying a gun because of mere suspicion but would set up a process to actually detain—if based on evidence they are deemed to be a threat to society—and prevent them from not only purchasing a firearm but put them behind bars where they can't be a danger to other people. If potential terrorists are dangerous enough not to be allowed to own a gun, then I think they are dangerous enough to be taken off the streets. We shouldn't forget that a person who feels compelled to commit a terrorist act will not be stopped by just being unable to legally purchase a firearm. The 9/11 attackers used box cutters and airplanes. The Boston Marathon bombers used homemade explosives, and the terrorists in Paris and Brussels used illegal firearms and suicide vests.

In the case of the Orlando attacker, it does not appear he was on a watch list at the time he purchased the weapons he used to carry out this horrific attack. In fact, the FBI had twice cleared him of being an active terror threat. We need to be clear-eyed about this if we are actually serious about stopping events like this in the future.

I believe we do need to go further and do more to arm our law enforcement officers with the tools they need in order to counter terrorists and defend communities. FBI Director James Comey has outlined—with great clarity and specificity—how great a threat we face from extremists within our borders, and he made the point that the FBI has opened investigations in all of their FBI field offices around the country; that is, investigations of people being radicalized in place and doing the terrible deed that the shooter in Orlando did early Sunday morning.

If the FBI Director says this is an urgent need, we ought to act. Too often the FBI and other local law enforcement officers have to operate with one hand tied behind their back because they can't access key pieces of information like encrypted data. We saw that in an attempted terrorist attack in Garland, TX, last year, on the day of the ISIS-inspired attack just northeast of Dallas. Before the two jihadists—unfortunately traveling from Phoenix—arrived in Garland, they exchanged more than 100 different messages with terrorists overseas. Unfortunately, the FBI still doesn't have access to those communications because they are encrypted. That means law enforcement could still be missing critical information that could uncover future plots or identify more terrorists, both abroad and here at home.

The Garland case is not unique. The FBI is routinely hamstrung by outdated policies that make their job of protecting the homeland more difficult. We saw another example of that in San Bernardino, CA. We have to address this major policy gap. I hope the Senate has an opportunity to consider an amendment I filed to a bill that would update the Electronic Communications Privacy Act. It would help FBI agents get access to critical information faster to prevent terrorist attacks. The FBI Director has made it clear that this is his top legislative priority, and it is also supported by President Obama and his administration.

I believe it is our duty, now more than ever, to do something about it and make sure the FBI has critical counterterrorism tools to be able to identify potential threats before they commit horrific acts of violence like we saw in Orlando. It is clear the threats are on our doorsteps, and we should be willing to give those on the front lines of the counterterrorism fight faster access to critical information so they can identify terrorists and thwart those attacks. I am not talking about content of communications—at least initially. We know under the Fourth Amendment to the U.S. Constitution that law enforcement has to demonstrate probable cause to get access to content of online communication, but there is a whole host of information that identifies email addresses, Internet Protocol addresses, and the like, that could help the FBI connect the dots. If we are expecting the FBI to connect the dots in terrorist attacks and prevent other tragedies such as that in Orlando, then we ought to give them access to all the dots.

I hope this week, as we debate what the appropriate response is to dealing with these acts of mass terror, we look at the legislation I introduced last December that would notify the FBI in the event someone on a watch list attempts to purchase a firearm and then give the FBI a chance, if the evidence warrants it, to detain that individual and deny them access to the firearm. Moreover, I hope we will also provide

the FBI with additional tools in order to identify those radicalized Americans in place who pose a potential threat here on the homeland.

Finally, we must do more to counter the venomous ideology pedaled by ISIS by hitting them in their safe havens abroad. I am still amazed when the President refers to ISIS as the JV team. Yet ISIS seems to be the best game going for terrorists in the Middle East. Indeed, I recently traveled with members of the Homeland Security Committee in the House to Tunisia. There have been as many as 100 Tunisians who have traveled to Libya and trained with other foreign fighters and then hope to make the short jump into Europe via Italy and then potentially commit terrorist attacks there or even travel to the United States. Many of those countries are visa waiver countries—38 different countries are visa waiver countries. If you make it into Europe through a visa waiver country, you can travel to the United States without a visa. That is a potential threat to the United States.

We need to deal with ISIS seriously, which means we need a strategy to crush ISIS and prevent them from not only killing innocent civilians in the Middle East, as we saw when some 400,000 Syrians died in Syria—Syria started out as a civil war, but now it appears to be attracting terrorists from all across the region. We need to deal with the threat of ISIS as a serious national security matter and not just as a law enforcement exercise, where we act after the fact to investigate it and then perhaps prosecute people and put them behind bars. There is nothing we can do to punish a potential terrorist for taking the lives of 49 people in Orlando, especially when they kill themselves in the attack. We ought to be about preventing those attacks and not just prosecuting the culpable once the attack is over.

Earlier today we passed the national defense authorization bill and gave our military men and women in uniform the resources they need in order to combat this evil outside our borders, but what we need most of all in this fight against radical Islamic ideology is leadership from the White House, a strategy, which we are still waiting for, and a commitment to root out and destroy ISIS and its affiliates.

I get the sense that the President and his national security team feel like this is something they can contain, but this is not something they can contain. Maybe they can hope to contain the people fighting in the Middle East, but of course we know what has happened there. Maybe they can hope to catch people traveling from the Middle East to the United States, but it is not 100 percent secure. We know for sure that the preeminent threat here in the homeland is people being radicalized in place through social media and obviously being instructed to kill Americans where they live. This group is growing in strength across North Africa, as I mentioned in places like Libya, which is now a failed state because of the flawed strategy that the administration had after they took out Muammar Qadhafi. It seems as though we learned nothing from Iraq or any of our other experiences in the region.

Now is the time for coming together to face this enemy that seeks to upend our very way of life. This is not the time to downplay the evil that perpetuates this violence, and it is also not the time for show votes on things like gun control.

This individual in Orlando, who murdered 49 people and injured so many more, had a firearms license since 2011. He was a licensed security guard. He was not on a watch list at the time he committed this horrific act. So passing some legislation dealing with people on watch lists, such as the Senator from California offered last December, would have done nothing to prevent this attack.

We ought to be about finding a way to come together on a bipartisan basis to make sure this sort of travesty is not repeated over and over and over again. The only way we are going to do it is to get serious about giving the FBI the tools they need in order to fight and crush ISIS and its dangerous ideology where it resides in the Middle East. We ought to take that opportunity this week. We need to focus on the threat and how to better protect our country.

I look forward to working with my colleagues in other ways, exploring other ideas they may have to prevent tragedies like Orlando, San Bernardino, and Boston from happening in the future.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. TILLIS. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. CRUZ). Without objection, it is so ordered.

## RECESS SUBJECT TO THE CALL OF THE CHAIR

Mr. TILLIS. Mr. President, I ask unanimous consent that the Senate stand in recess under the previous order.

The PRESIDING OFFICER. Without objection, it is so ordered.

Under the previous order, the Senate stands in recess subject to the call of the Chair.

Thereupon, the Senate, at 12:27 p.m., recessed subject to the call of the Chair and reassembled at 2:40 p.m. when called to order by the Presiding Officer (Mr. ALEXANDER).

## CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the motion to proceed to Calendar No. 120, H.R. 2578, an act making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes.

Mitch McConnell, John Cornyn, Mike Crapo, Richard C. Shelby, Richard Burr, Daniel Coats, Ben Sasse, Roger F. Wicker, Thom Tillis, Steve Daines, Chuck Grassley, Susan M. Collins, Thad Cochran, James Lankford, Lamar Alexander, John Hoeven, Roy Blunt.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the motion to proceed to H.R. 2578, an act making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Oklahoma (Mr. LANKFORD).

Mr. DURBIN. I announce that the Senator from California (Mrs. BOXER) and the Senator from Vermont (Mr. SANDERS) are necessarily absent.

The PRESIDING OFFICER (Mr. PORTMAN). Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 94, nays 3, as follows:

[Rollcall Vote No. 99 Leg.]

YEAS—94

| | | |
|---|---|---|
| Alexander | Fischer | Nelson |
| Ayotte | Flake | Paul |
| Baldwin | Franken | Peters |
| Barrasso | Gardner | Portman |
| Bennet | Gillibrand | Reed |
| Blumenthal | Graham | Reid |
| Blunt | Grassley | Risch |
| Booker | Hatch | Roberts |
| Boozman | Heinrich | Rounds |
| Brown | Heitkamp | Rubio |
| Burr | Hirono | Sasse |
| Cantwell | Hoeven | Schatz |
| Capito | Inhofe | Schumer |
| Cardin | Johnson | Scott |
| Carper | Kaine | Sessions |
| Casey | King | Shaheen |
| Cassidy | Kirk | Shelby |
| Coats | Klobuchar | Stabenow |
| Cochran | Leahy | Sullivan |
| Collins | Lee | Tester |
| Coons | Manchin | Thune |
| Corker | Markey | Tillis |
| Cornyn | McCain | Toomey |
| Cotton | McCaskill | Udall |
| Crapo | McConnell | Vitter |
| Cruz | Menendez | Warner |
| Daines | Merkley | Warren |
| Donnelly | Mikulski | Whitehouse |
| Durbin | Moran | Wicker |
| Enzi | Murkowski | Wyden |
| Ernst | Murphy | |
| Feinstein | Murray | |

NAYS—3

| | | |
|---|---|---|
| Heller | Isakson | Perdue |

NOT VOTING—3

| | | |
|---|---|---|
| Boxer | Lankford | Sanders |

The PRESIDING OFFICER (Mr. PERDUE). On this vote, the yeas are 94, the nays are 3.

Three-fifths of the Senators duly chosen and sworn having voted in the affirmative, the motion is agreed to.

## COMMERCE, JUSTICE, SCIENCE, AND RELATED AGENCIES APPROPRIATIONS ACT, 2016—MOTION TO PROCEED

The PRESIDING OFFICER. The clerk will report the motion to proceed.

The senior assistant legislative clerk read as follows:

Motion to proceed to Calendar No. 120, H.R. 2578, a bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. LEAHY. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. FRANKEN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. AYOTTE). Without objection, it is so ordered.

### MASS SHOOTING IN ORLANDO

Mr. FRANKEN. Madam President, I rise to address the tragic events in Orlando, FL. In the early hours of Sunday, a gunman walked into Pulse, a popular, crowded LGBT nightclub, on Latin night and opened fire, taking the lives of 49 people and wounding 53 more in an act of terror that has been called the worst mass shooting in American history. It was also the deadliest attack on the lesbian, gay, bisexual, and transgender community that our Nation has ever known.

State and Federal authorities are continuing their investigation into the assailant and what his motives were that night. I believe 44 of the surnames of those who died were Latino. According to the FBI, the shooter had previously been investigated for potential ties to terrorist organizations, and during the attack, the shooter called authorities and pledged his allegiance to ISIL.

We must do everything in our power to eradicate this evil, combat recruitment and radicalization, and we must make sure our efforts and our rhetoric do not scapegoat an entire community based on the actions of a single sick individual.

The investigation is ongoing, and many details are still emerging, but we know this: The 49 men and women who lost their lives on Sunday night were murdered by a man with hate in his heart—perhaps even hate directed within—and an assault weapon in his hand.

Following each and every tragic shooting, one thought haunts me, and that is that we in Congress are failing the American people. We have failed to answer their repeated calls to address gun violence in this country. We have failed to take steps necessary to make our communities safer, and as a result we are complicit in creating the circumstances that give rise to these events. We can't pretend this part isn't on us.

Our State of Minnesota has a proud tradition of responsible gun ownership. Generations of Minnesotans have learned to hunt from their parents, grandparents, aunts and uncles, friends and neighbors, but when I speak to constituents on this issue, the message is clear: Minnesotans want Congress to take commonsense steps to reduce gun violence and ensure their family's safety. There is a balance to be struck here, and I strongly believe that we are capable of striking that balance.

The Second Amendment doesn't protect the rights of everyone to carry whatever weapon he likes in any place he wishes for whatever purpose he wants. The Second Amendment does not entitle criminals, potential terrorists, or people with serious mental illness to carry guns. It does not entitle Americans to own guns designed to slaughter scores of people in seconds.

We can't turn back time. We can't bring back the lives we have lost. But, for God's sake, what is it going to take? How many tragedies like this does this Nation have to endure before we find the moral conviction to do something about gun violence?

It is important for us to acknowledge not just how this atrocity was committed but who the gunman targeted, and where. In his remarks on Sunday, President Obama rightly drew the Nation's attention to the site of this most recent tragedy—to Pulse, a gay nightclub that Barbara Poma opened to honor the memory of her brother John, whom she lost to AIDS years earlier. Barbara explained that her family was strict and had a strong sense of tradition. Being gay was frowned upon. Coming out could not have been easy for John, but when he did, his family welcomed him with acceptance and love. Pulse was named for John's heartbeat, and it was a place, according to his sister, where he was ''kept alive in the eyes of his friends and his family.''

In describing the shooting, President Obama explained that ''the place where they were attacked is more than a nightclub—it is a place of solidarity and empowerment where people have come together to raise awareness, to speak their minds, and to advocate for their civil rights.'' But it is also important to note that, like so many of the bars and nightclubs serving the LGBT community, Pulse was a place where people have come together to feel safe. Like the historic Stonewall Inn in New York City, the birthplace of the gay rights movement, and Bar 19, a pub in Loring Park that has served Minneapolis's gay community since 1952, Pulse was a sanctuary.

Not everyone is welcomed by their family and their friends with acceptance and love. Even today, not everyone is able to walk down the street holding the hand of their loved one without fear. For those in search of solidarity in their communities, and for those in search of safety, Pulse provided refuge. Regrettably, even today, that refuge is sorely needed. Despite long overdue victories, leaders in the LGBT movement have perceived an increase in violence directed against their community. LGBT Americans continue to face threats, intimidation, and violence—on the street, in the workplace, and at school. By and large, they remain vulnerable to discrimination.

As Americans come together in the days and weeks ahead, as we seek comfort and community at pride celebrations and candlelight vigils, it is incumbent upon all of us, but most especially policymakers, to do everything in our power to change the culture of hate and to pursue a more equal union. It is simply unacceptable that in 28 States, including Florida, there are no protections to prevent a survivor of the Orlando attack from being fired just because he is gay. In 28 States, including Florida, there are no protections to prohibit a homeless shelter from turning away a survivor of the Orlando attack because she is a lesbian. In 29 States, including Florida, there are no protections to prevent a business from refusing service to a survivor of the Orlando attack because she is transgender. That isn't right. This is not who we are as a country, and it must change.

Congress must take up and pass the Student Non-Discrimination Act to protect our children—our children—in our schools. And Congress must take up and pass the Equality Act to make clear that discrimination and hate have no place in our workplaces and in our homes.

I was around 10 years old at the height of the civil rights movement. My family used to eat dinner watching TV on plates on tray tables, and we would watch the news. And I remember seeing footage of police in the South siccing dogs on Black civil rights demonstrators, going after them with firehoses and billy clubs. I never will forget my dad pointing at our television screen and saying to me and my brother, ''No Jew can be for that.'' No Jew can be for that. It was obvious to him, as it should be to all of us, that when some members of our communities face injustice, we all do.

In the face of that pervasive discrimination, that stain on our values and our history, our Nation recognized then, as it should recognize now, that

some problems demand a national solution. We must take action to make our communities safe—all of our communities safe. We must engage in these difficult conversations about persistent inequality and about gun violence. And we must dedicate ourselves to securing real change.

I implore my colleagues: Let us make our laws our sanctuaries. Let us honor the memory of those lost on Sunday and the lives of those who survived by recognizing our obligation to take action. No Member of Congress can be for this.

Madam President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. THUNE. Madam President, I rise today to remember the victims of the terrorist attack in Orlando, FL. Forty-nine people were killed and even more were wounded when a self-proclaimed ISIS sympathizer attacked Pulse nightclub in the early hours of Sunday morning. I can't imagine the trauma experienced by those who were present in the club or the suffering of the families now mourning a beloved son or daughter.

My thoughts and prayers are with the victims, with the families of the deceased, and with all those currently sitting at the hospital beds of the injured. My thoughts and prayers are also with the people of Orlando, whose sense of security has been shattered by this deadly attack.

Every deadly ideology of the last century has been characterized by a fundamental disregard for the sacredness of human life. The form of radical Islam espoused by ISIS and its adherents is no different. Like every radical ideology before it, it regards individual human beings as expendable commodities in its pursuit of a Utopia. More than that, it sees certain individuals as not only expendable but dangerous, and it seeks to exterminate them accordingly. The blood-soaked villages of ISIS-controlled Iraq and Syria bear terrible witness to the slaughter of Christians, Yazidis, moderate Muslims, and anyone else ISIS felt was standing in its way.

As a nation, we have to stand against the threat of terrorism. We have to ensure that our military is equipped to destroy terrorist organizations abroad and that our law enforcement personnel are equipped to confront terrorist threats here at home. We need to control our borders and modernize our immigration system so that we know who is coming and who is going from our Nation. We need to invest in our intelligence agencies and hold them accountable as they work to keep our homeland safe. We have to support our allies who are taking the fight to the terrorists. And most of all, we have to show the utter bankruptcy of an ideology that regards human beings as expendable.

America has a proud history of standing up for the dignity and freedom of the human person against tyrants of all stripes. We stood against the deadly ideologies of the 20th century, and we will stand against the deadly ideologies of the 21st century.

On Sunday morning we saw the darkest side of humanity, but, as so often happens, when we see the worst in human beings, we also see the best—the DJ who helped a patron escape from the club; the man who stuffed his bandana into a bullet hole on a stranger's back to stop the bleeding; the man who pulled a wounded stranger to safety behind a car and then kept him conscious on the way to the hospital; the long lines of Orlando residents who came forward to donate blood; and, of course, the police officers who walked into that club and who wake up every day ready to lay down their lives for the rest of us. Against that spirit, terrorism will never prevail.

Our whole Nation grieves with the citizens of Orlando. May God bless and comfort the families of all those who died, and may He heal all those whose hearts are broken.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. BROWN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. BROWN. Madam President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

## RELATIVE TO THE DEATH OF GEORGE V. VOINOVICH

Mr. BROWN. Madam President, I am joined by my colleague and friend, Senator ROB PORTMAN of Ohio—the other Senator from Ohio—to discuss the passing of a dear friend of his and of mine. I will make a few short remarks.

I believe Senator PORTMAN, who will be speaking at his memorial service later in the week in Cleveland will be offering a resolution and some comments to the resolution.

This past weekend we were awakened on Sunday to learn that the State of Ohio and the city of Cleveland had lost one of its champions, George Voinovich.

As mayor of my beloved city—the city I call home—Cleveland, as a two-term Governor of Ohio, and as my colleague for my first 4 years in the Senate before Senator PORTMAN succeeded him, George dedicated his life to public service.

A man of strong conviction, he was always willing to listen to the other side of an argument and to put what he believed was best for our State and for our country ahead of partisan politics. Of course, we didn't always agree, but we worked together in the Senate to make progress for Ohio on everything from judicial nominees to supporting our manufacturing industry to cleaning up our great lake, Lake Erie.

When I came to the Senate in 2007, we assembled a commission of distinguished Ohio lawyers of both parties to find the candidates—again, of both parties—to recommend as nominees for the Federal judiciary. I thank Senator PORTMAN. Actually, this began with Senator DeWine and Senator Voinovich, and it has now continued from their service with Senator PORTMAN and me doing the same thing.

George had a lifelong love affair with what he called the ''jewel of the Great Lakes,'' Lake Erie. His fight to clean up and protect our lake began when he joined the Ohio Legislature almost exactly 50 years ago. At that time, people wrote off Lake Erie as a polluted, dying lake. Over the past century, people have had a habit of trying to write off Ohio. Like all of our State's champions, George wouldn't accept that.

As my colleagues know, there is an enormous painting on the stairway outside the Senate Chamber depicting the American victory in the Battle of Lake Erie. George fought what he referred to as the ''second battle of Lake Erie,'' pushing for the first Great Lakes Water Quality Agreement, cochairing the Senate's Great Lakes Task Force, working with me to introduce the Clean Water Affordability Act, which I continued to work on since his retirement in December of 2010.

That tenacity paid off. Our lake has made an incredible comeback. We still have work to do every summer. We have to deal with the return of toxic algal blooms. Senator PORTMAN and I have worked on that issue in the western basin of Lake Erie near Toledo.

But because of the work and investment by people such as George, he was able to catch yellow perch not far from his own backyard in Collinwood, a section on the lake on the east side of Cleveland.

It will be up to all of us who love Lake Erie and understand how vital it is to our State to continue that work for our Great Lake.

George was the son of Serbian and Slovenian immigrants, and he understood the importance of investing in our Nation and investing in public works that create jobs and power our communities and our economy. In retirement, George Voinovich continued to push for ways to finance our Nation's infrastructure. Just this year he reached out to his friend, Senator CARPER of Delaware, and to me about the need for dedicated public works funding.

He was willing to reach across the aisle to work with us on projects such

as the Brent Spence Bridge, which we still need to rebuild, and loan guarantees and tax incentives for Ohio's manufacturers and small businesses.

He was a deeply religious man. He was guided by his faith through nearly half a century in public service. That faith sustained him through the worst tragedy that any parent can imagine, when his 9-year-old daughter Molly was killed during George Voinovich's first campaign for mayor of Cleveland. He said of that experience later:

When one loses a child, things come into focus, what is important, what is unimportant. You see more. You feel more. You experience more. We all take so much for granted.

I hope we will take George's passing as an opportunity to reflect on what we take for granted and what is important to us as a country. On behalf of everyone in this body, I send my deepest condolences to Janet Voinovich, to their children, and to everyone touched by George's life and, frankly, her life of public service.

His legacy will live on through the lasting contributions he made to his beloved Cleveland, to Ohio, and to our great country.

I yield to my friend from Ohio.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. PORTMAN. Madam President, I thought those remarks beautifully described a great public servant, George Voinovich. I wish to add a little to it, and then at the end of my remarks, I am actually going to offer a resolution for the entire Senate to vote on as a tribute to the life of George Voinovich. We have put together a resolution which talks about a lot of his accomplishments. As my colleague has said very well, it gives us an inspiration for the future. From his life, hopefully, we can learn about how to better do our jobs on the floor of the Senate.

He was an amazing public servant. As some know, he was not just mayor of Cleveland during a critical time but also Governor of Ohio and, of course, a Senator here for two terms. I believe he represented the very best of public service. By that I mean whether it was his efforts to tackle the debt, to give children more choice and parents more choice in their schools, or to modernize infrastructure, he never made it about him. It was always about others, and specifically, it was about his constituents.

He was a very proud grandson of immigrants, Serbian and Slovenian. He was also the son of a great neighborhood in Cleveland called Collinwood, where I was over the weekend visiting with Janet Voinovich. He was raised with the values of that neighborhood—honesty, integrity, and hard work. He said that his father used to tell him that in America we have more of the world's bounty than any other country on Earth because of our freedom, because ''we get more out of our people through the free enterprise system and our education system.'' He never forgot those early lessons. Wherever he went, whatever title he had, he was always that same earnest, plainspoken kid from Collinwood.

As a boy, he was diagnosed with a bone marrow disorder, which kept him from enjoying many of childhood's joys, such as sports. He didn't let it get him down. In fact, he brought all his energies into his studies—one reason he was such a good student, I think—and he got around Cleveland on his red bike, which he called Bessie, which was his pride. Later in life, by the way, I had the opportunity to be in parades with George Voinovich. I would be marching along, and there he was on his bicycle. I don't know if it was named Bessie, but I know Janet Voinovich was at his side, riding that bicycle in parades, and then as Governor Voinovich and then Senator Voinovich. He loved those bicycles and was always riding with a smile on his face.

That difficult health care struggle he had early in his life shaped his character and gave him a heart for all those who were suffering or who were just different. As with so many of his decisions, he would go to the Lord for inspiration. He would start with a humble prayer, and he did this at Collinwood High School. He said he prayed for guidance, asking God what he should do with his life. And he got an answer. He felt he had a calling, and that was to get involved in student government, and so he ran. He was elected as class president as a senior. He went on to serve as student body president at Ohio University, when he was in undergraduate school, and he was president of his class and president of the Young Republicans club while in law school at Ohio State University. So if people wonder how he got into politics, it all started in high school and through college and law school. That was the track he chose for himself.

For over half a century, he served his neighbors in so many different roles—local, State, and Federal. He was a county commissioner in Cuyahoga County. He was county auditor. He was mayor, as we have talked about. He was a State representative. He was an assistant attorney general. He was Lieutenant Governor. He was Governor for two terms, and he was a U.S. Senator for two terms. This is a guy who devoted his life to public service.

In 1959, as a young man, he volunteered for the mayoral campaign of Tom Ireland. We don't remember much about Tom Ireland, because Tom Ireland lost. But in that election, George Voinovich met a young woman—a beautiful and intelligent fellow volunteer named Janet Allan. Janet and George were married for more than 50 years. Having just been with her over the weekend, I can tell you she is an extraordinary woman. Their relationship—their partnership—is a real model and example for all of us, and certainly it has been over the years for Jane and for me. George used to say about Janet that she was ''God's greatest blessing on me,'' and that was clear to anyone who knew them. Together they had four wonderful children: George, Betsy, Peter, and Molly.

He was Lieutenant Governor in 1978 when his true calling came. I say ''true calling'' because this was a time of urgency in his hometown of Cleveland. It was in trouble. That same year, Cleveland had become the first American city since the Great Depression to default on its debt, which, by some measures, totaled more than $100 million. That was a lot of money back then. People were worried. Some people were leaving the city altogether.

From his neighbors and from his conscience, George Voinovich heard the call to come back home. Shortly after he won that Republican nomination for mayor, tragedy struck the Voinovich family. George's youngest daughter, Molly, was hit by a car. She was walking home from school when she was 9 years old. It is a tragedy no parent should ever have to endure, but George and Janet endured it, and, turning to their faith, they persevered. They went on to win that election.

George says that through that trial, his faith deepened even further and his compassion for others grew even stronger. SHERROD BROWN just talked about the fact that he said that ''things come into focus when you lose a child.'' I think that is what my colleague said, and that is how George felt. It deepened his faith and brought things into focus.

He did win that mayoral election, and he turned Cleveland into ''The Comeback City.'' It is not an exaggeration, I don't think, to say that he personally saved the city from default in the sense that he had incredible energy, infectious optimism that it could happen, sheer force of will, and a great work ethic, and he brought people together.

Having talked to some of the city fathers at that time, some of whom are still with us, it was George Voinovich's bringing a team together that saved the city of Cleveland. He lifted people's hopes.

A decade later it was the entire State of Ohio that needed to be turned around. After winning reelection in Cleveland as mayor with two landslide votes, he was elected Governor in another landslide. Ohio was facing a massive debt, just like Cleveland had been, and George came to the rescue again, saying he would get the State government ''working harder and smarter, doing more with less.'' Anybody who knew George Voinovich knew that was his favorite motto—doing more with less; working harder and smarter; and with God, all things are possible.

He did do more with less. He cut taxes by $24 billion to get the economy moving, but he also trimmed government spending by $720 million in just 2 years. With his experience as mayor, he wasn't afraid to delve into the details of the budget. He rolled up his sleeves, and he got involved.

The only thing he knew better than his budget, by the way, was his constituents. He helped hundreds of thousands of people who were stuck on welfare to find jobs, as unemployment in Ohio fell to 25-year lows. He also modernized our roads and bridges. He was a big infrastructure guy. After a landslide reelection, he left the Buckeye State with nearly $1 billion in a rainy-day fund.

By the way, when he was mayor, he served as president of the U.S. Conference of Mayors, and when he was Governor he served as president of the National Governors Association—the only person in America to have done that. That is pretty amazing. He rose to the top.

He loved to fish. Wildlife fishing in Lake Erie was his favorite thing. He got me started on that, which I do now every year. He loved his lake. If you go to his home and stay, as I did over the weekend, you know it is a couple of houses from the lake. You can see how proud he was of that lake by the way in which he supported efforts to make it clean and make it safe. He was also a strong supporter of our coal miners in eastern Ohio. He became the first government executive in the world to recognize the independence of his ancestral homeland of Slovenia, something that meant a lot to George. His last speech was on Friday night of last week, and it was on the 25th anniversary of Slovenia's independence day.

George was reelected as Governor in 1994 with 72 percent of the vote. At the time, it was the biggest landslide of any Governor in Ohio history. After he had reached his term limit as Governor, he was elected by another large margin to this Chamber, the Senate. He was reelected in 2004 with more votes than any Senate candidate had ever received in the State of Ohio.

In the Senate, he focused on expanding NATO to include Slovenia. He authored a Federal law that helps to monitor and fight anti-Semitism all around the world. He passed bipartisan legislation to help protect American intellectual property. But if you want to see his biggest impact, go to Ohio. You will see it everywhere—whether it is the Innerbelt Bridge, named after him; whether it is the Voinovich Bicentennial Park in Cleveland; whether it is the Voinovich School of Leadership and Public Affairs at his beloved Ohio University in Athens, OH; whether it is the Voinovich Atrium at the Rock and Roll Hall of Fame, which, by the way, some say would not be in Cleveland but for George Voinovich's leadership. I just talked last week to the director of the Rock and Roll Hall of Fame, who happened to be here for a visit, and, coincidently, we talked about George Voinovich's role in being sure that the financing was put together to have that Rock and Roll Hall of Fame be in Cleveland, OH.

These are all testaments to the love and respect the people of Ohio had and continue to have for him. Above all, talk to those who knew him. He made an impact on all of us. For me, he was a friend, and he was a great mentor over the years. He helped me in my career. He was someone who gave me a lot of inspiration to get into public service in the first place.

In our conversations, by the way, for all of his political successes and accomplishments and all we had to talk about that had to do with policy or political issues, he mostly wanted to talk about family. That was where he always started. That was where he was in his heart. He would say: ''How is the family?'' That is how he would start the conversation. Janet was his soulmate, his partner in everything, and he loved those kids and grandkids so much. They were the anchor for everything—family and faith. That is one reason he was so successful, in my view. He had grit, he had that work ethic, and he certainly had natural talent, but he also had that foundation. That moral foundation of his family and his faith gave him the confidence and the ability to do so many other great things for so many other people.

When he announced his retirement, he said: ''I have a philosophy: It's God, family, country, and community.'' Those are pretty good priorities. George put himself last. It was never about him. It was about others. He was the public servant. He put the servant part first.

He had the heart of a servant because he was a humble man. As some know back home, he was proud of the fact that he drove a Taurus and shined his own shoes. He was a penny-pincher. He loved to buy his clothes on sale. He was a good fiscal conservative. He and Janet lived in the same house they bought in Cleveland in 1972. No matter where he was or what his title was, he was, in many respects, still that same kid from Collinwood—George from Collinwood.

He was a man of deep faith. He was a devout Catholic, and as busy as he was, he went to mass several times a week. He also took comfort in praying the Rosary. The legendary quarterback Bernie Kosar tells the story that George Voinovich prayed the Rosary at Municipal Stadium with Bernie's mom during the Browns' 1986 double-overtime comeback playoff victory over the New York Jets. Everybody gives Bernie Kosar all the credit for that, but it really was George Voinovich and a Higher Power that intervened.

After retirement, he did not slow down. As I said, just this past Friday he was at Cleveland City Hall for the 25th anniversary of Slovenia's independence. He was also at the Republican headquarters in downtown Cleveland last Thursday to open what we call the ''Voinovich Lobby'' of that new headquarters. He was also planning to serve as a delegate in next month's Republican National Convention. We were so looking forward to paying tribute to him in many ways at that convention. We still will, but, oh, I wish he were going to be there to be part of it.

It has been a great honor to succeed him as U.S. Senator. When he decided to retire, he called me here to Washington. I will never forget the dinner we had together where he said: I am not telling anybody this yet, but I am planning to not run again for reelection.

I had just helped him with an event in Ohio, and I was strongly supporting him for reelection. But he said he had had it; that it was time for him to go back home. He encouraged me to run. He endorsed me the day I got in. I don't believe I would be here but for the fact that he called me to Washington that day and encouraged me and told me that knowing public service was in my heart too, that this was the time to step forward and to help our country. I owe him for so much but most importantly for his model and for the example that he set.

He was certainly an independent voice, including on this floor. Senators on both sides of the aisle will tell you he was an attentive and thoughtful listener. He treated people with respect and dignity. I have talked to some of the staff here this week about George Voinovich—some who have been here a while and remember him—and all have the same to say. They cherished his friendship. They felt like he cared about them. He had good friends—Senator SHAHEEN and Senator CARDIN on the other side of the aisle. He had good friends on this side of the aisle. He used to refer to Danny Akaka as being ''like a brother to me.'' Senator Akaka was a Member from Hawaii on the other side of the aisle.

His selfless example of public service, his ability to enact change on a bipartisan basis does provide a lesson for us right now, and really for all time. I think we can best honor him by carrying on that tradition, by figuring out how to solve problems, and that involves reaching across the aisle and getting things done. He was a man who believed we could make a difference here in this place.

I see Majority Leader MCCONNELL has now joined us on the floor, and he will tell you that George Voinovich always had the belief that things could be better. He was ultimately an optimist, and his ability to figure out how to get to a solution was something all of us can learn from. In Ohio, he was a public servant without equal.

Tonight, I would like to offer a resolution honoring his memory. I urge all my colleagues to support it.

Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 493, which was submitted earlier today.

The PRESIDING OFFICER (Mr. GARDNER). The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 493) relative to the death of George V. Voinovich, former United States Senator for the State of Ohio.

There being no objection, the Senate proceeded to consider the resolution.

Mr. PORTMAN. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 493) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

Mr. PORTMAN. I thank the Chair.

The PRESIDING OFFICER. The majority leader.

Mr. MCCONNELL. Mr. President, before the Senator from Ohio leaves the floor, I had an opportunity to listen to his tribute to our former colleague, Senator Voinovich, and he was indeed a stunningly successful public servant. I mean, just thinking about any Republican getting elected mayor of Cleveland, it is hard to imagine such a thing, and then to be so extraordinarily successful at every step in his career.

I was privileged to get to know him when he came to the Senate. My colleague from Ohio knew him a lot longer than I did, but I wanted, on behalf of all of us who served with George, to thank the Senator for that extraordinary tribute to his outstanding life.

## MORNING BUSINESS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

## NATIONAL DEFENSE AUTHORIZATION BILL

Mr. DURBIN. Mr. President, 2 and a half years ago, I chaired a hearing of the Defense Appropriations Subcommittee in which the chief executives of the two top rocket makers, the United Launch Alliance and SpaceX, testified on the need for competition in launching government satellites.

Not long after that hearing, Russia began its aggression against Ukraine. These two issues—the threat against Ukraine and the launch of U.S. satellites—intersected because one company is reliant on rocket engines made in Russia.

Defense appropriations bills since then have included nearly half a billion dollars to build a new, American-made engine to end this reliance on Russian engines as quickly as a replacement can be built and tested.

Defense authorization bills have taken a different approach, by putting strict limits on the number of Russian engines that can be purchased before the new, American-made rocket will be ready.

Our top national security leaders, including the Secretary of Defense, the Director of National Intelligence, and the Secretary of the Air Force, have warned that laws that halt access to Russian engines will endanger our ability to launch important defense and intelligence satellites.

To cut-off access to Russian engines would force the Defense Department to buy rockets that are not cost-competitive with SpaceX because SpaceX's rockets cannot launch our largest satellites. The cost to the American taxpayer would be more than $1.5 billion, and it would be a risk to our national security.

As vice chairman of the Defense Appropriations Subcommittee, I believe these costs and risks are too high. Many of my colleagues agree with this view. The chairman of the Armed Services Committee, Senator MCCAIN, has a different view. He argued forcefully that we should pass strong laws restricting the use of these engines. We crossed swords many times on the floor of the Senate on this issue. Even though we still do not see eye-to-eye on this issue, the product of this debate is better because of it.

The Nelson-Gardner amendment provides the Department of Defense with sufficient time to develop and test a replacement for the Russian rocket engine. The amendment limits the use of Russian engines for competitive launches to a maximum of 18, allows for a responsible transition to an American-made engine, and, consistent with existing law, does not impact the use of Russian engines purchased to support the EELV block buy.

These provisions increase the pressure on DOD and the United Launch Alliance to keep its new rocket R&D program on-track and push them to use only those Russian engines that are needed to support our national security.

This amendment protects the American taxpayer by avoiding billions in additional spending on sole-source contracts for more expensive rockets. It protects our national security by guaranteeing that there will not be a gap in our ability to launch satellites. And it protects our national interests by increasing the pressure to have an American-made replacement engine ready as soon as possible.

I would like to thank the Senators who worked tirelessly to see that this amendment was adopted with a strong vote in the U.S. Senate: Senators NELSON, GARDNER, BENNET, SHELBY, COCHRAN, DONNELLY, SESSIONS, and INHOFE deserve great credit for their efforts.

I am proud to have worked with them on this issue, and I am pleased that we were able to find a responsible solution that protects our national security and the American taxpayer.

Mr. LEAHY. Mr. President, today the Senate approved a Defense authorization bill of tremendous scope and containing a number of harmful provisions. I was against the decision by the majority leader to end debate on this bill after a period of consideration that resulted in consideration of only a handful of the over 600 amendments filed. Now, I am disappointed by its passage in the Senate. A bill this big deserves substantial, open, public debate.

With less than 2 weeks of debate on legislation that authorizes nearly $600 billion, I continue to believe that the Senate was unable to properly consider the bill. Not only was more time needed to explore and debate this lengthy bill, during the brief period of consideration it was given, many on both sides of the aisle, myself included, determined that the Defense authorization contains an assortment of harmful language.

This is unfortunate, because the Defense authorization also contains provisions that I support. It authorizes spending to promote our national interests, provides vital resources to our military personnel, and reaffirms our commitment to partners abroad. It also furthers our military readiness through investment in next-generation technology. It is this kind of reasonable content that should be the universal rule for a defense authorization. Regrettably, that is only a portion of this bill.

This year's Defense authorization will once again prevent the President from closing the detention facility at Guantanamo Bay. The bill would extend the unnecessary prohibition on constructing facilities within the United States to house Guantanamo detainees, continue the counterproductive ban on transferring detainees to the United States for detention and trial, and maintain the onerous certification requirements to transfer detainees to foreign countries. Regrettably, the bill also adds several new restrictions, including a provision to bar detainee transfers to any country subject to a travel warning by the State Department. This sweeping prohibition is unnecessary and would even include some of America's allies. While this year's bill does contain some modest improvements to current law, the Defense authorization once again fails to provide the Obama administration with the flexibility it needs to finally close the detention facility at Guantanamo. With the costs of more than $4 million per year per detainee to keep the detention facility at Guantanamo open, I agree with our retired military leaders who tell us that it is in our national security interest to close the detention facility. Doing so is the morally and fiscally responsible thing to do, and I strongly oppose the needless barriers to closing Guantanamo contained in this bill.

Also unfortunately, the Freedom of Information Act, FOIA, our Nation's premier transparency law, is directly

undermined by the Defense authorization. Just yesterday, the House of Representatives passed the Senate's FOIA Improvement Act, reaffirming our commitment to the principle that a government of, by, and for the people cannot be one that is hidden from them. However, just as we are about to bring more sunshine into the halls of power on FOIA's 50th anniversary, this Defense authorization bill threatens to cast a long and dangerous shadow over our efforts.

Without ever consulting the Senate Judiciary Committee, which has exclusive jurisdiction over FOIA, the Armed Services Committee included provisions in this bill that cut at the heart of FOIA. One particularly egregious provision would allow the Department of Defense to withhold from the public anything ''related to'' military ''tactics, techniques, or procedures.'' The terms ''tactic,'' ''technique,'' and ''procedure'' are either defined very broadly or not at all. The provision further states that this information can only be withheld if its disclosure would ''risk impairment'' to the Department of Defense's ''effective operation'' by ''providing an advantage to an adversary or potential adversary.'' But it is entirely unclear what if any limitation this language would impose, given that none of the operative terms—impairment, effective operation, advantage, or adversary—are anywhere defined. While the Department of Defense might call those ''terms of art,'' it is law and not art that the Congress passes.

Given the breadth of this language, this provision amounts to what could be a wholesale carveout for the Department of Defense from our Nation's transparency and accountability regime. If enacted, this bill would empower the Pentagon to withhold a wealth of information from the American public. For example, the Pentagon could withhold the legal justifications for drone strikes against U.S. citizens, preventing the American people from knowing the legal basis upon which their government can employ lethal force against them. It could withhold from disclosure documents memorializing civilian killings by U.S. forces, depriving the American people of knowledge about the human cost of wars fought in their name. And if enacted, the Pentagon could withhold information about sexual assaults in the military, masking the true extent of sexual violence against servicemembers who risk their lives defending our country.

In short, this bill could effectively drape a shroud of secrecy over all five corners of the Pentagon. It would unravel decades of work we have done to make our government more transparent to the American people and threaten the progress we have just made with the FOIA Improvement Act. This unprecedented disappearing act from our Nation's premier transparency law should have never been considered without a full consultation of the Senate Judiciary Committee. On the eve of FOIA's 50th anniversary, I urge all Senators to stand on the side of sunshine, not shadows, and oppose these provisions within the Defense authorization.

My concerns are not limited to Guantanamo Bay and FOIA. The bill also includes massive changes to our military's procurement and management systems, rolling back reforms that have been in place since Goldwater-Nichols and putting at risk Federal employees and businesses that sell to the Department. These specific sections include the elimination of the office that coordinates major acquisitions, separating development of new technology and plans for its long-term sustainment. The changes have been promoted under the guise of saving money and reducing bloated command structures, when they in fact only confuse an already complex process and will likely result in needless future waste.

I also remain deeply concerned about the impact of the caps on general officers to the National Guard. While I was grateful to see that adjutants general and assistant adjutants were exempted, there are other joint general officers within the Guard, and I am worried hard caps on the number of general officers will mean that the best man or woman for the job becomes less important than whether the Army or the Air Force has space under its respective cap. I am likewise concerned that decoupling the statutory requirement that the Vice Chief of the National Guard Bureau be a lieutenant general—a decoupling that did not occur for the vice of any other member of the Joint Chiefs of Staff—will force the Army or Air Force to give up a three-star position to someone who statutorily does not report to their service secretary. I am also concerned that by removing the statutory requirement that the commander or deputy commander of U.S. Northern Command be a member of the National Guard, we run the risk of entering a major national disaster without a leader of the principal Federal response force having any experience with how the States deal with disasters individually and together.

The bill includes a provision, section 1204, which would prohibit joint or multilateral exercises and conferences between the Department of Defense and the Government of Cuba, even though the Department and the Cubans have worked together on issues related to the security of Guantanamo for many years. Senator FLAKE and I, along with Senators CARDIN and DURBIN, proposed some exceptions to this provision in order to permit the Department to continue to engage with the Cubans on Guantanamo and to cooperate on other security matters, including search and rescue and counternarcotics. Unfortunately, Senator CRUZ, the author of section 1204, was unwilling to compromise, and we were not able to obtain a vote on our amendment.

Perhaps the most predictable flaw of this bill is that it continues the reliance on overseas contingency operations funds to operate the Department. The original intention of this fund has been routinely ignored, and it continues be used as a free-for-all spending pool. Borrowing to sustain our national defense objectives only increases the already significant burden placed on the working families who are most impacted by this irresponsible practice. We must put in place mechanisms to begin responsibly ridding ourselves of the growing debt, rather than continuing to employ irresponsible practices that only take us farther away from anything resembling a solution.

The National Defense Authorization Act provides the Senate with a yearly opportunity to responsibly address our security priorities and to take care of our men and women in uniform, while bolstering our overall military capabilities. However, this year's bill proposes too many damaging provisions far beyond the scope of the Department of Defense. Despite the agreeable content found within the bill, the damage that will be caused by many of these measures far outweighs the benefits of approving this authorization. For that reason, I cannot give it my support.

## ARMS SALES NOTIFICATION

Mr. CORKER. Mr. President, section 36(b) of the Arms Export Control Act requires that Congress receive prior notification of certain proposed arms sales as defined by that statute. Upon such notification, the Congress has 30 calendar days during which the sale may be reviewed. The provision stipulates that, in the Senate, the notification of proposed sales shall be sent to the chairman of the Senate Foreign Relations Committee.

In keeping with the committee's intention to see that relevant information is available to the full Senate, I ask unanimous consent to have printed in the RECORD the notifications which have been received. If the cover letter references a classified annex, then such annex is available to all Senators in the office of the Foreign Relations Committee, room SD–423.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DEFENSE SECURITY COOPERATION AGENCY,
*Arlington, VA.*

Hon. BOB CORKER,
*Chairman, Committee on Foreign Relations, U.S. Senate, Washington, DC.*

DEAR MR. CHAIRMAN: Pursuant to the reporting requirements of Section 36(b)(1) of the Arms Export Control Act, as amended, we are forwarding herewith Transmittal No. 16–25, concerning the Department of the Air Force's proposed Letter(s) of Offer and Acceptance to the Government of Iraq for defense articles and services estimated to cost $181 million. After this letter is delivered to

your office, we plan to issue a news release to notify the public of this proposed sale.

Sincerely,

J.W. RIXEY,
*Vice Admiral, USN, Director.*

Enclosures.

TRANSMITTAL NO. 16–25

Notice of Proposed Issuance of Letter of Offer Pursuant to Section 36(b)(1) of the Arms Export Control Act, as amended

(i) Prospective Purchaser: Government of Iraq.

(ii) Total Estimated Value:

Major Defense Equipment* $0 million.

Other $181 million.

Total $181 million.

(iii) Description and Quantity or Quantities of Articles or Services under Consideration for Purchase:

Non-Major Defense Equipment (MDE): The Iraqi Air Force requests a five-year sustainment package for its AC–208 fleet that includes: operational, intermediate, and depot-level maintenance; spare parts; component repair; publication updates; maintenance training; and logistics. Also included in this sale are Contract Logistics Services (CLS), training services, and Contract Engineering Services. There is no MDE associated with this possible sale. The total overall estimated cost is $181 million.

(iv) Military Department: Air Force.

(v) Prior Related Cases, if any: IQ–D–QAH–$20M–13 FEB 09, IQ–D–QAF–$5M–26 OCT 08.

(vi) Sales Commission, Fee, etc., Paid, Offered, or Agreed to be Paid: None.

(vii) Sensitivity of Technology Contained in the Defense Article or Defense Services Proposed to be Sold: None.

(viii) Date Report Delivered to Congress: June 14, 2016.

*As defined in Section 47(6) of the Arms Export Control Act.

POLICY JUSTIFICATION

The Government of Iraq—AC–208 Sustainment, Logistics, and Spares Support

The Government of Iraq has requested a possible sale of a five-year sustainment package for its AC/RC–208 fleet that includes; operational, intermediate, and depot-level maintenance; spare parts; component repair; publication updates; maintenance training; and logistics. Also included in this sale are Contract Logistics Services (CLS), training services, and Contract Engineering Services. There is no MDE associated with this possible sale. The total overall estimated value is $181 million.

The purchase of this sustainment package will allow the Iraqi Air Force (IqAF) to continue to operate its fleet of eight C–208 light attack and Intelligence, Surveillance, and Reconnaissance (ISR) aircraft beyond the June 2016 end of its existing CLS contract. Limited IqAF maintenance capability necessitates continued CLS. Ultimately, the goal is for the IqAF to become self-sufficient in the areas of aircraft maintenance and logistics training. Iraq will have no difficulty absorbing this support.

The proposed sale will contribute to the foreign policy and national security goals of the United States by helping to improve a critical capability of the Iraq Security Forces in defeating the Islamic State of Iraq and the Levant.

The proposed sale of this equipment and support will not alter the basic military balance in the region.

The principal contractors will be Orbital ATK in Falls Church, Virginia, and Flight Safety International in Flushing, New York. There are no known offset agreements proposed in connection with this potential sale.

Implementation of this proposed sale will not require the assignment of any additional U.S. Government or contractor representatives to Iraq.

There will be no adverse impact on U.S. defense readiness as a result of this proposed sale.

All defense articles and services listed in this transmittal have been authorized for release and export to the Government of Iraq.

## FLAG DAY

Mr. CARDIN. Mr. President, 100 years ago, President Woodrow Wilson issued a proclamation which established June 14 as Flag Day, the day during which we commemorate the 1777 adoption of our great Nation's flag. In 1949, an act of Congress established National Flag Day. Today I wish to recognize and celebrate Flag Day and remember all those who have fought in defense of our flag and everything it symbolizes.

The Flag Act of 1777 established that the first flag of the United States would have 13 red and white stripes, as well as 13 white stars in a blue field in order to recognize the Thirteen Original Colonies. Since then, our flag has grown to include 50 stars which represent all 50 States in our Union today. The final star, representing the State of Hawaii, was added in 1960. Since then, our flag has flown proudly throughout the United States and in embassies around the world, celebrating our Nation's history of freedom and liberty. The evolution of our flag is representative of our evolution as a nation and how far we have come over the past 239 years.

In Maryland, Flag Day is also a day to remember the important contributions made by our State to our Nation's development in the early days of the Union.

In the midst of the War of 1812, General Samuel Smith asked Baltimore resident Mary Pickersgill to make a flag ''so large that the British will have no difficulty seeing it from a distance.'' That flag, 30 feet tall and 42 feet wide, was raised and flown over Fort McHenry during the famous Battle of Baltimore in 1814. Mary Pickersgill's flag also became the inspiration for the poem written by Francis Scott Key, which would eventually become our country's national anthem.

That night, our flag stood as a symbol of the strength of our union and the bravery and resilience of those willing to fight for it. Today it continues to serve as a reminder of the courage and commitment of those willing to give all in defense of the freedoms granted to every American. On this day, we remember not only the history and growth of this Nation, but also the men and women who gave that ultimate sacrifice in order to uphold the liberties for which our flag stands.

For over two centuries, our flag has meant hope, freedom, and liberty to all those who enter this country, and it will continue to uphold this meaning for many years to come. Since 1777, the flag has been a reminder to every American of the work and sacrifices made to keep our Nation great. This Flag Day, it is important to remember everything our flag symbolizes. We must reflect on the history of our Nation and the growth of its unity—from our geographic expansion over time to the evolution of our population and the definition of what it means to be an American. We must also commemorate the lives of those who have served our Nation and its people in pursuit of the values for which the flag—and we—proudly stand.

Our banner waves in the name of the freedom of every American, and we join together on this day in order to commemorate every contribution which has kept that freedom alive.

## ADDITIONAL STATEMENTS

### TRIBUTE TO LIEUTENANT GENERAL JAMES F. JACKSON

• Mr. ISAKSON. Mr. President, today I recognize Lt. Gen. James F. Jackson upon his retirement from the U.S. Air Force after 38 years of military service to our great nation. General Jackson's distinguished military career culminated as Chief of Air Force Reserve and Commander, Air Force Reserve Command.

General Jackson is a 1978 graduate of the U.S. Air Force Academy. He completed 14 years on Active Duty, including flying tours in Europe and the Pacific before joining the Air Force Reserve in 1992. General Jackson has held numerous wing leadership and command positions, as well as staff assignments at Eighth Air Force and Headquarters U.S. Strategic Command, Headquarters Pacific Air Forces, Headquarters U.S. Pacific Command, and Headquarters U.S. Air Force. A career instructor pilot and evaluator, the general is a command pilot with more than 3,600 hours in the F–4 Phantom II, F–16 Fighting Falcon and KC–135R Stratotanker.

In his role as Chief of Air Force Reserve, Headquarters U.S. Air Force, in Washington, DC, General Jackson served as principal adviser on Reserve matters to the Secretary of the Air Force and Chief of Staff of the Air Force. As Commander of the Air Force Reserve Command at Robins Air Force Base, General Jackson was responsible for approximately 70,000 citizen airmen and all Air Force Reserve units worldwide, including 36 wings, 10 standalone groups, and a myriad of mission support units located at 54 joint and Active component bases and nine Reserve bases and stations.

As the Air Force Reserve's chief advocate within the Pentagon and on Capitol Hill, General Jackson defended an annual President's budget request amount for the Air Force Reserve of more than $5 billion, which enabled the component to remain ready to support combatant commander taskings as an integral component of the Air Force team. General Jackson's articulate

guidance ensured total force solutions were integrated into corporate Air Force deliberations on key issues including Air Force core mission force mixes, readiness requirements, and personnel policies.

General Jackson championed the modernization needs of the component's aging inventory of aircraft and equipment that yielded an additional $400 million in congressional support for Air Force Reserve modernization requirements via the National Guard and Reserve equipment account. This additional support ensured the mission effectiveness and survivability of citizen airmen and preserved the Air Force Reserve as an interoperable, flexible, and combat-ready force. As a result, Reservists were reliably called upon during his tenure to conduct combat and humanitarian operations abroad, in addition to supporting our homeland with unique capabilities such as aerial spray and hurricane hunting.

During General Jackson's tenure, Air Force Reservists have mobilized in support of 54 named operations and exercises and have conducted total force, joint, and coalition operations at more than 100 locations worldwide. General Jackson's visionary leadership and ceaseless efforts have established the Air Force Reserve as a combat-ready force and an essential provider of operational capability, strategic depth, and surge capacity. Ultimately, General Jackson successfully postured America's citizen airmen to stand as a hedge against risk, while remaining fully ready to support ongoing operations and to respond to emerging threats with agility and innovation.

Congratulations to General Jackson on the notable conclusion of an outstanding military career. On behalf of the people of the great State of Georgia and a grateful Nation, I offer my sincere thanks to General Jackson and his wife, Barbara. I wish them both the very best as they embark on this new chapter.●

## TRIBUTE TO COLONEL PAUL W. ''PK'' KIRBY

● Mr. ISAKSON. Mr. President, on the occasion of his retirement from the U.S. Air Force, I recognize Col. Paul W. ''PK'' Kirby for his more than 41 years of dedicated service to our country. In his most recent assignment, he serves as the Vice Commander, Air Force Reserve Command Recruiting Service and Deputy Director of Recruiting, Air Force Reserve Command, Robins Air Force Base, GA. In this role, he exercises command and oversight of over 450 military and civilian personnel worldwide at over 45 main operating locations and serves as the principle adviser to the both the commander of recruiting and AFRC commander on all matters relating to recruiting.

Colonel Kirby enlisted in the Air Force in May 1973 and served 13 years prior to receiving his commission through the Deserving Airman Commissioning Program. Prior to entering recruiting services, Colonel Kirby served as a key member of the personnel community and served as Commander of the 302nd Combat Support Squadron for 36 years on active duty, as a civilian and within the Air Force Reserve Command as a Traditional Reservist and Air Reserve Technician. During this time, he developed and implemented key policies and procedures for Reserve Officer Personnel Management Act, Officer Development, Innovative Readiness Training Program, and Centralized Training, thereby enhancing overall combat readiness for the command.

As Vice Commander of Air Force Reserve Recruiting, Colonel Kirby has developed and executed numerous initiatives resulting in the Air Force Reserve Command, AFRC, exceeding its annual recruiting goal for 8 consecutive years. As the second largest Air Force Major Command, AFRC has been manned at greater than 99 percent for the past 8 consecutive years, reversing a decade-long trend of failing to meet congressionally mandated end-strength levels. He is directly responsible for accessing more than 58,000 airmen helping to transform the Air Force Reserve recruiters into the most productive within the Department of Defense.

Paul could not have been such a tremendous leader without the love and unfailing support of his lovely wife of 39 years, Wanda, and their three children, Jeremy, Rebekah, and Christopher.

I join my colleagues in expressing our sincere appreciation to Col. Paul W. Kirby for his outstanding service to both the U.S. Air Force and our great Nation. We wish him the best as he transitions into retirement. Colonel Kirby is a true professional and a credit to himself and the U.S. Air Force Reserve.●

## TRIBUTE TO CARRIE WALIA

● Mr. KING. Mr. President, today I wish to recognize the outstanding devotion of Carrie Walia, who has worked to preserve Maine's rich outdoor heritage throughout her career. Carrie is stepping down from her position as executive director of Loon Echo Land Trust, and we recognize her service and thank her for her contribution to the great State of Maine.

In her role as executive director of Loon Echo Land Trust, LELT, Ms. Walia has invested deeply in the environmental sustainability of Maine's communities, specifically the Sebago Lakes region. That region has long been a renowned outdoor recreation area, attracting outdoor enthusiasts of all kinds. From boating to ice fishing, locals and visitors alike enjoy the natural beauty and tremendous resources it has to offer. Under Ms. Walia's leadership, LELT has been successful in preserving the region's beauty and ensuring its sustainability for years to come.

Ms. Walia joined LELT in 2004, while also working for the USDA-Natural Resources Conservation Service. Since becoming the executive director of LELT in 2008, she has spearheaded many conservation efforts with tremendous success. Her accomplishments include doubling LELT's conservation lands from 3,300 to 6,600 acres and securing over $5.5 million in grants for high priority land acquisitions. She leaves LELT poised for continued success working on behalf of Maine communities.

I would like to join LELT and the people of Maine in recognizing and thanking Ms. Walia for her work and dedication to our great State. Her groundbreaking work with LELT has helped to preserve Maine's valuable natural resources and contribute to Maine's status as a leader in nature conservation and environmental stewardship. The State of Maine owes Ms. Walia immensely for all her hard work, and I wish her all the best in her retirement.●

## 2016 MILITARY ACADEMY APPOINTEES FROM UTAH

● Mr. LEE. Mr. President, one of the great privileges of representing my fellow Utahns in the U.S. Senate is the annual opportunity to meet the exceptional young men and women from the great State of Utah who have answered the call of service by applying to the U.S. Air Force Academy, the U.S. Military Academy, the U.S. Naval Academy, and the U.S. Merchant Marine Academy.

Under title 10 of the U.S. Code, each year Members of Congress are authorized to nominate a number of young men and women from their district or State to attend the country's service academies. It is my distinct honor to nominate 14 exemplary Utahns this year.

But receiving a congressional nomination does not guarantee acceptance. To be admitted, each applicant must meet on his or her own merits the academies' rigorous standards.

Well, I have studied the applications of these 14 men and women, and I can say, without hesitation or exaggeration, that you would be hard pressed to find a more accomplished, talented, patriotic group of American citizens anywhere. And so I was not surprised to learn that all 14 applicants have been accepted and will soon be joining the ranks of our Nation's military academies in the summer of 2016.

Each of these 14 students is of sound mind and body. This will serve them well in Colorado Springs, West Point, Annapolis, and Kings Point. But to succeed, they will need more than this.

The journey on which these young men and women will soon embark requires more than mental and physical aptitude. It demands strong moral character—leadership, courage, honesty, prudence, and self-discipline—and

above all, it calls for a steadfast commitment to service and a love of country.

Today I would like to recognize and congratulate each of these impressive students, all of whom embody, in their own unique way, the standards of excellence on which America's service academies are built.

Joseph Stryker Cooke will be attending the U.S. Naval Academy. Joseph attended Highland High School and graduated from Quince Orchard High School in Maryland, where he was captain of the tennis team, earning a bid to the State tournament, and a member of the National Honor Society. In addition to serving as a leader in his church's youth organization and as a tutor at a local elementary school, Joseph worked as a volunteer and prosthetics intern at the Walter Reed National Military Medical Center.

Zachary Kirk Daines will be attending the U.S. Military Academy at West Point. He graduated from Syracuse High School and has been attending the Marion Military Institute to prepare for West Point. Zach is a standout athlete, in football and track and field, as well as an Eagle Scout, a leader in his church's youth organization, secretary of his senior class, and a member of both the Future Business Leaders of America and Health Occupations Students of America.

Wyatt Ethan Espell, a North Summit High School graduate, accepted his appointment to the U.S. Military Academy at West Point. He served as a mayor at Boys State, president of the Future Business Leaders of America, and vice president of Health Occupations Students of America, and he is a member of the National Honor Society. Wyatt played on the football team, wrestled, and ran track and cross country, and he volunteered at the Park City Medical Center. Wyatt spent his summers working with Glaser Land and Livestock.

Ian Alexander Hardy will be attending the U.S. Naval Academy after serving for 2 years in Tokyo, Japan, on a mission for the Church of Jesus Christ of Latter-Day Saints. He graduated from the Northern Utah Academy for Math, Engineering, and Science where he was captain of the CyberPatriot team. While studying at Weber State University, Ian served as the Ozone Telemetry Specialist for the High Altitude Reconnaissance Balloon for Outreach and Research team. Ian is an Eagle Scout, Boys State attendee, and played on the varsity rugby team.

Stephen Hunter Lee, a graduate from the Intermountain Christian School, will be attending the U.S. Military Academy at West Point. An Eagle Scout, with three Eagle Palms, he served as president of his junior class, editor of the yearbook, and captain of the soccer team. Stephen is a member of the National Honor Society and a scholarship recipient from the Freedoms Foundation at Valley Forge. An avid rock climber, Stephen is active in a local climbing club.

Michelle Chanmi Lee will be joining her brother at the Air Force Academy. She attended Northridge High School where she was vice president of the National Honor Society. Michelle challenged herself academically by graduating from the Medicine, Science, and Health Professions Academy, and she was a member of Health Occupations Students of America. Michelle served others in her role as a group leader in her vacation bible study and as a tutor in the Davis School District. She spent several years with her family on the Yongsan Garrison Army Base in South Korea.

Angela Ayame Marsh will be attending the U.S. Military Academy at West Point after graduating from the American School in Japan, where she served as the student body vice president. She was a member of the varsity debate team and was president of the Shine On Cancer Victims Support Group. A member of the National Honor Society, Angela cofounded and served as president of the Premedical Society and was the grand prizewinner in the poetry slam competition. She participates in CrossFit competitions and runs with the cross-country team.

Izaac Adam Polukoff will be attending the Merchant Marine Academy. He graduated from Park City High School and sharpened his academic and military skills at the Milton Academy. He was an Academic All-Star for the Utah High School Hockey League and was captain of his Ultimate Frisbee team. He found many ways to serve others by organizing the Park City Memorial 5K, volunteering with the Kimball Arts Center and with Boston Area Youth At Risk, and participating in the Environmental Club. Izaac is a member of the National Honor Society.

Xavier Ray Price will be attending the Air Force Academy. He is a graduate of Judge Memorial Catholic High School where he was captain of both the track and field and the football teams. Xavier's outstanding play on the football field helped his team win two State championships and earned him a spot on the First Team All-State selected by the Salt Lake Tribune. An honor roll student, he also volunteered with the Carmelite Monastery of Salt Lake at their annual Carmelite Fair fundraiser and with the Lady of Lourdes School.

Jacob Abraham Rice, from Morgan High School, will be attending the Air Force Academy. An attendee of both Boys State and Boys Nation, he also served as president of the National Honor Society, president of Empowering Youth to Prevent Suicide, and captain of the track and field team. Jacob was cocaptain of his speech and debate team, and in 2015, he was named the Forensics School Sterling Scholar. He used his music skills to play violin for patients at Primary Children's Hospital and the Pine View Transition Rehab Facility. Jacob serves as a board member of the Young Democrats of Utah.

Mitchell Charles Weller, a graduate of Layton High School, will be attending the Merchant Marine Academy. He was captain of his soccer team, and he served fellow students as a Layton High School student ambassador. A member of the National Honor Society, Mitchell was involved with the Mathematics, Engineering, Science Achievement organization and served as a group leader for the Technology Student Association, where he excelled in engineering contests at the State level. He also worked diligently to obtain his pilot's license.

David Sperry White will be attending the U.S. Military Academy at West Point. A graduate of Uintah High School, where he served as student body president, David also was vice president of the National Honor Society and captain of the basketball and cross-country teams. He earned his Eagle Scout award and received a scholarship from the Freedoms Foundation at Valley Forge. David was honored to attend Boys State and sit on the Vernal Youth City Council, where he served as president of the Vernal Youth in Action and organized the collection and distribution of 500 blankets for the Women's Shelter and Turning Point Shelter.

Autumn Eliza-Anne Wolfgramm, a West High School graduate, accepted an appointment to the Air Force Academy. She served as the student body secretary and captain of the swim team. She was a mentor for the Freshman Mentoring Society and volunteered with the Panther Pals, a service organization working with children with disabilities. She was also a leader in her church's youth program and a member of Health Occupations Students of America. Autumn is fulfilling her grandparents' dream when they emigrated from the Kingdom of Tonga to seek out better educational opportunities for their children.

Tyler James Wright will be attending the Air Force Academy. A graduate of Springville High School, Tyler was president of the debate team and Health Occupations Students of America. He was an active member of the track and field team, Model United Nations, Boy Scouts, and the Springville Youth City Council. An avid outdoorsman and reader, Tyler volunteers with Rocky Mountain Rescue Dogs and the Brookside Elementary reading program, as well as local art and air shows. Tyler serves as a cadet in the Civil Air Patrol.

It has been an honor and an inspiration to meet and to nominate each of these exemplary young men and women. Doing so has given me an unshakeable confidence in the future of this great Nation and the future of our Armed Services.

But to these 14 students and to all their future classmates from around the country, do not forget: this is but the beginning of your journey.

You would not have arrived at this point were it not for your hard work

and sacrifice. But now what matters most is not your accomplishments of the past, but what you have yet to achieve in the future.

Thank you.●

## MESSAGE FROM THE PRESIDENT

A message from the President of the United States was communicated to the Senate by Mr. Pate, one of his secretaries.

## PRESIDENTIAL MESSAGE

### PROPOSED AGREEMENT FOR COOPERATION BETWEEN THE GOVERNMENT OF THE UNITED STATES OF AMERICA AND THE GOVERNMENT OF THE KINGDOM OF NORWAY CONCERNING PEACEFUL USES OF NUCLEAR ENERGY—PM 51

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on Foreign Relations:

*To The Congress of the United States:*

I am pleased to transmit to the Congress, pursuant to sections 123 b. and 123 d. of the Atomic Energy Act of 1954, as amended (42 U.S.C. 2153(b), (d)) (the ''Act''), the text of a proposed Agreement for Cooperation Between the Government of the United States of America and the Government of the Kingdom of Norway Concerning Peaceful Uses of Nuclear Energy (the ''Agreement''). I am also pleased to transmit my written approval, authorization, and determination concerning the Agreement, and an unclassified Nuclear Proliferation Assessment Statement (NPAS) concerning the proposed Agreement. (In accordance with section 123 of the Act, as amended by Title XII of the Foreign Affairs Reform and Restructuring Act of 1998 (Public Law 105–277), a classified annex to the NPAS, prepared by the Secretary of State, in consultation with the Director of National Intelligence, summarizing relevant classified information, will be submitted to the Congress separately.) The joint memorandum submitted to me by the Secretaries of State and Energy and a letter from the Chairman of the Nuclear Regulatory Commission stating the views of the Commission are also enclosed. An addendum to the NPAS containing a comprehensive analysis of Norway's export control system with respect to nuclear-related matters, including interactions with other countries of proliferation concern and the actual or suspected nuclear, dual-use, or missile-related transfers to such countries, pursuant to section 102A(w) of the National Security Act of 1947 (50 U.S.C. 3024(w)), is being submitted separately by the Director of National Intelligence.

The proposed Agreement has been negotiated in accordance with the Act and other applicable law. In my judgment, it meets all applicable statutory requirements and will advance the nonproliferation and other foreign policy interests of the United States.

The proposed Agreement contains all the provisions required by section 123 a. of the Act, and provides a comprehensive framework for peaceful nuclear cooperation with Norway based on a mutual commitment to nuclear nonproliferation. It would permit the transfer of unclassified information, material, equipment (including reactors), and components for nuclear research and nuclear power production. Norway has no nuclear power program, and no current plans for establishing one, but the proposed Agreement would facilitate cooperation on such a program if Norway's plans change in the future. Norway does have an active nuclear research program and the focus of cooperation under the proposed Agreement, as under the previous agreement, is expected to be in the area of nuclear research. The proposed Agreement would not permit transfers of Restricted Data, sensitive nuclear technology, sensitive nuclear facilities or major critical components of such facilities.

The proposed Agreement would provide advance, long-term (programmatic) consent to Norway for the retransfer for storage or reprocessing of irradiated nuclear material (spent fuel) subject to the Agreement to France, the United Kingdom, or other countries or destinations as may be agreed upon in writing. The United States has given similar advance consent to various other partners, including to Norway under the previous U.S.-Norway Peaceful Nuclear Cooperation Agreement that was in force from 1984 to 2014. The proposed Agreement would give the United States the option to revoke the advance consent if it considers that it cannot be continued without a significant increase of the risk of proliferation or without jeopardizing national security.

The proposed Agreement will have a term of 30 years from the date of its entry into force, unless terminated by either party on 1 year's advance written notice. In the event of termination or expiration of the proposed Agreement, key nonproliferation conditions and controls will continue in effect as long as any material, equipment, or component subject to the proposed Agreement remains in the territory of the party concerned or under its jurisdiction or control anywhere, or until such time as the parties agree that such items are no longer usable for any nuclear activity relevant from the point of view of safeguards.

Norway is a non-nuclear-weapon State party to the Treaty on the Non-Proliferation of Nuclear Weapons (NPT). Norway has concluded a safeguards agreement and additional protocol with the International Atomic Energy Agency. Norway is a party to the Convention on the Physical Protection of Nuclear Material, which establishes international standards of physical protection for the use, storage, and transport of nuclear material. It is also a member of the Nuclear Suppliers Group, whose non-legally binding guidelines set forth standards for the responsible export of nuclear commodities for peaceful use. A more detailed discussion of Norway's domestic civil nuclear activities and its nuclear nonproliferation policies and practices is provided in the NPAS and the NPAS classified annex submitted to the Congress separately.

I have considered the views and recommendations of the interested departments and agencies in reviewing the proposed Agreement and have determined that its performance will promote, and will not constitute an unreasonable risk to, the common defense and security. Accordingly, I have approved the proposed Agreement and authorized its execution and urge that the Congress give it favorable consideration.

This transmission shall constitute a submittal for purposes of both sections 123 b. and 123 d. of the Act. My Administration is prepared to begin immediately consultations with the Senate Foreign Relations Committee and the House Foreign Affairs Committee as provided in section 123 b. Upon completion of the 30 days of continuous session review provided for in section 123 b., the 60 days of continuous session review provided for in section 123 d. shall commence.

BARACK OBAMA.

THE WHITE HOUSE, *June 14, 2016*.

## MESSAGES FROM THE HOUSE

### ENROLLED BILLS SIGNED

At 10:05 a.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the Speaker has signed the following enrolled bills:

H.R. 1762. An act to name the Department of Veterans Affairs community-based outpatient clinic in The Dalles, Oregon, as the ''Loren R. Kaufman VA Clinic''.

H.R. 2212. An act to take certain Federal lands located in Lassen County, California, into trust for the benefit of the Susanville Indian Rancheria, and for other purposes.

H.R. 2576. An act to modernize the Toxic Substances Control Act, and for other purposes.

The enrolled bills were subsequently signed by the President pro tempore (Mr. HATCH).

At 11:30 a.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bill, without amendment:

S. 337. An act to improve the Freedom of Information Act.

The message further announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 3636. An act to amend the Immigration and Nationality Act to allow labor organizations and management organizations to receive the results of visa petitions about which such organizations have submitted advisory opinions.

H.R. 3694. An act to combat trafficking in human organs, and for other purposes.

H.R. 4939. An act to increase engagement with the governments of the Caribbean region, the Caribbean diaspora community in the United States, and the private sector and civil society in both the United States and the Caribbean, and for other purposes.

H.R. 5312. An act to amend the High-Performance Computing Act of 1991 to authorize activities for support of networking and information technology research, and for other purposes.

## MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 3636. An act to amend the Immigration and Nationality Act to allow labor organizations and management organizations to receive the results of visa petitions about which such organizations have submitted advisory opinions; to the Committee on the Judiciary.

H.R. 3694. An act to combat trafficking in human organs, and for other purposes; to the Committee on Foreign Relations.

H.R. 4939. An act to increase engagement with the governments of the Caribbean region, the Caribbean diaspora community in the United States, and the private sector and civil society in both the United States and the Caribbean, and for other purposes; to the Committee on Foreign Relations.

H.R. 5312. An act to amend the High-Performance Computing Act of 1991 to authorize activities for support of networking and information technology research, and for other purposes; to the Committee on Commerce, Science, and Transportation.

## PETITIONS AND MEMORIALS

The following petitions and memorials were laid before the Senate and were referred or ordered to lie on the table as indicated:

POM–174. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to enact the resilient Federal Forests Act; to the Committee on Agriculture, Nutrition, and Forestry.

SENATE CONCURRENT MEMORIAL 1011

Whereas, national forest lands are the largest single source of water in the United States and, in some regions of the west, contribute nearly 50% of the overall water supply: and

Whereas, the unhealthy state of these forests has resulted in catastrophic wildfires that are threatening the reliability, volume and quality of water for tens of millions of Americans; and

Whereas, severe drought and record-breaking wildfire seasons have highlighted the need for the implementation of a process that would require and provide for the United States Forest Service to accelerate restoration work in our national forests, which would protect critical headwaters and make forest lands more resilient against prolonged dry conditions, insect infestation and fire; and

Whereas, failure to take quick action will result in a continued increase in the frequency and intensity of destructive wildfires, impacting the nation's water resources for decades at considerable cost to stakeholders and United States taxpayers; and

Whereas, the customs, cultures and economic well-being of our local communities, as well as important historic and cultural aspects of our local heritage, are being ignored, which adversely affects the lives and jobs of the people of the United States and devastates local and state economies; and

Whereas, on June 4, 2015, Representative Bruce Westerman introduced H.R. 2647, the Resilient Federal Forests Act. The bill passed in the House on July 9, 2015 and was transmitted to the Senate, where it died in committee; and

Whereas, the Resilient Federal Forests Act expedites and improves forest management activities through a collaborative process, resulting in the protection of water resources.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the United States Congress enact the Resilient Federal Forests Act.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States Senate, the Speaker of the United States House of Representatives and each Member of Congress from the State of Arizona.

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POM–175. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to act to prohibit Federal agencies from recommending and identifying Arizona's public lands as wilderness areas without express congressional consent; to the Committee on Energy and Natural Resources.

SENATE CONCURRENT MEMORIAL 1014

Whereas, through federal land management planning and associated guidelines, federal agencies are recommending and identifying Arizona's public lands as wilderness areas; and

Whereas, these administratively recommended wilderness areas circumvent congressional intent and lack full and appropriate National Environmental Policy Act (NEPA) analyses; and

Whereas, the identification of these de facto wilderness areas has resulted in significant restrictions on public access and recreation, paralyzing restrictions on the Arizona Game and Fish Department's ability to manage wildlife and potentially catastrophic restrictions on vegetation and habitat improvement projects, including fire management activities; and

Whereas, the conservation of wildlife resources is the trust responsibility of the Arizona Game and Fish Commission, and this responsibility extends to all lands within Arizona to ensure abundant wildlife resources for current and future generations; and

Whereas, the designation of Arizona's public lands as wilderness areas has resulted in the erosion of the Arizona Game and Fish Department's ability to comply with its federal mandate to proactively recover threatened and endangered species; and

Whereas, according to federal land management agency guidelines, an administratively recommended wilderness area must be managed to ''protect and maintain the social and ecological characteristics that provide the basis for wilderness recommendation'' in perpetuity or until Congress takes action to formally designate the area as a wilderness area; and

Whereas, allowable activities within administratively recommended wilderness areas will be left to the discretion of federal staff and deciding officers, resulting in even greater restrictions and limitations than those formally vetted and designated by Congress; and

Whereas, congressionally designated wilderness provides clearer guidance for management and coordination with this state, specific processes for wildlife management exemptions and direction for collaboration via existing state agreements and guidelines; and

Whereas, administratively recommended wilderness areas circumvent the spirit of NEPA and congressional intent and lack transparency; and

Whereas, with the implementation of federal land management plans, recommended wilderness areas constitute a significant and immediate change in management without a fully disclosed impact analysis required by NEPA; and

Whereas, the federal land management plans lack full NEPA disclosure of potential impacts to this state and the public, assurances protecting this state's ability to proactively manage wildlife and fulfill its public trust responsibility, including specific management activities, and analyses of the cumulative impacts of further loss of public lands that provide for S.C.M. 1014 multiple-use and wildlife-related recreational and economic opportunities; and

Whereas, the areas being recommended as wilderness were not included within the original wilderness designations with purposeful intent by Congress; and

Whereas, the subsequent expansion of previously designated wilderness is an overreach of the federal agencies and disingenuous to the public, subverting original collaboration, coordination, negotiation and agreements; and

Whereas, the federal agency planning documents suggest that no significant management action or recommendation to Congress will take place before further NEPA analyses are completed. Within the recently released Prescott and Apache-Sitgreaves National Forest recommended wildernesses, the United States Forest Service indicates that these areas are simply preliminary administrative recommendations and that further NEPA analyses are necessary. However, in transmittal letters, the United States Forest Service states that ''the Final Environmental Impact Statement for the . . . Forest's Revised Resource Management Plan contains the NEPA analysis necessary to support a legislative proposal.'' This is an egregious lack of transparency.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the Congress of the United States act to prohibit federal agencies from recommending and identifying Arizona's public lands as wilderness areas without express congressional consent.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States Senate, the Speaker of the United States House of Representatives and each Member of Congress from the State of Arizona.

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POM–176. A resolution adopted by the Senate of the State of Iowa calling upon the United States Congress, the United States Environmental Protection Agency, the President of the United States, and this country's future President of the United States and administration, to continue to support the renewable fuel standard in order to encourage American energy production and to strengthen rural communities; to the Committee on Environment and Public Works.

SENATE RESOLUTION 118

Whereas, in accordance with the federal Energy Policy Act of 2005, Pub. L. No. 109–58,

as amended by the federal Energy Independence and Security Act of 2007, Pub. L. No. 110–140, the United States has demonstrated its commitment to the long-term policy of increasing the domestic production of clean renewable fuels according to a renewable fuel standard, referred to as the ''RFS''; and

Whereas, the RFS is one of the single most successful energy policies in our nation's history; and

Whereas, the RFS is a federal policy that requires a minimum percentage of motor fuel sold in our nation to contain renewable fuels; and

Whereas, under the RFS, renewable fuels have access to a retail market in the face of a vertically integrated petroleum market; and

Whereas, the RFS represents a congressional promise to American biofuels producers, farmers, communities, and investors that the blend levels of the RFS will increase each year; and

Whereas, this congressional policy supporting the RFS will continue to build the long-term capacity of the renewable fuels industry and will encourage the development of new types of clean fuels; and

Whereas, the RFS helps support over 73,000 jobs in agriculture, biofuels production, and associated businesses in Iowa; and

Whereas, the renewable fuels industry in Iowa helps pay $5 billion in wages annually to this state's employment force; and

Whereas, renewable fuels create additional markets for Iowa farmers with more than 47 percent of Iowa's corn supply supporting ethanol production: Now, therefore, be it

*Resolved by the Senate*, That the Iowa Senate calls upon the Congress of the United States, the United States Environmental Protection Agency, the President of the United States, and this country's future President of the United States and administration, to continue to support the RFS in order to encourage American energy production and to strengthen rural communities; and be it further

*Resolved*, That copies of this Resolution be sent to the President of the United States, the Administrator of the United States Environmental Protection Agency, the President and Secretary of the United States Senate, the Speaker and Clerk of the United States House of Representatives, and to the members of Iowa's congressional delegation.

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POM–177. A concurrent resolution adopted by the Legislature of the State of Louisiana memorializing the United States Congress to designate the Louisiana Highway 8/Louisiana Highway 28 corridor in Louisiana as Future Interstate 14; to the Committee on Environment and Public Works.

SENATE CONCURRENT RESOLUTION NO. 90

Whereas, Interstate 14 (I–14), also known as the ''14th Amendment Highway'', the Gulf-Coast Strategic Highway, and the Central Texas Corridor is a proposed interstate highway from Texas to Georgia; the original conceptual western terminus of the highway was from Natchez, Mississippi, and later from I–49 near Alexandria, Louisiana, extending east through the states of Louisiana, Mississippi, and Alabama, ending at Augusta, Georgia or North Augusta, South Carolina; and

Whereas, advocates of the Gulf-Coast Strategic Highway proposed extending I–14 to the I–10 near Fort Stockton and the junction of US 277 and I–10 near Sonora, Texas; and

Whereas, the proposal for the 14th Amendment Highway has its origins in the Safe, Accountable, Flexible Transportation Equity Act: A Legacy for Users (SAFETEA-LU); and

Whereas, the study and planning of I–14 has continued because of support and interest from both the Congress and the associated state highway departments; and,

Whereas, the I–14 corridor provides a national strategic link to numerous major military bases and major Gulf Coast and Atlantic ports used for overseas deployments in six states from Texas to South Carolina; and

Whereas, the Fixing America's Surface Transportation (FAST) Act, signed by President Obama on December 14, 2015, officially assigned the Future I–14 designation to the US 190 Central Texas Corridor; and

Whereas, congressional advocacy for the legislation spiked following the post-logistics controversies; the act included the 14th Amendment Highway and the 3rd Infantry Division Highway; the legislation did not provide funding for either highway; and

Whereas, the Federal Highway Administration (FHWA) currently has no funding identified beyond the Phase II studies to support long-range planning, environmental review or construction which must be initiated at the state or regional level with any further direction from the Congress; and

Whereas, the 14th Amendment Highway and the Gulf-Coast Strategic Highway concepts continued through active studies to the present as local and state interest began to surface and support in the Congress, FHWA and, most importantly, in the associated state highway departments, all the key ingredients necessary to successfully justify funding any proposed federal-aid highway project; and

Whereas, the FHWA issued its report on the 14th Amendment Highway to the Congress in 2011 and made recommendation for further environmental and feasibility substudies; however, little action to fund these studies advanced in Congress after 2011; and

Whereas, the Texas Department of Transportation (TxDOT) also conducted the US 190/IH–10 Feasibility Study in 2011, which concluded that it was justified to upgrade US 190 to a divided four-lane arterial highway based on current traffic projections to 2040, but that upgrading US 190 to a full freeway through Texas was only justified if the 14th Amendment Highway is actually constructed from Louisiana to Georgia; and

Whereas, the Louisiana Department of Transportation and Development (DOTD) has not endorsed designation of ''Future I–14'' in Louisiana as proponents of the Gulf-Coast Strategic Highway presented the LA 8/LA 28 corridor as a conventional four lane highway; and DOTD is pursuing its development of the LA 8/LA 28 corridor, having completed LA 28 between Alexandria and Fort Polk, and having included the relocation of LA 28 south of Alexandria in Priority A of the Statewide Transportation Plan and the section from Archie to Vidalia in Priority B of the Statewide Transportation Plan; and

Whereas, the Legislature of the State of Louisiana recognizes that the designation of the LA 8/LA 28 corridor in Louisiana as Future I–14 is vital as a national strategic link to numerous major military bases and major Gulf Coast and Atlantic ports used for overseas deployments in six states from Texas to South Carolina: Now, therefore, be it

*Resolved*, That the Legislature of Louisiana memorializes the Congress of the United States to designate the Louisiana Highway 8/Louisiana Highway 28 corridor in Louisiana as Future Interstate 14; and be it further

*Resolved*, That a copy of this Resolution shall be transmitted to the secretary of the United States Senate and the clerk of the United States House of Representatives and to each member of the Louisiana delegation to the United States Congress.

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POM–178. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to enact the Regulatory Integrity Protection Act; to the Committee on Environment and Public Works.

SENATE CONCURRENT MEMORIAL 1008

Whereas, on April 13, 2015, Representative Bill Shuster introduced H.R. 1732, the Regulatory Integrity Protection Act; and

Whereas, the Regulatory Integrity Protection Act protects landowners from intrusive government regulation and ensures the protection of personal property; and

Whereas, the Regulatory Integrity Protection Act came in response to efforts by the Obama Administration, the United States Environmental Protection Agency (EPA) and the United States Army Corps of Engineers to implement the Clean Water Rule, which vastly expands the federal government's ability to regulate waterways; and

Whereas, the final rule became effective on August 28, 2015; and

Whereas, the final rule is far too broad, allowing the federal government to regulate everything from puddles of rainwater to agricultural irrigation systems; and

Whereas, the final rule allows waters that have traditionally been off limits to federal regulation to be subject to the rulemaking process of the EPA and the Clean Water Act; and

Whereas, the customs, cultures and economic well-being of our local communities, as well as important historic and cultural aspects of our local heritage, are being ignored, which adversely affects the lives and jobs of the people of the United States and devastates local and state economies; and

Whereas, the State of Arizona is one of 27 states that have brought legal challenges against the Clean Water Rule and successfully obtained a nationwide stay barring the rule's enforcement; and

Whereas, if passed by Congress, the Regulatory Integrity Protection Act would require the EPA and the United States Army Corps of Engineers to develop a new rule that takes into consideration all public comments received on the matter as well as input received from state and local governments.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the Congress of the United States enact the Regulatory Integrity Protection Act.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States Senate, the Speaker of the United States House of Representatives and each Member of Congress from the State of Arizona.

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POM–179. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Environmental Protection Agency to reinstate the previous ozone concentration standard of 75 parts per billion; to the Committee on Environment and Public Works.

SENATE CONCURRENT MEMORIAL 1007

Whereas, on October 1, 2015, the United States Environmental Protection Agency (EPA) reduced the national ambient air quality standards for ground-level ozone from 75 parts per billion (ppb) to 70 ppb: and

Whereas, the State of Arizona will have great difficulty in implementing this new ozone concentration standard due to factors that are outside of this state's control, including its proximity to California, extreme heat and intense summer sunshine; and

Whereas, before the implementation of the new ozone concentration standard, the EPA reported that 358 counties in the nation would violate a standard of 70 ppb based on monitoring data from 2011 through 2013; and

Whereas, nonattainment area designations will limit economic and job growth by restricting new and expanded industrial and

manufacturing facilities, imposing emission ''offset'' requirements on new and modified major sources of nitrogen oxides and volatile organic compounds emissions, constraining oil and gas extraction and raising electricity prices for industries and consumers; and

Whereas, low-income and fixed-income citizens will bear the brunt of higher energy costs and utility bills; and

Whereas, air quality continues to improve, and nitrogen oxide emissions are already down to 60% nationwide since 1980, which, after adjusting for economic growth, implies a 90% reduction in emission rates from the relatively uncontrolled 1990 rates for nitrogen oxide-emitting sources; and

Whereas, average ozone concentrations have decreased significantly in both urban and rural areas over the past two decades in response to state and federal emission control programs; and

Whereas, instead of giving states enough time to meet the previous ozone concentration standard of 75 ppb through ongoing emission reduction programs, the EPA moved the goalpost by imposing a lower standard; and

Whereas, reinstating the previous ozone concentration standard of 75 ppb would provide for continued air quality improvement throughout the nation as emission reduction programs under EPA regulations are implemented.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the United States Environmental Protection Agency reinstate the previous ozone concentration standard of 75 ppb.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the Administrator of the United States Environmental Protection Agency, the President of the United States, the President of the United States Senate, the Speaker of the United States House of Representatives and each Member of Congress from the State of Arizona.

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POM–180. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to oppose the implementation of certain rules for existing electric utility generating units; to the Committee on Environment and Public Works.

SENATE CONCURRENT MEMORIAL 1016

Whereas, the Clean Air Act (CAA) is a federal law designed to protect air quality nationwide; and

Whereas, jurisdiction to implement the CAA lies primarily with the states; and

Whereas, in 1970, Congress enacted the CAA, mandating comprehensive state andfederal regulations for both stationary and nonstationary sources of pollution; and

Whereas, while Americans support efforts to improve air quality, such efforts should be carefully balanced to ensure that the cost of new regulations on the economy do not exceed potential benefits; and

Whereas, on October 23, 2015, the United States Environmental Protection Agency (EPA) published final rules in the Federal Register regulating greenhouse gas emissions from existing electric utility generating units, also known as the Clean Power Plan; and

Whereas, the EPA has issued a proposed federal plan that will be imposed on existing electric utility generating units in the State of Arizona if the State of Arizona does not adopt its own plan implementing the Clean Power Plan regulating greenhouse gas emissions; and

Whereas, the EPA's Clean Power Plan exceeds the agency's legal authority to require reductions in carbon dioxide emissions from existing fossil fuel-fired electric generating units under Section 111(d) of the CAA and interferes with the electric system of Arizona; and

Whereas, addressing greenhouse gas emissions under Section 111(d) is a discretionary duty of the EPA as outlined in the CAA; and

Whereas, devoting resources to discretionary duties like regulating greenhouse gas emissions takes resources away from nondiscretionary duties that are better suited to protect the public health and safety in the near term; and

Whereas, it is important to Arizona's economy to have a diverse energy portfolio that provides reliable and affordable electric service to Arizona residents and businesses while also protecting the public health and safety; and

Whereas, fossil fuels, including coal and natural gas, provide an abundant and affordable domestic energy source that is important to Arizona's economy and enhance the availability and reliability of electric service; and

Whereas, the EPA's final Clean Power Plan impedes the ability of this state to oversee its own electricity supply and transmission system; and

Whereas, the EPA's Clean Power Plan will have adverse impacts on the customs, culture, history, heritage and economies of this state and local communities.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the United States Congress oppose the implementation of rules for existing electric utility generating units that exceed the EPA's legal authority under Section 111(d) of the CAA and interfere with the prerogative of'Arizona to regulate electricity and ensure an affordable and reliable supply of electricity for its citizens.

2. That the United States Congress oppose the implementation of rules for existing electric utility generating units that do not recognize the primary role of states in establishing and implementing plans to achieve emissions reductions for existing units under Section 111(d) of the CAA.

3. That the United States Congress exercise oversight over the EPA to ensure that the primary role of states in establishing and implementing plans to achieve emissions reductions from existing electric utility generating units under Section 111(d) of the CAA is respected.

4. That the Governor and the Attorney General of the State of Arizona take appropriate actions to uphold this state's responsibilities with respect to the CAA and defend this state against overreaching regulations.

5. That the Secretary of State of the State of Arizona transmit a copy of this Memorial to the President of the United States, the President of the United States Senate, the Speaker of the United States House of Representatives, each Member of Congress from the State of Arizona, the Administrator of the United States Environmental Protection Agency, the Governor of the State of Arizona and the Attorney General of the State of Arizona.

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POM–181. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to enact the Stopping EPA Overreach Act; to the Committee on Environment and Public Works.

SENATE CONCURRENT MEMORIAL 1015

Whereas, the Stopping EPA Overreach Act seeks to prevent the United States Environmental Protection Agency (EPA) from exceeding its statutory authority in ways that were not contemplated by the United States Congress; and

Whereas, in the Stopping EPA Overreach Act, the State of Arizona urges Congress to find that:

(1) The EPA has exceeded its statutory authority by promulgating regulations that were not contemplated by Congress in the authorizing language of the statutes enacted by Congress;

(2) The EPA was correct not to classify greenhouse gases as pollutants prior to 2009;

(3) No federal agency has the authority to regulate greenhouse gases under current law; and

(4) No attempt to regulate greenhouse gases should be undertaken without further congressional action; and

Whereas, the Stopping EPA Overreach Act should clarify that federal agencies do not have the authority to regulate climate change or global warming, thereby voiding certain EPA rules, and requires the Administrator of the EPA to provide an analysis of any regulation, rule or policy that describes its impacts on employment and jobs in the United States before proposing or finalizing that regulation, rule or policy; and

Whereas, any federal agency seeking to promulgate a regulation, rule or policy should be required to provide the cost-benefit analysis and peer-reviewed science that were used in proposing the regulation, rule or policy; and

Whereas, penalties should be imposed for knowingly providing false information as support for a proposed regulation, rule or policy; and

Whereas, the people of Arizona fully support the Stopping EPA Overreach Act.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the United States Congress enact the Stopping EPA Overreach Act.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States, the Speaker of the United States House of Representatives, the President of the United States Senate and each Member of Congress from the State of Arizona.

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POM–182. A concurrent memorial adopted by the Legislature of the State of Arizona urging the President of the United States, United States Congress, and the United States Secretary of State to secure the safe release of Robert Levinson from Iran; to the Committee on Foreign Relations.

HOUSE CONCURRENT MEMORIAL 2010

Whereas, it is a time-honored tradition that the United States of America strives to ensure that all United States citizens held captive overseas are returned safely to their families and loved ones; and

Whereas, Robert Levinson honorably served the United States as a law enforcement officer in both the United States Drug Enforcement Agency and the Federal Bureau of Investigation; and

Whereas, Robert Levinson was taken captive on the Kish Island in Iran on March 9, 2007; and

Whereas, several Americans who have been held captive in Iran were recently released, but Robert Levinson was not among them; and

Whereas, it is a duty and obligation of the United States to Robert Levinson and his family to ascertain his whereabouts and secure his safe release.

Wherefore your memorialist, the House of Representatives of the State of Arizona, the Senate concurring, prays:

1. That the President of the United States the United States Congress, the United

States Secretary of State and all public officials under their charge follow the policy of the United States as stated in United States Senate Concurrent Resolution 16:

It is the policy of the United States that—

(1) [T]he Government of the Islamic Republic of Iran should immediately . . . cooperate with the United States Government to locate and return Robert Levinson; and

(2) [T]he United States Government should undertake every effort using every diplomatic tool at its disposal to secure [his] immediate release.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States, the Secretary of State of the United States, the Speaker of the United States House of Representatives, the President of the United States Senate and each Member of Congress from the State of Arizona.

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POM–183. A memorial adopted by the Senate of the State of Arizona urging that each member of Congress from the State of Arizona cosponsor legislation similar to House Concurrent Resolution 75, support other congressional efforts to aid victims of the persecution of Christians and other religious minorities in the Middle East and encourage the United States government to take greater concrete action to end the genocide; to the Committee on Foreign Relations.

SENATE MEMORIAL 1001

Whereas, Christians, Yazidis and other religious minorities in the Middle East are being subjected to systematic and violent persecution at the hands of the Islamic State of Iraq and Syria (ISIS) and other terrorist groups; and

Whereas, these people are being murdered, kidnapped, sexually abused, tortured and victimized in other ways that violate the laws of their own nations, the international community and the United Nations Convention on the Prevention and Punishment of the Crime of Genocide (Convention); and

Whereas, the victims of this brutal persecution are being specifically targeted based on their religious or ethnic affiliation with the intent to facilitate the annihilation or forced migration of communities with longstanding ties to their region; and

Whereas, the Convention defines ''genocide'' as killing members of a national, ethnic, racial or religious group, causing them serious bodily or mental harm, intentionally enforcing living conditions designed to cause the partial or total physical destruction of the group, preventing births within the group or transferring the children of the group to another group with the intent to destroy the group in total or in part; and

Whereas, the Convention holds that genocide is a crime that governments are obligated to prevent and for which perpetrators are to be held responsible; and

Whereas, the United States Commission on Religious Freedom, the Hudson Institute for Religious Freedom, the International Association of Genocide Scholars, Pope Francis, Hillary Clinton and many other organizations and religious and political leaders have called on the United States to recognize the persecution of Christians and other religious minorities in the Middle East as genocide; and

Whereas, the United States Congress has introduced House Concurrent Resolution 75, Senate Resolution 340 and at least five other bills designed to recognize the genocide and facilitate expedited support and aid for Christians and other religious minorities in the Middle East; and

Whereas, the designation of the persecution of Christians and other religious minorities in the Middle East as genocide has real, practical policy implications and can help expedite various solutions to the crisis; and

Whereas, the Members of the Senate of the State of Arizona officially recognize the persecution of Christians and other religious minorities in the Middle East as genocide.

Wherefore your memorialist, the Senate of the State of Arizona, prays:

1. That each Member of Congress from the State of Arizona cosponsor legislation similar to House Concurrent Resolution 75, support other congressional efforts to aid victims of the persecution of Christians and other religious minorities in the Middle East and encourage the United States government to take greater concrete action to end the genocide.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States, the Speaker of the United States House of Representatives, the Majority Leader of the United States Senate and each Member of Congress from the State of Arizona.

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POM–184. A concurrent memorial adopted by the Legislature of the State of Arizona urging that the United States Congress continue to take action to prevent the United States from entering into the United Nations Arms Trade Treaty or other similar treaties that would interfere with the Second Amendment rights of United States citizens; to the Committee on Foreign Relations.

SENATE CONCURRENT MEMORIAL 1013

Whereas, United Nations (UN) Security Council Resolution 2117, which was adopted on September 26, 2013, ''[c]alls for Member States to support weapons collection, disarmament, demobilization and reintegration of ex-combatants, as well as physical security and stockpile management programmes by United Nations peacekeeping operations where so mandated''; and

Whereas, the UN Arms Trade Treaty strives to place a global ban on the import and export of small firearms, affecting all private gun owners in the United States, and to implement an international gun registry on all private guns and ammunition; and

Whereas, Senator James Inhofe introduced an amendment to the budget in 2013 that would prevent the United States from entering into the United Nations Arms Trade Treaty ''[t]o uphold Second Amendment rights and prevent the United States from entering into the United Nations Arms Trade Treaty,'' which passed on a 53–46 vote.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the United States Congress continue to take action to prevent the United States from entering into the UN Arms Trade Treaty or other similar treaties that would interfere with the Second Amendment rights of United States citizens.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States, the Speaker of the United States House of Representatives, the President of the United States Senate and each Member of Congress from the State of Arizona.

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POM–185. A concurrent resolution adopted by the Legislature of the State of Louisiana recognizing May 2016 as ''Amyotrophic Lateral Sclerosis Awareness Month'' and memorializing the United States Congress to enact legislation to provide additional funding for research for the treatment and cure of Amyotrophic Lateral Sclerosis; to the Committee on Health, Education, Labor, and Pensions.

SENATE CONCURRENT RESOLUTION NO. 119

Whereas, Amyotrophic Lateral Sclerosis, or ALS, is more commonly known as Lou Gehrig's disease; and

Whereas, ALS is a fatal neurodegenerative disease characterized by degeneration of cell bodies of the lower motor neurons in the gray matter of the anterior horns of the spinal cord; and

Whereas, the initial symptom of ALS is usually weakness of the skeletal muscles, especially those of the extremities; and

Whereas, as ALS progresses, the patient typically experiences difficulty in swallowing, talking, and breathing; and

Whereas, ALS eventually causes muscles to atrophy and the patient becomes a functional quadriplegic; and

Whereas, ALS does not affect the mental capacity of the patient, such that the patient remains alert and aware of surroundings and aware of the loss of motor functions and the inevitable outcome of continued deterioration and death; and

Whereas, on average, patients diagnosed with ALS survive only two to five years from the time of diagnosis; and

Whereas, despite the catastrophic consequences of a diagnosis of ALS, the disease currently has no known cause, means of protection, or cure; and

Whereas, research indicates that military veterans are at a sixty percent greater risk of developing ALS than those who have not served in the military; and

Whereas, the United States Department of Veterans Affairs has promulgated regulations to establish a presumption of service connection for ALS thereby presuming that the development of ALS was incurred or aggravated by a veteran's service in the military; and

Whereras, a national ALS registry, administered by the Centers for Disease Control and Prevention, is currently identifying cases of ALS in the United States and may become the largest ALS research project ever undertaken; and

Whereas, Amyotrophic Lateral Sclerosis Awareness Month increases the awareness of the circumstances of living with ALS and acknowledges the terrible impact this disease has, not only on the patient receiving such a diagnosis, but also on his family and community; and

Whereas, Amyotrophic Lateral Sclerosis Awareness Month also increases awareness of research being done to eradicate this dire disease: Now, therefore, be it

*Resolved*, That the Legislature of Louisiana does hereby recognize May 2016 as ''Amyotrophic Lateral Sclerosis Awareness Month''; and be it further

*Resolved*, That the Legislature of Louisiana does hereby memorialize the Congress of the United States to enact legislation to provide additional funding for research for the treatment and cure of Amyotrophic Lateral Sclerosis; and be it further

*Resolved*, That a copy of this Resolution be transmitted to the secretary of the United States Senate, the clerk of the United States House of Representatives, and to each member of the Louisiana delegation to the United States Congress.

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POM–186. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to protest the proposed closing of the Tucson Postal Processing and Distribution Center and take any action necessary to fully restore operations of this vital postal facility; to the Committee on Homeland Security and Governmental Affairs.

SENATE CONCURRENT MEMORIAL 1009

Whereas, the Tucson Postal Processing and Distribution Center (Cherrybell) serves the entire southern portion of Arizona covering the counties of Pima, Santa Cruz and Cochise. Currently, Southern Arizona is facing a potential economic downfall due to the

initial decision made by the United States Postal Service (USPS) Board of Governors to close Cherrybell; and

Whereas, more than 1.8 million people and 23,197 businesses use the Cherrybell postal services. According to USPS officials, over 3 million pieces of mail go through Cherrybell each day as it is the 15th largest facility serving the 33rd largest population area in our nation. The processing and sorting operations at Cherrybell that are proposed to be moved to Phoenix affect approximately 280 jobs in Southern Arizona; and

Whereas, Southern Arizona, which includes both the Tohono O'odham nation and Pasqua Yaqui tribal lands, encompasses the California and Arizona border at Yuma south to Nogales, across to Douglas and Bisbee in Cochise County and the military installations located at Fort Huachuca and Davis Monthan, depends on the Cherrybell Post office; and

Whereas, Southern Arizona is home to many military veterans who depend on the USPS both for timely delivery of medical prescriptions and for employment, as the USPS employs more veterans than any entity other than the United States Department of Defense; and

Whereas, in an extensive community survey conducted in 2015, 84% of individuals and 86% of businesses reported a noticeable delay in mail delivery due to the partial closure of Cherrybell; and

Whereas, Tucson City Council Member Richard Fimbres went on record opposing the closure of Cherrybell and requested that the Council work directly with Tucson's congressional delegation and community members to frame a campaign to protect the vital jobs at Cherrybell; and

Whereas, Pima County Recorder F. Ann Rodriguez objects to the closure of Cherrybell and firmly believes that, due to the higher number of voters each year on the permanent early voting list, this change will clearly impact the activities of the state and county elections officials in Arizona and will cause a detrimental impact to voters. The information provided to the public by the USPS is based entirely on economic considerations with no apparent regard for the impact of the change on the fundamental right of all citizens to vote and, in particular, the significant additional detrimental impact to Native American voters in the region; and

Whereas, the people of Arizona applaud the efforts of United States Representative Martha McSally and the other members of the Arizona Congressional Delegation, including Representatives Trent Franks, Ann Kirkpatrick, Matt Salmon, Paul Gosar, Ruben Gallego, Kyrsten Sinema and Raul Grijalva, who have asked for more detailed and complete information regarding the proposal Cherrybell closure; and

Whereas, thousands of people have written letters and signed online petitions urging the USPS Board of Governors not to close Cherrybell.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the Congress of the United States protest the proposed closing of the Tucson Postal Processing and Distribution Center and take any action necessary to fully restore operations of this vital postal facility.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States Senate, the Speaker of the United States House of Representatives and each Member of Congress from the State of Arizona.

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POM–187. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to act to increase the number of United States Customs and Border Protection personnel at the ports of entry in Arizona; to the Committee on Homeland Security and Governmental Affairs.

SENATE CONCURRENT MEMORIAL 1006

Whereas, the United States Customs and Border Protection (CBP) is one of the world's largest law enforcement organizations and is charged with keeping terrorists and their weapons out of the United States while facilitating lawful international travel and trade; and

Whereas, as the world's first full-service border entity, CBP takes a comprehensive approach to border management and control, combining customs, immigration, border security and agricultural protection into one coordinated and supportive activity; and

Whereas, the need to increase the number of CBP personnel in the Tucson sector along the border between the United States and Mexico is critical to increasing border safety and security as well as to ensuring economic stability in our border communities; and

Whereas, increasing the number of CBP personnel who work at the ports of entry in Arizona will enhance the economic stability in our border communities and will increase border security between the United States and Mexico; and

Whereas, an integrated approach to securing the border and increasing economic stability along the border and in our border communities is important to residents living along the border and in our border communities; and

Whereas, increasing the number of CBP personnel at the ports of entry in Arizona will allow increased commercial traffic and will result in increased economic growth and stability for Arizona; and

Whereas, all of the benefits of increased economic stability in Arizona can be realized if the workload capacity at each port of entry is increased, which would result in less congestion and delay; and

Whereas, increasing the number of CBP personnel at the ports of entry in Arizona should be part of the infrastructure improvements that are occurring at the ports of entry; and

Whereas, the establishment of a safe and secure border is a crucial component of national security.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That, in order to secure the border between the United States and Mexico, to enhance the safety and security of people and their property in the currently unsecure regions of the border and to increase economic growth and stability for the residents of Arizona, the United States Congress act to increase the number of CBP personnel at the ports of entry in Arizona.

2. That the Secretary of State of the State of Arizona transmit a copy of this Memorial to the President of the United States Senate, the Speaker of the United States House of Representatives and each Member of Congress from the State of Arizona.

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POM–188. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to enact the Diné College Act of 2015; to the Committee on Indian Affairs.

SENATE CONCURRENT MEMORIAL 1017

Whereas, this state and the Navajo Nation maintain a government-to-government relationship, and the Navajo people residing in this state are citizens of both Arizona and the Navajo Nation; and

Whereas, in 1968, the Navajo Nation established Navajo Community College, which later became Diné College, to provide access to higher education to the Navajo people; and

Whereas, Diné College's flagship campus is located in Tsaile, Arizona, and there are community campuses in Tuba City, Chinle and Window Rock; and

Whereas, Diné College has dual credit agreements with school districts and schools throughout Arizona, including Red Mesa Unified School District #27, Chinle Unified School District #24, Ganado Unified School District, St. Michaels High School, Window Rock Unified School District #8, Many Farms High School, Kayenta Unified School District, Piñon Unified School District #4, Greyhills Academy High School, Tuba City High School, Leupp Schools, Inc. and Phoenix Union High School District; and

Whereas, this state provides support to Diné College through its Navajo Nation, Diné College-State of Arizona funding compact, the tribal college dual credit funding program and Proposition 301 monies; and

Whereas, the United States Congress passed the Navajo Community College Act, the Navajo Community College Assistance Act of 1978 and the Navajo Nation Higher Education Act of 2008, which collectively provide for maintenance, operation and construction funding for Diné College; and

Whereas, Representative Ann Kirkpatrick introduced the Diné College Act of 2015 ''to fulfill the United States Government's trust responsibility to serve the higher education needs of the Navajo people and to clarify, unify, and modernize prior Diné College legislation,'' and Diné College has requested that Senator Jeff Flake introduce a United States Senate companion bill; and

Whereas, this state stands in support of the passage of the Diné College Act of 2015.

Wherefore your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the Congress of the United States enact the Diné College Act of 2015.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the Governor of the State of Arizona, the President of the United States Senate, the Speaker of the United States House of Representatives and each Member of Congress from the State of Arizona.

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POM–189. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to direct the appropriate federal agencies to secure the borders of the United States; to the Committee on the Judiciary.

SENATE CONCURRENT MEMORIAL 1012

Whereas, the United States is in the midst of a border crisis; and

Whereas, the sheriffs serving along the borders of the United States are in the epicenter of this crisis; and

Whereas, the porous borders of the United States have resulted in the smuggling of contraband and illegal drugs, the exploitation of human beings and the infiltration of subversives bent on doing harm to this country; and

Whereas, federal law mandates border security; and

Whereas, the quality of life normally enjoyed by the citizens of the United States is being jeopardized by an unsecure border, which enables transnational criminals and their accomplices to prey on the citizens of the United States: and

Whereas, border security must be a standalone priority for the federal government; and

Whereas, violence against public officials, law enforcement and rival drug and human trafficking groups in Mexico continues to escalate and cross international boundaries; and

Whereas, the reduction of the federal government's prosecution of the criminal element places the citizens of the United States in harm's way, leaving the burden on local governments to bear the costs associated with the apprehension, prosecution and incarceration of this criminal element; and

Whereas, elected sheriffs have a statutory duty to protect and secure the freedoms and liberties of United States citizens and must do so with or without the help of their federal law enforcement partners and policymakers; and

Whereas, working with limited budgets and staffing, sheriffs along the southwestern border of the United States and sheriffs across the nation struggle to find ways to enhance the quality of life and safety of those they serve and to deter those who cross our borders to promote their criminal activities; and

Whereas, local governments are cognizant of the need to bring relief to United States citizens who are impacted by the lack of border security; and

Whereas, without aggressive prosecution of all of those who breach the border and commit criminal acts, the border will continue to serve as an open opportunity for the criminal element to exploit by entering the United States to prey on this country and its citizens.

Wherefore, your memorialist, the Senate of the State of Arizona, the House of Representatives concurring, prays:

1. That the United States Congress direct the appropriate federal agencies to do the following:

(a) Fully secure all of the borders of the United States.

(b) Fully reimburse sheriffs for the costs associated with the housing of illegal aliens who are being charged with state crimes.

(c) Return to the original guidelines as set forth in Operation Streamline for the prosecution of persons crossing the United States border illegally.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States, the Speaker of the United States House of Representatives, the President of the United States Senate and each Member of Congress from the State of Arizona.

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POM–190. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to direct the American Legion to expand its membership eligibility to include all honorably discharged military veterans; to the Committee on the Judiciary.

HOUSE CONCURRENT MEMORIAL 2009

Whereas, according to the American Legion, the organization was chartered and incorporated by Congress in 1919 as a patriotic veterans organization devoted to mutual helpfulness. As the nation's largest wartime veterans service organization, the American Legion is committed to mentoring youth and sponsoring wholesome programs in our communities, advocating patriotism and honor, promoting strong national security and providing support to fellow servicemembers and veterans; and

Whereas, the American Legion limits membership eligibility to those who have served federal active duty in the United States Armed Forces during the World War I era, World War II era, Korean War era, Vietnam War era, Lebanon/Grenada era, Panama era or Persian Gulf War era and who have been honorably discharged or are still serving: and

Whereas, all honorably discharged military veterans deserve the opportunity to participate in the American Legion.

Wherefore your memorialist, the House of Representatives of the State of Arizona, the Senate concurring, prays:

1. That the United States Congress direct the American Legion to expand its membership eligibility to include all honorably discharged military veterans.

2. That the Secretary of State of the State of Arizona transmit copies of this Memorial to the President of the United States, the Speaker of the United States House of Representatives, the President of the United States Senate and each Member of Congress from the State of Arizona.

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POM–191. A concurrent memorial adopted by the Legislature of the State of Arizona urging the United States Congress to adopt legislation similar to the Toxic Exposure Research Act of 2015; to the Committee on Veterans' Affairs.

HOUSE CONCURRENT MEMORIAL 2006

To the Congress of the United States of America:

Your memorialist respectfully represents:

Whereas, thousands of veterans have been exposed to Agent Orange and other chemical agents during the course of their service to the United States; and

Whereas, today, many of the children and grandchildren of veterans are suffering serious health issues that are related to the veterans' exposure to chemical agents; and

Whereas, the people of the United States owe it to their veterans to better understand the impacts of these exposures in order to guarantee that the children and grandchildren of veterans receive appropriate treatment; and

Whereas, the full effects of exposure to dangerous chemicals such as Agent Orange is still unknown, and a national research center is needed to further study the impact these exposures have on veterans, their children and their grandchildren; and

Whereas, the Toxic Exposure Research Act of 2015 is a critical step in protecting the veterans of the United States.

Wherefore your memorialist, the House of Representatives of the State of Arizona, the Senate concurring, prays:

1. That the United States Congress adopt legislation similar to H.R. 1769 and S. 901, the Toxic Exposure Research Act of 2015, that would establish in the United States Department of Veterans Affairs a national center for research on the diagnosis and treatment of health conditions of the descendants of veterans exposed to toxic substances during service in the armed forces of the United States that are related to that exposure.

2. That the Secretary of State of the State of Arizona transmit a copy of this Memorial to the President of the United States Senate, the Speaker of the United States House of Representatives and each Member of Congress from the State of Arizona.

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POM–192. A petition from a citizen of the State of Texas relative to an amendment to the United States Constitution; to the Committee on the Judiciary.

## REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. INHOFE, from the Committee on Environment and Public Works, without amendment:

S. 1479. A bill to amend the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 to modify provisions relating to grants, and for other purposes (Rept. No. 114–276).

By Mr. THUNE, from the Committee on Commerce, Science, and Transportation, with an amendment in the nature of a substitute:

S. 2829. A bill to amend and enhance certain maritime programs of the Department of Transportation, and for other purposes.

## INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. COCHRAN:

S. 3054. A bill to require the Secretary of the Interior to conduct a special resource study of significant civil rights sites; to the Committee on Energy and Natural Resources.

By Mr. BURR (for himself and Mr. TESTER):

S. 3055. A bill to amend title 38, United States Code, to provide a dental insurance plan to veterans and survivors and dependents of veterans; to the Committee on Veterans' Affairs.

By Mr. LEAHY (for himself, Mr. GRASSLEY, Ms. KLOBUCHAR, and Mr. LEE):

S. 3056. A bill to provide for certain causes of action relating to delays of generic drugs and biosimilar biological products; to the Committee on the Judiciary.

By Mr. SCOTT:

S. 3057. A bill to amend the Internal Revenue Code of 1986 to prohibit the Secretary of the Treasury from requiring that the identity of contributors to 501(c) organizations be included in annual returns; to the Committee on Finance.

## SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. PORTMAN (for himself, Mr. BROWN, Mr. MCCONNELL, Mr. REID, Mr. ALEXANDER, Ms. AYOTTE, Ms. BALDWIN, Mr. BARRASSO, Mr. BENNET, Mr. BLUMENTHAL, Mr. BLUNT, Mr. BOOKER, Mr. BOOZMAN, Mrs. BOXER, Mr. BURR, Ms. CANTWELL, Mrs. CAPITO, Mr. CARDIN, Mr. CARPER, Mr. CASEY, Mr. CASSIDY, Mr. COATS, Mr. COCHRAN, Ms. COLLINS, Mr. COONS, Mr. CORKER, Mr. CORNYN, Mr. COTTON, Mr. CRAPO, Mr. CRUZ, Mr. DAINES, Mr. DONNELLY, Mr. DURBIN, Mr. ENZI, Mrs. ERNST, Mrs. FEINSTEIN, Mrs. FISCHER, Mr. FLAKE, Mr. FRANKEN, Mr. GARDNER, Mrs. GILLIBRAND, Mr. GRAHAM, Mr. GRASSLEY, Mr. HATCH, Mr. HEINRICH, Ms. HEITKAMP, Mr. HELLER, Ms. HIRONO, Mr. HOEVEN, Mr. INHOFE, Mr. ISAKSON, Mr. JOHNSON, Mr. KAINE, Mr. KING, Mr. KIRK, Ms. KLOBUCHAR, Mr. LANKFORD, Mr. LEAHY, Mr. LEE, Mr. MANCHIN, Mr. MARKEY, Mr. MCCAIN, Mrs. MCCASKILL, Mr. MENENDEZ, Mr. MERKLEY, Ms. MIKULSKI, Mr. MORAN, Ms. MURKOWSKI, Mr. MURPHY, Mrs. MURRAY, Mr. NELSON, Mr. PAUL, Mr. PERDUE, Mr. PETERS, Mr. REED, Mr. RISCH, Mr. ROBERTS, Mr. ROUNDS, Mr. RUBIO, Mr. SANDERS, Mr. SASSE, Mr. SCHATZ, Mr. SCHUMER, Mr. SCOTT, Mr. SESSIONS, Mrs. SHAHEEN, Mr. SHELBY, Ms. STABENOW, Mr. SULLIVAN, Mr. TESTER, Mr. THUNE, Mr. TILLIS, Mr. TOOMEY, Mr. UDALL, Mr. VITTER, Mr.

WARNER, Ms. WARREN, Mr. WHITEHOUSE, Mr. WICKER, and Mr. WYDEN):

S. Res. 493. A resolution relative to the death of George V. Voinovich, former United States Senator for the State of Ohio; considered and agreed to.

By Mrs. FEINSTEIN (for herself and Mr. LANKFORD):

S. Res. 494. A resolution designating September 2016 as ''National Child Awareness Month'' to promote awareness of charities benefiting children and youth-serving organizations throughout the United States and recognizing the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States; considered and agreed to.

## ADDITIONAL COSPONSORS

S. 683

At the request of Mr. BOOKER, the name of the Senator from Minnesota (Mr. FRANKEN) was added as a cosponsor of S. 683, a bill to extend the principle of federalism to State drug policy, provide access to medical marijuana, and enable research into the medicinal properties of marijuana.

S. 1490

At the request of Ms. KLOBUCHAR, the name of the Senator from Missouri (Mrs. MCCASKILL) was added as a cosponsor of S. 1490, a bill to establish an advisory office within the Bureau of Consumer Protection of the Federal Trade Commission to prevent fraud targeting seniors, and for other purposes.

S. 1509

At the request of Mr. CARPER, the names of the Senator from North Carolina (Mr. BURR) and the Senator from New York (Mrs. GILLIBRAND) were added as cosponsors of S. 1509, a bill to amend title XVIII of the Social Security Act to provide for the coordination of programs to prevent and treat obesity, and for other purposes.

S. 1555

At the request of Ms. HIRONO, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 1555, a bill to award a Congressional Gold Medal, collectively, to the Filipino veterans of World War II, in recognition of the dedicated service of the veterans during World War II.

S. 1561

At the request of Mr. LEAHY, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 1561, a bill to clarify the definition of nonadmitted insurer under the Nonadmitted and Reinsurance Reform Act of 2010, and for other purposes.

S. 1609

At the request of Mr. KAINE, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 1609, a bill to provide support for the development of middle school career exploration programs linked to career and technical education programs of study.

S. 1737

At the request of Ms. STABENOW, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 1737, a bill to provide an incentive for businesses to bring jobs back to America.

S. 1975

At the request of Ms. MIKULSKI, the name of the Senator from Maryland (Mr. CARDIN) was added as a cosponsor of S. 1975, a bill to establish the Sewall-Belmont House National Historic Site as a unit of the National Park System, and for other purposes.

S. 2216

At the request of Mrs. MCCASKILL, the name of the Senator from Virginia (Mr. KAINE) was added as a cosponsor of S. 2216, a bill to provide immunity from suit for certain individuals who disclose potential examples of financial exploitation of senior citizens, and for other purposes.

S. 2219

At the request of Mrs. SHAHEEN, the names of the Senator from Montana (Mr. TESTER) and the Senator from Kansas (Mr. MORAN) were added as cosponsors of S. 2219, a bill to require the Secretary of Commerce to conduct an assessment and analysis of the outdoor recreation economy of the United States, and for other purposes.

S. 2259

At the request of Ms. CANTWELL, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 2259, a bill to amend title XVIII of the Social Security Act to improve the way beneficiaries are assigned under the Medicare shared savings program by also basing such assignment on primary care services furnished by nurse practitioners, physician assistants, and clinical nurse specialists.

S. 2427

At the request of Mr. SCHUMER, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 2427, a bill to prohibit discrimination against individuals with disabilities who need long-term services and supports, and for other purposes.

S. 2484

At the request of Mr. SCHATZ, the names of the Senator from Missouri (Mr. BLUNT) and the Senator from Virginia (Mr. KAINE) were added as cosponsors of S. 2484, a bill to amend titles XVIII and XI of the Social Security Act to promote cost savings and quality care under the Medicare program through the use of telehealth and remote patient monitoring services, and for other purposes.

S. 2531

At the request of Mr. KIRK, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 2531, a bill to authorize State and local governments to divest from entities that engage in commerce-related or investment-related boycott, divestment, or sanctions activities targeting Israel, and for other purposes.

S. 2569

At the request of Mr. PETERS, the name of the Senator from Minnesota (Mr. FRANKEN) was added as a cosponsor of S. 2569, a bill to authorize the Director of the United States Geological Survey to conduct monitoring, assessment, science, and research, in support of the binational fisheries within the Great Lakes Basin, and for other purposes.

S. 2595

At the request of Mr. CRAPO, the name of the Senator from New Mexico (Mr. UDALL) was added as a cosponsor of S. 2595, a bill to amend the Internal Revenue Code of 1986 to permanently extend the railroad track maintenance credit.

S. 2659

At the request of Mr. BURR, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 2659, a bill to reaffirm that the Environmental Protection Agency cannot regulate vehicles used solely for competition, and for other purposes.

S. 2707

At the request of Mr. SCOTT, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 2707, a bill to require the Secretary of Labor to nullify the proposed rule regarding defining and delimiting the exemptions for executive, administrative, professional, outside sales, and computer employees, to require the Secretary of Labor to conduct a full and complete economic analysis with improved economic data on small businesses, nonprofit employers, Medicare or Medicaid dependent health care providers, and small governmental jurisdictions, and all other employers, and minimize the impact on such employers, before promulgating any substantially similar rule, and to provide a rule of construction regarding the salary threshold exemption under the Fair Labor Standards Act of 1938, and for other purposes.

S. 2759

At the request of Mrs. ERNST, the names of the Senator from Massachusetts (Mr. MARKEY) and the Senator from West Virginia (Mrs. CAPITO) were added as cosponsors of S. 2759, a bill to amend the Internal Revenue Code of 1986 to provide a nonrefundable credit for working family caregivers.

S. 2763

At the request of Mr. CORNYN, the name of the Senator from Minnesota (Mr. FRANKEN) was added as a cosponsor of S. 2763, a bill to provide the victims of Holocaust-era persecution and their heirs a fair opportunity to recover works of art confiscated or misappropriated by the Nazis.

S. 2765

At the request of Mr. BOOKER, the names of the Senator from Massachusetts (Mr. MARKEY) and the Senator from New York (Mr. SCHUMER) were added as cosponsors of S. 2765, a bill to provide for the overall health and well-being of young people, including the promotion of comprehensive sexual health and healthy relationships, the reduction of unintended pregnancy and

sexually transmitted infections (STIs), including HIV, and the prevention of dating violence and sexual assault, and for other purposes.

S. 2800

At the request of Mr. COONS, the name of the Senator from Georgia (Mr. ISAKSON) was added as a cosponsor of S. 2800, a bill to amend the Internal Revenue Code of 1986 and the Higher Education Act of 1965 to provide an exclusion from income for student loan forgiveness for students who have died or become disabled.

S. 2856

At the request of Mr. CORNYN, the name of the Senator from Texas (Mr. CRUZ) was added as a cosponsor of S. 2856, a bill to streamline certain feasibility studies and avoid duplication of effort.

S. 2904

At the request of Mr. WHITEHOUSE, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 2904, a bill to amend title II of the Social Security Act to eliminate the five month waiting period for disability insurance benefits under such title for individuals with amyotrophic lateral sclerosis.

S. 2912

At the request of Mr. JOHNSON, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 2912, a bill to authorize the use of unapproved medical products by patients diagnosed with a terminal illness in accordance with State law, and for other purposes.

S. 2997

At the request of Ms. CANTWELL, the name of the Senator from Florida (Mr. NELSON) was added as a cosponsor of S. 2997, a bill to direct the Federal Communications Commission to commence proceedings related to the resiliency of critical telecommunications networks during times of emergency, and for other purposes.

S. 3018

At the request of Mr. KING, the name of the Senator from Maryland (Ms. MIKULSKI) was added as a cosponsor of S. 3018, a bill to provide for the establishment of a pilot program to identify security vulnerabilities of certain entities in the energy sector.

S. 3053

At the request of Mr. CASEY, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 3053, a bill to prevent a person who has been convicted of a misdemeanor hate crime, or received an enhanced sentence for a misdemeanor because of hate or bias in its commission, from obtaining a firearm.

S. CON. RES. 36

At the request of Mr. NELSON, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. Con. Res. 36, a concurrent resolution expressing support of the goal of ensuring that all Holocaust victims live with dignity, comfort, and security in their remaining years, and urging the Federal Republic of Germany to reaffirm its commitment to that goal through a financial commitment to comprehensively address the unique health and welfare needs of vulnerable Holocaust victims, including home care and other medically prescribed needs.

S. RES. 349

At the request of Mr. ROBERTS, the names of the Senator from Kentucky (Mr. MCCONNELL) and the Senator from Montana (Mr. DAINES) were added as cosponsors of S. Res. 349, a resolution congratulating the Farm Credit System on the celebration of its 100th anniversary.

S. RES. 482

At the request of Mrs. SHAHEEN, the names of the Senator from Oregon (Mr. WYDEN) and the Senator from Maryland (Mr. CARDIN) were added as cosponsors of S. Res. 482, a resolution urging the European Union to designate Hizballah in its entirety as a terrorist organization and to increase pressure on the organization and its members to the fullest extent possible.

At the request of Mr. RUBIO, the name of the Senator from Texas (Mr. CRUZ) was added as a cosponsor of S. Res. 482, supra.

S. RES. 483

At the request of Mr. ALEXANDER, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. Res. 483, a resolution designating June 20, 2016, as ''American Eagle Day'' and celebrating the recovery and restoration of the bald eagle, the national symbol of the United States.

AMENDMENT NO. 4629

At the request of Mr. RUBIO, the name of the Senator from Louisiana (Mr. CASSIDY) was added as a cosponsor of amendment No. 4629 intended to be proposed to S. 2943, an original bill to authorize appropriations for fiscal year 2017 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 4649

At the request of Mr. KIRK, the name of the Senator from Idaho (Mr. RISCH) was added as a cosponsor of amendment No. 4649 intended to be proposed to S. 2943, an original bill to authorize appropriations for fiscal year 2017 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

## STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. LEAHY (for himself, Mr. GRASSLEY, Ms. KLOBUCHAR, and Mr. LEE):

S. 3056. A bill to provide for certain causes of action relating to delays of generic drugs and biosimilar biological products; to the Committee on the Judiciary.

Mr. LEAHY. Mr. President, in recent months, the high cost of pharmaceutical products has been front and center in national news, sometimes with astonishing examples like the unconscionable price-hike by Turing Pharmaceuticals of their drug for patients with HIV from $13.50 to $750 per pill overnight.

Pharmaceutical companies should be compensated for their important work developing life-saving treatments, but when companies engage in predatory practices at the expense of consumers, we must act. That is why today, I am introducing the Creating and Restoring Equal Access to Equivalent Samples, CREATES, Act, bipartisan legislation to end inappropriate delay tactics that are used by some brand-name drug manufacturers to block competition from more affordable generic drugs.

The first delay tactic addressed by the CREATES Act involves the withholding of drug samples that generic manufacturers need to gain regulatory approval. Federal law requires generic competitors to prove that their low-cost alternative is equally safe and effective as the brand-name drug with which they wish to compete. Unfortunately, some brand-name companies are preventing generic manufacturers from obtaining the samples they need to make the necessary comparison. This simple delay tactic uses regulatory safeguards as a weapon to block competition. The FDA has reported receiving more than 100 inquiries from generic product developers who were unable to access samples of a brand-name drug to compare their generic product.

The second delay tactic addressed by the CREATES Act involves the development of shared safety protocols. For some high-risk drugs, federal law requires a generic drug manufacturer to join the brand-name drug manufacturer in a single, shared safety protocol for distribution of the drug. Despite this requirement, some brand-name companies are refusing to negotiate a shared safety protocol with potential generic competitors, again undermining those competitors' ability to gain FDA approval for their generic version of the drug.

These exclusionary practices thwart competition and deny consumers the benefit of lower drug prices. They also undermine the careful balance created in the Hatch-Waxman Act and the more recent Biologics Price Competition and Innovation Act, which are designed to reward and incentivize innovation while ensuring that consumers ultimately benefit from the entry, after an appropriate time, of generic or biosimilar versions of a drug. Innovative companies can and should gain the benefit of their inventions. But when companies artificially extend the period of those benefits by using dilatory tactics to delay generic entry, the

thoughtful balance of the Hatch-Waxman Act and BPCIA are plainly undermined.

I share the concerns of Vermonters and Americans across the country that many pharmaceutical products are simply too expensive for consumers. Nearly ¾ of the public view prescription drug costs as unreasonable, and one in four patients say they have not filled a prescription because of cost. Parents should not be forced to choose between putting food on the table and getting their children and themselves the medicine they need. When drug prices are artificially inflated, patients suffer, illnesses become protracted, and families, government programs, and other payers in the healthcare system ultimately bear the cost. That is why this legislation is supported by consumer groups, physicians, insurance companies, pharmacists and hospitals who all see firsthand the impact of unreasonably high costs of some prescription drugs.

Earlier this month, Vermont set an example for the Nation when it passed into law drug transparency legislation that will require pharmaceutical companies to justify large increases in their drug prices. Here in Washington, the Senate Aging Committee and other Committees have been doing important work to analyze the root causes of high drug pricing and find practical solutions. Solving this issue will require nuanced, thoughtful work on all sides to ensure that consumers are protected and that pharmaceutical companies that act in good faith can continue to innovate for patients.

With the CREATES Act, the bipartisan leaders of the Senate Judiciary Committee and its Subcommittee on Antitrust, Competition Policy and Consumer Rights are using our roles to address anticompetitive behavior that blocks competition and delays the creation of affordable generic drugs. I thank Senators GRASSLEY, KLOBUCHAR and LEE for joining me in this effort, and for agreeing to hold a hearing on this bill as soon as next week.

Drug affordability is a bipartisan issue that impacts each and every one of us. I hope other Senators will join us in supporting this bipartisan legislation.

## SUBMITTED RESOLUTIONS

### SENATE RESOLUTION 493—RELATIVE TO THE DEATH OF GEORGE V. VOINOVICH, FORMER UNITED STATES SENATOR FOR THE STATE OF OHIO

Mr. PORTMAN (for himself, Mr. BROWN, Mr. MCCONNELL, Mr. REID, Mr. ALEXANDER, Ms. AYOTTE, Ms. BALDWIN, Mr. BARRASSO, Mr. BENNET, Mr. BLUMENTHAL, Mr. BLUNT, Mr. BOOKER, Mr. BOOZMAN, Mrs. BOXER, Mr. BURR, Ms. CANTWELL, Mrs. CAPITO, Mr. CARDIN, Mr. CARPER, Mr. CASEY, Mr. CASSIDY, Mr. COATS, Mr. COCHRAN, Ms. COLLINS, Mr. COONS, Mr. CORKER, Mr. CORNYN, Mr. COTTON, Mr. CRAPO, Mr. CRUZ, Mr. DAINES, Mr. DONNELLY, Mr. DURBIN, Mr. ENZI, Mrs. ERNST, Mrs. FEINSTEIN, Mrs. FISCHER, Mr. FLAKE, Mr. FRANKEN, Mr. GARDNER, Mrs. GILLIBRAND, Mr. GRAHAM, Mr. GRASSLEY, Mr. HATCH, Mr. HEINRICH, Ms. HEITKAMP, Mr. HELLER, Ms. HIRONO, Mr. HOEVEN, Mr. INHOFE, Mr. ISAKSON, Mr. JOHNSON, Mr. KAINE, Mr. KING, Mr. KIRK, Ms. KLOBUCHAR, Mr. LANKFORD, Mr. LEAHY, Mr. LEE, Mr. MANCHIN, Mr. MARKEY, Mr. MCCAIN, Mrs. MCCASKILL, Mr. MENENDEZ, Mr. MERKLEY, Ms. MIKULSKI, Mr. MORAN, Ms. MURKOWSKI, Mr. MURPHY, Mrs. MURRAY, Mr. NELSON, Mr. PAUL, Mr. PERDUE, Mr. PETERS, Mr. REED, Mr. RISCH, Mr. ROBERTS, Mr. ROUNDS, Mr. RUBIO, Mr. SANDERS, Mr. SASSE, Mr. SCHATZ, Mr. SCHUMER, Mr. SCOTT, Mr. SESSIONS, Mrs. SHAHEEN, Mr. SHELBY, Ms. STABENOW, Mr. SULLIVAN, Mr. TESTER, Mr. THUNE, Mr. TILLIS, Mr. TOOMEY, Mr. UDALL, Mr. VITTER, Mr. WARNER, Ms. WARREN, Mr. WHITEHOUSE, Mr. WICKER, and Mr. WYDEN) submitted the following resolution; which was considered and agreed to:

S. RES. 493

Whereas George Voinovich was born in Cleveland, Ohio, attended Ohio University and Ohio State University College of Law;

Whereas George Voinovich began his career faithfully serving the State and the people of Ohio as an assistant attorney general of Ohio in 1963; served as a member of the Ohio House of Representatives from 1967 to 1971; served as Cuyahoga County auditor from 1971 to 1976; served as a member of the Cuyahoga County Board of Commissioners from 1977 to 1978; was elected lieutenant governor in 1978; and served as mayor of Cleveland from 1979 to 1989;

Whereas, George Voinovich was elected governor of Ohio in 1991 and was elected to a second term by a landslide, securing 72% of the vote, the highest percentage of the vote ever won by gubernatorial candidate in Ohio history;

Whereas, during his time as governor, he was known for his advocacy and practice of fiscal responsibility, embodied in his call to ''working harder and smarter, doing more with less'';

Whereas, under his tenure as Governor, Ohio's unemployment rate fell to a 25-year low and he restored the state's budget to financial health;

Whereas, in 1998, George Voinovich was elected to the United States Senate and served until 2011, during which time he was Chairman of the Select Committee on Ethics and a member of the Appropriations Committee;

Whereas, in 2004, George Voinovich was reelected to the United States Senate with more votes than any other Senate candidate in Ohio history;

Whereas, for every public office he held, George Voinovich improved government operations, accountability and financial management; he worked to improve the environment, with particular attention to Lake Erie, and making America more secure;

Whereas, throughout his life, George Voinovich was guided by his deep faith, personal integrity, fiscal responsibility, respect and service to his fellow citizens, and above all, his abiding love of his family, state and nation;

Whereas the people of Ohio have demonstrated their appreciation and affection for Senator Voinovich by the naming of numerous landmarks after him, including Voinovich Centennial Park, the Voinovich Innerbelt Bridge, and The George V. Voinovich School of Leadership and Public Affairs at Ohio University;

Whereas, in his two terms in the United States Senate and in his other public service, George Voinovich reached across the aisle and sought common ground to solve problems: Now, therefore, be it

*Resolved*, That the Senate has heard with profound sorrow and deep regret the announcement of the death of George Voinovich, former member of the United States Senate.

*Resolved*, That the Secretary of the Senate communicate these resolutions to the House of Representatives and transmit an enrolled copy thereof to the family of the deceased.

*Resolved*, That when the Senate adjourns today, it stand adjourned as a further mark of respect to the memory of the late George V. Voinovich.

### SENATE RESOLUTION 494—DESIGNATING SEPTEMBER 2016 AS ''NATIONAL CHILD AWARENESS MONTH'' TO PROMOTE AWARENESS OF CHARITIES BENEFITING CHILDREN AND YOUTH-SERVING ORGANIZATIONS THROUGHOUT THE UNITED STATES AND RECOGNIZING THE EFFORTS MADE BY THOSE CHARITIES AND ORGANIZATIONS ON BEHALF OF CHILDREN AND YOUTH AS CRITICAL CONTRIBUTIONS TO THE FUTURE OF THE UNITED STATES

Mrs. FEINSTEIN (for herself and Mr. LANKFORD) submitted the following resolution; which was considered and agreed to:

S. RES. 494

Whereas millions of children and youth in the United States represent the hopes and future of the United States;

Whereas numerous individuals, charities benefiting children, and youth-serving organizations that work with children and youth collaborate to provide invaluable services to enrich and better the lives of children and youth throughout the United States;

Whereas raising awareness of, and increasing support for, organizations that provide access to health care, social services, education, the arts, sports, and other services will result in the development of character and the future success of the children and youth of the United States;

Whereas the month of September, as the school year begins, is a time—

(1) when parents, families, teachers, school administrators, and communities increase focus on children and youth throughout the United States; and

(2) for the people of the United States to highlight and be mindful of the needs of children and youth;

Whereas private corporations and businesses have joined with hundreds of national and local charitable organizations throughout the United States in support of a month-long focus on children and youth; and

Whereas designating September 2016 as ''National Child Awareness Month'' would recognize that a long-term commitment to children and youth is in the public interest and will encourage widespread support for charities and organizations that seek to provide a better future for the children and youth of the United States: Now, therefore, be it

*Resolved*, That the Senate designates September 2016 as ''National Child Awareness Month''—

(1) to promote awareness of charities benefiting children and youth-serving organizations throughout the United States; and

(2) to recognize the efforts made by the charities and organizations on behalf of children and youth as critical contributions to the future of the United States.

## AMENDMENTS SUBMITTED AND PROPOSED

SA 4680. Mrs. SHAHEEN (for herself and Mr. VITTER) submitted an amendment intended to be proposed to amendment SA 4253 submitted by Mrs. SHAHEEN (for herself and Mr. VITTER) and intended to be proposed to the bill S. 2943, to authorize appropriations for fiscal year 2017 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table.

SA 4681. Mr. JOHNSON (for himself, Mr. LEAHY, Ms. MURKOWSKI, and Mr. SCHUMER) submitted an amendment intended to be proposed by him to the bill H.R. 2578, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table.

SA 4682. Mrs. SHAHEEN submitted an amendment intended to be proposed by her to the bill H.R. 2578, supra; which was ordered to lie on the table.

SA 4683. Mr. ISAKSON (for himself and Mr. PERDUE) submitted an amendment intended to be proposed by him to the bill H.R. 2578, supra; which was ordered to lie on the table.

SA 4684. Mr. PERDUE (for himself and Mr. ISAKSON) submitted an amendment intended to be proposed by him to the bill H.R. 2578, supra; which was ordered to lie on the table.

## TEXT OF AMENDMENTS

**SA 4680.** Mrs. SHAHEEN (for herself and Mr. VITTER) submitted an amendment intended to be proposed to amendment SA 4253 submitted by Mrs. SHAHEEN (for herself and Mr. VITTER) and intended to be proposed to the bill S. 2943, to authorize appropriations for fiscal year 2017 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

In lieu of the matter proposed to be inserted, insert the following:

### DIVISION F—SBIR AND STTR REAUTHORIZATION AND IMPROVEMENTS

**SEC. 6001. SHORT TITLE.**

This division may be cited as the ''SBIR and STTR Reauthorization and Improvement Act of 2016''.

### TITLE LXI—REAUTHORIZATION OF PROGRAMS

**SEC. 6101. PERMANENCY OF SBIR PROGRAM AND STTR PROGRAM.**

(a) SBIR.—Section 9(m) of the Small Business Act (15 U.S.C. 638(m)) is amended—

(1) in the subsection heading, by striking ''TERMINATION'' and inserting ''SBIR PROGRAM AUTHORIZATION''; and

(2) by striking ''terminate on September 30, 2017'' and inserting ''be in effect for each fiscal year''.

(b) STTR.—Section 9(n)(1)(A) of the Small Business Act (15 U.S.C. 638(n)(1)(A)) is amended by striking ''through fiscal year 2017''.

### TITLE LXII—ENHANCED SMALL BUSINESS ACCESS TO FEDERAL INNOVATION INVESTMENTS

**SEC. 6201. ALLOCATION INCREASES AND TRANSPARENCY IN BASE CALCULATION.**

(a) SBIR.—Section 9(f) of the Small Business Act (15 U.S.C. 638(f)) is amended—

(1) in paragraph (1)—

(A) in the matter preceding subparagraph (A), by striking ''expend'' and inserting ''obligate for expenditure'';

(B) in subparagraph (H), by striking ''and'' at the end;

(C) in subparagraph (I), by striking ''in fiscal year 2017 and each fiscal year thereafter,'' and inserting ''in each of fiscal years 2017 through 2021''; and

(D) by inserting after subparagraph (I) the following:

''(J) for a Federal agency other than the Department of Defense, the National Science Foundation, or the Department of Health and Human Services—

''(i) not less than 3.4 percent of the extramural budget for research or research and development of the Federal agency in fiscal year 2022;

''(ii) not less than 3.6 percent of such extramural budget in fiscal year 2023;

''(iii) not less than 3.8 percent of such extramural budget in fiscal year 2024;

''(iv) not less than 4 percent of such extramural budget in fiscal year 2025;

''(v) not less than 4.2 percent of such extramural budget in fiscal year 2026;

''(vi) not less than 4.4 percent of such extramural budget in fiscal year 2027; and

''(vii) not less than 4.5 percent of such extramural budget in fiscal year 2028 and each fiscal year thereafter;

''(K) for the Department of Defense—

''(i) not less than 2.6 percent of the budget for research, development, test, and evaluation of the Department of Defense in fiscal year 2022;

''(ii) not less than 2.7 percent of such budget in fiscal year 2023;

''(iii) not less than 2.8 percent of such budget in fiscal year 2024;

''(iv) not less than 2.9 percent of such budget in fiscal year 2025;

''(v) not less than 3 percent of such budget in fiscal year 2026;

''(vi) not less than 3.1 percent of such budget in fiscal year 2027;

''(vii) not less than 3.2 percent of such budget in fiscal year 2028;

''(viii) not less than 3.3 percent of such budget in fiscal year 2029;

''(ix) not less than 3.4 percent of such budget in fiscal year 2030; and

''(x) not less than 3.5 percent of such budget in fiscal year 2031 and each fiscal year thereafter; and

''(L) for the National Science Foundation and the Department of Health and Human Services, for fiscal year 2022 and each fiscal year thereafter, the lesser of—

''(i) the percentage of the extramural budget for research or research and development of the National Science Foundation or the Department of Health and Human Services, respectively, equal to the sum of—

''(I) the percentage in effect under this paragraph for the National Science Foundation or the Department of Health and Human Services, respectively, for the previous fiscal year; and

''(II)(aa) 0.07 percent; or

''(bb) if the extramural budget for research or research and development of the National Science Foundation or the Department of Health and Human Services, respectively, for the fiscal year is not less than 103 percent of such extramural budget for the previous fiscal year, 0.2 percent; or

''(ii) 4.5 percent of the extramural budget for research or research and development of the National Science Foundation or the Department of Health and Human Services, respectively,'';

(2) in paragraph (2)(B), by inserting ''(or for the Department of Defense, an amount of the budget for basic research of the Department of Defense)'' after ''research''; and

(3) in paragraph (4), by inserting ''(or for the Department of Defense an amount of the budget for research, development, test, and evaluation of the Department of Defense)'' after ''of the agency''.

(b) STTR.—Section 9(n)(1) of the Small Business Act (15 U.S.C. 638(n)(1)) is amended—

(1) in subparagraph (A)—

(A) by striking ''expend'' and inserting ''obligate for expenditure''; and

(B) by striking ''not less than the percentage of that extramural budget specified in subparagraph (B)'' and inserting ''for a Federal agency other than the Department of Defense, the National Science Foundation, or the Department of Health and Human Services, not less than the percentage of that extramural budget specified in subparagraph (B), for the Department of Defense, not less than the percentage of the budget for research, development, test, and evaluation of the Department of Defense specified in subparagraph (B), and for the National Science Foundation and the Department of Health and Human Services, not less than the percentage of that extramural budget specified in subparagraph (C)'';

(2) in subparagraph (B)—

(A) in the subparagraph heading, by inserting ''OTHER THAN FOR NSF AND HHS'' after ''AMOUNTS'';

(B) in the matter preceding clause (i), by striking ''the extramural budget required to be expended by an agency'' and inserting ''the extramural budget, for a Federal agency other than the Department of Defense, the National Science Foundation, or the Department of Health and Human Services, and of the budget for research, development, test, and evaluation, for the Department of Defense, required to be obligated for expenditure with small business concerns'';

(C) in clause (iv), by striking ''and'' at the end;

(D) in clause (v), by striking ''fiscal year 2016 and each fiscal year thereafter.'' and inserting ''each of fiscal years 2016 through 2021;''; and

(E) by adding at the end the following:

''(vi) 0.5 percent for fiscal year 2022;

''(vii) 0.55 percent for fiscal year 2023;

''(viii) 0.6 percent for fiscal year 2024;

''(ix) 0.65 percent for fiscal year 2025;

''(x) 0.7 percent for fiscal year 2026;

''(xi) 0.75 percent for fiscal year 2027;

''(xii) 0.8 percent for fiscal year 2028;

''(xiii) 0.85 percent for fiscal year 2029;

''(xiv) 0.9 percent for fiscal year 2030; and

''(xv) 0.95 percent for fiscal year 2031 and each fiscal year thereafter.''; and

(3) by adding at the end the following:

''(C) EXPENDITURE AMOUNTS FOR NSF AND HHS.—The percentage of the extramural budget required to be expended by the National Science Foundation and the Department of Health and Human Services in accordance with subparagraph (A) shall be—

''(i) for each of fiscal years 2016 through 2021, 0.45 percent; and

''(ii) for fiscal year 2022 and each fiscal year thereafter, the lesser of—

''(I) the percentage of the extramural budget for research or research and development

of the National Science Foundation or the Department of Health and Human Services, respectively, equal to the sum of—

''(aa) the percentage in effect under this paragraph for the National Science Foundation or the Department of Health and Human Services, respectively, for the previous fiscal year; and

''(bb)(AA) 0 percent; or

''(BB) if the extramural budget for research or research and development of the National Science Foundation or the Department of Health and Human Services, respectively, for the fiscal year is not less than 103 percent of such extramural budget for the previous fiscal year, 0.05 percent; or

''(II) 0.95 percent of the extramural budget for research or research and development of the National Science Foundation or the Department of Health and Human Services, respectively.''.

(c) DEPARTMENT OF DEFENSE FUNDING INCREASE PILOT.—For each of fiscal years 2018, 2019, and 2020, the Secretary of Defense may authorize any program of the Department of Defense to expend funds through the Small Business Innovation Research program or the Small Business Technology Transfer program. Any additional funds expended under the authority under this subsection shall not count towards meeting the required expenditure requirements under subsection (f) or (n) of section 9 of the Small Business Act (15 U.S.C. 638), as amended by this section.

**SEC. 6202. REGULAR OVERSIGHT OF AWARD AMOUNTS.**

(a) ELIMINATION OF AUTOMATIC INFLATION ADJUSTMENTS.—Section 9(j) of the Small Business Act (15 U.S.C. 638(j)) is amended—

(1) in paragraph (2)(D), by inserting ''through fiscal year 2016'' after ''every year''; and

(2) by adding at the end the following:

''(4) 2016 MODIFICATIONS FOR DOLLAR VALUE OF AWARDS.—Not later than 120 days after the date of enactment of the SBIR and STTR Reauthorization and Improvement Act of 2016, the Administrator shall modify the policy directives issued under this subsection to clarify that Congress intends to review the dollar value of awards every 3 fiscal years.''.

(b) SENSE OF CONGRESS REGARDING REGULAR REVIEW OF THE AWARD SIZES.—

(1) IN GENERAL.—It is the sense of Congress that for fiscal year 2019, and every third fiscal year thereafter, Congress should evaluate whether the maximum award sizes under the Small Business Innovation Research Program and the Small Business Technology Transfer Program under section 9 of the Small Business Act (15 U.S.C. 638) should be adjusted and, if so, take appropriate action to direct that such adjustments be made under the policy directives issued under subsection (j) of such section.

(2) POLICY CONSIDERATIONS.—In reviewing adjustments to the maximum award sizes, Congress should take into consideration the balance of number of awards to size of awards, the missions of Federal agencies, and the technology needed to support national goals.

(c) CLARIFICATION OF SEQUENTIAL PHASE II AWARDS.—Section 9(ff) of the Small Business Act (15 U.S.C. 638(ff)) is amended by adding at the end the following:

''(3) CLARIFICATION OF SEQUENTIAL PHASE II AWARDS.—The head of a Federal agency shall ensure that any sequential Phase II award is made in accordance with the limitations on award sizes under subsection (aa).

''(4) CROSS-AGENCY SEQUENTIAL PHASE II AWARDS.—A small business concern that receives a sequential Phase II SBIR or Phase II STTR award for a project from a Federal agency is eligible to receive an additional sequential Phase II award that continues work on that project from another Federal agency.''.

## TITLE LXIII—COMMERCIALIZATION IMPROVEMENTS

**SEC. 6301. PERMANENCY OF THE COMMERCIALIZATION PILOT PROGRAM FOR CIVILIAN AGENCIES.**

Section 9(gg) of the Small Business Act (15 U.S.C. 638(gg)) is amended—

(1) in the subsection heading, by striking ''PILOT PROGRAM'' and inserting ''COMMERCIALIZATION DEVELOPMENT AWARDS'';

(2) by striking paragraphs (2), (7), and (8);

(3) by redesignating paragraphs (3), (4), (5), and (6) as paragraphs (2), (3), (4), and (5), respectively;

(4) by adding at the end the following:

''(6) DEFINITIONS.—In this subsection—

''(A) the term 'commercialization development program' means a program established by a covered Federal agency under paragraph (1); and

''(B) the term 'covered Federal agency'—

''(i) means a Federal agency participating in the SBIR program or the STTR program; and

''(ii) does not include the Department of Defense.''; and

(5) by striking ''pilot program'' each place it appears and inserting ''commercialization development program''.

**SEC. 6302. ENFORCEMENT OF NATIONAL SMALL BUSINESS GOAL FOR FEDERAL RESEARCH AND DEVELOPMENT.**

Section 9(h) of the Small Business Act (15 U.S.C. 638(h)) is amended to read as follows:

''(h) NATIONAL SMALL BUSINESS GOAL FOR FEDERAL RESEARCH AND DEVELOPMENT.—

''(1) IN GENERAL.—The Administrator, in consultation with Federal agencies, shall establish a Governmentwide goal for each fiscal year, which shall be not less than 10 percent, for the percentage of the amounts made available for research or research and development that shall be obligated for funding agreements—

''(A) with small business concerns; or

''(B) that will facilitate the development of research and development small business concerns.

''(2) AGENCY GOALS.—

''(A) IN GENERAL.—The head of each Federal agency which has a budget for research or research and development in excess of $20,000,000, in consultation with the Administrator, shall establish a goal for the Federal agency for each fiscal year that is appropriate to the mission of the Federal agency for the percentage of such budget that shall be obligated for funding agreements—

''(i) with small business concerns; or

''(ii) that will facilitate the development of research and development small business concerns.

''(B) LIMITATION.—The head of a Federal agency may not establish a percentage goal under subparagraph (A) for a fiscal year that is less than the percentage goal that was established under subparagraph (A) for the Federal agency for the previous fiscal year.''.

**SEC. 6303. PROTECTING INNOVATIVE TECHNOLOGIES.**

Section 9 of the Small Business Act (15 U.S.C. 638) is amended by adding at the end the following:

''(tt) PROTECTING INNOVATIVE TECHNOLOGIES.—

''(1) COST-REIMBURSEMENT CONTRACTS.—

''(A) IN GENERAL.—Subject to subparagraph (B)(ii), the cost of seeking protection for intellectual property, including a trademark, copyright, or patent, that was created through work performed under an STTR award that uses a cost-reimbursement contract or an SBIR award that uses a cost-reimbursement contract is allowable as an indirect cost under that award.

''(B) CLARIFICATION OF PATENT COSTS.—

''(i) IN GENERAL.—A Federal agency shall not directly or indirectly inhibit, through the policies, directives, or practices of the Federal agency, an otherwise eligible small business concern performing under an award described in subparagraph (A) from recovering patent costs incurred as requirements under that award, including—

''(I) the costs of preparing—

''(aa) invention disclosures;

''(bb) reports; and

''(cc) other documents;

''(II) the costs for searching the art to the extent necessary to make the invention disclosures;

''(III) other costs in connection with the filing and prosecution of a United States patent application where title or royalty-free license is to be conveyed to the Federal Government; and

''(IV) general counseling services relating to patent matters, including advice on patent laws, regulations, clauses, and employee agreements.

''(ii) RECOVERY LIMITATIONS.—The patent costs described in clause (i) shall be allowable for technology developed under a—

''(I) Phase I award, as indirect costs in an amount not greater than $5,000;

''(II) Phase II award, as indirect costs in an amount not greater than $15,000; and

''(III) Phase III award in which the Federal Government has government purpose rights (as defined in section 227.7103-5 of title 48, Code of Federal Regulations).

''(2) FIRM FIXED-PRICE CONTRACTS.—An otherwise eligible small business concern performing under an STTR award that uses a firm fixed-price contract or an SBIR award that uses a firm fixed-price contract may recover fair and reasonable costs arising from seeking protection for intellectual property, including a trademark, copyright, or patent, that was created through work performed under that award.''.

**SEC. 6304. ANNUAL GAO AUDIT OF COMPLIANCE WITH COMMERCIALIZATION GOALS.**

Section 9(nn) of the Small Business Act (15 U.S.C. 638(nn)) is amended to read as follows:

''(nn) ANNUAL GAO REPORT ON GOVERNMENT COMPLIANCE WITH GOALS, INCENTIVES, AND PHASE III PREFERENCE.—Not later than 1 year after the date of enactment of the SBIR and STTR Reauthorization and Improvement Act of 2016, and every year thereafter until the date that is 5 years after the date of enactment of the SBIR and STTR Reauthorization and Improvement Act of 2016, the Comptroller General of the United States shall submit to the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business of the House of Representatives a report that—

''(1) discusses the status of the compliance of Federal agencies with the requirements or authorities established under—

''(A) subsection (h), relating to the establishment by certain Federal agencies of a goal for funding agreements for research and research and development with small business concerns;

''(B) subsection (y)(5)(A), relating to the requirement for the Department of Defense to establish goals for the transition of Phase III technologies in subcontracting plans;

''(C) subsection (y)(5)(B), relating to the requirement for the Department of Defense to establish procedures for a prime contractor to report the number and dollar amount of contracts with small business concerns for Phase III SBIR projects or STTR projects of the prime contractor; and

''(D) subsection (y)(6), relating to the requirement for the Department of Defense to set a goal to increase the number of Phase II SBIR and STTR contracts that transition into programs of record or fielded systems;

''(2) includes, for a Federal agency that is in compliance with a requirement described under paragraph (1), a description of how the Federal agency achieved compliance; and

''(3) includes a list, organized by Federal agency, of small business concerns that have asserted to an appropriate Federal agency that—

''(A) the Government or prime contractor—

''(i) did not protect the intellectual property of the small business concern in accordance with data rights under the SBIR or STTR award; or

''(ii) issued a Phase III SBIR or STTR award conditional on relinquishing data rights;

''(B) the Federal agency solicited bids for a contract, or provided funding to an entity other than the small business concern receiving the SBIR or STTR award, that was for work that derived from, extended, or completed efforts made under prior funding agreements under the SBIR program or STTR program;

''(C) the Government or prime contractor did not comply with the SBIR and STTR policy directives and the small business concern filed a comment or complaint to the Office of the National Ombudsman or appealed to the Administrator for intervention; or

''(D) the Federal agency did not comply with subsection (g)(12) or (o)(16) requiring timely notice to the Administrator of any case or controversy before any Federal judicial or administrative tribunal concerning the SBIR program or the STTR program of the Federal agency.''.

**SEC. 6305. CLARIFYING THE PHASE III PREFERENCE.**

Section 9(r) of the Small Business Act (15 U.S.C. 638(r)) is amended—

(1) by striking paragraph (4);

(2) by redesignating paragraph (2) as paragraph (4), and transferring such paragraph to after paragraph (3); and

(3) by inserting after paragraph (1) the following:

''(2) PHASE III AWARD DIRECTION FOR AGENCIES AND PRIME CONTRACTORS.—To the greatest extent practicable, Federal agencies and Federal prime contractors shall issue Phase III awards relating to technology, including sole source awards, to the SBIR and STTR award recipients that developed the technology.''.

**SEC. 6306. IMPROVEMENTS TO TECHNICAL AND BUSINESS ASSISTANCE.**

Section 9(q) of the Small Business Act (15 U.S.C. 638(q)) is amended—

(1) in the subsection heading, by inserting ''AND BUSINESS'' after ''TECHNICAL'';

(2) in paragraph (1)—

(A) in the matter preceding subparagraph (A)—

(i) by striking ''a vendor selected under paragraph (2)'' and inserting ''1 or more vendors selected under paragraph (2)(A)'';

(ii) by inserting ''and business'' before ''assistance services''; and

(iii) by inserting ''assistance with product sales, intellectual property protections, market research, market validation, and development of regulatory plans and manufacturing plans,'' after ''technologies,''; and

(B) in subparagraph (D), by inserting '', including intellectual property protections'' before the period at the end;

(3) in paragraph (2)—

(A) by striking ''Each agency may select a vendor to assist small business concerns to meet'' and inserting the following:

''(A) IN GENERAL.—Each agency may select 1 or more vendors from which small business concerns may obtain assistance in meeting''; and

(B) by adding at the end the following:

''(B) SELECTION BY SMALL BUSINESS CONCERN.—A small business concern may, by contract or otherwise, select 1 or more vendors to assist the small business concern in meeting the goals listed in paragraph (1).''; and

(4) in paragraph (3)—

(A) by inserting ''(A)'' after ''paragraph (2)'' each place it appears;

(B) in subparagraph (A), by striking ''$5,000 per year'' each place it appears and inserting ''$6,500 per project'';

(C) in subparagraph (B)—

(i) by striking ''$5,000 per year'' each place it appears and inserting ''$35,000 per project''; and

(ii) in clause (ii), by striking ''which shall be in addition to the amount of the recipient's award'' and inserting ''which may, as determined appropriate by the head of the Federal agency, be included as part of the recipient's award or be in addition to the amount of the recipient's award'';

(D) in subparagraph (C)—

(i) by inserting ''or business'' after ''technical'';

(ii) by striking ''the vendor'' and inserting ''a vendor''; and

(iii) by adding at the end the following: ''Business-related services aimed at improving the commercialization success of a small business concern may be obtained from an entity, such as a public or private organization or an agency of or other entity established or funded by a State that facilitates or accelerates the commercialization of technologies or assists in the creation and growth of private enterprises that are commercializing technology.'';

(E) in subparagraph (D)—

(i) by inserting ''or business'' after ''technical'' each place it appears; and

(ii) in clause (i)—

(I) by striking ''the vendor'' and inserting ''1 or more vendors''; and

(II) by striking ''provides'' and inserting ''provide''; and

(F) by adding at the end the following:

''(E) MULTIPLE AWARD RECIPIENTS.—The Administrator shall establish a limit on the amount of technical and business assistance services that may be received or purchased under subparagraph (B) by small business concerns with respect to multiple Phase II SBIR or STTR awards for a fiscal year.''.

**SEC. 6307. EXTENSION OF PHASE 0 PROOF OF CONCEPT PARTNERSHIP PILOT.**

Section 9(jj) of the Small Business Act (15 U.S.C. 638(jj)) is amended—

(1) in paragraph (6) by striking ''The Director'' and inserting ''Not later than February 1, 2019, the Director''; and

(2) in paragraph (7), by striking ''2017'' and inserting ''2019''.

**SEC. 6308. SATISFACTION OF COMPETITION REQUIREMENTS FOR DEPARTMENT OF DEFENSE.**

All awards by the Department of Defense under the SBIR program or the STTR program shall be considered to meet the competition requirements under section 2304 of title 10, United States Code.

## TITLE LXIV—PROGRAM DIVERSIFICATION INITIATIVES

**SEC. 6401. REGIONAL SBIR STATE COLLABORATIVE INITIATIVE PILOT PROGRAM.**

Section 9 of the Small Business Act (15 U.S.C. 638) is amended—

(1) in subsection (mm)—

(A) in paragraph (1)—

(i) in the matter preceding subparagraph (A), by striking ''2017'' and inserting ''2021'';

(ii) in subparagraph (I), by striking ''and'' at the end;

(iii) in subparagraph (J), by striking the period and inserting ''; and''; and

(iv) by adding at the end the following:

''(K) funding for improvements that increase commonality across data systems, reduce redundancy, and improve data oversight and accuracy.''; and

(B) by adding at the end the following:

''(7) SBIR AND STTR PROGRAMS; FAST PROGRAM.—

''(A) DEFINITION.—In this paragraph, the term 'covered Federal agency' means a Federal agency that—

''(i) is required to conduct an SBIR program; and

''(ii) elects to use the funds allocated to the SBIR program of the Federal agency for the purposes described in paragraph (1).

''(B) REQUIREMENT.—Each covered Federal agency shall transfer an amount equal to 15 percent of the funds that are used for the purposes described in paragraph (1) to the Administration—

''(i) for the Regional SBIR State Collaborative Initiative Pilot Program established under subsection (uu);

''(ii) for the Federal and State Technology Partnership Program established under section 34; and

''(iii) to support the Office of the Administration that administers the SBIR program and the STTR program, subject to agreement from other agencies about how the funds will be used, in carrying out those programs and the programs described in clauses (i) and (ii).

''(8) PILOT PROGRAM.—

''(A) IN GENERAL.—Of amounts provided to the Administration under paragraph (7), not less than $5,000,000 shall be used to provide awards under the Regional SBIR State Collaborative Initiative Pilot Program established under subsection (uu) for each fiscal year in which the program is in effect.

''(B) DISBURSEMENT FLEXIBILITY.—The Administration may use any unused funds made available under subparagraph (A) as of April 1 of each fiscal year for awards to carry out clauses (ii) and (iii) of paragraph (7)(B) after providing written notice to—

''(i) the Committee on Small Business and Entrepreneurship and the Committee on Appropriations of the Senate; and

''(ii) the Committee on Small Business and the Committee on Appropriations of the House of Representatives.''; and

(2) by adding after subsection (tt), as added by section 6303 of this Act, the following:

''(uu) REGIONAL SBIR STATE COLLABORATIVE INITIATIVE PILOT PROGRAM.—

''(1) DEFINITIONS.—In this subsection—

''(A) the term 'eligible entity' means—

''(i) a research institution; and

''(ii) a small business concern;

''(B) the term 'eligible State' means—

''(i) a State that the Administrator determines is in the bottom half of States, based on the average number of annual SBIR program awards made to companies in the State for the preceding 3 years for which the Administration has applicable data; and

''(ii) an EPSCoR State that—

''(I) is a State described in clause (i); or

''(II) is—

''(aa) not a State described in clause (i); and

''(bb) invited to participate in a regional collaborative;

''(C) the term 'EPSCoR State' means a State that participates in the Experimental Program to Stimulate Competitive Research of the National Science Foundation, as established under section 113 of the National Science Foundation Authorization Act of 1988 (42 U.S.C. 1862g);

''(D) the term 'FAST program' means the Federal and State Technology Partnership Program established under section 34;

''(E) the term 'pilot program' means the Regional SBIR State Collaborative Initiative

Pilot Program established under paragraph (2);

''(F) the term 'regional collaborative' means a collaborative consisting of eligible entities that are located in not less than 3 eligible States; and

''(G) the term 'State' means any State of the United States, the District of Columbia, the Commonwealth of Puerto Rico, and any territory or possession of the United States.

''(2) ESTABLISHMENT.—The Administrator shall establish a pilot program, to be known as the Regional SBIR State Collaborative Initiative Pilot Program, under which the Administrator shall provide awards to regional collaboratives to address the needs of small business concerns in order to be more competitive in the proposal and selection process for awards under the SBIR program and the STTR program and to increase technology transfer and commercialization.

''(3) GOALS.—The goals of the pilot program are—

''(A) to create regional collaboratives that allow eligible entities to work cooperatively to leverage resources to address the needs of small business concerns;

''(B) to grow SBIR program and STTR program cooperative research and development and commercialization through increased awards under those programs;

''(C) to increase the participation of States that have historically received a lower level of awards under the SBIR program and the STTR program;

''(D) to utilize the strengths and advantages of regional collaboratives to better leverage resources, best practices, and economies of scale in a region for the purpose of increasing awards and increasing the commercialization of the SBIR program and STTR projects;

''(E) to increase the competitiveness of the SBIR program and the STTR program;

''(F) to identify sources of outside funding for applicants for an award under the SBIR program or the STTR program, including venture capitalists, angel investor groups, private industry, crowd funding, and special loan programs; and

''(G) to offer increased one-on-one engagements with companies and entrepreneurs for SBIR program and STTR program education, assistance, and successful outcomes.

''(4) APPLICATION.—

''(A) IN GENERAL.—A regional collaborative that desires to participate in the pilot program shall submit to the Administrator an application at such time, in such manner, and containing such information as the Administrator may require.

''(B) INCLUSION OF LEAD ELIGIBLE ENTITIES AND COORDINATOR.—A regional collaborative shall include in an application submitted under subparagraph (A)—

''(i) the name of each lead eligible entity from each eligible State in the regional collaborative, as designated under paragraph (5)(A); and

''(ii) the name of the coordinator for the regional collaborative, as designated under paragraph (6).

''(C) AVOIDANCE OF DUPLICATION.—A regional collaborative shall include in an application submitted under subparagraph (A) an explanation as to how the activities of the regional collaborative under the pilot program would differ from other State and Federal outreach activities in each eligible State in the regional collaborative.

''(5) LEAD ELIGIBLE ENTITY.—

''(A) IN GENERAL.—Each eligible State in a regional collaborative shall designate 1 eligible entity located in the eligible State to serve as the lead eligible entity for the eligible State.

''(B) AUTHORIZATION BY GOVERNOR.—Each lead eligible entity designated under subparagraph (A) shall be authorized to act as the lead eligible entity by the Governor of the applicable eligible State.

''(C) RESPONSIBILITIES.—Each lead eligible entity designated under subparagraph (A) shall be responsible for administering the activities and program initiatives described in paragraph (7) in the applicable eligible State.

''(6) REGIONAL COLLABORATIVE COORDINATOR.—Each regional collaborative shall designate a coordinator from amongst the eligible entities located in the eligible States in the regional collaborative, who shall serve as the interface between the regional collaborative and the Administration with respect to measuring cross-State collaboration and program effectiveness and documenting best practices.

''(7) USE OF FUNDS.—Each regional collaborative that is provided an award under the pilot program may, in each eligible State in which an eligible entity of the regional collaborative is located—

''(A) establish an initiative under which first-time applicants for an award under the SBIR program or the STTR program are reviewed by experienced, national experts in the United States, as determined by the lead eligible entity designated under paragraph (5)(A);

''(B) engage national mentors on a frequent basis to work directly with applicants for an award under the SBIR program or the STTR program, particularly during Phase II, to assist with the process of preparing and submitting a proposal;

''(C) create and make available an online mechanism to serve as a resource for applicants for an award under the SBIR program or the STTR program to identify and connect with Federal labs, prime government contractor companies, other industry partners, and regional industry cluster organizations;

''(D) conduct focused and concentrated outreach efforts to increase participation in the SBIR program and the STTR program by small business concerns owned and controlled by women, small business concerns owned and controlled by veterans, small business concerns owned and controlled by socially and economically disadvantaged individuals (as defined in section 8(d)(3)(C)), and historically black colleges and universities;

''(E) administer a structured program of training and technical assistance—

''(i) to prepare applicants for an award under the SBIR program or the STTR program—

''(I) to compete more effectively for Phase I and Phase II awards; and

''(II) to develop and implement a successful commercialization plan;

''(ii) to assist eligible States focusing on transition and commercialization to win Phase III awards from public and private partners;

''(iii) to create more competitive proposals to increase awards from all Federal sources, with a focus on awards under the SBIR program and the STTR program; and

''(iv) to assist first-time applicants by providing small grants for proof of concept research; and

''(F) assist applicants for an award under the SBIR program or the STTR program to identify sources of outside funding, including venture capitalists, angel investor groups, private industry, crowd funding, and special loan programs.

''(8) AWARD AMOUNT.—

''(A) IN GENERAL.—The Administrator shall provide an award to each eligible State in which an eligible entity of a regional collaborative is located in an amount that is not more than $300,000 to carry out the activities described in paragraph (7).

''(B) LIMITATION.—

''(i) IN GENERAL.—An eligible State may not receive an award under both the FAST program and the pilot program for the same year.

''(ii) RULE OF CONSTRUCTION.—Nothing in clause (i) shall be construed to prevent an eligible State from applying for an award under the FAST program and the pilot program for the same year.

''(9) DURATION OF AWARD.—An award provided under the pilot program shall be for a period of not more than 1 year, and may be renewed by the Administrator for 1 additional year.

''(10) TERMINATION.—The pilot program shall terminate on September 30, 2021.

''(11) REPORT.—Not later than February 1, 2021, the Administrator shall submit to the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business of the House of Representatives a report on the pilot program, which shall include—

''(A) an assessment of the pilot program and the effectiveness of the pilot program in meeting the goals described in paragraph (3);

''(B) an assessment of the best practices, including an analysis of how the pilot program compares to the FAST program and a single-State approach; and

''(C) recommendations as to whether any aspect of the pilot program should be extended or made permanent.''.

**SEC. 6402. FEDERAL AND STATE TECHNOLOGY PARTNERSHIP PROGRAM.**

Section 34 of the Small Business Act (15 U.S.C. 657d) is amended—

(1) in subsection (h)—

(A) in paragraph (1), by striking ''2001 through 2005'' and inserting ''2017 through 2021''; and

(B) in paragraph (2), by striking ''fiscal years 2001 through 2005'' and inserting ''each of fiscal years 2017 through 2021''; and

(2) in subsection (i), by striking ''September 30, 2005'' and inserting ''September 30, 2021''.

## TITLE LXV—OVERSIGHT AND SIMPLIFICATION INITIATIVES

**SEC. 6501. DATA REALIGNMENT AND MODERNIZATION.**

Section 9 of the Small Business Act (15 U.S.C. 638) is amended by adding after subsection (uu), as added by section 6401 of this Act, the following:

''(vv) SBIR AND STTR INTERAGENCY POLICY COMMITTEE.—

''(1) DEFINITIONS.—In this subsection—

''(A) the term 'Committee' means the SBIR and STTR Interagency Policy Committee established under paragraph (2);

''(B) the term 'participating Federal agency' means a Federal agency with an SBIR program or an STTR program; and

''(C) the term 'phase' means Phase I, Phase II, and Phase III.

''(2) ESTABLISHMENT.—There is established an interagency committee to be known as the 'SBIR and STTR Interagency Policy Committee'.

''(3) MEMBERSHIP.—The Committee shall include—

''(A) 4 representatives from each participating Federal agency, of which—

''(i) 1 shall have expertise with respect to the SBIR program and STTR program of the Federal agency;

''(ii) 1 shall have expertise with respect to the broader research and development missions and programs of the Federal agency;

''(iii) 1 shall have expertise with respect to marketplace commercialization or to the transition of technologies to support the missions of the Federal agency; and

''(iv) 1 shall have expertise with respect to the information technology systems of the Federal agency; and

''(B) 2 representatives from the Administration, of which—

''(i) 1 shall serve as chairperson of the Committee; and

''(ii) 1 shall be from the Information Technology Development Team of the Office of Investment and Innovation of the Administration.

''(4) WORKING GROUPS.—

''(A) IN GENERAL.—The Committee shall establish working groups as necessary to ensure consistency and clarity between the participating Federal agencies.

''(B) DATA REALIGNMENT AND MODERNIZATION WORKING GROUP.—

''(i) IN GENERAL.—The Committee shall establish a data alignment and modernization working group, which shall review the recommendations made in the report to Congress by the Office of Science and Technology of the Administration entitled 'SBIR/STTR TechNet Public & Government Databases', dated September 15, 2014, and the practices of participating Federal agencies to—

''(I) determine how to collect data on achievements by small business concerns in each phase of the SBIR program and the STTR program and ensure collection and dissemination of such data in a timely, efficient, and uniform manner;

''(II) establish a uniform baseline for metrics that support improving the solicitation, contracting, funding, and execution of program management in the SBIR program and the STTR program;

''(III) normalize formatting and database usage across participating Federal agencies; and

''(IV) determine the feasibility of developing a common system across all participating Federal agencies and the paperwork requirements under such a common system.

''(ii) MEMBERSHIP.—Each member of the Committee shall serve as a member of the data alignment and modernization working group.

''(5) IMPLEMENTATION.—Not later than September 31, 2018, the Committee shall brief the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business of the House of Representatives on the solutions identified by the working group under paragraph (4) and resources needed to execute the solutions.''.

**SEC. 6502. IMPLEMENTATION OF OUTSTANDING REAUTHORIZATION PROVISIONS.**

(a) IN GENERAL.—Section 9(mm) of the Small Business Act (15 U.S.C. 638(mm)), as amended by section 6401(1) of this Act, is amended—

(1) in paragraph (1), by striking ''paragraph (3)'' and inserting ''paragraphs (3) and (9)''; and

(2) by adding at the end the following:

''(9) SUSPENSION OF FUNDING.—

''(A) FOR FEDERAL AGENCIES.—

''(i) IN GENERAL.—For fiscal years 2018 and 2019, any Federal agency that has not implemented each provision of law described in clause (ii)—

''(I) shall continue to provide amounts to the Administration in accordance with paragraph (7)(B); and

''(II) may not use additional amounts as described in paragraph (1) until 30 days after the date on which the Federal agency submits to the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business of the House of Representatives documentation demonstrating that the Federal agency has implemented and is in compliance with each provision of law described in clause (ii).

''(ii) PROVISIONS.—The provisions of law described in this clause are the following:

''(I) Subsection (r)(4), relating to Phase III preferences.

''(II) Paragraphs (5) and (6) of subsection (y), relating to insertion goals.

''(III) Subsection (g)(4)(B), relating to shortening the decision time for SBIR awards.

''(IV) Subsection (o)(4)(B), relating to shortening the decision time for STTR awards.

''(V) Subsection (v), relating to reducing paperwork and compliance burdens.

''(B) FOR ADMINISTRATION.—For fiscal years 2018 and 2019, if the Administration is not in compliance with subsection (b)(7), relating to annual reports to Congress, the Administration may not use amounts received under paragraph (7)(B) of this subsection for a purpose described in clause (iii) of such paragraph (7)(B).''.

(b) CLARIFICATION OF REPORTING REQUIREMENT.—Section 9(b)(7) of the Small Business Act (15 U.S.C. 638(b)(7)) is amended in the matter preceding subparagraph (A), by striking ''not less than annually'' and inserting ''not later than December 31 of each year''.

**SEC. 6503. STRENGTHENING OF THE REQUIREMENT TO SHORTEN THE APPLICATION REVIEW AND DECISION TIME.**

Section 9 of the Small Business Act (15 U.S.C. 638) is amended—

(1) in subsection (g)(4), by striking subparagraph (B) and inserting the following:

''(B) make a final decision on each proposal submitted under the SBIR program—

''(i) for the Department of Health and Human Services, not later than 1 year after the date on which the applicable solicitation closes, with a goal to reduce the review and decision time to less than 10 months by September 30, 2019;

''(ii) for the Department of Agriculture and the National Science Foundation, not later than 6 months after the date on which the applicable solicitation closes; or

''(iii) for any other Federal agency—

''(I) not later than 90 days after the date on which the applicable solicitation closes; or

''(II) if the Administrator authorizes an extension with respect to a solicitation, not later than 90 days after the date that would otherwise be applicable to the Federal agency under subclause (I);''; and

(2) in subsection (o)(4), by striking subparagraph (B) and inserting the following:

''(B) make a final decision on each proposal submitted under the STTR program—

''(i) for the Department of Health and Human Services, not later than 1 year after the date on which the applicable solicitation closes, with a goal to reduce the review and decision time to less than 10 months by September 30, 2019;

''(ii) for the Department of Agriculture and the National Science Foundation, not later than 6 months after the date on which the applicable solicitation closes; or

''(iii) for any other Federal agency—

''(I) not later than 90 days after the date on which the applicable solicitation closes; or

''(II) if the Administrator authorizes an extension with respect to a solicitation, not later than 90 days after the date that would otherwise be applicable to the Federal agency under subclause (I);''.

**SEC. 6504. CONTINUED GAO OVERSIGHT OF ALLOCATION COMPLIANCE AND ACCURACY IN FUNDING BASE CALCULATIONS.**

Section 5136(a) of the National Defense Authorization Act for Fiscal Year 2012 (15 U.S.C. 638 note) is amended—

(1) in the matter preceding paragraph (1), by striking ''until the date that is 5 years after the date of enactment of this Act'' and insert ''until the date on which the Comptroller General of the United States submits the report relating to fiscal year 2019'';

(2) in paragraph (1), by striking subparagraph (C) and inserting the following:

''(C) assess whether the change in the base funding for the Department of Defense as required by subparagraphs (J) and (K) of section 9(f)(1) of the Small Business Act (15 U.S.C. 638(f)(1))—

''(i) improves transparency for determining whether the Department is complying with the allocation requirements;

''(ii) reduces the burden of calculating the allocations; and

''(iii) improves the compliance of the Department with the allocation requirements; and''; and

(3) in paragraph (2) by striking ''under subparagraph (B)'' and inserting ''under subparagraphs (B) and (C)''.

**SEC. 6505. COORDINATION BETWEEN AGENCIES ON COMMERCIALIZATION ASSISTANCE.**

Section 9 of the Small Business Act (15 U.S.C. 638) is amended—

(1) in subsection (j), as amended by section 6202(a) of this Act, by adding at the end the following:

''(5) COORDINATION OF COMMERCIALIZATION ASSISTANCE.—Not later than 120 days after the date of enactment of this paragraph, the Administrator shall modify the policy directive issued pursuant to this subsection to clarify that a small business concern receiving training through the Innovation Corps program with administrative funds made available under subsection (mm) shall not receive discretionary business assistance funds for the same or similar activities as allowed under subsection (q).''; and

(2) in subsection (p), by adding at the end the following:

''(4) COORDINATION OF COMMERCIALIZATION ASSISTANCE.—Not later than 120 days after the date of enactment of this paragraph, the Administrator shall modify the policy directive issued pursuant to this subsection to clarify that a small business concern receiving training through the Innovation Corps program with administrative funds made available under subsection (mm) shall not receive discretionary business assistance funds for the same or similar activities as allowed under subsection (q).''.

## TITLE LXVI—PARTICIPATION BY WOMEN AND MINORITIES

**SEC. 6601. SBA COORDINATION ON INCREASING OUTREACH FOR WOMEN AND MINORITY-OWNED BUSINESSES.**

Section 9(b) of the Small Business Act (15 U.S.C. 638(b)) is amended—

(1) in paragraph (8), by striking ''and'' at the end;

(2) in paragraph (9), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(10) to coordinate with participating agencies on efforts to increase outreach and awards under each of the SBIR and STTR programs to small business concerns owned and controlled by women and socially and economically disadvantaged small business concerns, as defined in section 8(a)(4).''.

**SEC. 6602. FEDERAL AGENCY OUTREACH REQUIREMENTS FOR WOMEN AND MINORITY-OWNED BUSINESSES.**

Section 9 of the Small Business Act (15 U.S.C. 638) is amended—

(1) in subsection (g)—

(A) in paragraph (11), by striking ''and'' at the end;

(B) in paragraph (12), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(13) implement an outreach program to small business concerns for the purpose of enhancing its SBIR program, under which the Federal agency shall—

''(A) provide outreach to small business concerns owned and controlled by women

and socially and economically disadvantaged small business concerns, as defined in section 8(a)(4); and

''(B) establish goals for outreach by the Federal agency to the small business concerns described in subparagraph (A).''; and

(2) in subsection (o)(14), by striking ''SBIR program;'' and inserting ''SBIR program, under which the Federal agency shall—

''(A) provide outreach to small business concerns owned and controlled by women and socially and economically disadvantaged small business concerns, as defined in section 8(a)(4); and

''(B) establish goals for outreach by the Federal agency to the small business concerns described in subparagraph (A).''.

**SEC. 6603. STTR POLICY DIRECTIVE MODIFICATION.**

Section 9(p) of the Small Business Act (15 U.S.C. 638(p)), as amended by section 6505 of this Act, is amended by adding at the end the following:

''(5) ADDITIONAL MODIFICATIONS.—Not later than 120 days after the date of enactment of this paragraph, the Administrator shall modify the policy directive issued pursuant to this subsection to provide for enhanced outreach efforts to increase the participation of small business concerns owned and controlled by women and socially and economically disadvantaged small business concerns, as defined in section 8(a)(4), in technological innovation and in STTR programs.''.

**SEC. 6604. INTERAGENCY SBIR/STTR POLICY COMMITTEE.**

Section 5124 of the SBIR/STTR Reauthorization Act of 2011 (Public Law 112–81; 125 Stat. 1837) is amended—

(1) by redesignating subsection (d) as subsection (e); and

(2) by inserting after subsection (c) the following:

''(d) MEETINGS.—

''(1) IN GENERAL.—The Interagency SBIR/STTR Policy Committee shall meet not less than twice per year to carry out the duties under subsection (c).

''(2) OUTREACH AND TECHNICAL ASSISTANCE ACTIVITIES.—If the Interagency SBIR/STTR Policy Committee meets to discuss outreach and technical assistance activities to increase the participation of small business concerns that are underrepresented in the SBIR and STTR programs, the Committee shall invite to the meeting—

''(A) a representative of the Minority Business Development Agency; and

''(B) relevant stakeholders that work to advance the interests of—

''(i) small business concerns owned and controlled by women, as defined in section 3 of the Small Business Act (15 U.S.C. 632); and

''(ii) socially and economically disadvantaged small business concerns, as defined in section 8(a)(4) of the Small Business Act (15 U.S.C. 637(a)(4)).''.

**SEC. 6605. DIVERSITY AND STEM WORKFORCE DEVELOPMENT PILOT PROGRAM.**

(a) DEFINITIONS.—In this section—

(1) the term ''Administrator'' means the Administrator of the Small Business Administration;

(2) the term ''covered STEM intern'' means a student at, or recent graduate from, an institution of higher education serving as an intern—

(A) whose course of study studied is focused on the STEM fields; and

(B) who is a woman or a person from an underrepresented population in the STEM fields;

(3) the term ''eligible entity'' means a small business concern that—

(A) is receiving amounts under an award under the SBIR program or the STTR program of a Federal agency on the date on which the Federal agency awards a grant to the small business concern under subsection (b); and

(B) provides internships for covered STEM interns;

(4) the terms ''Federal agency'', ''SBIR'', and ''STTR'' have the meanings given those terms under section 9(e) of the Small Business Act (15 U.S.C. 638(e));

(5) the term ''institution of higher education'' has the meaning given the term under section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a));

(6) the term ''person from an underrepresented population in the STEM fields'' means a person from a group that is underrepresented in the population of STEM students, as determined by the Administrator;

(7) the term ''pilot program'' means the Diversity and STEM Workforce Development Pilot Program established under subsection (b);

(8) the term ''recent graduate'', relating to a woman or a person from an underrepresented population in the STEM fields, means that the woman or person from an underrepresented population in the STEM fields earned an associate degree, baccalaureate degree, or postbaccalaureate from an institution of higher education during the 1-year period beginning on the date of the internship;

(9) the term ''small business concern'' has the meaning given the term under section 3 of the Small Business Act (15 U.S.C. 632); and

(10) the term ''STEM fields'' means the fields of science, technology, engineering, and math.

(b) PILOT PROGRAM FOR INTERNSHIPS FOR WOMEN AND PEOPLE FROM UNDERREPRESENTED POPULATIONS.—The Administrator shall establish a Diversity and STEM Workforce Development Pilot Program to encourage the business community to provide workforce development opportunities for covered STEM interns, under which a Federal agency participating in the SBIR program or STTR program may make a grant to 1 or more eligible entities for the costs of internships for covered STEM interns.

(c) AMOUNT AND USE OF GRANTS.—

(1) AMOUNT.—A grant under subsection (b)—

(A) may not be in an amount of more than $15,000 per fiscal year; and

(B) shall be in addition to the amount of the award to the recipient under the SBIR program or the STTR program.

(2) USE.—Not less than 90 percent of the amount of a grant under subsection (b) shall be used by the eligible entity to provide stipends or other similar payments to interns.

(d) EVALUATION.—Not later than January 31 of the first calendar year after the third fiscal year during which the Administrator carries out the pilot program, the Administrator shall submit to Congress—

(1) data on the results of the pilot program, such as the number and demographics of the covered STEM interns participating in an internship funded under the pilot program and the amount spent on such internships; and

(2) an assessment of whether the pilot program helped the SBIR program and STTR program achieve the congressional objective of fostering and encouraging the participation of women and persons from underrepresented populations in the STEM fields.

(e) TERMINATION.—The pilot program shall terminate after the end of the fourth fiscal year during which the Administrator carries out the pilot program.

(f) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated such sums as may be necessary to carry out the pilot program.

## TITLE LXVII—TECHNICAL CHANGES

**SEC. 6701. UNIFORM REFERENCE TO THE DEPARTMENT OF HEALTH AND HUMAN SERVICES.**

Section 9 of the Small Business Act (15 U.S.C. 638) is amended—

(1) in subsection (cc), by striking ''National Institutes of Health'' and inserting ''Department of Health and Human Services''; and

(2) in subsection (dd)(1)(A), by striking ''Director of the National Institutes of Health'' and inserting ''Secretary of Health and Human Services''.

**SEC. 6702. FLEXIBILITY FOR PHASE II AWARD INVITATIONS.**

Section 9(e)(4)(B) of the Small Business Act (15 U.S.C. 638(e)(4)(B)) is amended in the matter preceding clause (i)—

(1) by striking '', which shall not include any invitation, pre-screening, or pre-selection process for eligibility for Phase II,''; and

(2) by inserting ''in which eligibility for an award shall not be based only on an invitation, pre-screening, or pre-selection process and'' before ''in which awards''.

**SEC. 6703. PILOT PROGRAM FOR STREAMLINED TECHNOLOGY TRANSITION FROM THE SBIR AND STTR PROGRAMS OF THE DEPARTMENT OF DEFENSE.**

(a) DEFINITIONS.—In this section—

(1) the terms ''commercialization'', ''SBIR'', ''STTR'', ''Phase I'', ''Phase II'', and ''Phase III'' have the meanings given those terms in section 9(e) of the Small Business Act (15 U.S.C. 638(e));

(2) the term ''covered small business concern'' means—

(A) a small business concern that completed a Phase II award under the SBIR or STTR program of the Department of Defense; or

(B) a small business concern that—

(i) completed a Phase I award under the SBIR or STTR program of the Department of Defense; and

(ii) a contracting officer for the Department of Defense recommends for inclusion in a multiple award contract described in subsection (b);

(3) the term ''multiple award contract'' has the meaning given the term in section 3302(a) of title 41, United States Code;

(4) the term ''pilot program'' means the pilot program established under subsection (b); and

(5) the term ''small business concern'' has the meaning given the term in section 3 of the Small Business Act (15 U.S.C. 632).

(b) ESTABLISHMENT.—The Secretary of the Defense may establish a pilot program under which the Department of Defense shall award multiple award contracts to covered small business concerns for the purchase of technologies, supplies, or services that the covered small business concern has developed through the SBIR or STTR program.

(c) WAIVER OF COMPETITION IN CONTRACTING ACT REQUIREMENTS.—The Secretary of the Defense may establish procedures to waive provisions of section 2304 of title 10, United States Code, for purposes of carrying out the pilot program.

(d) USE OF CONTRACT VEHICLE.—A multiple award contract described in subsection (b) may be used by any service or component of the Department of Defense.

(e) TERMINATION.—The pilot program established under this section shall terminate on September 30, 2022.

(f) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to prevent the commercialization of products and services produced by a small business concern under an SBIR or STTR program of a Federal agency through—

(1) direct awards for Phase III of an SBIR or STTR program; or

(2) any other contract vehicle.

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**SA 4681.** Mr. JOHNSON (for himself, Mr. LEAHY, Ms. MURKOWSKI, and Mr. SCHUMER) submitted an amendment intended to be proposed by him to the bill H.R. 2578, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

**SEC. _____. JURISDICTION OVER OFFENSES COMMITTED BY CERTAIN UNITED STATES PERSONNEL STATIONED IN CANADA.**

(a) SHORT TITLE.—This section may be cited as the ''Promoting Travel, Commerce, and National Security Act of 2016''.

(b) AMENDMENT.—Chapter 212A of title 18, United States Code, is amended—

(1) in the chapter heading, by striking ''**TRAFFICKING IN PERSONS**''; and

(2) by adding after section 3272 the following:

**''§ 3273. Offenses committed by certain United States personnel stationed in Canada in furtherance of border security initiatives**

''(a) IN GENERAL.—Whoever, while employed by the Department of Homeland Security or the Department of Justice and stationed or deployed in Canada pursuant to a treaty, executive agreement, or bilateral memorandum in furtherance of a border security initiative, engages in conduct (or conspires or attempts to engage in conduct) in Canada that would constitute an offense for which a person may be prosecuted in a court of the United States had the conduct been engaged in within the United States or within the special maritime and territorial jurisdiction of the United States shall be fined or imprisoned, or both, as provided for that offense.

''(b) DEFINITION.—In this section, the term 'employed by the Department of Homeland Security or the Department of Justice' means—

''(1) being employed as a civilian employee, a contractor (including a subcontractor at any tier), or an employee of a contractor (or a subcontractor at any tier) of the Department of Homeland Security or the Department of Justice;

''(2) being present or residing in Canada in connection with such employment; and

''(3) not being a national of or ordinarily resident in Canada.''.

(c) TECHNICAL AND CONFORMING AMENDMENTS.—Part II of title 18, United States Code, is amended—

(1) in the table of chapters, by striking the item relating to chapter 212A and inserting the following:

''212A. Extraterritorial jurisdiction over certain offenses ..... 3271'';

and

(2) in the table of sections for chapter 212A, by inserting after the item relating to section 3272 the following:

''3273. Offenses committed by certain United States personnel stationed in Canada in furtherance of border security initiatives.''.

(d) RULE OF CONSTRUCTION.—Nothing in this section or the amendments made by this section shall be construed to infringe upon or otherwise affect the exercise of prosecutorial discretion by the Department of Justice in implementing this section and the amendments made by this section.

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**SA 4682.** Mrs. SHAHEEN submitted an amendment intended to be proposed by her to the bill H.R. 2578, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. Of the amounts made available by this Act to the National Marine Fisheries Service to provide observers, the National Marine Fisheries Service shall pay for the placement of at sea monitors on vessels before paying for observer-related costs associated with standardized bycatch reporting methodology requirements.

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**SA 4683.** Mr. ISAKSON (for himself and Mr. PERDUE) submitted an amendment intended to be proposed by him to the bill H.R. 2578, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table; as follows:

After section 217, insert the following:

SEC. 218. Notwithstanding any other provision of law, the provision of Senate Report 114–239 (April 21, 2016) relating to Federal water usage violations shall have no force or effect of law.

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**SA 4684.** Mr. PERDUE (for himself and Mr. ISAKSON) submitted an amendment intended to be proposed by him to the bill H.R. 2578, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. (a) Until the Secretary of the Army takes the actions described in subsection (b), none of the funds made available in this Act may be used—

(1) to conduct an audit of—

(A) all Federal water contract violations in multi-State water basins since 2005; and

(B) any contract violation notification the Department of Justice has received from the Secretary of the Army regarding all multi-State river basins since 2005;

(2) to develop and submit a record of how the Department of Justice has handled the violations and notifications described in subparagraphs (A) and (B) of paragraph (1);

(3) to develop and implement a comprehensive plan to enforce Federal law and respond to the violations described in subparagraphs (A) and (B) of paragraph (1);

(4) to issue or submit a report relating to the violations described in subparagraphs (A) and (B) of paragraph (1); or

(5) to enter into an agreement with the Secretary of the Army to receive notifications relating to the violations described in subparagraphs (A) and (B) of paragraph (1).

(b) The actions described in this subsection are—

(1) promulgation of a rule regarding return flow credits in reservoirs under the jurisdiction of the Corps of Engineers; and

(2) issuance of a final agency action on a updated water supply allocation for Lake Allatoona for the Alabama-Coosa-Tallapoosa river basin.

## AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Banking, Housing, and Urban Affairs be authorized to meet during the session of the Senate on June 14, 2016, at 9 a.m., to conduct a hearing entitled ''Oversight of the U.S. Securities and Exchange Commission.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on June 14, 2016, at 10 a.m., in room SD–366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on June 14, 2016, at 10 a.m., in room SD–215 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Energy Tax Policy in 2016 and Beyond.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. CORNYN. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on June 14, 2016, from 2:30 p.m., in room SH–219 of the Hart Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON SUPERFUND, WASTE MANAGEMENT, AND REGULATORY OVERSIGHT

Mr. CORNYN. Mr. President, I ask unanimous consent that the Subcommittee on Superfund, Waste Management, and Regulatory Oversight of the Committee on Environment and Public Works be authorized to meet during the session of the Senate on June 14, 2016, at 3 p.m., in room SD–406 of the Dirksen Senate Office Building, to conduct a hearing entitled, ''Oversight of the Environmental Protection Agency's Progress in Implementing Inspector General and Government Accountability Office Recommendations.''

The PRESIDING OFFICER. Without objection, it is so ordered.

## NATIONAL CHILD AWARENESS MONTH

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of S. Res. 494, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 494) designating September 2016 as ''National Child Awareness Month'' to promote awareness of charities benefiting children and youth-serving organizations throughout the United States and recognizing the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States.

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. I further ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 494) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

## ORDERS FOR WEDNESDAY, JUNE 15, 2016

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m., Wednesday, June 15; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following leader remarks, the Senate be in a period of morning business until 10:30 a.m., with Senators permitted to speak therein for up to 10 minutes each; finally, that following morning business, the Senate vote on the motion to proceed to H.R. 2578.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

## ORDER FOR ADJOURNMENT

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order under the provisions of S. Res. 493 as a further mark of respect to the late George V. Voinovich, former Senator from the State of Ohio, following the remarks of Senator WHITEHOUSE.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Rhode Island.

## CLIMATE CHANGE

Mr. WHITEHOUSE. Mr. President, in a Chamber where the debate on climate change has become woefully one-sided and in a Congress where House Republicans just voted unanimously to oppose the only climate solution Republicans have come to, I want to use my 140th climate speech to remind us of a time when global warming concerns came from both sides of the aisle.

Nearly 30 years ago this week, a Republican chair of the Senate Environment and Public Works Subcommittee on Environmental Pollution, who also served twice as Governor of my State and as Secretary of the Navy, convened a 2-day, 5-panel hearing on ozone depletion, the greenhouse effect, and climate change. It was June, 1986, and Senator John Chafee, a Republican of Rhode Island, gave opening remarks warning of ''the buildup of greenhouse gases, which threaten to warm the Earth to unprecedented levels. Such a warming could, within the next 50 to 75 years, produce enormous changes in a climate that has remained fairly stable for thousands of years.''

''[T]here is a very real possibility,'' Senator Chafee went on to say, ''that man—through ignorance or indifference, or both—is irreversibly altering the ability of our atmosphere to perform basic life support functions for the planet.''

Last weekend, the Washington Post wrote an article recalling this historic hearing, entitled ''30 years ago scientists warned Congress on global warming. What they said sounds eerily familiar.''

Mr. President, I ask unanimous consent to have printed in the RECORD that article at the conclusion of my remarks.

Imagine, by the way, a Republican-controlled Senate that would even have a Subcommittee on Environmental Pollution. How things have changed. The present Republican Chairman of the Environment and Public Works Committee is the author of ''The Greatest Hoax: How the Global Warming Conspiracy Threatens Your Future.'' The contrast is stark between what Senate Republicans and their hearing witnesses were saying 30 years ago and what the polluter-funded GOP is saying today.

Thirty years ago, Senator Chafee declared:

This is not a matter of Chicken Little telling us the sky is falling. The scientific evidence . . . is telling us we have a problem; a serious problem.

According to our current EPW Committee chairman, ''Much of the debate over global warming is predicated on fear rather than science.''

The depth and sophistication of climate science has done nothing but increase since the Chafee hearings, and the damage from climate change is not just a projection; it has started to occur. Scientists are now able to connect the dots. Australian researchers, for example, have determined that the ocean warming that led to widespread and devastating coral bleaching, killing off a significant chunk of the Great Barrier Reef in March, was made 175 times more likely by human-caused climate change. As one researcher put it, ''this is the smoking gun.''

Sadly, as the scientific consensus about the causes and consequences of human-driven climate change has strengthened over 30 years, the GOP's trust in science has eroded. They don't appear to even believe the science in their home State universities. All you have to do is go look at your own home State universities' positions on climate and how they are presented. It is right there.

But when one looks at how that party is funded and how it has now become virtually the political wing of the fossil fuel industry, one can understand this sad state of affairs.

Three decades ago, Republican Senator Chafee said:

Scientists have characterized our treatment of the greenhouse effect as a global experiment. It strikes me as a form of planetary Russian roulette.

He went on to say:

By not making policy choices today, by sticking to a ''wait and see'' approach, . . . [b]y allowing these gases to continue to build in the atmosphere, this generation may be committing all of us to severe economic and environmental disruption without ever having decided that the value of ''business as usual'' is worth the risks.

Those who believe that these are problems to be dealt with by future generations are misleading themselves. Man's activities to date may have already committed us to some level of temperature change.

Even with 30 more years of solid science buttressing it, many in the present-day GOP deny that basic understanding and ignore even the home State mainstream climate science that underpins it. A few—a very few—Republicans in Congress are now so bold as to accept mainstream, established science as it is taught in their home State universities, as is accepted by all our national science agencies and laboratories, and as it is warned of by our military and intelligence services, which is a nice step. But none will yet act on that understanding. Even that tiny cohort behaves in the face of this known risk—a risk the party recognized 30 years ago—as if it is enough to accept the science and do nothing. All 14 of the House Members who sponsored the House Resolution on climate change—all 14 of them—just voted with ExxonMobil and the Koch brothers against a carbon fee. When the whip comes down.

Thirty years ago, the Chafee hearing witnesses included the long-time director of NASA's Goddard Center, Dr. James Hansen; Dr. Michael Oppenheimer of Princeton; Dr. Robert Watson; and then-Senator Al Gore of Tennessee.

Dr. Hansen, now one of the leading advocates for immediate and decisive climate action within the science community, educated the subcommittee on the theory underpinning global climate models.

Dr. Oppenheimer, a member of the Intergovernmental Panel on Climate Change, talked about the need for immediate—30 years ago—climate action. Uncertainty, he told the Senators, was no excuse for inaction.

Dr. Watson, who would go on to chair the Intergovernmental Panel on Climate Change between 1997 and 2002

said: ''It is not wise to experiment on the planet Earth by allowing the concentration of these trace gases to increase without full understanding the consequences.''

Senator Gore agreed with these scientists, testifying that ''there is no longer any significant difference of opinion within the scientific community about the fact that the greenhouse effect is real and is already occurring.''

The current GOP chair of our EPW Committee has mocked Dr. Hansen and the IPCC and Vice President Gore, reserving a particular disdain for Vice President Gore, who he says is ''drowning in a sea of his own global warming illusions,'' and ''desperately trying to keep global warming alarmism alive today.''

Thirty years ago, the tone of the GOP was much different. Where Republicans today mock the prudential rule, Senator Chafee actually advocated for prudence in environmental policy. He said this:

The path that society is following today is much like driving a car toward the edge of a cliff. We have a choice. We can go ahead, take no action and drive off the edge—figuring that, since the car will not hit the bottom of the canyon until our generation is already long gone, the problem of coping with what we have made inevitable, is for future generations to deal with. We can hope that they will learn how to adapt. On the other hand, we can put the brakes on now, before the car gets any closer to the edge of the cliff and before we reach a point where momentum will take us over the edge, with or without application of the brakes.

Present-day Republicans just want to turn up the radio to the tune of ''Drill, Baby, Drill'' and jam the accelerator to the floor. Our current EPW chair has even said: ''$CO_2$ does not cause catastrophic disasters—actually it would be beneficial to our environment and our economy.''

Thirty years ago, Senator Chafee knew there was much yet to learn about climate change. Scientists will agree on the margins that there still is more to learn. But Senator Chafee said then that we have to face up to it anyway. I quote him again.

We don't have all the perfect scientific evidence. There may be gaps here and there. . . . Nonetheless, I think we have got to face up to it. We can't wait for every shred of evidence to come in and be absolutely perfect; I think we ought to start . . . to try and do something about [greenhouse gases], and certainly, to increase the public's awareness of the problem and the feeling, as you say, that it is not hopeless. . . . We can do something.''

Six and one-half years ago, the United States was preparing to join the gathering of nations in Copenhagen for the 2009 U.N. Climate Change Conference. When that happened, business leaders took out a full-page ad in the New York Times calling for passage of U.S. climate legislation, for investment in the clean energy economy, and for leadership to inspire the rest of the world to join the fight against climate change. ''[W]e must embrace the challenge today to ensure that future generations are left with a safe planet and a strong economy.''

''Please don't postpone the earth. If we fail to act now, it is scientifically irrefutable that there will be catastrophic and irreversible consequences for humanity and our planet.''

Well, interestingly, one of the signatories of that advertisement was none other than Donald J. Trump, Chairman and President of The Trump Organization. It is also signed by Eric F. Trump and Ivanka Trump. Even the 2009 version of the man who is now the Republican Party's presumptive nominee understood and put his name to the need to act on climate change.

Mr. President, I ask unanimous consent that a copy of that advertisement be printed in the RECORD at the end of my remarks.

Mr. President, what does this individual, now the Republican Party's presumptive nominee, want to do? He is proposing to roll back President Obama's Clean Power Plan and cancel the landmark Paris climate agreement. The same guy who signed this advertisement has since labeled decades of research by thousands of honest and honorable climate scientists as a ''hoax,'' a ''con job,'' and ''BS,'' to use a more polite form of his expression, all the while on his business side he wants a seawall to protect his golf resort from ''global warming and its effects.''

What do actual climate scientists think of the energy policies of the Republican nominee-to-be? Well, in reference to canceling the Paris Agreement and undoing the Clean Power Plan, Dr. PAUL Higgins, who is the director of the American Meteorological Society's Policy Program remarked:

Undoing these efforts would mean that future emissions of carbon dioxide would be larger and future atmospheric concentrations would be higher. Higher $CO_2$ concentrations would mean larger changes in climate and faster rates of change. Larger and faster changes in climate, in turn, pose greater risk to society.

Dr. Kevin Trenberth, a senior scientist at the National Center for Atmospheric Research, said: ''[My] quick reaction is that [his] comments show incredible ignorance with regard to the science and global affairs.'' Incredible ignorance, that is the party standard.

Dr. Michael Mann, director of the Earth System Science Center at Pennsylvania State University—a State that has a GOP Member in the Senate—put it bluntly when he said, ''[I]t is not an overstatement to say that [these] climate change views''—of this man—''and policy proposals constitute an existential threat to this planet.''

Dr. Katharine Hayhoe, director of the Climate Science Center at Texas Tech University—that famous liberal, leftwing university, Texas Tech University—has spoken of the potential economic cost of inaction. She said:

As the impacts grow ever more evident, severe, and costly, what was obvious to the 195 nations who met in Paris will become obvious to every human on this planet: doing something about climate change is far cheaper than not.

A quick aside on Dr. Hayhoe's comment, when this becomes ''obvious to every human on this planet,'' what will then be the legacy of the Republican Party? Not a proud one. Indeed, it will be a legacy to run from. The fossil fuel companies, their trade associations, front groups, and many in the GOP have spent the 30 years since the Chafee hearings obstructing responsible climate action despite better scientific understanding and growing public support for climate action. The fossil fuel industry has particular blame. They have erected a multi-tentacled, climate-denial apparatus that has deliberately caused that obstruction, and there are plenty of scientists looking at that now.

Citizens United is what gave that industry the unprecedented political weaponry that it has used to accomplish that end. The GOP-Citizens United-fossil fuel industry nexus will earn history's condemnation. Let's just hope it is not too late.

The Washington Post article asked Dr. Oppenheimer to reflect on the intervening 30 years. Dr. Oppenheimer said: This hearing helped bring the concern together, and essentially painted a picture that things are kind of spinning out of control, that science is trying to tell us something, that the world seems to be changing even faster than our scientific understanding of the problem, and worst of all, our political leaders are way behind the eight ball.

I knew Senator Chafee. He was a family friend. He may have been my father's best friend. He was an optimist and a pragmatist. He used to say: Given half a chance, nature will rebound and overcome tremendous setbacks, but we must—at the very least—give it that half a chance. He also knew nature's tolerance is not unlimited. At those groundbreaking hearings, Senator Chafee warned:

It seems that the problems man creates for our planet are never ending. But we have found solutions for prior difficulties, and we will for these as well. What is required is for all of us to do a better job of anticipating and responding to today's new environmental warnings before they become tomorrow's environmental tragedies.

With those words, I close and yield the floor.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Washington Post, June 11, 2016]

30 YEARS AGO SCIENTISTS WARNED CONGRESS ON GLOBAL WARMING. WHAT THEY SAID SOUNDS EERILY FAMILIAR

(By Chris Mooney)

It was such a different time—and yet, the message was so similar.

Thirty years ago, on June 10 and 11 of 1986, the U.S. Senate Committee on the Environment and Public Works commenced two days of hearings, convened by Sen. John H. Chafee (R–R.I.), on the subject of ''Ozone Depletion, the Greenhouse Effect, and Climate Change.''

''This is not a matter of Chicken Little telling us the sky is falling,'' Chafee said at

the hearing. ''The scientific evidence . . . is telling us we have a problem, a serious problem.''

The hearings garnered considerable media coverage, including on the front page of The Washington Post (see below).

''There is no longer any significant difference of opinion within the scientific community about the fact that the greenhouse effect is real and already occurring,'' said newly elected Sen. Al Gore, who, as a congressman, had already held several House hearings on the matter. Gore cited the Villach Conference, a scientific meeting held in Austria the previous year (1985), which concluded that ''as a result of the increasing greenhouse gases it is now believed that in the first half of the next century (21st century) a rise of global mean temperature could occur which is greater than in any man's history.''

''They were the breakthrough hearings,'' remembers Rafe Pomerance, then a staffer with the World Resources Institute, who helped suggest witnesses. ''You never saw front-page coverage of this stuff.''

The scientists assembled included some of the voices that would be unmistakable and constant in coming decades. They included NASA's James Hansen, who would go on to become the most visible scientist in the world on the topic, and Robert Watson, who would go on to chair the soon-to-be formed United Nations' Intergovernmental Panel on Climate Change.

And what they said was clear: Human greenhouse gas emissions would cause a major warming trend, and sea level rise to boot.

Here's how the hearings were covered on the front page of The Post:

The New York Times also covered the hearings, writing that ''The rise in carbon dioxide and other gases in the earth's atmosphere will have an earlier and more pronounced impact on global temperature and climate than previously expected, according to evidence presented to a Senate subcommittee today.''

Two years later, still more famously, Hansen would testify in another series of hearings that had an even greater public impact when it came to consciousness-raising—in part because at that point, he said that the warming of the globe caused by humans was already detectable. ''It is time to stop waffling so much and say that the evidence is pretty strong that the greenhouse effect is here,'' he said then. In 1986, by contrast, scientists were still mostly predicting the future, rather than saying they had measured and documented a clear warming trend—one that could be clearly distinguished from natural climate variability—and that it was already having demonstrable consequences.

''The 1986 testimony is interesting because it was so similar to my 1988 testimony,'' Hansen recalls. ''I already had, and showed, some of the climate modeling results that formed the basis for my 1988 testimony.''

Granted, in some cases the future temperature projections made in the 1986 hearings—based on assumptions about the rate of increase in greenhouse gas emissions and a high sensitivity of the climate to them—suggested temperatures might rise even more, or even faster, than scientists now believe they will. By email, Hansen clarified that we now know the world is closer to one scenario he presented in 1986—called Scenario B—than to Scenario A, which assumed a much more rapid rate of greenhouse gas growth, and accordingly, much faster warming.

Still, the theoretical understanding was in place for why temperatures would rise as greenhouse gases filled the atmosphere—simply because scientists knew enough physics to know that that's what greenhouse gases do.

''We knew in the '70s what the problem was,'' said George Woodwell, founding director of the Woods Hole Research Center, who also testified in 1986. ''We knew there was a problem with sea level rise, all disruptions of climate. And the disruptions of climate are fundamental in that they undermine all the life on the Earth.''

Much of the formal understanding had been affirmed by a 1979 report by the U.S. National Academy of Sciences, led by the celebrated atmospheric physicist Jule Charney of the Massachusetts Institute of Technology. That group famously assessed that if carbon dioxide levels in the atmosphere were to double, the ''most probable global warming'' would amount to 3 degrees Celsius, with a range between 1.5 degrees and 4.5 degrees, a number quite similar to modern estimates.

''We have tried but have been unable to find any overlooked or underestimated physical effects that could reduce the currently estimated global warmings due to a doubling of atmospheric $CO_2$ to negligible proportions or reverse them altogether,'' the scientists behind the report wrote.

Indeed, the fundamental understanding of the greenhouse effect, and that carbon dioxide is a greenhouse gas because of its particular properties, dates back to the 19th century, when the Irish scientist John Tyndall conducted experiments to determine the radiative properties of gases.

No wonder, then, that there was so much that scientists could say about it in 1986. And indeed, if you look at global temperature trends, it turns out they were speaking at a time when the planet's temperatures were beginning a steady upswing, one that, despite various yearly deviations, would continue inexorably to the present:

''This hearing helped bring the concern together, and essentially painted a picture that things are kind of spinning out of control, that science is trying to tell us something, that the world seems to be changing even faster than our scientific understanding of the problem, and worst of all, our political leaders are way behind the eight ball,'' said Michael Oppenheimer, a Princeton climate scientist who testified that day, and argued that action was warranted on climate change even though not everything was known about its consequences.

''I have to say, reading my own testimony . . . you know, I'd stick by everything in that today, even though it's 30 years later,'' Oppenheimer said.

There was an additional context, though, that we're now less conversant with: The hearings were also about the issue of the depletion of the Earth's protective ozone layer by chlorofluorocarbons, or CFCs. Scientists had recently discovered an ''ozone hole'' over Antarctica that frightened the public, and seemed a definitive indicator of just how much human activities could change the atmosphere.

Even today, some still confuse the issue of climate change with that of the depletion of the ozone layer. They are not the same, but they are closely related in that both showed how seemingly small actions by individual humans, or by human industry, could add up to planetary consequences.

However, the ozone problem would prove far easier to fix. In 1987, just a year later, the nations of the world adopted the Montreal Protocol, which is today regarded as a major success in environmental protection. Under the treaty, a flexible and adaptable approach was taken to reductions—and regular scientific assessments allowed for course adaptation based on the latest information about how well progress was proceeding. Thus, by 2007, the U.N. Environment Program could declare of the treaty that ''to date, the results of this effort have been nothing less than spectacular.''

The contrast with climate change is stark Despite having been alerted by scientists not only in 1986, but also in 1979 and, frankly, even earlier, what happened was not policy action, but rather the beginnings of a long political battle.

Even as the formation of the U.N. Intergovernmental Panel on Climate Change in 1988, and the global adoption of the Framework Convention on Climate Change in 1992, signaled steps toward action in the scientific and diplomatic communities, skeptical scientists emerged to challenges the views expressed by Hansen and others, supported by conservative think tanks and sometimes linked to fossil fuel interests. Meanwhile, U.S. politics shifted, as over the 1990s and especially the 2000s the climate change issue became polarized and it became rarer to see Republicans, such as Chafee, who were also strong environmentalists and advocates for climate action.

''Thirty years ago we had a Republican senator who was leading the charge on addressing what he said then was a real and serious threat of climate change from the emission of gases from fossil fuel burning,'' says Sen. Sheldon Whitehouse (D–R.I.), recalling the 1986 hearings. ''You can read through all the things that Senator Chafee said back then, and it has all been proven true. It's very disappointing that thirty years later, there is no such voice anywhere in the Republican Senate, and if you look for a micron of daylight between what the fossil fuel industry wants, and what the Republican Party in the Senate does, you won't find it.''

It was only in late 2015, in Paris, that the United States helped to negotiate a global agreement to address climate change, one in which each country sets its own pace on reducing emissions. But scientists widely agree that this accord isn't strong enough, on its own terms, to ensure that warming remains below a 2-degree Celsius danger zone.

Thirty years after the 1986 hearings, meanwhile, presumptive Republican presidential nominee Donald Trump said that if elected, he would attempt ''renegotiating'' that agreement.

''Those agreements are one-sided agreements, and they are bad for the United States,'' Trump said.

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[From New York Times advertisement, Dec. 6, 2009]

DEAR PRESIDENT OBAMA AND THE UNITED STATES CONGRESS: Tomorrow leaders from 192 countries will gather at The UN Climate Change Conference in Copenhagen to determine the fate of our planet.

As business leaders we are optimistic that President Obama is attending Copenhagen with emissions targets. Additionally, we urge you, our government, to strengthen and pass United States legislation, and lead the world by example. We support your effort to ensure meaningful and effective measures to control climate change, an immediate challenge facing the United States and the world today. Please don't postpone the earth. If we fail to act now, it is scientifically irrefutable that there will be catastrophic and irreversible consequences for humanity and our planet.

We recognize the key role that American innovation and leadership play in stimulating the worldwide economy. Investing in a Clean Energy Economy will drive state-of-the-art technologies that will spur economic growth, create new energy jobs, and increase our energy security all while reducing the harmful emissions that are putting our planet at risk. We have the ability and the know-

how to lead the world in clean energy technology to thrive in a global market and economy. But we must embrace the challenge today to ensure that future generations are left with a safe planet and a strong economy.

Please allow us, the United States of America, to serve in modeling the change necessary to protect humanity and our planet.

In partnership,

Chris Anderson, Curator, TED; Richard Baker, Chairman, Lord & Taylor; Dan, David & Laureen Barber, Blue Hill; Chris Blackwell, Founder, Island Records, Island Outpost; Graydon Carter, Editor, Vanity Fair; Deepak Chopra, Adjunct Professor, Kellogg School of Business and Management; Yvon Chouinard, Founder, Patagonia; Ben Cohen, Jerry Greenfield, Co-founders, Ben &Jerry's; Gregory Colbert, Creator, Ashes & Snow; Kenneth Cole, Chairman, Kenneth Cole; Paulette Cole, CEO & Creative Director, ABC Home, ABC Carpet & Home; Tom Collicchio, Chef & Owner, Craft Restaurants; Kit Crawford, Gary Erickson, Co-Owners and Co-CEOs, Clif Bar & Company; Steve Ells, Founder, Chairman & Co-CEO, Chipotle Mexican Grill, Inc.; Eileen Fisher, CEO, Eileen Fisher; Walt Freese, CEO, Ben & Jerry's Homemade; Mitchell Gold, Chairman, Bob Williams, President, Co-Founders, Mitchell Gold + Bob Williams; Matt Goldman, Co-Founder & CEO, Blue Man Group; Seth Goldman, CEO, Honest Tea; Robert Grebler, Founder, Pokonobe Associates, Jenga Licensor; Adrian Grenier, Reckless Productions; Alan Hassenfeld, former Chairman, Hasbro, Inc.; Don Hazen, Executive Editor, AlterNet; Gary Hirshberg, CEO, Stonyfield Yogurt.

Jeffrey Hollender, CEO, Seventh Generation, Kate Hudson, David Babali, Co-Founders, David Babali for WildAid; Mike Kaplan, CEO, Aspen Skiing Company; Michael Kieschnick, President, Credo Mobile; Sheryl Leach, Creator & Founder of Barney; Sven-Olof Lindblad, Founder, Lindblad Expeditions; Danny Meyer, CEO, Union Square Hospitality Group; Laura Michalchyshyn, President & GM, Planet Green, Discovery Communications; Will Raap, Chairman & Founder, Gardeners's Supply Company; Horst Rechelbacher, Founder, Aveda, Founder & CEO, Intelligent Nutrients; David Rockwell, Founder & Owner, Rockwell Group; Maury Rubin, Founder, Chef & CEO, City Bakery, Birdbath Green Bakery; Michael Rupp, CEO & President, The Rockport Company; Gordon Segal, Chairman, Crate & Barrel; Jeff Skoll, Founder, Participant Media and Skoll foundation; Harvey Spevak, CEO, Equinox; Greg Steltenpohl, Founder, Odwalla; Michelle Stein, President, Aeffe USA; Martha Stewart, Founder, Martha Stewart Living Omnimedia, Inc.; Jeffrey Swartz, CEO, Timberland; Tom Szaky, CEO, TerraCycle; Donald J. Trump, Chairman and President, Donald J. Trump Jr., EVP, Eric F. Trump, EVP, Ivanka M. Trump, EVP, The Trump Organization; Jean-Georges Vongerichten, Executive Chef & Owner, Jean-Georges Management LLC.

If you want to quickly, go along. If you want to go far, go together. [African Proverb]

## ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

The PRESIDING OFFICER. Under the previous order, and pursuant to S. Res. 493, the Senate stands adjourned until 9:30 a.m. on Wednesday, June 15, and does so as a further mark of respect to the late George Voinovich, former Senator from Ohio.

Thereupon, the Senate, at 6:08 p.m., adjourned until Wednesday, June 15, 2016, at 9:30 a.m.

# EXTENSIONS OF REMARKS

## RECOGNIZING GAGE MARINE AND THE 100TH ANNIVERSARY OF THE U.S. MAILBOAT

### HON. PAUL D. RYAN

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. RYAN of Wisconsin. Mr. Speaker, I rise today to recognize Gage Marine and the 100th anniversary of the U.S. Mailboat.

Only a few places in the United States still deliver the mail by boat. Lake Geneva is one of those places.

Mail delivery by boat was once a necessity; now, it is keeping a proud tradition alive. And this isn't your typical mail man, Mr. Speaker.

The mailboat can't stop or slow down, or the mail route would take too long. Instead, it's delivered by mail jumpers; young men and women who hop off the boat, run with the mail to the mailbox, and sprint back before the boat passes by.

The boat really never stops; if mail runners aren't fast enough, they'll soon be taking a swim in Lake Geneva.

And as of June 14th this year, the U.S. Mailboat will have been operating in Wisconsin's First District for 100 years. I want to commend them for reaching this milestone. Our country is still quite young, and to see such history right in my own back yard is very special.

So on behalf of the First District of Wisconsin, I want to say congratulations once again to the U.S. Mailboat's 100th anniversary.

## PAYING TRIBUTE TO PASTOR BILLY EDMONDSON

### HON. BARRY LOUDERMILK

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. LOUDERMILK. Mr. Speaker, I rise today to pay tribute to a pillar of our community, Pastor Billy Edmondson.

This year marks Pastor Edmondson's twenty-fifth anniversary of service as Senior Pastor of Sutallee Baptist Church in White, Georgia.

During his days studying at Reinhart University and the Southeastern Baptist Theological Seminary, he prepared himself to serve. And, through his honorable service in the United States Marine Corps, on the Boards of the Georgia Baptist Mission and the Academy at Double H Ranch, as well as his tenure at Sutallee Baptist, his dedication to service in our community has been unwavering. Pastor Edmondson has made it his life's work to serve Christ and preach His word both inside and outside of the church.

On behalf of the people of Georgia's 11th Congressional District and the United States House of Representatives, I would like to recognize and congratulate Pastor Edmondson on his many years of service.

## IN RECOGNITION OF THE SPRINGFIELD HIGH SCHOOL BOYS LACROSSE

### HON. PATRICK MEEHAN

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. MEEHAN. Mr. Speaker, I rise today to honor the Springfield High School Boys Lacrosse team, the 2016 Pennsylvania Interscholastic Athletic Association (PIAA) champions.

The Springfield Boys Lacrosse team won the state title after defeating La Salle 4–3 in the championship game. They are the third straight team from Delaware County to win the PIAA Championship.

I want to congratulate the following students on the Boys Varsity Lacrosse team: Zac Methlie, Mike Gerzabek, Liam Difonso, Joe Debarnardi, Ray Jeffers, Andrew Pickett, David Hentnick, Ian Reger, Jack Spence, Zac Venit, Kyle Long, Mike Vent, Jamie Bove, Dan Gluck, Vince Puppio, Pat Smyth, Aiden Travers, Geo Dotsikas, James Spence, Anthony Delvecchio, Nick Cutuli, Nick Martin, Matt Blake, Matt Ries, Zack Broomall, Max Difonso, Mike Ward, Nate Lohr, Nick Matty, Alex Grafstrom, Anthony Divario, and Pat Clemens. Their hard work, discipline and teamwork bring great pride to the 7th District.

I also want to congratulate Head Coach Tom Lemieux and assistant coaches Jason Orlando, Ryne Adolph, Austin Kaut, Mike Gurenlian, and Jordan Demcher.

Mr. Speaker, I once again congratulate Coach Lemieux, the coaching staff, the team, and the entire Springfield community on this outstanding accomplishment.

## CHRIS WILLIAMS

### HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and applaud Chris Williams for his leadership, hard work and dedication on behalf of the 2015–2016 Veterans History Project documentary film produced by the students and faculty of Westminster High School in Westminster, Colorado.

The film, MEDIC!, highlights the stories of five brave veterans who served their country and their fellow veterans as combat medics. As a result of the work of Chris and his students, these veterans' stories will forever be preserved in the Library of Congress American Folklife Center. Chris was an integral part of making the film and provided invaluable support to the project and his students during the interview, production and editing phases.

Chris received his degree in Radio/Television/Film from the University of North Texas and began his career in television and video production working for two different television stations and ultimately owning his own video production company, Frosty Entertainment. He also worked as the Chief Editor for Fox Sports Net Rocky Mountain in Denver and worked with celebrities and sports stars like Don Henley, Jeff Gordon, Wayne Gretzky, Janine Turner, and Muhammad Ali.

In 2009, Chris decided to change career paths and became a teacher at TW Browne Middle School in South Dallas. After moving to Denver in 2012, Chris started as a substitute teacher in Adams County School District 50 and became a full time instructor at Westminster High School during the 2013–14 school year. Since then, Chris has worked to enhance the Basic Computers course as well as starting the Video Cinema Arts (VCA) program. Both courses have grown and become more successful under Chris' leadership and continue to thrive as evidenced by the addition of an Advanced VCA course next year. In 2016, Chris was also named Teacher of the Year.

I extend my deepest appreciation to Chris Williams for his hard work and tireless effort on the 2015–2016 Veterans History Project documentary film and for his contribution to the lives of so many students in our community.

## HONORING THE 100TH BIRTHDAY OF MRS. ALICE NICHOLSON MADURO

### HON. JERROLD NADLER

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. NADLER. Mr. Speaker, I rise today to honor a fiercely determined and independent woman, Mrs. Alice Nicholson Maduro, whose 100th birthday is July 8, 2016.

Four years before women gained the right to vote, and 100 years before a woman first earned the nomination to become the President of the United States, Mrs. Maduro was born in New York City on July 8, 1916 to Leone "Claudine" Gensollin of Menton, France, and Walter Curtis Nicholson of New York State.

Since the grade-schooler Alice Nicholson favored her French mother's pronunciation of her first name, she began to spell it with a "y" instead of an "i" (Alyce, pronounced "Aleeece"). The Nicholsons were a hard-working family, raising their children in modest circumstances. When Alyce's school-headmaster father died an early death, he left the family with few means and thus Alyce with little opportunity for higher education. However, this determined young woman was irrepressible and Alyce thrived as a reporter at the Summit New Jersey Herald, editorial assistant at McGraw Hill publications, and executive within the Information & Media Division of the "Marshall Plan" in Paris after the Second World War. From Paris, Alyce returned to the

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

United States to work at Radio Free Asia in San Francisco, CA.

When Denis Brandon Maduro, Esq. met this intelligent, international, beautiful woman during her east coast visit he fell in love instantaneously. He proposed to her promptly and, in the face of her reticence, lovingly encouraged her to extend her trip indefinitely. The two married two and one-half months later, on August 1, 1953, and yielded three offspring, Denis Brandon Maduro, Jr., Timothy Nicholson Maduro, and Peter Nicholson Maduro.

As mother and wife, Mrs. Maduro devoted herself to making a home for her family until her husband Denis Sr.'s untimely death in 1967. Left alone to financially support her three boys, she needed to return to work. Constitutively industrious, Mrs. Maduro became a successful residential real estate broker in Manhattan and maintained an active broker's license through her 98th year. She was also the head of the parents' association at Collegiate School of New York City (the oldest still-operating educational institution in this country) where her children were enrolled. In that role, she was charged to welcome former First Lady Jacqueline Kennedy Onassis into the ranks of the parents' activities since John F. Kennedy, Jr. was then also enrolled there as a grade-schooler. In this connection, Mrs. Madura's eldest boy, Denis, was hired to be ''big brother'' to John Jr. during the summer of 1970 on the Onassis' Greek island summer home of Scorpios.

By her two eldest sons, Mrs. Maduro is the beloved grandmother of Gabriela Balaz Maduro and Andrea Balaz Maduro, of Jacksonville, Florida, as well as Leah Lee Maduro and Kona Lee Maduro, of Pacific Palisades, California.

Still ''sharp as a tack'' and always elegantly turned out, Mrs. Maduro lives completely independently on Manhattan's upper west side, eagerly follows the New York Ballet & Philharmonic, the Manhattan art scene, local and national politics and international current events. Moreover, she elects to take taxi cabs instead of the city bus or subway only when unduly constrained for time. Thrilled to witness an African American and now perhaps a woman lead our country as its chief executive, she hopes to live to the day when people of all genders, identities, ethnicities, origins and religions can achieve high-office without barrier or prejudice.

Mr. Speaker, I ask my colleagues to join me today in paying tribute to an admirably ''tough cookie'' and an outstanding citizen of this great nation, Mrs. Alice Nicholson Maduro, in anticipation of her 100th birthday.

## HONORING MOTHER MATTIE MAE AMOS-MARSHALL

### HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor Mrs. Mattie Mae Amos-Marshall, who was born in a small community in Florence, Mississippi called Steen Creek on October 15, 1915 to the late Mr. Ben and Salle White-Amos.

Mrs. Marshall married her childhood sweetheart, the late Mr. Jessie Marshall, at the age of 18 and moved to Flora, Mississippi where she began a family of her own.

Mrs. Marshall was baptized at a young age at Stokes Chapel MB Church and later moved her membership to Jones Chapel MB Church where she is a member of the Mother's Board. Mrs. Marshall moved to Canton, Mississippi as a child and was educated in the Madison County School.

Mr. Speaker, I ask my colleagues to join me in recognizing Mother Mattie Mae Amos-Marshall.

## COLIN LEE

### HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and applaud Colin Lee for his leadership, hard work and dedication on behalf of the 2015–2016 Veterans History Project documentary film produced by the students and faculty of Westminster High School in Westminster, Colorado.

The film, MEDIC!, highlights the stories of five brave veterans who served their country and their fellow veterans as combat medics. As a result of the work of Colin and his students, these veterans' stories will forever be preserved in the Library of Congress American Folklife Center. Colin was an integral part of making the film and provided invaluable support to the project and his students during the research, interview and production phases.

Colin has been a teacher for more than 20 years, including the past 15 years in Adams County School District 50. Throughout his career as a teacher, he's been heavily involved in student activities inside and outside the classroom including a Student Council Sponsor, Class Sponsor, track coach, International Baccalaureate Coordinator and Dean of Students. Currently, Colin serves as the sponsor of the National Honor Society. He earned his BS Education degree in History from Missouri State University.

I extend my deepest appreciation to Colin Lee for his hard work and dedication to the 2015–2016 Veterans History Project documentary film and for his contribution to the lives of so many students in our community.

## PERSONAL EXPLANATION

### HON. ROBERT HURT

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. HURT of Virginia. Mr. Speaker, I was not present for Roll Call vote Number 297 on H.R. 4939. Had I been present, I would have voted ''yes.''

## TRIBUTE TO PHIL WALDMAN

### HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr. Speaker, I would like to recognize Phil Waldman for his induction into the Florida Aviation Hall of Fame of 2016.

Mr. Waldman was a ferry pilot and the former President of the Florida Globe Aero. From 1975 to 1979, he ferried 400 planes a year and had 27 pilots on his payroll too.

Mr. Waldman flew planes all over the world and a lot of the time, they were single engine planes. That means for 20 to 30 hours of flight time, he would be alone with an extra gas tank in the seat beside him. He crossed the Atlantic and Pacific oceans over 250 times in small planes, almost beating the standing record for this type of flight.

Mr. Waldman is joining a rich history of aviation pilots in the Florida Aviation Hall of Fame and our community of Pinellas County is proud to have him as a neighbor. Although he semi-retired in 2008, he remains an active pilot. I respect Mr. Waldman for the work he put into aviation, and I ask this body join me in recognizing Phil Waldman for his accomplishments.

## KIFFANY KIEWIET

### HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and applaud Kiffany Kiewiet for her leadership and vision on behalf of the 2015–2016 Veterans History Project documentary film produced by the students and faculty of Westminster High School in Westminster, Colorado.

The film, MEDIC!, highlights the stories of five brave veterans who served their country and their fellow veterans as combat medics. Kiffany's willingness to take on the project and her ongoing support of the project helped provide a very memorable and hands-on experience for the students. The Veterans History Project helps preserve the stories of our veterans for future generations and MEDIC! will forever be preserved in the Library of Congress American Folklife Center.

Kiffany became the principal in 2015 after serving as the assistant principal and athletic director for Westminster High School. Prior to that Kiffany worked as a community liaison at Manual High School in Denver. Kiffany's career in education started in an at-risk high school program in Wisconsin before she moved to Colorado about five-and-half years ago. A lifelong learner herself, Kiffany demonstrates a willingness to take on new challenges and projects to help both teachers and students grow and learn.

I extend my deepest appreciation to Kiffany Kiewiet for her leadership on the 2015–2016 Veterans History Project documentary film and for her ongoing contribution to the lives of so many students in our community.

## PERSONAL EXPLANATION

### HON. LUIS V. GUTIÉRREZ

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. GUTIÉRREZ. Mr. Speaker, I was unavoidably absent in the House chamber for votes on Monday, June 13, 2016. Had I been present, I would have voted ''yea'' on roll call votes 297 and 298.

PERSONAL EXPLANATION

## HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. HUFFMAN. Mr. Speaker, on Tuesday, June 7, and Wednesday, June 8, 2016, I was absent for roll call votes 269, 270, 271, 272, 273, 274, & 275.

Had I been present for roll call vote 269, H. Con. Res. 129—Expressing support for the goal of ensuring that all Holocaust victims live with dignity, comfort, and security in their remaining years, and urging the Federal Republic of Germany to reaffirm its commitment to this goal through a financial commitment to comprehensively address the unique health and welfare needs of vulnerable Holocaust victims, including home care and other medically prescribed needs, as amended, I would have voted ''yes''.

Had I been present for roll call vote 270, H.R. 4906—To amend title 5, United States Code, to clarify the eligibility of employees of a land management agency in a time-limited appointment to compete for a permanent appointment at any Federal agency, and for other purposes, I would have voted ''yes''.

Had I been present for roll call vote 271, H.R. 4904—MEGABYTE Act of 2016, I would have voted ''yes''.

Had I been present for roll call vote 272, H.R. 1815—Eastern Nevada Land Implementation Improvement Act, I would have voted ''yes''.

Had I been present for roll call vote 273, motion on Ordering the Previous Question on the Rule providing for consideration of H.R. 4775, H. Con. Res. 89 and H. Con. Res 112, I would have voted ''no''.

Had I been present for roll call vote 274, H. Res. 767—Rule providing for consideration of H.R. 4775—Ozone Standards Implementation Act of 2016, H. Con. Res. 89—Expressing the sense of Congress that a carbon tax would be detrimental to the United States economy, and H. Con. Res. 112—Expressing the sense of Congress opposing the President's proposed $10 tax on every barrel of oil, I would have voted ''no''.

Had I been present for roll call vote 275, HR. 3826—Mount Hood Cooper Spur Land Exchange Clarification Act, I would have voted ''yes''.

LAURA SEWARD

## HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and applaud Laura Seward for her leadership, hard work and dedication on behalf of the 2015–2016 Veterans History Project documentary film produced by the students and faculty of Westminster High School in Westminster, Colorado.

The film, MEDIC!, highlights the stories of five brave veterans who served their country and their fellow veterans as combat medics. The Veterans History Project is a congressionally chartered project that works to collect, preserve and make accessible personal accounts of American war veterans. The stories of these veterans will forever be preserved in the Library of Congress American Folklife Center. Laura and her students were an integral part of the film helping to provide b-roll photos along with designing all graphics and interactive media.

Laura earned a Bachelor of Fine Arts degree in photography and digital art and her K–12 Art Education Licensure from Metropolitan State College in Denver in 2008. Since then she has worked as the graphic design, interactive media and digital photography teacher at Westminster High School where she has increased enrollment in the program by 200 percent.

I extend my deepest appreciation to Laura Seward for her hard work and dedication to the 2015–2016 Veterans History Project documentary film and for her ongoing contributions to the lives of so many students in our community.

TRIBUTE TO FLORIDA DREAM CENTER

## HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr. Speaker, I would like to recognize the efforts of the Florida Dream Center, an agency working to improve the lives of those living in our community.

The Florida Dream Center was started in 2012 with the goal of helping victims of homelessness, human trafficking, and neglect. Led by Executive Director Geoffrey Rogers and President Bill Losasso, the Florida Dream Center is committed to their goal for Pinellas County which entails restoring dreams, renewing hope, and rebuilding lives.

Most recently, The Florida Dream Center and the Pinellas County Human Services, partnered to make a dream become reality for a family of four through the Adopt-A-Block initiative. A single mom and her three boys, all of whom are under the age of 15, did not have a home to live in and were living in motels. Volunteers gave their time to remodel and restore a foreclosed property that the family will now be living in.

Along with revitalizing our communities and neighborhoods, the Florida Dream Center works hard to help combat hunger. At the beginning of April, the organization and other members of our community helped hand out food to those in need and they also provided repairs and maintenance to the community where they saw it was needed most. Additionally, the Florida Dream Center aids human trafficking victims and survivors to ensure they feel safe in Pinellas County.

Mr. Speaker, I want to thank the Florida Dream Center and Pinellas County Human Services and Fair Housing Assistance Program for continuing to aid and provide exemplary help to those in need in our county. Their acts of kindness are an inspiration and I ask that this body join me in recognizing them for the hard work they have done and continue to do for all of us in Pinellas County.

HONORING JOHN O. BADERO

## HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable public servant Dr. John Olurotimi Badero who was born the 7th of 8th children to Chief Eliab Olufemi and Mrs. Stella Taiwo Badero in Lagos, Nigeria.

Dr. Badero attended St. Mary's Private School in Lagos, Nigeria for his primary education where he skipped the 4th grade due to his academic excellence, completing primary education in five years instead of the regular six years.

Dr. Badero received his secondary school education at Federal Government College Odogbolu in Ogun State, Nigeria where he completed 6 years of secondary school education graduating with 9 distinctions in his senior secondary school certificate education.

Dr. Badero's academic excellence dates back to his secondary school days where he won the best overall student in Nigeria in a national science quiz competition. He subsequently got admission into the medical school at Obafemi Awolowo University Ile-Ife.

Following Completion of his medical training at Obafemi Awolowo University Ile Ife, and internship training, Dr. Badero moved to the United States for further post-graduate medical education. He completed 3 years of Residency training in Internal Medicine at State University of New York (SUNY) Downstate Medical Center in Brooklyn, NY.

After completion of his residency training in internal medicine, Dr. Badero then completed a 2-year Fellowship training in Nephrology & Hypertension at Emory University School of Medicine in Atlanta Georgia. Upon Completion of his Nephrology Fellowship at Emory University, Dr. Badero returned to SUNY Downstate Medical in Brooklyn, New York to complete yet another 3-year fellowship training in Cardiovascular Medicine.

After a distinguished Cardiology Fellowship, he gained admission into the prestigious Yale University School of Medicine, where Dr. Badero completed two Fellowship trainings in Invasive & Interventional Cardiology as well as Peripheral Vascular Angioplasty & Interventions. He completed his training at Yale University with distinction and a certificate of achievement for exemplary performance.

Dr. Badero then returned to SUNY Downstate Medical Center for another year of Fellowship training in Interventional Nephrology/Endovascular medicine & Dialysis Access intervention.

Dr. Badero in all completed an unprecendented 10 years of continuous post graduate medical training and he is currently board certified in: 1) Internal Medicine; 2) Nephrology & Hypertension; 3) Interventional Nephrology & Endovascular Access; 4) Cardiovascular Medicine; 5) Nuclear Cardiology; and 6) Invasive & Interventional Cardiology making him the only one in the state of Mississippi.

Dr. Badero is currently the only fully trained and board certified cardio-nephrologist (combined kidney and heart specialist) in the world today and recently received a recognition award by financial development magazine in Nigeria.

Dr. Badero performed the first transradial cardiac catheterization and coronary angioplasty at Central Mississippi Medical Center.

Dr. Badero is a recipient of many awards including:

The Association of black cardiologists scholarship award for the best cardiology fellow in the U.S.;

The 2014 Mississippi Healthcare Heroes in the state of Mississippi;

He was also named one of Jackson, Mississippi's Best Surgeons;

Distinguished Physician Award as the First and Only combined heart and kidney specialist in the United States;

Distinguished Physician, Marquis Who's Who in America;

Patients Choice Recognition Award; and

Most Compassionate Doctor, New York.

Dr. Badero has authored many peer-reviewed journals and he is currently on the editorial board of the International Journal of Nephrology & Renovascular Disease.

He is a: 1) Fellow of the American College of Physicians; 2) Fellow of the American Society of Nephrology; 3) Fellow of the American Society of Diagnostic & Interventional Nephrology; 4) Fellow of the American Society of Nuclear Cardiology; 5) Fellow of the American College of Cardiology; and 6) Fellow of the Society for Cardiac Angiography & Interventions.

Dr. Badero is currently the Executive Director of Cardiac Renal & Vascular Asssociates.

Dr. Badero is on the global advisory panel of therapeutics experts on thrombosis and Artherosclerosis, Merck Pharmaceuticals U.S.A.

Outside of medicine, Dr. Badero is the assistant pastor of Vine Chapel Church in Jackson, Mississippi.

Mr. Speaker, I ask my colleagues to join me in recognizing Dr. Olurotimi J. Badero for his dedication to serving others.

## MICHAEL LINERT

### HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and applaud Michael Linert for his contribution to the 2015–2016 Veterans History Project documentary film produced by the students and faculty of Westminster High School in Westminster, Colorado.

The film, MEDIC!, highlights the stories of five brave veterans who served their country and their fellow veterans as combat medics. The Veterans History Project is a congressionally chartered project that works to collect, preserve and make accessible personal accounts of American war veterans. The stories of these veterans will forever be preserved in the Library of Congress American Folklife Center. As the director of orchestras at Westminster High School, Michael contributed a very moving original musical score—an invaluable addition to the project.

Michael enjoys a varied musical career as a cellist, countertenor, composer, and strings teacher. As a cellist, he has performed with the American Baroque Orchestra, Commonwealth Opera, QV Ensemble, and the Summer Rhapsody Symphony Orchestra. He performs recitals regularly and his compositions have premiered in the United States, Australia, and Colombia. He has also appeared as a vocal soloist with the Indianapolis Baroque Orchestra, Indianapolis Symphonic Choir Chamber Singers, Hartford Symphony Orchestra, Indiana University Opera Theater, and the Bloomington Bach Cantata Project. Additionally, he has performed with Ensemble Lipzodes at the XIV International Sacred Music Festival in Quito, Ecuador and as a member of the Carnegie Hall Chamber Chorus with the Tallis Scholars.

Michael received a Bachelor of Music in Cello Performance degree summa cum laude from The Hartt School, a Master of Science in Music Education degree from Indiana University, and will soon receive a Vocal Performance Diploma from Indiana University.

I extend my deepest appreciation to Michael Linert for his important contribution to the 2015–2016 Veterans History Project documentary film.

## PERSONAL EXPLANATION

### HON. ROBERT HURT

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. HURT of Virginia. Mr. Speaker, I was not present for Roll Call vote Number 298 on H.R. 5312. Had I been present, I would have voted "yes."

## RECOGNIZING THE 400TH ANNIVERSARY OF THE MAYFLOWER

### HON. BILL FOSTER

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. FOSTER. Mr. Speaker, I rise today to recognize an important anniversary in our nation's history. In 2020, the United States will celebrate the 400th anniversary of the arrival of Pilgrims at Plymouth, Massachusetts.

Today, descendants of the Mayflower live in nearly every district in the country, which is why I introduced the Mayflower Commemorative Coin Act. This bill will recognize the lasting significance of the Mayflower's arrival for our nation's history and authorizes the U.S. Treasury to mint coins in honor of the anniversary.

Coin bills are revenue neutral and are not a burden to taxpayers. Proceeds from the sale will go to the General Society of Mayflower Descendants, the Wampanoag Nation, and other non-profit organizations in Plymouth, which will benefit education, scholarship, and outreach programs to honor the history of the Pilgrims. This includes a 50 year peace treaty with the Wampanoag Tribe and the creation of the Mayflower Compact—one of our country's first examples of self-governance in the New World.

Mr. Speaker, the arrival of the Pilgrims remains an important symbolic moment in our country's history. I encourage all my colleagues to join me in recognizing this historic occasion.

## PATRICK LEE

### HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and applaud Patrick Lee for his contribution to the 2015–2016 Veterans History Project documentary film produced by the students and faculty of Westminster High School in Westminster, Colorado.

The film, MEDIC!, highlights the stories of five brave veterans who served their country and their fellow veterans as combat medics. The Veterans History Project is a congressionally chartered project that works to collect, preserve and make accessible personal accounts of American war veterans. The stories of these veterans will forever be preserved in the Library of Congress American Folklife Center. Patrick contributed to the project with a very moving original musical score—an invaluable addition to the project.

Patrick began playing piano in 1988 at the age of 7 and has played for the last 25 years, including professionally for the last 15 years. He earned his Bachelor's Degree in Jazz Piano in 2006 from CU Boulder. Patrick has played notable Colorado venues like Red Rocks, the Fox & Boulder Theatres, and the Fillmore and has played with bands including De La Soul, Victor Wooten, Thundercat, and Soulive. Patrick has also worked as a producer creating jingles for ESPN, Crocs, Showtime, and Details Magazine.

I extend my deepest appreciation to Patrick Lee for his important contribution to the 2015–2016 Veterans History Project documentary film.

## TRIBUTE TO MAYOR MARIA LOWE

### HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr. Speaker, I want to recognize Mayor Maria Lowe, the mayor of St. Pete Beach, who will be stepping down at the end of this year.

Mayor Lowe was elected in 2014. Prior to becoming mayor, she graduated from West Point, served in the Afghan War, and received her MBA from George Washington University. She is also an active member of our community serving as a full-time community volunteer, a systems engineer, a member of the Pass-a-Grille Women's Club, and part of the Historic Preservation Board.

She has decided that her time as Mayor has come to an end, and will be relinquishing her post at the end of this year. She will be working with her husband at the American Battle Monuments Commission, which tends graves of fallen soldiers worldwide. The headquarters are in Paris, so she and the family will be moving there, primarily maintaining the U.S. cemetery for military personnel near Normandy, France. While she will miss St. Pete Beach, she is very proud to be doing her patriotic duty.

Mr. Speaker, I want to thank Mayor Maria Lowe for her service to St. Pete Beach and Pinellas County. I also am proud that she will

continue to be doing a great service for us as a community and nation abroad. I ask that this body join me in recognizing Mayor Maria Lowe's accomplishments and we wish her the best of luck in her future endeavors.

## HONORING GLORIA COLEMAN DOTSON

### HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable public servant, Gloria Coleman Dotson.

Gloria Coleman Dotson grew up and lives in Claiborne County as the oldest of seven children of Curtis Coleman and Ethel Allen in the town Ulysses S. Grant said was ''Too Beautiful to Burn.'' She is a 1973 graduate of Port Gibson High School. She received her Bachelor of Science Degree in Business Education from Jackson State University in 1977.

After graduation, Ms. Dotson was employed by the Claiborne County Board of Supervisors in the Chancery Clerk's Office. She worked under the supervision of two Chancery Clerks: Mrs. Stella Jennings-Greenwood and Mr. Frank Wilson. She worked in the Chancery Clerk's Office for twenty-five years as Deputy Chancery Clerk prior to being elected Chancery Clerk in 2000. She is currently serving her fourth term as Chancery Clerk.

Ms. Dotson is a member of First Christian Disciples of Christ Church, a choir member and Sunday School Treasurer. She is involved in several civic organizations including: Port Gibson Main Street, MS Cultural Crossroad Board of Directors, Mississippi Delta Strategic Compact, a member of NAACP and the Chancery Clerk's Association.

Ms. Dotson has been married to Joe Dotson, Jr. for twenty-two years. They are the proud parents of three children: JaBari, JaNetra, and JoKevy. They have an eleven year old granddaughter, KaMeryal and a one year old grandson, KaMari.

The title ''Chancery Clerk'' does not adequately describe the various duties and responsibilities that Ms. Dotson has attendant to in the office. The Chancery Clerk's Office has a multitude of duties and functions which are governed by an assortment of statutes and court rules, along with following guidelines established either by the State Department of Audit or the Department of Finance and Administration. The Chancery Clerk's position is a four year elected term.

Ms. Dotson often states, ''I thank God for allowing me to serve as a Public Official. I love my job. When I'm not serving my constituents, I spend time with my family and friends, work in the yard and reading.''

Mr. Speaker, I ask my colleagues to join me in recognizing Gloria Coleman Dotson for her dedication and support to the Claiborne County Community.

## VANCE A. SILVIA, SERGEANT FIRST CLASS, UNITED STATES ARMY (RET.)

### HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and honor Vance A. Silvia, Sergeant First Class, United States Army (ret.), for his service to our country.

Sergeant First Class Silvia served in the United States Army and the Texas, Wyoming and Colorado Army National Guard from March 1998 through June 2009. As an Army Medical Specialist, Sergeant First Class Silvia had the opportunity to serve as a combat medic while on active duty in support of Operation Iraqi Freedom with service in Iraq and Kuwait.

Sergeant First Class Silvia participated in the 2015–2016 Veterans History Project documentary film produced by the students and Westminster High School in conjunction with our office. The film is part of the Library of Congress' Veterans History Project (VHP), a congressionally chartered project that works to collect, preserve and make accessible personal accounts of American war veterans. As a result, my office had the honor and privilege of getting to know Sergeant First Class Silvia and hearing about his experiences as a combat medic. Sergeant First Class Silvia's stories will be submitted to the Library of Congress to forever be preserved in our nation's history.

Sergeant First Class Silvia's courageous service has charted the path for future generations of men and women to serve in the military. I extend my deepest appreciation to Sergeant First Class Vance A. Silvia for his dedication, integrity and outstanding service to the United States of America.

## HONORING RANDY DAVIS

### HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor Mr. Randy Davis, who retires June 30, 2016 after 33 years in education in Missouri.

Mr. Davis began his career in Licking where he taught Social Studies and coached boys' basketball. He became principal of Salem High School and I am proud to say he was principal when I was a student there. He also coached girls' basketball. After that, he moved on to Potosi—first as the assistant superintendent for five years and then as superintendent for 13 years.

At Potosi, Assistant Superintendent Jamie Thompson said he took great pride in helping the school district become a vital part of the community. ''He told us to 'treat every child the way you would want your child treated,' '' she said. ''And, his big thing was to emphasize our school colors and say, 'Love Purple, but Live Gold!' ''

Shelly, his wife of 32 years said, ''Randy has loved making a difference in the lives of kids and setting the bar higher for the students and staff.'' I would agree, he made positive impacts on the futures of his students because he certainly impacted mine.

For devoting his life to the education of Missouri's students, it is my pleasure to recognize Mr. Randy Davis of Potosi before the United States House of Representatives.

## TRIBUTE TO JOHN ELIAS, TOWN ATTORNEY

### HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr. Speaker, I would like to acknowledge Mr. John Elias for his service to Pinellas County as a town attorney for Belleair Shores for 18 years.

Mr. Elias has worked for Belleair Shores since 1998. When he started, he was hired on a six-month trial period. Because of his exemplary work, his trial period was extended and he worked for the town for 18 years. He has proudly served Belleair Shores and its residents.

Mr. Elias is retiring in July after his years of service. He is known for his dedication and high morals and serves as a role-model for the town. I ask this body to join me thanking John for his service to us, and wishing him the best of luck in the future.

## LEON A. RODRIGUEZ, SERGEANT FIRST CLASS, UNITED STATES ARMY (RET.)

### HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and honor Leon A. Rodriguez, Sergeant First Class, United States Army (ret.), for his service to our country.

Sergeant First Class Rodriguez served in the United States Army from August 1955 through August 1975. As an Army Medical Specialist, Sergeant First Class Rodriguez had the opportunity to serve as a combat medic while on active duty in Vietnam.

Sergeant First Class Rodriguez participated in the 2015–2016 Veterans History Project documentary film produced by the students and Westminster High School in conjunction with our office. The film is part of the Library of Congress' Veterans History Project (VHP), a congressionally chartered project that works to collect, preserve and make accessible personal accounts of American war veterans. As a result, my office had the honor and privilege of getting to know Sergeant First Class Rodriguez and hearing about his experiences as a combat medic. Sergeant First Class Rodriguez's stories will be submitted to the Library of Congress to forever be preserved in our nation's history.

Sergeant First Class Rodriguez's courageous service has charted the path for future generations of men and women to serve in the military. I extend my deepest appreciation to Sergeant First Class Leon A. Rodriguez for his dedication, integrity and outstanding service to the United States of America.

## HONORING JACK HEALY AS HE RETIRES FROM MASSACHUSETTS MANUFACTURING EXTENSION PARTNERSHIP

### HON. JAMES P. McGOVERN

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. MCGOVERN. Mr. Speaker, I rise today to honor Jack Healy, President and CEO of the Massachusetts Manufacturing Extension Partnership (MassMEP), as he retires from a long and successful career in manufacturing.

For over 50 years, Jack has worked in various capacities within the manufacturing industry. Jack began his career with Squibb-Beech-Nut Inc., and continued his work at Lego Systems, Presmet Corporation, Wellesley Consulting Group, and MassMEP.

Notably, Jack served as a Senior Vice President of Lego Systems, where he co-founded the U.S. division and was responsible for the establishment and operation of Lego's U.S. based manufacturing operations. With the help of Jack, the Lego brand has become a household name in the United States.

As a founding Director of Operations for MassMEP, Jack has dedicated himself to helping small- and medium-sized manufacturers in Massachusetts identify and implement growth opportunities through advanced manufacturing and management practices. He's known as the ''voice of manufacturing'' in our Commonwealth, and is relied upon for his expertise in manufacturing competitiveness and workforce strategies.

During my time in Congress, I have had the pleasure of working with Jack and his organization on efforts to revitalize our manufacturing base and create good paying jobs in Massachusetts. Under his leadership, MassMEP has become a recognized leader in manufacturing competitiveness, helping to create thousands of jobs during its 17 year history. MassMEP has also developed an award-winning Mobile Outreach Skills Training (M.O.S.T) Program, which trains and recruits future workers with little or no prior manufacturing experience for entry level production jobs.

Jack has also been instrumental in numerous projects in my Congressional district and throughout Massachusetts. In particular, he has played a key role in the ''Manufacturing Our Future'' effort in Massachusetts, which has served as a catalyst for critical developments like Worcester's Gateway Park, and has led partnerships that bring together various stakeholders from industry, academia, and government to advance manufacturing competitiveness and create pipelines to careers in advanced manufacturing.

I wish Jack all the best as he retires from an incredible career, and know he will enjoy spending time with his wonderful wife, Hilda, his children, and his grandchildren. Jack has been an incredible partner in revitalizing the Massachusetts manufacturing base, and I'm proud to call him a friend.

I ask my colleagues to join me in recognizing Jack Healy's contributions to the Massachusetts economy and our country's manufacturing sector.

## HONORING MRS. LATONYA WILLIAMS-BRADLEY

### HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable entrepreneur, Mrs. LaTonya Williams-Bradley.

Strands of long, black locks fell effortlessly onto the floor as a pair of young eyes looked on eagerly—carefully observing the technique of the hands behind the shears that snipped away to create a new, edgy look.

Mrs. Williams-Bradley of Cleveland watched intently as her mother cut, washed and curled mane after mane, building a strong clientele at her Rosedale salon.

She remembers while sitting and observing her mother at her salon as a child, that she desired to follow in her mother's footsteps and become a hair stylist.

But, what she didn't know was that she would also become an agent, to help others do the same, as owner and CEO of Goshen School of Cosmetology in Cleveland, Mississippi.

As a single parent Mrs. Williams-Bradley received her cosmetology education at Coahoma Community College in Clarksdale, Mississippi, where she graduated in 2006.

After passing the state licensure to become a licensed cosmetologist, Mrs. Williams-Bradley returned to Coahoma Community College to further her cosmetology career to become a cosmetology instructor and completed that course of study in 2009. She was immediately offered the opportunity to become a cosmetology instructor at Coahoma Community College.

After working at Coahoma Community College she worked at Blue Cliff College in Gulfport, Mississippi as a cosmetology instructor.

During her tenure as an instructor she decided that it was time to pursue her dream of owning her salon and began researching entrepreneurship practices and opportunities, eventually, deciding it was time to pursue her dream of one day opening her own salon. In 2011 she opened Goshen Salon and Boutique in Cleveland, Mississippi. She chose the biblical name Goshen because it is a land of plenty, comfort and growth in Egypt. On July 29, 2013 she opened Goshen School of Cosmetology with a core curriculum and institution designed to promote growth, increase and comfort.

Now, what was once the dream of a little girl has become a reality. Mrs. Williams-Bradley has enjoyed substantial success in the exciting field of cosmetology. Where over the last nine years she owned and managed two successful hair salons while teaching at two colleges, inspired numerous students to strive for excellence and to achieve their maximum potential.

The motto she shares with others is ''Whatever is your passion and your heart's desire—pursue it and be the best at it and believe that there is nothing too hard for God.''

Mrs. Williams-Bradley is married to Tony Bradley and has four children: Teara, Tamaryea, Zira and Lauren. She is the daughter of Freddie and Barbara Graham and has two (2) siblings: Erica Jackson and Beauty Braham.

Mr. Speaker, I ask my colleagues to join me in recognizing an amazing entrepreneur.

## JOSHUA D. AGEE, SERGEANT, UNITED STATES ARMY (RET.)

### HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and honor Joshua D. Agee, Sergeant, United States Army (ret.), for his service to our country.

Sergeant Agee served in the United States Army and the Colorado Army National Guard from September 1999 to June 2009. During his service, he served in support of Operation Enduring and Iraqi Freedom, both in Kuwait and Iraq. As an Army Medical Specialist, Sergeant Agee had the opportunity to serve as a combat medic while on active duty, including his tour in Iraq.

Sergeant Agee participated in the 2015–2016 Veterans History Project documentary film produced by the students and Westminster High School in conjunction with our office. The film is part of the Library of Congress' Veterans History Project (VHP), a congressionally chartered project that works to collect, preserve and make accessible personal accounts of American war veterans. As a result, my office had the honor and privilege of getting to know Sergeant Agee and hearing about his experiences as a combat medic. Sergeant Agee's stories will be submitted to the Library of Congress to forever be preserved in our nation's history.

Sergeant Agee's courageous service has charted the path for future generations of men and women to serve in the military. I extend my deepest appreciation to Sergeant Joshua D. Agee for his dedication, integrity and outstanding service to the United States of America.

## CONGRATULATING THE FAIRFIELD MEDICAL CENTER

### HON. STEVE STIVERS

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. STIVERS. Mr. Speaker, I rise today to congratulate the Fairfield Medical Center, located in Lancaster, Ohio, as it celebrates its 100th Anniversary.

The Fairfield Medical Center has followed its historic mission to provide the best care to all, while serving as a foundation for year-round community efforts to encourage healthier lifestyles. The Fairfield Medical Center's commitment to promoting the well-being of all of southeastern Ohio can be seen in the useful health information it provides to members of the community, its all-inclusive appeal, and its strong advocacy for members of the community who have mental or physical disabilities.

On October 10, 1916, The Lancaster Municipal Hospital opened its doors for the first time on 10 acres just outside of the city's limits. At the time of the hospital's opening, there were 36 beds and 10 bassinets to serve the city of approximately 15,000 people. As the hospital

grew, it changed its name to the Fairfield Medical Center to reflect its role as the leading medical institution both in the county and throughout southeastern Ohio, a role it still serves as the county's largest employer.

Today, the Fairfield Medical Center has gained increased recognition for its excellence in healthcare and treatment. Now with over 200 beds and multiple affiliate locations in Fairfield County, the Fairfield Medical Center offers a variety of premier services to the people of southeastern Ohio, including oncology care, cardiovascular surgery, obstetrics, orthopedics, therapy, and emergency services.

Throughout its history, the Fairfield Medical Center has been unwavering in the promotion of the health of the community. I would like to thank the Fairfield Medical Center for its dedication to serving the community for 100 years.

## CONGRATULATING THE GREEK ORTHODOX PARISH OF LOUDOUN COUNTY ON THEIR 10TH ANNIVERSARY

### HON. BARBARA COMSTOCK

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mrs. COMSTOCK. Mr. Speaker, I am pleased to extend my congratulations and best wishes to the members of the Greek Orthodox Parish of Loudoun County as they celebrate their 10th anniversary this year.

What an incredible journey of faith and dedication it has been for them. Ten years ago, a few courageous people started reaching out Greek families in the phone book and before long a dynamic new community had been established in Loudoun County. Today, this community has a membership of more than 150 families who are participating in 20 different ministries.

Not only has the Greek Orthodox Parish of Loudoun County been a source of spiritual support and development for its own members, it has also been a blessing to other residents of Loudoun County through its support of charitable projects such as the Good Shepherd Alliance, the Loudoun Abused Women's Shelter, the Loudoun County Youth Shelter and the Twin Oaks Assisted Living Center, whose residents enjoy the special Christmas visits of parish members.

Another important contribution of the parish to the larger community is the ''Taste of Greece'' festival. Our understanding of the contribution of Hellenic culture and heritage to our national culture is enhanced through the wonderful food, music, and history that the members of the parish share with others at this annual festival.

I have learned from parish leaders that their plans for the next ten years are just as ambitious as the last decade, culminating in the building of a permanent place of worship in Loudoun County. As their representative in Congress, I offer my prayers and personal best wishes as they embark on this important journey.

Mr. Speaker, I ask that my colleagues join me in congratulating the members of the Greek Orthodox Parish of Loudoun County as they continue to be a source of inspiration and support for our community.

## ANGELA M. MILLER, SERGEANT, UNITED STATES ARMY

### HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and honor Angela M. Miller, Sergeant, United States Army, for her service to our country.

Sergeant Miller served in the United States Army and the Iowa and Colorado Army National Guard from February 2003 through December 2012. As an Army Medical Specialist, Sergeant Miller had the opportunity to serve as a combat medic while on active duty, supporting Operation Enduring Freedom in Iraq.

Sergeant Miller participated in the 2015–2016 Veterans History Project documentary film produced by the students and Westminster High School in conjunction with our office. The film is part of the Library of Congress' Veterans History Project (VHP), a congressionally chartered project that works to collect, preserve and make accessible personal accounts of American war veterans. As a result, my office had the honor and privilege of getting to know Sergeant Miller and hearing about her experiences as a combat medic. Sergeant Miller's stories will be submitted to the Library of Congress to forever be preserved in our nation's history.

Sergeant Miller's courageous service has charted the path for future generations of men and women to serve in the military. I extend my deepest appreciation to Sergeant Angela M. Miller for her dedication, integrity and outstanding service to the United States of America.

## HONORING REVEREND THOMAS H. PEOPLES, JR.

### HON. ANDY BARR

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. BARR. Mr. Speaker, I rise to honor a very special man, Reverend Thomas H. Peoples, Jr. He serves as pastor of Historic Pleasant Green Missionary Baptist Church in Lexington, Kentucky.

Reverend Peoples has led this wonderful congregation, which numbers over 1,300 members, for the past thirty-seven years. Historic Pleasant Green Missionary Baptist Church was founded in 1790 and is the oldest African-American active congregation west of the Allegheny Mountains. Rev. Peoples is the eighteenth minster to serve the church. Under his leadership, the church has grown in membership and in its community outreach. Reverend Peoples is greatly loved and respected by his congregation and by the Lexington community.

Reverend Peoples is a native of Lexington. He is a graduate of Paul Laurence Dunbar High School and Simmons Bible College.

Reverend Peoples has been married for fifty-three years to Delma Bennett Peoples. They are the proud parents of five children, including three sons in the ministry. They also have numerous grandchildren and a great-grandchild.

Through the ministry of this good Christian man, many people have come to know Jesus Christ and serve Him through Historic Pleasant Green Missionary Baptist Church and beyond. Countless lives have been changed by this man of God and the world is a better place because of his ministry. It is my sincere honor to recognize him before the United States House of Representatives.

## PERSONAL EXPLANATION

### HON. J. RANDY FORBES

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. FORBES. Mr. Speaker, I was unable to cast my vote yesterday for two pieces of legislation. Had I been in the chamber I would have voted YES on the United States-Caribbean Strategic Engagement Act, H.R. 4939 and YES on the Networking and Information Technology Research and Development Modernization Act, H.R. 5312.

## TRIBUTE TO ITWOMEN GROUP OF TAMPA AND GIRLS INC OF PINELLAS AFTER SCHOOL ENRICHMENT PROGRAM

### HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr. Speaker, I would like to recognize a non-profit organization striving to make a difference in the technology and engineering fields for girls and women. The ITWomen Group of Tampa looks to provide all of the necessary support for females who want to pursue a career in technology.

The national organization was started in 2002 by senior level women from several technology companies. Their goal was to provide professional development, support, education, and scholarships to girls and women looking to break into technology and engineering fields. By working with non-profits, universities, various sponsors and organizations, they are successfully closing the gender gap in a field generally dominated by men.

The ITWomen of Tampa Bay is a new branch and is increasing their influence in Pinellas County and by partnering with Girls Incorporated of Pinellas After School Enrichment Program. The Girls Incorporated of Pinellas works to make sure our sisters, daughters, friends, family, and neighbors will become the leaders of tomorrow by providing them with programs that promote female empowerment. Their combined goal is to inspire girls in our community to confidently strive towards a career in technology.

Mackenzie Baird, a high school sophomore from our community who is hoping to pursue a career in technology, works with ITWomen of Tampa Bay and the Girls Incorporated of Pinellas After School Enrichment Program. In her free time, she helps mentor and educate younger elementary school girls about computer programming as well as the role of women in the technology sector. She is an exceptional young woman and I wish her luck in her future endeavors.

Mr. Speaker, I would like to acknowledge and thank the ITWomen of Tampa and Girls Incorporated of Pinellas After School Enrichment Program for working hard to achieve equity in fields of engineering and technology. Their spirit and passion inspires our community, and ask that this body join me in thanking them for their efforts.

## HONORING THE SERVICE OF FRANK HART, JR.

### HON. ANDY BARR

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. BARR. Mr. Speaker, I rise to honor a great American, Frank Hart, Jr. Mr. Hart was born in 1926 in Sharpsburg, Kentucky. While a student at Sharpsburg High School in January of 1944, he enlisted as a reserve in the U.S. Army Air Corps. He graduated in May of 1944.

Mr. Hart entered the U.S. Army Air Corps for active duty on August 8, 1944. He was in training as an aviation cadet, but was physically unable to serve. He then volunteered for gunnery school and was shipped to Florida for training. As a new corporal, he was sent in June of 1945 for training on a B–29 bomber crew as a ''Right Scanner'' on an Overseas Training Unit. The training was to end on August 21 and all crews were set to be sent overseas. August 14 was V–J Day and the war with Japan ended. Mr. Hart was promoted to sergeant and later earned another stripe as staff sergeant. Mr. Hart was discharged at Ft. Leavenworth, Kansas on June 26, 1946.

Following his time in the U.S. Army Air Corps, Mr. Hart enrolled in the University of Kentucky along with many other veterans. The legendary coach Paul ''Bear'' Bryant began his first year at the University of Kentucky that same year.

Mr. Hart married Beulah Moore in 1947 and began his farming career. They have been married more than sixty eight years and have two adult children, three grandchildren, and a new great-grandchild.

Mr. Hart, now retired, farmed and raised tobacco crops for fifty years. He also worked in highway construction, ran a service station, and worked at the Lexington Bluegrass Army Depot.

As a part of the Greatest Generation, Mr. Hart is to be commended for his service to his country. Because of his willingness to sacrifice, and the willingness of his fellow men and women in uniform, our freedoms are secured. Mr. Hart truly is an outstanding American and an inspiration to us all. I am proud to recognize his service before the United States House of Representatives.

## RECOGNIZING RICHARD (DICK) L. ROYER

### HON. STEVE STIVERS

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. STIVERS. Mr. Speaker, I rise today to recognize Richard (Dick) L. Royer, who passed away on May 27, 2016 at the age of 77. Royer was an MAI appraiser and realtor who also served as President of the Columbus Realtors, The Ohio Association of Realtors, and the Columbus Rotary Club for significant portions of his lifetime.

Royer was born in 1938 in Canton, Ohio, where he attended Canton Lehman High School. He earned his degree from The Ohio State University College of Business in 1962, and soon after, joined the real estate company Kohr and Kohr where he would spend his entire business career. Over 50 years later, the firm still operates today as Kohr, Royer, Griffith Inc. (KRG). Royer's service to the real estate industry in Columbus was fueled by his love for the city.

Outside of KRG, Royer held many offices and board positions over the years. He served as President of the local Appraisal Institute Chapter and was an active member at the King Avenue United Methodist Church in Columbus. Royer was a resident of the suburb Upper Arlington, which he cherished as his home and held as high in his heart as he did the City of Columbus.

There is no doubt of the enormous legacy Dick Royer has left behind on the real estate industry and the greater Columbus community. I'm extremely grateful for his service to our city and state.

## PERSONAL EXPLANATION

### HON. JOHN A. YARMUTH

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. YARMUTH. Mr. Speaker, I unfortunately was unable to be present for several votes taken on the House floor on June 10, 2016, missing Roll Call Vote Number 289 through Number 296. Had I been present, I would have voted in the following manner:

Roll Call Number 289: YEA, Roll Call Number 290: NAY, Roll Call Number 291: YEA, Roll Call Number 292: NAY, Roll Call Number 293: YEA, Roll Call Number 294: NAY, Roll Call Number 295: NAY, Roll Call Number 296: NAY.

## HONORING COLONEL LEE HUDSON

### HON. ANDY BARR

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. BARR. Mr. Speaker, I rise to honor a very special individual, Colonel Lee Hudson. He currently serves as commander of the Blue Grass Army Depot in Richmond, Kentucky and is retiring from military service following a long and distinguished career.

Colonel Hudson was commissioned as a Second Lieutenant of Infantry in 1990 following completion of a BS degree from Auburn University. He holds an MBA from Hawaii Pacific University and a Master's degree in National Security Strategy from the National War College.

Colonel Hudson has served our nation in many leadership positions over his career, including Commander of the 1st Special Forces Group (Airborne) Support Battalion from 2008–2010 and Commander of the Mission Support Element, United States Army Office of Military Support from 2010–2012, supporting strength-of-force and counterterrorism missions in Iraq, Afghanistan, Philippines, and North Africa. It has been my honor to know him as Commander of Blue Grass Army Depot in Richmond, Kentucky, where he has led in an exemplary manner and his service is greatly appreciated by the community.

Colonel Hudson's awards and decorations include: Bronze Star Medal; Defense Meritorious Service Medal; Meritorious Service Medal; Joint Service Commendation Medal; Korea Defense Service Medal; Army Commendation Medal; Iraq Campaign Medal; Global War On Terror (GWOT) Service Medal; and Master Parachutist, Ranger, Pathfinder, and Air Assault Badges.

Colonel Hudson is to be commended for his service, dedication, and loyalty to our nation through his years of leadership in the United States Army. I join with a grateful nation in thanking him and wishing him the best in the years to come. It is my honor to recognize this great American before the United States House of Representatives.

## TRIBUTE TO OFFICER CATHI LONG

### HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr. Speaker, I would like to recognize a member of the Clearwater Police Department who was named our 2016 School Resource Officer of the Year for Pinellas County Schools. Officer Cathi Long was awarded this great honor on May 17, 2016 for her devotion to students living in our community.

Officer Long has been a member of the Clearwater Police Department since 2004 and has served as a School Resource Officer for Countryside High School since 2013. During that time, she has been a part of multiple school initiatives including Teen Court and Students against Drunk Driving. She is a hero to the families of our community.

Officer Long has also used her own personal time to help mentor seniors who are struggling to graduate and is instrumental in the coordination of the Operation Graduate program that helped at-risk students plan for their future. Additionally, the Teen Court initiative that she is a part of helps students defer from the judicial system and potentially avoid permanent marks on their records.

Officer Long is known to her students as a ''Second Mom''. Recently she received a letter from a student thanking her for always being there for guidance and support. Additionally, a hallway banner created by the students has been hung up above lockers to honor Officer Long for what she does. She is a role model for her students and Pinellas County.

Mr. Speaker, I want to thank and recognize Officer Long for being an inspiration to our kids and for being a caring and supportive individual in our community. I am proud to have her in our Clearwater Police Department. I ask that this body join me in recognizing the efforts of Officer Long as she continues to help students within our community.

## FCC STB RULE IMPACTS ON SMALL PROVIDERS

### HON. KURT SCHRADER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. SCHRADER. Mr. Speaker, I rise today to share my deep concern with the Federal Communications Commissions (FCC) proposed rules on set-top-boxes. On May 5th, I along with Rep. CRAMER (R–ND) and 58 of our House colleagues sent a letter to Chairman Wheeler at the FCC. That letter focused on the burdens these rules would impose on small cable operators.

I've heard from several of my rural cable operators, and they are worried the FCC is failing to fully understand the impact these rules will have on small providers. Many of them will spend over a $1 million per system in order to comply with these rules, diverting resources that would otherwise be spent investing in broadband. Furthermore, it is estimated these costs could cause as many as 200 cable operators nationwide to go out of business or simply exit the video market place.

We all support and want to encourage increased innovation and competition. In fact, many small operators are heavily investing in upgrading their existing networks to provide faster high-speed broadband. They also support innovative boxes from TiVo and apps that work on Roku boxes.

The Small Business Administration Office of Advocacy agrees the proposal ''will be disproportionately and significantly burdensome'' for small cable operators. The SBA went on to say the ''FCC has not adequately attempted to quantify or describe the economic impact of its proposed rules'' nor did the FCC make ''any attempt to explain what kinds of costs small operators might incur in order to comply'' with the rule. Mr. Speaker, it is inconceivable to me that the FCC would propose new rules and seek to impose new regulations without fully understanding the economic impacts of their actions—especially when it comes to the many small rural providers in my district.

Recognizing the burdens these new rules would have on small providers, consumer groups like Public Knowledge and innovative companies like TiVo support taking a different approach with small operators. I urge the FCC to reconsider imposing these rules on small operators because of the tremendous burden it would impose on them. If these new rules cause operators to go out of business or limit video services the Commission may end up hurting the very people they are seeking to help and that's the consumer.

## HONORING THE CITY OF CARLISLE, KENTUCKY

### HON. ANDY BARR

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. BARR. Mr. Speaker, I rise to honor the City of Carlisle, Kentucky as it celebrates its bicentennial. The City of Carlisle was founded in 1816 as the county seat of Nicholas County, Kentucky. Carlisle has rich history and its citizens are very proud to call Carlisle home. They have done a wonderful job preserving several historic buildings and keeping the history of the community alive.

I always enjoy visiting Carlisle and Nicholas County, where the people are friendly, hard-working, faith-centered, and family-oriented. I congratulate all the citizens of Carlisle on the two-hundredth anniversary of their town's founding and I wish them the best for the future. It is my honor to recognize the occasion before the United States House of Representatives.

## OUR UNCONSCIONABLE NATIONAL DEBT

### HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $19,218,850,296,387.20. We've added $8,591,973,247,474.12 to our debt in 6 years. This is over $7.5 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

## TRIBUTE TO CHILDREN'S DREAM FUND

### HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr. Speaker, I would like to congratulate the Children's Dream Fund on their 35th anniversary.

The Children's Dream Fund was established in 1981 as the Suncoast Children's Dream Fund. Franise Geringer, a small South African boy with aging disease, had a dream to meet his hero, Pinocchio. The Sunshine City Jaycees of St. Petersburg raised funds for the family to visit Disneyworld and any excess funds raised would go to the family. However, the family denied the extra funds and instead chose for the money to go to helping other children.

After twenty years, the Suncoast Children's Dream Fund was renamed to the Children's Dream Fund. It now serves children in West Coast Florida who are referred to by neighboring children's hospitals. It helps children between ages three and eighteen with life threatening diseases and has fulfilled over two thousand dreams. These dreams range from a celebrity meet, a trip, a gift, or most frequently, a week at the Give Kids the World Village in Kissimmee.

Mr. Speaker, I want to recognize the Children's Dream Fund for their excellent work over the past 35 years. They have given hope to so many kids and their families in Pinellas County and West Central Florida. I ask that this body join me in recognizing their efforts.

## HONORING FATHER JIM SICHKO

### HON. ANDY BARR

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. BARR. Mr. Speaker, I rise to honor a very special individual, Father Jim Sichko. He has served as Pastor of St. Mark Roman Catholic Parish in Richmond, Kentucky for the past twelve years. He leaves Richmond soon to begin a one-year appointment from Pope Francis as a Missionary of Mercy.

Father Sichko is the youngest of five children. He received an undergraduate degree in vocal performance from the New England Conservatory of Music and performed as an opera singer before deciding to enter the priesthood. He studied theology at Sacred Heart School of Theology and was ordained into the Ministerial Priesthood of Jesus Christ on May 23rd, 1998.

As pastor of St. Mark's Parish, Father Sichko is well known for his storytelling. He travels throughout the United States and presents retreats, missions, and days of recollection. He once disguised himself as a homeless man as part of his ministry. He authored a book entitled ''Among Friends.'' Father Sichko has invited many celebrities to his parish for fundraising events over the years, including Dolly Parton, First Lady Laura Bush, Donnie Osmond, and, most recently, Jay Leno.

Father Sichko has made quite a difference in his parish and in the Richmond community. He will be greatly missed and I wish him well as he leaves to serve God in a different role. I am proud to recognize and honor him before the United States House of Representatives.

## PERSONAL EXPLANATION

### HON. MAC THORNBERRY

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. THORNBERRY. Mr. Speaker, on Monday, June 13, 2016, because of airline delays I missed roll call votes No. 297 ''To increase engagement with the governments of the Caribbean region, the Caribbean diaspora community in the United States, and the private sector and civil society in both the United States and the Caribbean, and for other purposes'' and No. 298 ''To amend the High-Performance Computing Act of 1991 to authorize activities for support of networking and information technology research, and for other purposes.'' Had I been present, I would have voted ''yes'' on both bills.

## PERSONAL EXPLANATION

### HON. TULSI GABBARD

OF HAWAII

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Ms. GABBARD. Mr. Speaker, on June 9, 2016, I was unavoidably detained due to a traffic accident and was unable to record my vote for roll call No. 283. Had I been present, I would have voted ''nay'' on consideration of the resolution.

## RECOGNIZING MISSOURI TALK RADIO HOST WARREN KRECH ON HIS RETIREMENT

### HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. LUETKEMEYER. Mr. Speaker, I rise today to honor a constituent of mine, Mr. Warren Krech. ''Mr. Jefferson City'', has retired after 30 years in Jefferson City radio and over 40 years in the radio industry. Warren most recently spent his time entertaining listeners as the morning news and talk host on KWOS News Radio 950.

A native of South Dakota and graduate from the University of Minnesota, Mr. Krech found his love of radio while serving in the United States Army—specifically with the American Forces Radio & TV in East Africa. Warren and his family moved from Wisconsin to Jefferson City, Missouri in 1984. When Mr. Krech moved to Missouri, he worked for Frank Newell at KJMO. While some consider broadcasting to be a nomadic business, Warren wanted to settle his then young family in the Jefferson City community.

Throughout his radio years, Mr. Krech sat in the DJ chair, but found his niche when he was able to enter talk radio format. For 23 years, Warren has worked with John Marsh at KJMO and KWOS. During Operation Desert Storm, Mr. Krech and John Marsh, hosted a ''Tape from Home'' at the local mall where people could come record their comments for friends and family who were serving in the military.

Mr. Krech is the current and three time winner of the News Tribune's ''Readers' Choice'' award for favorite local radio personality. Additionally, Warren is an active local emcee and speaker for charities including: Samaritan Center, Special Olympics, and Heart Association. Mr. Krech has been host of the Jerry Lewis MDA Telethon for 13 years on KOMU–TV.

With this retirement, Mr. Krech will now be able to spend more time with his wife, Marcia, who is a retired Jefferson City teacher. He has a daughter, Sarah, who lives in St. Louis and a son, Ben, who lives in Washington, DC. Warren also enjoys the St. Louis Cardinals, running, cycling, gardening, and his two cats.

I ask you in joining me in recognizing Mr. Warren Krech on his retirement. His commitment to the radio industry and his local community makes this a commendable accomplishment.

## TUESDAY'S IN TEXAS: RED ADAIR

### HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. POE of Texas. Mr. Speaker, born the son of an Irish blacksmith in Houston, Paul Neal Adair, commonly known as ''Red'' started his long service as a fire fighter in World War II with the 139th Bomb Disposal Squadron. While enlisted, he was sent across Japan to find undetonated bombs and safely disarm them. However, it wasn't until after his service in the Army that he became renowned for his bravery and skill as a fire fighter.

He began working under Myron Kinley, a pioneer and innovator in oil-well firefighting. Adair worked diligently to learn the many new inventions and techniques Kinley had created, and by 1959 he was ready to strike out on his own. He founded the Red Adair Co., a private company solely devoted to fighting large scale oil fires, and over the course of his career he put out more than two thousand of these fires, both on land and on offshore platforms.

In November of 1961, a particularly large fire, nicknamed the ''Devil's Cigarette Lighter,'' broke out in the middle of the Algerian Sahara. Mr. Speaker, the flame was over four hundred and fifty feet high. Despite best efforts, the fire burned continuously, with no end in sight. That was, until Adair and his crew were called to the scene.

Driving a modified bulldozer right up to the well where the fire was burning, Adair was able to get a large nitroglycerin charge into the well, allowing the explosion to displace enough oxygen that the monster of a fire was finally extinguished.

His feats in the Sahara gained him and his crew a reputation worldwide. They additionally helped with a large gas leak off the coast of Australia, and contributed to capping the biggest oil well blowout to have ever been recorded in the North Sea.

Even in 1991 at the age of seventy-five, Adair took part in the extinguishing of countless oil well fires that were set by Iraqi troops in Kuwait during the Gulf War. Soon after he retired, he sold his world famous company. His top employees went on to form their own company, the International Well Control. His great courage and success in his field led to a John Wayne movie called ''Hellfighters'' to be made, which was loosely based on his encounters in the Sahara. In 2004, at the age of eighty-nine, Paul Adair passed away, but both his men and many others will remember him as a pioneer in firefighting who not only saved many cities from millions of dollars in damages from these large scale oil fires, but also thousands of lives.

And that's just the way it is.

## 75TH ANNIVERSARY OF WAPPAPELLO LAKE AND DAM

### HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor the 75th anniversary of Wappapello Lake and Dam in Wayne County, Missouri. Lake Wappapello hosts 2.5 million people annually and has made an incredible impact on its surroundings.

Senator John Overton proposed the Wappapello Lake and Dam project in June of 1936. The U.S. Army Corps of Engineers began the project in 1938 and completed Wappapello Lake and Dam in 1941. It was constructed along the St. Francis River in order to provide flood control and hydroelectricity to southeastern Missouri.

Wappapello Lake is one of five man-made lakes in the St. Louis District and is one of the nation's oldest Corps of Engineers projects. The project includes 44,000 acres of land and water, providing ample opportunity for water recreation. With largemouth bass, white bass, channel catfish, crappie, and bluegill atop the list, fishing is a great pastime for lake goers. Lake Wappapello State Park is located on the edge of the lake and is run by the Missouri Department of Natural Resources. The 1,854-acre State Park offers fishing, swimming, picnicking, and, lodging as well as trials for horseback riding, all-terrain biking, and backpacking. The park also offers camping with both modern and traditional, rustic campgrounds.

For the special place it holds in the hearts and lives of many in the community, as well as its place as a landmark in Wayne County, it is my pleasure to recognize the 75th anniversary of Wappapello Lake and Dam.

## PERSONAL EXPLANATION

### HON. PETER WELCH

OF VERMONT

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. WELCH. Mr. Speaker, I was unable to vote on Roll Call 283. I would like to indicate that I would have voted ''Nay'' on Roll Call 283 had I been there.

## MARITIME PIRACY AND PIRATES

### HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. POE of Texas. Mr. Speaker, when the word pirate comes to mind, many envision treasure seeking ruffians with eye patches. Unbeknownst to most of us, pirates still exist: lurking the coast of East Africa, specifically Somalia and Kenya, the Gulf of Aden, the Gulf of Guinea, The Malacca Strait, and the Indian subcontinent. Pirates today, however, can do more damage than forcing a poor fellow to walk the plank. Regions plagued by poverty and extreme terrorism have raised a whole new breed of manipulative, violent, maritime hijackers who will stop at nothing to achieve their goals. Modern piracy is not simply a matter of economic loss or threatened safety, but a risk to the entire globe due to the close-knit ties pirates have with terrorists.

All eyes of the international community were suddenly turned to the coast of Somalia when pirates hijacked a Russian supertanker full of oil and army tanks. What did the American government do? Nothing. Nothing that is, until the unimaginable happened. A U.S. cargo ship was openly attacked by pirates, and the captain was held as ransom for several days. Since then, efforts have been taken to defend ships from maritime crime, such as legalization of weapons on board for commercial shipping vessels. Is this passive defense enough? When analyzing the cost of insurance, freight, rerouting, and ransoms, the price we pay to watch these pirates roam the high seas ranges to as high as $16 billion a year. Yet there are far greater non-monetary costs awaiting us in the future. If a ship is attacked at just the right place, it could result in the closure and seizure of invaluable international waterways.

Though many pirates have different motives than terrorists, terrorist tactics are frequently

used in hijackings. Both terrorists and pirates traumatize civilians and prey off of fear. As of now there is no international community specifically designated to prevent piracy like there is for terrorism, simply because the legal jurisdiction of piracy is in question. What we all should agree on, however, is that maritime piracy is a devastating form of terrorism.

The topic of most apprehension is the proven fact that modern pirates fund terrorist groups. Whether taken by force or friendship from the pirates, Al-Qaeda now possesses around 15 cargo vessels. Confiscation of vessels hasn't been the only recent breach in maritime security. Thanks to unobstructed leadership of Somali pirates, we've experienced an increase in maritime trafficking of narcotics, people and illicit goods, and arms proliferation. The evidence shows that maritime terrorism has recently gained the attention of most terrorist groups. Large and heavily loaded commercial vessels, offshore gas rigs, and maritime hub ports are easy shots for maritime terrorists, who seek mass destruction of human life, infrastructure, and nature.

Though piracy off the Somalia coast has recently decreased, it has caught flame and prospered in other regions of Africa, such as the waters of Guinea and Nigeria. Squashing these pirates once and for all is easier said than done. They do not proudly announce their presence on the sea, but rather use silence and stealth to steal an average of $5,000 to $15,000 per ship. Some of these raids are exceedingly violent, while others are bloodless. In both terrorism and maritime piracy, there must be extensive planning, and those involved must be willing to sacrifice their lives.

Our friends in England recently recognized a dire loophole in worldwide attempts to combat terrorism. Since 2010, the international community has poured billions into the hands of pirates as ransom for the release of vessels and crew. These pirates are not necessarily terrorists themselves, yet many have direct connections to major terror groups. We can be sure that piracy has summoned nearby terrorist groups with the scent of money and the bribe of civilian fear. Maritime piracy is now used as the ever-prosperous bank for terrorists. Great Britain understands this and is in the midst of editing a bill which prohibits all forms of ransom payments to terrorists.

Somali pirates appear to give the ransoms from their pirated material to al-Qaeda. There is no doubt that piracy could not only fund, but also be used as a form of terrorism or for political purposes, especially because of the unusual amount of security breaches easily accessible on ports and at sea compared to land. Take for example al-Qaeda's attack on United States. It only took two men in a tiny boat to kill seventeen U.S. citizens and injure 39 more, just by placing a shape charge against the hull of the USS *Cole* while it was refueling at a Yemeni port.

We must ensure the future does not hold a pirate-terrorist group merger. This event would spin to a halt all anti-terrorism efforts. Al Shabaab and al-Qaeda are difficult and resilient as it is, but imagine these groups with access to strategic waterways, billions of dollars, high grade ships in their grasp, and American captives at their disposal. Debate on the floor of the House has found, Piracy is "Booming without any credible deterrence, without the type of deterrence you saw at one point in time from the British navy or from the U.S. fleet. As we speak, there are 27 vessels and 449 hostages being held by Somali pirates" Yet nothing substantial is done.

Though many ships are now well-armed, piracy continues without hiccup. It's time the United States takes some action and put these outlaws in the high seas out of business and send them to Davy Jones' locker. An estimated $160 million was paid as ransoms to pirates in one year alone. Using a private navy is almost as drastic of a cost. So, the question is: what should we do? One of the most considered solutions is that of modern privateering. Privateers as defined by international law are "vessels belonging to private owners, and sailing under commission of war empowering the person to whom it is granted to carry on all forms of hostility which are permissible at sea by the usages of war." Privateers will be given the opportunity to disable dangerous non-state enemies, and in the process, create revenue. This is not a hard decision. It's a win-win.

The U.S. military has used a form of privateering in the past certain types of air combat and warfare. In fact, in the 1930's, the U.S. Navy bought blimps from—and hired—a private company, Goodyear Tire and Rubber Company, to build a fleet of airships and blimps. These blimps were previously used for advertising, yet the Navy used these simple civilian mechanisms to help defend the country.

In the past, the problem of piracy was largely wiped out due to privateers. The privateers, though used as a sort of political pawn, were extremely successful and motivated. In a system of capitalism, it's important to consider all parties, and the relationship in which each benefits another. If privateering and letters of marque were used by the United States government today, the government would gain a significant amount of hegemony, credibility, and sea power. The privateering ship owners would receive rewards or payments in return for the seized pirate ships, as well as a higher safety and low insurance prices. Maritime piracy is indeed a threat that, if not soon stopped, will lead to increased terrorism and economic disaster.

In my Congressional office, we employ interns to help with writing and tasks around the office. One of our interns, Rachel Jones, researched this issue regarding piracy on the open seas. Her help this summer was valuable and I thank her for all of her work and assistance. I wish Rachel luck in her future endeavors and with the rest of her time at my alma mater—Abilene Christian University.

And that's just the way it is.

## WHAT KIND OF HISTORY SHOULD WE MAKE?

### HON. TERRI A. SEWELL

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Ms. SEWELL of Alabama. Mr. Speaker, today on this Restoration Tuesday, I rise to acknowledge the continued voter suppression around the country during this election year and the ongoing battle for protection of the constitutional right to vote.

This Restoration Tuesday is particularly special, as it is the last primary vote. At the closing of the polls, we will officially be embarking on the first general election in 50 years without the full protection of the Voting Rights Act of 1965.

Countless Americans gathered together in the years up to the passing of the historic legislation that banned discrimination in voting polls, and solidified voting equality. Backpedaling into times of racial disparity in the voting process is a dangerous course of action that we should refrain from venturing into. We are currently defacing the legacy of those who gave up their lives in order to secure equal representation in the voting booth.

It is imperative that we rally together and Restore The Vote. We cannot allow this presidential election to greet us without being protected against those who wish to slant the election through harsh voting laws. It is the right of every eligible American to cast a ballot in the favor of their interests without hurdles being placed in their path. Through the passage of the Voting Rights Advancement Act of 2015, we will be able to complete the order handed down to us by the Supreme Court of the United States. We will be able to recreate the safe haven in voting, where everyone feels entitled and able to exercise their democratic right. I ask my colleagues to join me in support of the Voting Rights Advancement of 2015 so that we can make the democratic process democratic again.

## TRIBUTE TO EMERGENCY MEDICAL SERVICE WORKERS

### HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr. Speaker, I would like to recognize the emergency medical service (EMS) workers of Pinellas County for their hard work and sacrifice.

From May 15th to May 21st we recognize the importance of our EMS workers who sacrifice every day to provide the emergency care our community needs.

EMS workers put their lives on the line for the people of Pinellas County. City Council Member Jerry Beverland's son was recently saved by his local EMS team who were on the scene within four minutes of his call for help. It is only right that EMS workers get the recognition they deserve for their dutiful efforts.

Several members of our local emergency response teams received awards for their efforts. Aaron Gonzalez, a Fire Rescue administrator for Oldsmar, accepted the EMS Week Award, and Chris Collins, who has been a Sunstar paramedic for two years, was recognized as Paramedic of the Year. Nick Eberhardt won the Emergency Medical Technician of the Year award, and Eric Fayad was named Emergency Medical Dispatcher of the Year. He also works fulltime as a lieutenant for the Seminole Fire Department.

Mr. Speaker, I want to thank and acknowledge these award winning emergency response workers who sacrifice their time and lives for the residents of Pinellas County. Their work makes our community a better place, and I ask that this body join me in recognizing our EMS teams of Pinellas County for their exceptional work.

## CELEBRATING 100 YEARS OF THE GIRL SCOUT GOLD AWARD

### HON. DONALD M. PAYNE, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. PAYNE. Mr. Speaker, I rise today to congratulate Girl Scouts of the USA for 100 years of making meaningful and lasting change in their communities and around the world through the Gold Award.

Girl Scouts who pursue the Gold Award—the highest award in Girl Scouting—aspire to transform ideas into action.

Young women who earn their Gold Award are true leaders, dedicated to civic engagement and community empowerment.

Since 1916, approximately 1 million Girl Scouts have earned this prestigious award or its equivalent.

Girl Scouts builds girls of courage, confidence, and character.

They build true leaders, in fields as diverse as business, medicine, and politics.

As Juliette Gordon Low, the founder of Girl Scouts said, ''Scouting rises within you and inspires you to put forth your best.''

I am pleased to join Girl Scouts as they celebrate 100 years of the Girl Scout Gold Award, and wish them continued success in inspiring girls to excel and make a difference in the world.

## IN MEMORY OF GORDIE HOWE

### HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. CONYERS. Mr. Speaker, I rise today in remembrance of Gordie Howe, who passed away on June 10, 2016, at the age of 88. Our thoughts and prayers are with his family, friends, and fans across the country.

Born on March 31, 1928, he grew up in Saskatoon, Saskatchewan before coming to Detroit, where he made his National Hockey League debut on October 16, 1946, scoring in his first game at the age of 18. Gordie Howe, or as he was known to a generation and beyond, ''Mr. Hockey'', was the embodiment of the National Hockey League, and an ambassador from Detroit to the rest of the country and to the world. I speak here for Detroit, for the Red Wings, and for the entire NHL, when I say that we will miss him dearly.

Gordie Howe, a 23-time All-Star, was unmatched on the ice, and in his twenty-five seasons with the Red Wings, he led the city of Detroit to four Stanley Cups, winning numerous distinctions along the way. He was also instrumental in the conception of what would become the National Hockey League Players' Association. But Gordie Howe was so much more than a man with a hockey stick; he was a force for good off the ice as well. Gordie, whose wife Colleen ''Mrs. Hockey'' Howe, suffered from Pick's Disease, was heavily involved in the search for a cure to degenerative brain diseases, founding the Gordie and Colleen Howe Fund for Alzheimers, in partnership with the University of Toronto Baycrest.

Mr. Speaker, on June 10, we lost one of the greats. For almost half of his adult life, Gordie Howe represented the city of Detroit with distinction and class, and his legacy will live on long after we are gone, on the banners hanging in Joe Louis Arena, at the charities he championed in retirement, and in the hearts of millions of hockey fans across the continent.

## IN RECOGNITION OF THE 100TH ANNIVERSARY OF THE GIRL SCOUTS GOLD AWARD

### HON. KYRSTEN SINEMA

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Ms. SINEMA. Mr. Speaker, today we honor Girl Scouts of the USA and Girl Scouts-Arizona Cactus-Pine Council, as they celebrate the 100th anniversary of the Gold Award, Girl Scout's highest honor.

Congratulations to the young women who earn the distinguished Gold Award and become exemplary leaders in communities across our country. This accomplishment reflects outstanding leadership and civic engagement. Today, women pilot rockets into space, lead international conglomerates, pioneer new innovations in medicine and technology, and occupy positions of international leadership in countries all over the world. Many of those female leaders are Girl Scout alumnae.

As a Girl Scout, I learned how to be an effective leader and how to work as part of a team. I also learned the importance of being part of a community. The Girl Scouts enables young women to discover their passions. Scouting empowers girls and young women, and teaches the importance of working collaboratively. The Gold Award inspires girls in Arizona to find greatness inside themselves and to channel ideas and passions to benefit our communities.

Thank you to Girl Scouts-Arizona Cactus-Pine Council and Girl Scout councils across the nation for giving young women courage, confidence, and character.

## TRIBUTE TO DAVE AND LAYLE KREMSKE AND DOTTIE AND BOB BELLAVANCE

### HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr Speaker, I would like to recognize Dave and Layle Kremske, and Dottie and Bob Bellavance, the new inductees of the 2016 Senior Hall of Fame.

For decades, these two couples have made significant contributions to the city of Dunedin. They have donated their time and effort to Pinellas County by being active members of many charitable organizations.

The Kremskes are members of the Friends of the Library program, an organization that provides funding, enhancements, and support to the staff and programs of the Dunedin Library. Layle also served as PTA President and President of the Dunedin Youth Guild, which focuses on supporting youth-focused community projects in Dunedin. Dave has been an active member of the Stadium Advisory and Parks Recreation Advisory committees.

Dottie Bellavance is also on the board of the Friends of the Library program and is active with the Dunedin Youth Guild. She mentors students and volunteers at the Church of the Good Shepherd and serves at the Dunedin Cares Food Pantry. Bob Bellavance has served as CEO and President of the Dunedin Chamber of Commerce and has been a member of the Dunedin Rotary Club for years. He was also a member of the Dunedin Fine Arts Center. Due to his efforts, many local businesses have a stronger relationship with their local government.

Mr. Speaker, I would like to acknowledge the Kremskes and Bellavances for their work and efforts for Pinellas County. They have made their city of Dunedin a better place, and I ask that this body join me in recognizing and thanking them for their diligence and care for our community.

## PERSONAL EXPLANATION

### HON. BLAKE FARENTHOLD

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. FARENTHOLD. Mr. Speaker, on roll call Nos. 297 and 298, I missed votes because of a flight delay due to weather conditions. Had I been present, I would have voted Yes.

## CELEBRATING THE SERVICE OF RABBI DOUG KAHN

### HON. NANCY PELOSI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Ms. PELOSI. Mr. Speaker, it is with great pride that I rise with Representatives JACKIE SPEIER, JARED HUFFMAN, MIKE THOMPSON, BARBARA LEE, ANNA ESHOO and ERIC SWALWELL to honor Rabbi Doug Kahn as he retires as Executive Director of the Jewish Community Relations Council (JCRC) of San Francisco, the Peninsula, Marin, Sonoma, Alameda and Contra Costa Counties.

For 34 years, Rabbi Kahn has served with distinction and led with integrity. Rabbi Kahn's analytical mind, diplomatic skills, endless energy and compassion have earned him the admiration of people around the world. As a consensus builder and community leader, Rabbi Kahn has dedicated his life to answering the sacred call, ''tikkun olam,'' to repair the world.

Since 1938, JCRC has been committed to improving relations between the Jewish community and the community at-large. A strong advocate for the Bay Area Jewish community, Rabbi Kahn has masterfully managed sensitive and challenging issues, built bridges with Americans of many faiths, interests, and ethnic groups.

Under his leadership, JCRC confronted anti-Semitism, the oppression of Soviet Jews, and anti-Israel activities on college campuses.

A fourth-generation San Franciscan, Doug Kahn was born in 1951 to a family that discussed current events around the dinner table. The Civil Rights Movement and protests against the Vietnam War sparked his passion for social justice.

As a UC Berkeley student in 1971, he joined the Bay Area Council for Soviet Jewry

and, at great personal risk, traveled to the Soviet Union. Inspired by that journey, he attended rabbinical school in Israel, where he immersed himself in Jewish traditions and developed a personal connection to the Jewish faith.

In 1979, the Reform Movement's Hebrew Union College ordained Rabbi Kahn. He then served as the executive director of George Washington University Hillel. In 1981, Rabbi Kahn returned to San Francisco and joined JCRC as assistant director.

During the Soviet Jewry exodus, Rabbi Kahn fought for the freedom of Soviet Jews. Influenced by his two mentors, legends in our community, then-JCRC Director Earl Raab and Associate Director Rita Semel, Rabbi Kahn helped mobilize the community.

In 1987, Rabbi Kahn and a cheering crowd welcomed to San Francisco ''refusenik'' Natan Sharansky, who had been freed from a Soviet prison.

Later that year, Rabbi Kahn was promoted to Associate Director of JCRC and in 1999, he became Executive Director following the retirements of Raab and Semel. Rabbi Kahn has built strong interfaith and interethnic relationships with African American, Asian American, Latino and Muslim American communities championing civil rights, employment, housing, equality in education, immigration, nuclear nonproliferation, domestic violence prevention, marriage equality and the end of apartheid in South Africa.

In the face of crises and tragedy, Rabbi Kahn built bridges. From standing on the pulpit at San Francisco's Third Baptist Church in affirmation of a strong African American-Jewish alliance after the Rodney King verdict to performing outreach to the local Bosnian Muslim community after the brutal human rights violations against Bosnians in the 1992–95 civil war, and more recently, standing in solidarity with Muslim Americans threatened by Islamophobia, Rabbi Kahn and the JCRC have made our communities stronger.

Although Rabbi Kahn is leaving JCRC, he will continue to offer his wisdom and superb skills for JCRC's values and priorities.

My colleagues and I hope his departure from JCRC will allow Rabbi Kahn to spend more time with Ellen, his beloved wife, and their two sons, Joey and Daniel.

Mr. Speaker, we ask the House of Representatives to join us in celebrating the outstanding contributions our good friend Rabbi Doug Kahn has made to the Bay Area and beyond. His moral compass, eternal optimism, unwavering dedication and perseverance have profoundly strengthened our communities.

## TRIBUTE TO WAYNE HEFTY

### HON. DAVID W. JOLLY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. JOLLY. Mr. Speaker, I want to recognize Wayne Hefty for his service to Pinellas County.

Mr. Hefty has worked in Pinellas for many years. In 1975, he worked in Gulfport as a park supervisor landscaping and designing green spaces. In 1979, he opened up his own business where he designed and installed parks and playgrounds all over the community.

In 1992, he applied to be the Director of Public Works in Indian Rocks Beach, and among sixty applicants, Mr. Hefty was chosen for the job. His first task was to fix up the city for the annual Art in the Park show in 1992 which he completed successfully. From there, he finished dozens of projects including the city's Nature Park and Beach Access walkovers. Mr. Hefty was also involved in Keep Pinellas Beautiful, an organization formed in 1996. He was an active member of the board for ten years and served as a treasurer.

In 1998, Mr. Hefty became a consultant for the Pinellas County School Board and Pinellas County Utilities. His first assignment was to find out the energy usage for 140 different school buildings in eleven different municipalities. He also worked with the county's water management and created the energy team to manage the county's water, recycling, and trash programs. This project saved the city twelve million dollars. In 2004, he joined the Energy Systems Group which proposed energy saving strategies across thirteen states.

Mr. Speaker, I want to recognize Wayne Hefty for his hard work for Pinellas County. He has shown exceptional dedication to the community and it has been a pleasure having him as a neighbor. I ask that this body rise to recognize Mr. Hefty for his years of service.

## ON THE TRAGIC ORLANDO PULSE NIGHTCLUB SHOOTING

### HON. AL GREEN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. AL GREEN of Texas. Mr. Speaker, I would like to express my deepest sympathies to the victims, as well as their families and friends, all of whom have been devastated by the senseless carnage at the Orlando, Florida Pulse Nightclub, which took place on Sunday, June 12, 2016.

As of June 14, 2016, 49 innocent people have lost their lives and many more were wounded in the brutal slaughter, as they sought to enjoy their weekend. We must not allow the hatred of LGBTQ Equality by a dastard to define their lives. We must remember and respect each of the victims for their individuality and the joy they brought to the lives of others.

Mr. Speaker, especially since this month is LGBTQ Pride Month, we should mourn their passing with deep sorrow and celebrate their lives with an abundance of love.

Mr. Speaker, we must also do more than speak heartfelt words of love and condolences. We must speak through legislation that may not save all lives but can save some lives.

We cannot allow history to record that when all was said and done, more was said than done.

## HONORING THE LIFE OF MITCHELL ALEXANDER WINEY

### HON. PETER J. VISCLOSKY

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. VISCLOSKY. Mr. Speaker, it is with immense sorrow and great respect that I rise to remember United States Military Academy (USMA) Cadet Mitchell Alexander Winey for his patriotism and dedication to serving his country. His untimely death occurred on June 2, 2016, at Fort Hood, Texas, while participating in Cadet Troop Leader Training. Cadet Winey was a member of the USMA Class of 2018, B Company, First Regiment.

Mitchell Winey, born in Valparaiso, Indiana, graduated from Chesterton High School in 2014, where he served as class president for four years. Mitchell excelled in his studies and was an honor roll student who belonged to the National Honor Society. In addition, he was nominated by his peers to participate in the Natural Helpers Program during his high school tenure, which was a testament to his helpfulness and kind-hearted spirit when it came to serving others in his community. An accomplished athlete, Mitchell was also the captain of his high school soccer team and enjoyed skiing and hiking. Later, at West Point, Cadet Winey went on to become a founding member of the newly-formed freestyle ski team.

On July 2, 2014, Mitchell reported to the United States Military Academy at West Point. He was a rising leader in his class and had an exemplary academic record as an engineering management major. Cadet Winey's outstanding academic performance earned him recognition on the Dean's List for four semesters, and he also earned the Army Physical Fitness Badge three times while participating on his company's soccer and ultimate Frisbee teams.

Lieutenant General Robert L. Caslen Jr., Superintendent of the United States Military Academy, depicted Winey as immensely proud to be a cadet and one who exemplified the ideals and values of West Point in all he set out to do. For his service, Cadet Winey received the National Defense Service Medal and the Army Commendation Medal.

Friends and teachers describe Mitchell as a gracious and enthusiastic young man who excelled as a student leader. His friends will remember him as talented, intelligent, hard-working, and adventurous. Residents in the community are remembering Cadet Winey as a dedicated American hero.

Mitchell leaves behind a beloved host of family and friends. He is survived by his loving mother, Margo, and proud father, Tim. Mitchell also leaves to cherish his memory his dear sister, Paige. He will be greatly missed by his grandparents, Shirley Winey and Ronald Groff, and by many other friends and family members, as well as an appreciative, yet profoundly saddened, community.

Mr. Speaker, at this time, I ask that you and my other distinguished colleagues join me in honoring a fallen hero, USMA Cadet Mitchell Winey. Cadet Winey sacrificed his life during training for service to his country, and his death comes as a great tragedy to our nation. Cadet Mitchell Alexander Winey will forever endure as a hero in the eyes of his family, his

community, and his country. Thus, let us never forget the ultimate sacrifice he made to preserve the ideals of our country as a free and democratic society.

## COMMENDING THE FARM CREDIT SYSTEM FOR 100 YEARS OF SERVICE TO RURAL AMERICA AND THE AGRICULTURAL INDUSTRY

### HON. K. MICHAEL CONAWAY

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. CONAWAY. Mr. Speaker, today, I rise to commend the Farm Credit System for 100 years of service to rural America and the agriculture industry.

The importance of the Farm Credit System is largely unknown to those outside of agriculture, often leaving it prone to political attacks. However, its importance to those it serves has never been greater, as declining commodity prices have led to a sharp downturn in the farm economy. Thankfully, the Farm Credit System and its members have been there to help lessen the burden.

To understand the Farm Credit System, it's important to look back to its roots. In the early 1900s, credit was largely unavailable or unaffordable in rural areas, and lenders avoided agricultural loans due to their associated risks. In 1908, President Theodore Roosevelt appointed a commission to explore the problem and ultimately found a need to develop more cooperatives and a cooperative credit system for farmers.

From that idea, Congress passed the Federal Farm Loan Act of 1916, eventually resulting in the establishment of the Farm Credit System—a system created to provide a permanent, reliable source of credit to American agriculture.

The Farm Credit System's mission has evolved over time. For example, in 1980, Congress empowered the Farm Credit System to provide valuable capital for infrastructure necessary for communities to thrive.

But since its inception, the Farm Credit System has never wavered in its mission of providing lines of credit to our rural communities in good times and in bad. During the late 1980's, our farmers and ranchers faced particularly difficult times. Fortunately, the agriculture industry and the Farm Credit System were able to weather the storm together and emerged even more prepared for the years to come. Today, I believe that the Farm Credit System is fundamentally safe and sound and in a position to endure the challenges that it will inevitably face.

To acknowledge and celebrate a century of dedicated service to rural America, I was proud to sponsor House Resolution 591, commemorating Farm Credit's 100th anniversary. Providing more than $237 billion in loans to more than 500,000 customers, the Farm Credit System has worked tirelessly in all 50 states to ensure a vibrant rural economy, and I am proud to congratulate them today.

## DR. ROBERT E. WITT, CHANCELLOR OF THE UNIVERSITY OF ALABAMA SYSTEM

### HON. ROBERT B. ADERHOLT

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. ADERHOLT. Mr. Speaker, I would like to recognize and honor Dr. Robert E. Witt for his academic career and the impact he had on higher education. As Dr. Witt closes another successful chapter of his life as the Chancellor of the University of Alabama System, I believe it is important to recognize a few of his numerous accomplishments and his service to the nation and to the great State of Alabama.

Dr. Robert Witt began his educational endeavors at Bates College in Lewiston, Maine, where he received his Bachelor of Arts in Economics in 1962. In 1964, Witt received his MBA from the Tuck School at Dartmouth College, and his Ph.D. in Business Administration from Penn State in 1968. Over the next 35 years, he established a career of excellence in higher education. Dr. Witt served in various positions at The University of Texas, including serving as dean of the Business School at the University of Texas at Austin and president of the University of Texas at Arlington.

In March of 2003, Dr. Witt was appointed President of The University of Alabama. During his nine-year tenure as President, Witt led an ambitious plan for academic growth and achievement that has positioned UA as one of America's fastest growing public universities. In 2012, he was appointed by the University's Board of Directors to serve as the Chancellor of the University of Alabama System. The University of Alabama System is comprised of the universities in Tuscaloosa, Birmingham and Huntsville as well as the University of Alabama at Birmingham Health System.

Dr. Witt has held several important roles aside from his leadership at the University of Alabama, including serving as the chairman of the Council of Presidents of Alabama's public colleges and universities. Dr. Witt has played a leadership role in various organizations during his time in Alabama which include the Governor's College & Career Ready Task Force; the American Cast Iron Pipe Company Board of Directors; the Alexis deTocqueville Executive Committee; the Advisory Board, Elizabeth Project Care Board. He is past chairman of the Chamber of Commerce of West Alabama, a past member of the Tuscaloosa County IDA Board and the Black Warrior Council Boy Scouts of America. In 2011 he was inducted into to the Alabama Academy of Honor, which is comprised of 100 living Alabamians elected on the basis of service to the state.

I want to commend Dr. Witt for his success and his dedication to higher education. While Dr. Witt's career may be coming to a close over the next few months, the impact he has left on students and faculty will echo for several generations to come. I wish him and his family all the best in the future.

## COMMEMORATING THE 176TH ANNIVERSARY OF THE YELLOW RIVER BAPTIST CHURCH IN BAKER, FLORIDA

### HON. JEFF MILLER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, June 14, 2016*

Mr. MILLER of Florida. Mr. Speaker, I rise to commemorate the 176th anniversary of the Yellow River Baptist Church in Baker, Florida.

For 176 years, the Yellow River Baptist Church has served the citizens of the Gulf Coast, and today it stands as a pillar of the Northwest Florida community as the first Baptist church in Walton and Escambia counties and one of the oldest Baptist churches in the State of Florida.

The Yellow River Baptist Church was established on Sunday, June 14, 1840 with the assistance of two representatives of the Bethlehem Baptist Association of Alabama, nearly five years before Florida entered its statehood. What started with a small handful of congregants residing along the upper Yellow River just south of the Alabama line has grown over the years, and throughout the course of its history, the church family has consisted of members including from the Baggett, Barrow, Blackman, Campbell, Carver, Clary, Cobb, Collingsworth, Cook, Danelly, Gartman, Gaskins, George, Hart, Helms, Howell, King, Madden, Milligan, Parker, Peaden, Richbourg, Senterfitt, Stegall, Steele, Stewart and Wilkinson families.

The success of the Yellow River Baptist Church, without question, is a true testament to the congregation's strong faith in the Lord and strength of its community, and it is my privilege to honor them on this important occasion.

Mr. Speaker, my wife Vicki joins me in congratulating this small but faithful congregation for its 176 years of service and dedication to God and to the Northwest Florida community. May God grant the congregants of Yellow River Baptist Church many more years to come and may His blessings continue to shine down on them.

# *Daily Digest*

## HIGHLIGHTS

**Senate passed S. 2943, National Defense Authorization Act, as amended.**

# Senate

## *Chamber Action*

***Routine Proceedings, pages S3833–S3874***

**Measures Introduced:** Four bills and two resolutions were introduced, as follows: S. 3054–3057, and S. Res. 493–494. **Pages S3860–61**

**Measures Reported:**

S. 1479, to amend the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 to modify provisions relating to grants. (S. Rept. No. 114–276)

S. 2829, to amend and enhance certain maritime programs of the Department of Transportation, with an amendment in the nature of a substitute. **Page S3860**

**Measures Passed:**

*National Defense Authorization Act:* By 85 yeas to 13 nays (Vote No. 98), Senate passed S. 2943, to authorize appropriations for fiscal year 2017 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, after taking action on the following amendments proposed thereto: **Pages S3835–41**

Adopted:

Nelson/Gardner Modified Amendment No. 4670 (to Amendment No. 4607), relating to the evolved expendable launch vehicle program for space launch of national security satellites. **Pages S3835–41**

McCain Amendment No. 4607, to amend the provision on share-in-savings contracts. **Page S3841**

Withdrawn:

Reed (for Reid) Amendment No. 4603 (to Amendment No. 4607), to change the enactment date. **Page S3835**

*Death of Former Senator George V. Voinovich:* Senate agreed to S. Res. 493, relative to the death of George V. Voinovich, former United States Senator for the State of Ohio. **Pages S3846–49, S3871**

*National Child Awareness Month:* Senate agreed to S. Res. 494, designating September 2016 as "National Child Awareness Month" to promote awareness of charities benefiting children and youth-serving organizations throughout the United States and recognizing the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States. **Pages S3870–71**

**Measures Considered:**

**Commerce, Justice, Science, and Related Agencies Appropriations Act—Agreement**: Senate resumed consideration of the motion to proceed to consideration of H.R. 2578, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016. **Pages S3844–46**

During consideration of this measure today, Senate also took the following action:

By 94 yeas to 3 nays (Vote No. 99), three-fifths of those Senators duly chosen and sworn, having voted in the affirmative, Senate agreed to the motion to close further debate on the motion to proceed to consideration of the bill. **Pages S3844–45**

A unanimous-consent agreement was reached providing that at 10:30 a.m., on Wednesday, June 15, 2016, Senate vote on the motion to proceed to consideration of the bill. **Page S3871**

**Message from the President:** Senate received the following message from the President of the United States:

Transmitting, pursuant to the Atomic Energy Act of 1954, the proposed Agreement for Cooperation Between the Government of the United States of America and the Government of the Kingdom of Norway Concerning Peaceful Uses of Nuclear Energy; which was referred to the Committee on Foreign Relations. (PM–51) **Page S3854**

**Messages from the House:** **Pages S3854–55**

**Measures Referred:** **Page S3855**

**Petitions and Memorials:** Pages S3855–60

**Additional Cosponsors:** Pages S3861–62

**Statements on Introduced Bills/Resolutions:** Pages S3862–64

**Additional Statements:** Pages S3851–54

**Amendments Submitted:** Pages S3864–70

**Authorities for Committees to Meet:** Page S3870

**Record Votes:** Two record votes were taken today. (Total—99) Pages S3841, S3844–45

**Adjournment:** Senate convened at 10:02 a.m. and adjourned, as a further mark of respect to the memory of the late Senator George Voinovich, in accordance with S. Res. 493, at 6:08 p.m., until 9:30 a.m. on Wednesday, June 15, 2016. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S3874.)

# *Committee Meetings*

*(Committees not listed did not meet)*

## APPROPRIATIONS: DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES

*Committee on Appropriations:* Subcommittee on Department of the Interior, Environment, and Related Agencies approved for full committee consideration an original bill entitled, "Department of the Interior, Environment, and Related Agencies Appropriations Act, Fiscal Year 2017".

## SECURITIES AND EXCHANGE COMMISSION OVERSIGHT

*Committee on Banking, Housing, and Urban Affairs:* Committee concluded an oversight hearing to examine the Securities and Exchange Commission, including S. 2867, to amend the Securities Exchange Act of 1934 to establish an Office of the Advocate for Small Business Capital Formation and a Small Business Capital Formation Advisory Committee, after receiving testimony from Mary Jo White, Chair, Securities and Exchange Commission.

## OIL AND GAS PIPELINE INFRASTRUCTURE

*Committee on Energy and Natural Resources:* Committee concluded a hearing to examine oil and gas pipeline infrastructure and the economic, safety, environmental, permitting, construction, and maintenance considerations associated with that infrastructure, after receiving testimony from Paul W. Parfomak, Congressional Research Service, Library of Congress; Andrew J. Black, Association of Oil Pipe Lines, Ross Eisenberg, National Association of Manufacturers, and Sean McGarvey, North America's Building Trades Unions, all of Washington, D.C.; and N. Jonathan Peress, Environmental Defense Fund, Boston, Massachusetts.

## EPA OVERSIGHT

*Committee on Environment and Public Works:* Subcommittee on Superfund, Waste Management, and Regulatory Oversight concluded an oversight hearing to examine the Environmental Protection Agency's progress in implementing Inspector General and Government Accountability Office recommendations, after receiving testimony from Alfredo Gomez, Director, Natural Resources and Environment, Government Accountability Office; and Alan S. Larsen, Counsel to the Inspector General, Environmental Protection Agency.

## ENERGY TAX POLICY

*Committee on Finance:* Committee concluded a hearing to examine energy tax policy in 2016 and beyond, after receiving testimony from Benjamin Zycher, American Enterprise Institute, and Karen Harbert, U.S. Chamber of Commerce Institute for 21st Century Energy, both of Washington, D.C.; Steve Miller, Bulk Handling Systems and Zero Waste Energy, LLC, Eugene, Oregon; and Susan Kennedy, Advanced Microgrid Solutions, San Francisco, California.

## INTELLIGENCE

*Select Committee on Intelligence:* Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

# House of Representatives

## *Chamber Action*

**Public Bills and Resolutions Introduced:** 18 public bills, H.R. 5465–5482; and 3 resolutions, and H. Res. 781–782, 784 were introduced. **Pages H3815–17**

**Additional Cosponsors:** **Page H3817**

**Reports Filed:** Reports were filed today as follows:

H.R. 4768, to amend title 5, United States Code, with respect to the judicial review of agency interpretations of statutory and regulatory provisions, with amendments (H. Rept. 114–622); and

H. Res. 783, providing for further consideration of the bill (H.R. 5293) making appropriations for the Department of Defense for the fiscal year ending September 30, 2017, and for other purposes (H. Rept. 114–622). **Page H3815**

**Speaker:** Read a letter from the Speaker wherein he appointed Representative Bost to act as Speaker pro tempore for today. **Page H3757**

**Recess:** The House recessed at 11:22 a.m. and reconvened at 12 noon. **Page H3766**

**Guest Chaplain:** The prayer was offered by the Guest Chaplain, Reverend Al Riddley, The Springs of Bonita Church, Bonita Springs, Florida. **Page H3766**

**Committee Election:** The House agreed to H. Res. 781, electing a Member to certain standing committees of the House of Representatives. **Page H3769**

**Suspension—Proceedings Resumed:** The House agreed to suspend the rules and pass the following measure which was debated on Monday, June 13th:

***National Science Foundation Major Research Facility Reform Act of 2016:*** H.R. 5049, amended, to provide for improved management and oversight of major multi-user research facilities funded by the National Science Foundation, and to ensure transparency and accountability of construction and management costs, by a 2/3 yea-and-nay vote of 412 yeas to 9 nays, Roll No. 301. **Pages H3776–77**

**Unanimous Consent Agreement:** Agreed by unanimous consent that the question of adopting a motion to recommit on H.R. 5053 may be subject to postponement as though under clause 8 of rule 20. **Page H3777**

**Recess:** The House recessed at 3 p.m. and reconvened at 4:01 p.m. **Page H3784**

**Preventing IRS Abuse and Protecting Free Speech Act:** The House passed H.R. 5053, to amend the Internal Revenue Code of 1986 to prohibit the Secretary of the Treasury from requiring that the identity of contributors to 501(c) organizations be included in annual returns, by a recorded vote of 240 ayes to 182 noes, Roll No. 303. **Pages H3769–76, H3777–86**

Rejected the Sarbanes motion to recommit the bill to the Committee on Ways and Means with instructions to report the same back to the House forthwith with an amendment, by a yea-and-nay vote of 180 yeas to 238 nays, Roll No. 302. **Page H3785**

Pursuant to the Rule, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–58 shall be considered as adopted, in lieu of the amendment in the nature of a substitute recommended by the Committee on Ways and Means now printed in the bill. **Pages H3777–78**

H. Res. 778, the rule providing for consideration of the bills (H.R. 5053) and (H.R. 5293) was agreed to by a recorded vote of 239 ayes to 179 noes, Roll No. 300, after the previous question was ordered by a yea-and-nay vote of 236 yeas to 171 nays, Roll No. 299. **Pages H3769, H3775–76**

**Department of Defense Appropriations Act, 2017:** The House began consideration of H.R. 5293, making appropriations for the Department of Defense for the fiscal year ending September 30, 2017. Consideration is expected to resume tomorrow, June 15th. **Pages H3769–76, H3786–H3804**

H. Res. 778, the rule providing for consideration of the bills (H.R. 5053) and (H.R. 5293) was agreed to by a recorded vote of 239 ayes to 179 noes, Roll No. 300, after the previous question was ordered by a yea-and-nay vote of 236 yeas to 171 nays, Roll No. 299. **Pages H3769, H3775–76**

**Recess:** The House recessed at 6:54 p.m. and reconvened at 9:14 p.m. **Page H3814**

**Presidential Message:** Read a message from the President wherein he transmitted the text of a proposed Agreement for Cooperation between the Government of the United States of America and the Government of the Kingdom of Norway Concerning Peaceful Uses of Nuclear Energy, as well as his written approval, authorization, and determination concerning the Agreement, and an unclassified Nuclear Proliferation Assessment Statement concerning the Agreement—referred to the Committee on Foreign Affairs and ordered to be printed (H. Doc. 114–142). **Page H3804**

**Senate Message:** Message received from the Senate by the Clerk and subsequently presented to the House today appear on page H3786.

**Quorum Calls—Votes:** Three yea-and-nay votes and two recorded votes developed during the proceedings of today and appear on pages H3775–76, H3776, H3777, H3785 and H3785–86. There were no quorum calls.

**Adjournment:** The House met at 10 a.m. and adjourned at 9:15 p.m.

# *Committee Meetings*

### REVIEW OF THE IMPACT OF G–20 CLEARING AND TRADE EXECUTION REQUIREMENTS

*Committee on Agriculture:* Subcommittee on Commodity Exchanges, Energy and Credit held a hearing to review the impact of G–20 clearing and trade execution requirements. Testimony was heard from public witnesses.

### COMBATTING SUPERBUGS: U.S. PUBLIC HEALTH RESPONSES TO ANTIBIOTIC RESISTANCE

*Committee on Energy and Commerce:* Subcommittee on Oversight and Investigations held a hearing entitled ''Combatting Superbugs: U.S. Public Health Responses to Antibiotic Resistance''. Testimony was heard from Beth Bell, Director, National Center for Emerging and Zoonotic Infectious Disease, Centers for Disease Control; Dennis Dixon, Division of Microbiology and Infectious Diseases, National Institute of Allergy and Infectious Diseases, National Institutes of Health; Richard Hatchett, Acting Director, Biomedical Advanced Research and Development Authority; and Janet Woodcock, Director, Center for Drug Evaluation and Research, Food and Drug Administration.

### FCC OVERREACH: EXAMINING THE PROPOSED PRIVACY RULES

*Committee on Energy and Commerce:* Subcommittee on Communications and Technology held a hearing entitled ''FCC Overreach: Examining the Proposed Privacy Rules''. Testimony was heard from public witnesses.

### MISCELLANEOUS MEASURE

*Committee on Energy and Commerce:* Full Committee began a markup on H.R. 2646, the ''Helping Families in Mental Health Crisis Act''.

### U.S. POLICY TOWARD PUTIN'S RUSSIA

*Committee on Foreign Affairs:* Full Committee held a hearing entitled ''U.S. Policy Toward Putin's Russia''. Testimony was heard from public witnesses.

### OVERSTAYING THEIR WELCOME: NATIONAL SECURITY RISKS POSED BY VISA OVERSTAYS

*Committee on Homeland Security:* Subcommittee on Border and Maritime Security held a hearing entitled ''Overstaying Their Welcome: National Security Risks Posed by Visa Overstays''. Testimony was heard from the following Department of Homeland Security officials: John Wagner, Deputy Assistant Commissioner, Customs and Border Protection; Craig Healy, Assistant Director for National Security Investigations, Homeland Security Investigations, Immigration and Customs Enforcement; Kelli Ann Burriesci, Deputy Assistant Secretary, Screening Coordination Office; and Robert Burns, Deputy Director, Advanced Research Projects Agency, Science and Technology Directorate.

### LEGISLATIVE MEASURE

*Committee on Natural Resources:* Subcommittee on Energy and Mineral Resources held a hearing on H.R. 5259, the ''Certainty for States and Tribes Act''. Testimony was heard from Jillian Balow, Superintendent, Wyoming Department of Education; Alex Kean, Administrator, Wyoming Department of Administration and Information, Economic Analysis Division; Amanda Leiter, Deputy Assistant Secretary, Land and Minerals Management, Department of the Interior; and public witnesses.

### LEGISLATIVE MEASURES

*Committee on Natural Resources:* Subcommittee on Indian, Insular and Alaska Native Affairs held a hearing on H.R. 4685, the ''Tule River Indian Reservation Land Trust, Health, and Economic Development Act''; and H.R. 5379, the ''Requirements, Expectations, and Standard Procedures for Executive Consultation with Tribes Act''. Testimony was heard from Cheryl Andrews-Maltais, Senior Advisor, Office of the Assistant Secretary—Indian Affairs, Department of the Interior; and public witnesses.

### MISCELLANEOUS MEASURES

*Committee on Natural Resources:* Full Committee began a markup on H. Res. 169, acknowledging and honoring brave young men from Hawaii who enabled the United States to establish and maintain jurisdiction in remote equatorial islands as prolonged conflict in the Pacific lead to World War II; H.R. 2316, the ''Self-Sufficient Community Lands Act''; H.R. 3062, the ''Assuring Private Property Rights Over Vast Access to Land Act''; H.R. 3094, the ''Gulf States Red Snapper Management Authority Act''; H.R. 3212, to amend the Grand Ronde Reservation Act to make technical corrections, and for other purposes; H.R. 3480, the ''Fort Federica National Monument Boundary Expansion Act of 2015'';

H.R. 3650, the "State National Forest Management Act of 2015"; H.R. 3734, the "Mining Schools Enhancement Act"; H.R. 3839, the "Black Hills National Cemetery Boundary Expansion Act"; H.R. 3843, the "Locatable Minerals Claim Location and Maintenance Fees Act of 2015"; H.R. 3844, the "Energy and Minerals Reclamation Foundation Establishment Act of 2015"; H.R. 3881, the "Cooperative Management of Mineral Rights Act of 2015"; H.R. 4202, the "Fort Ontario Study Act"; H.R. 4245, to exempt importation and exportation of sea urchins and sea cucumbers from licensing requirements under the Endangered Species Act of 1973; H.R. 4510, the "Bolts Ditch Access and Use Act"; H.R. 4582, the "Save Our Salmon Act"; H.R. 4685, the "Tule River Indian Reservation Land Trust, Health, and Economic Development Act"; H.R. 4789, to authorize the Secretary of the Interior to establish a structure for visitor services on the Arlington Ridge tract, in the area of the U.S. Marine Corps War Memorial, and for other purposes; and H.R. 5244, the "Saint Francis Dam Disaster National Memorial Act".

### OVERSIGHT OF THE NATIONAL PARK SERVICE

*Committee on Oversight and Government Reform:* Full Committee held a hearing entitled "Oversight of the National Park Service". Testimony was heard from Mary Kendall, Deputy Inspector General, Department of the Interior; and Jonathan Jarvis, Director, National Park Service, Department of the Interior.

### DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2017

*Committee on Rules:* Full Committee held a hearing on H.R. 5293, the "Department of Defense Appropriations Act, 2017" [amendment consideration]. The committee granted, by record vote of 9–3, a structured rule for further consideration of H.R. 5293. The rule provides that no further general debate shall be in order. The rule provides that the bill shall be considered as read through page 170, line 7. The rule waives all points of order against provisions in the bill for failure to comply with clause 2 of rule XXI. The rule makes in order only those amendments printed in the Rules Committee report, amendments en bloc described in section 3 of the rule, and pro forma amendments described in section 4 of the rule. Each amendment printed in the report may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in the report or against amendments en bloc described in section 3 of the resolution. The rule provides that it shall be in order at any time for the chair of the Committee on Appropriations or his designee to offer amendments en bloc consisting of amendments printed in the report not earlier disposed of. Amendments en bloc shall be considered as read, shall be debatable for 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their designees, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule provides that the chair and ranking minority member of the Committee on Appropriations or their respective designees may offer up to 10 pro forma amendments each at any point for the purpose of debate. The rule provides one motion to recommit with or without instructions. Finally, in section 6, the rule provides that it shall be in order at any time on the legislative day of June 16, 2016 for the Speaker to entertain motions that the House suspend the rules as though under clause 1 of rule XV and that the Speaker or his designee shall consult with the Minority Leader or her designee on the designation of any matter for consideration pursuant to this section. Testimony was heard from Representatives Lee, McGovern, Gabbard, Gibson, Jackson Lee, Gosar, Sean Patrick Maloney of New York, Jones, McSally, Pittenger, and Sanford.

### COAST GUARD MISSION NEEDS AND RESOURCES ALLOCATION

*Committee on Transportation and Infrastructure:* Subcommittee on Coast Guard and Maritime Transportation held a hearing entitled "Coast Guard Mission Needs and Resources Allocation". Testimony was heard from Admiral Charles Michel, Vice Commandant, U.S. Coast Guard; and Jennifer Grover, Director, Homeland Security and Justice Issues, Government Accountability Office.

### EXPANDING U.S. AGRICULTURE TRADE AND ELIMINATING BARRIERS TO U.S. EXPORTS

*Committee on Ways and Means:* Subcommittee on Trade held a hearing entitled "Expanding U.S. Agriculture Trade and Eliminating Barriers to U.S. Exports". Testimony was heard from public witnesses.

## *Joint Meetings*

No joint committee meetings were held.

## NEW PUBLIC LAWS

*(For last listing of Public Laws, see* DAILY DIGEST, *p. D618)*

H.R. 136, to designate the facility of the United States Postal Service located at 1103 USPS Building 1103 in Camp Pendleton, California, as the ''Camp Pendleton Medal of Honor Post Office''. Signed on June 13, 2016. (Public Law 114–166)

H.R. 433, to designate the facility of the United States Postal Service located at 523 East Railroad Street in Knox, Pennsylvania, as the ''Specialist Ross A. McGinnis Memorial Post Office''. Signed on June 13, 2016. (Public Law 114–167)

H.R. 1132, to designate the facility of the United States Postal Service located at 1048 West Robinhood Drive in Stockton, California, as the ''W. Ronald Coale Memorial Post Office Building''. Signed on June 13, 2016. (Public Law 114–168)

H.R. 2458, to designate the facility of the United States Postal Service located at 5351 Lapalco Boulevard in Marrero, Louisiana, as the ''Lionel R. Collins, Sr. Post Office Building''. Signed on June 13, 2016. (Public Law 114–169)

H.R. 2928, to designate the facility of the United States Postal Service located at 201 B Street in Perryville, Arkansas, as the ''Harold George Bennett Post Office''. Signed on June 13, 2016. (Public Law 114–170)

H.R. 3082, to designate the facility of the United States Postal Service located at 5919 Chef Menteur Highway in New Orleans, Louisiana, as the ''Daryle Holloway Post Office Building''. Signed on June 13, 2016. (Public Law 114–171)

H.R. 3274, to designate the facility of the United States Postal Service located at 4567 Rockbridge Road in Pine Lake, Georgia, as the ''Francis Manuel Ortega Post Office''. Signed on June 13, 2016. (Public Law 114–172)

H.R. 3601, to designate the facility of the United States Postal Service located at 7715 Post Road, North Kingstown, Rhode Island, as the ''Melvoid J. Benson Post Office Building''. Signed on June 13, 2016. (Public Law 114–173)

H.R. 3735, to designate the facility of the United States Postal Service located at 200 Town Run Lane in Winston Salem, North Carolina, as the ''Maya Angelou Memorial Post Office''. Signed on June 13, 2016. (Public Law 114–174)

H.R. 3866, to designate the facility of the United States Postal Service located at 1265 Hurffville Road in Deptford Township, New Jersey, as the ''First Lieutenant Salvatore S. Corma II Post Office Building''. Signed on June 13, 2016. (Public Law 114–175)

H.R. 4046, to designate the facility of the United States Postal Service located at 220 East Oak Street, Glenwood City, Wisconsin, as the ''Second Lt. Ellen Ainsworth Memorial Post Office''. Signed on June 13, 2016. (Public Law 114–176)

H.R. 4605, to designate the facility of the United States Postal Service located at 615 6th Avenue SE in Cedar Rapids, Iowa as the ''Sgt. 1st Class Terryl L. Pasker Post Office Building''. Signed on June 13, 2016. (Public Law 114–177)

## COMMITTEE MEETINGS FOR WEDNESDAY, JUNE 15, 2016

*(Committee meetings are open unless otherwise indicated)*

### Senate

*Committee on Appropriations:* Subcommittee on Financial Services and General Government, business meeting to markup an original bill entitled, ''Financial Services and General Government Appropriations Act, Fiscal Year 2017'', 10 a.m., SD–138.

*Committee on Commerce, Science, and Transportation:* business meeting to consider pending calendar business, 10 a.m., SR–253.

Subcommittee on Oceans, Atmosphere, Fisheries, and Coast Guard, to hold hearings to examine assessing the Coast Guard's increasing duties, focusing on drug and migrant interdiction, 2 p.m., SR–253.

*Committee on Energy and Natural Resources:* Subcommittee on National Parks, to hold hearings to examine S. 2839 and H.R. 3004, bills to amend the Gullah/Geechee Cultural Heritage Act to extend the authorization for the Gullah/Geechee Cultural Heritage Corridor Commission, H.R. 3036, to designate the National September 11 Memorial located at the World Trade Center site in New York City, New York, as a national memorial, H.R. 3620, to amend the Delaware Water Gap National Recreation Area Improvement Act to provide access to certain vehicles serving residents of municipalities adjacent to the Delaware Water Gap National Recreation Area, H.R. 4119, to authorize the exchange of certain land located in Gulf Islands National Seashore, Jackson County, Mississippi, between the National Park Service and the Veterans of Foreign Wars, S. 211, to establish the Susquehanna Gateway National Heritage Area in the State of Pennsylvania, S. 630, to establish the Sacramento-San Joaquin Delta National Heritage Area, S. 1007, to amend the Dayton Aviation Heritage Preservation Act of 1992 to rename a site of the Dayton Aviation Heritage National Historical Park, S. 1623, to establish the Maritime Washington National Heritage Area in the State of Washington, S. 1662, to include Livingston County, the city of Jonesboro in Union County, and the city of Freeport in Stephenson County, Illinois, to the Lincoln National Heritage Area, S. 1690, to establish the Mountains to Sound Greenway National Heritage Area in the State of Washington, S. 1696 and H.R. 482, bills to redesignate the Ocmulgee National Monument in the State of Georgia, to revise the boundary of that monument, S. 1824, to authorize the Secretary of the Interior to conduct a study to assess the suitability and feasibility of designating certain land as the Finger Lakes National

Heritage Area, S. 2087, to modify the boundary of the Fort Scott National Historic Site in the State of Kansas, S. 2412, to establish the Tule Lake National Historic Site in the State of California, S. 2548, to establish the 400 Years of African-American History Commission, S. 2627, to adjust the boundary of the Mojave National Preserve, S. 2807, to amend title 54, United States Code, to require State approval before the Secretary of the Interior restricts access to waters under the jurisdiction of the National Park Service for recreational or commercial fishing, S. 2805, to modify the boundary of Voyageurs National Park in the State of Minnesota, S. 2923, to redesignate the Saint-Gaudens National Historic Site as the ''Saint-Gaudens National Park for the Arts'', S. 2954, to establish the Ste. Genevieve National Historic Site in the State of Missouri, S. 3020, to update the map of, and modify the acreage available for inclusion in, the Florissant Fossil Beds National Monument, S. 3027, to clarify the boundary of Acadia National Park, and S. 3028, to redesignate the Olympic Wilderness as the Daniel J. Evans Wilderness, 2:30 p.m., SD–366.

*Committee on Finance:* to hold hearings to examine challenges and opportunities for United States business in the digital age, 2 p.m., SD–215.

*Committee on Foreign Relations:* Subcommittee on Western Hemisphere, Transnational Crime, Civilian Security, Democracy, Human Rights, and Global Women's Issues, to hold hearings to examine barriers to education globally, focusing on getting girls in the classroom, 10 a.m., SD–419.

Full Committee, to hold hearings to examine United States policy in Libya, 2:15 p.m., SD–419.

*Committee on Health, Education, Labor, and Pensions:* to hold hearings to examine implementing the Child Care Development Block Grant Act of 2014, focusing on perspectives of stakeholders, 10 a.m., SD–430.

*Committee on Homeland Security and Governmental Affairs:* to hold hearings to examine America's insatiable demand for drugs, focusing on examining solutions, 10 a.m., SD–342.

*Special Committee on Aging:* to hold hearings to examine innovations to promote Americans' financial security, 2:30 p.m., SD–562.

## House

*Committee on Appropriations,* Full Committee, markup on Interior, Environment, and Related Agencies Appropriations Bill for FY 2017; and Report on the Revised Interim Suballocation of Budget Allocations for FY 2017, 9 a.m., 2359 Rayburn.

*Committee on Armed Services*, Full Committee, hearing entitled ''Department of Defense Update on the Financial Improvement and Audit Readiness (FIAR) Plan'', 10 a.m., 2118 Rayburn.

*Committee on the Budget,* Full Committee, hearing entitled ''Congressional Budgeting: The Need for Fiscal Goals'', 10 a.m., 210 Cannon.

*Committee on Energy and Commerce,* Full Committee, markup on H.R. 2646, the ''Helping Families in Mental Health Crisis Act'' (continued), 10 a.m., 2123 Rayburn.

*Committee on Financial Services,* Full Committee, markup on H.R. 4538, the ''Senior$afe Act of 2016''; H.R. 4850, the ''Micro Offering Safe Harbor Act''; H.R. 4852, the ''Private Placement Improvement Act of 2016''; H.R. 4854, the ''Supporting America's Innovators Act of 2016''; H.R. 4855, the ''Fix Crowdfunding Act''; H.R. 5143, the ''Transparent Insurance Standards Act of 2016''; H.R. 5311, the ''Corporate Governance Reform and Transparency Act of 2016''; H.R. 5322, the ''U.S. Territories Investor Protection Act of 2016''; H.R. 5421, the ''National Securities Exchange Regulatory Parity Act of 2016''; H.R. 5424, the ''Investment Advisers Modernization Act of 2016''; H.R. 5429, the ''SEC Regulatory Accountability Act; and H.R. 5461, the ''Iranian Leadership Transparency Act'', 10 a.m., 2128 Rayburn.

*Committee on Foreign Affairs,* Subcommittee on the Middle East and North Africa, hearing entitled ''Egypt: Challenges and Opportunities for U.S. Policy'', 10 a.m., 2172 Rayburn.

*Committee on Homeland Security,* Subcommittee on Cybersecurity, Infrastructure Protection, and Security Technologies, hearing entitled ''Oversight of the Cybersecurity Act of 2015'', 10 a.m., 311 Cannon.

*Committee on Natural Resources,* Full Committee, markup on H. Res. 169, acknowledging and honoring brave young men from Hawaii who enabled the United States to establish and maintain jurisdiction in remote equatorial islands as prolonged conflict in the Pacific lead to World War II; H.R. 2316, the ''Self-Sufficient Community Lands Act''; H.R. 3062, the ''Assuring Private Property Rights Over Vast Access to Land Act''; H.R. 3094, the ''Gulf States Red Snapper Management Authority Act''; H.R. 3212, to amend the Grand Ronde Reservation Act to make technical corrections, and for other purposes; H.R. 3480, the ''Fort Federica National Monument Boundary Expansion Act of 2015''; H.R. 3650, the ''State National Forest Management Act of 2015''; H.R. 3734, the ''Mining Schools Enhancement Act''; H.R. 3839, the ''Black Hills National Cemetery Boundary Expansion Act''; H.R. 3843, the ''Locatable Minerals Claim Location and Maintenance Fees Act of 2015''; H.R. 3844, the ''Energy and Minerals Reclamation Foundation Establishment Act of 2015''; H.R. 3881, the ''Cooperative Management of Mineral Rights Act of 2015''; H.R. 4202, the ''Fort Ontario Study Act''; H.R. 4245, to exempt importation and exportation of sea urchins and sea cucumbers from licensing requirements under the Endangered Species Act of 1973; H.R. 4510, the ''Bolts Ditch Access and Use Act''; H.R. 4582, the ''Save Our Salmon Act''; H.R. 4685, the ''Tule River Indian Reservation Land Trust, Health, and Economic Development Act''; H.R. 4789, to authorize the Secretary of the Interior to establish a structure for visitor services on the Arlington Ridge tract, in the area of the U.S. Marine Corps War Memorial, and for other purposes; and H.R. 5244, the ''Saint Francis Dam Disaster National Memorial Act'' (continued), 10 a.m., 1324 Longworth.

*Committee on Oversight and Government Reform,* Full Committee, markup on H. Res. 737, condemning and censuring John A. Koskinen, the Commissioner of Internal Revenue, 9 a.m., 2154 Rayburn.

*Committee on Science, Space, and Technology,* Subcommittee on Energy, hearing entitled ''Innovation in Solar Fuels, Electricity Storage, and Advanced Materials'', 10 a.m., 2318 Rayburn.

Subcommittee on Space, hearing entitled ''Human Spaceflight Ethics and Obligations: Options for Monitoring, Diagnosing, and Treating Former Astronauts'', 2 p.m., 2318 Rayburn.

*Committee on Transportation and Infrastructure,* Subcommittee on Aviation, hearing entitled ''A Review of the Federal Aviation Administration's Air Traffic Controller Hiring, Staffing and Training Plans'', 10 a.m., 2167 Rayburn.

*Committee on Veterans' Affairs,* Subcommittee on Disability Assistance and Memorial Affairs, hearing entitled ''Investigating VA's Management of Veterans' Paper Records'', 10 a.m., 334 Cannon.

Subcommittee on Economic Opportunity, hearing entitled ''Examining 21st Century Programs and Strategies for Veteran Job Seekers'', 2 p.m., 334 Cannon.

*Committee on Ways and Means,* Full Committee, markup on H.R. 5456, the ''Family First Prevention Services Act of 2016''; H.R. 5447, the ''Small Business Health Care Relief Act''; H.R. 5458, the ''Veterans TRICARE Choice Act''; H.R. 5452, to amend the Internal Revenue Code of 1986 to permit individuals eligible for Indian Health Service assistance to qualify for health savings accounts; H.R. 5445, to amend the Internal Revenue Code of 1986 to improve the rules with respect to health savings accounts; H.R. 3080, the ''Tribal Employment and Jobs Protection Act''; H.R. 210, the ''Student Worker Exemption Act of 2015''; and H.R. 3590, the ''Halt Tax Increases on the Middle Class and Seniors Act'', 2 p.m., 1100 Longworth.

*Next Meeting of the* **SENATE**

**9:30 a.m., Wednesday, June 15**

**Senate Chamber**

**Program for Wednesday:** After the transaction of any morning business (not to extend beyond 10:30 a.m.), Senate will vote on the motion to proceed to consideration of H.R. 2578, Commerce, Justice, Science, and Related Agencies Appropriations Act.

*Next Meeting of the* **HOUSE OF REPRESENTATIVES**

**10 a.m., Wednesday, June 15**

**House Chamber**

**Program for Wednesday:** Continue consideration of H.R. 5293—Department of Defense Appropriations Act, 2017 (Subject to a Rule).

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